

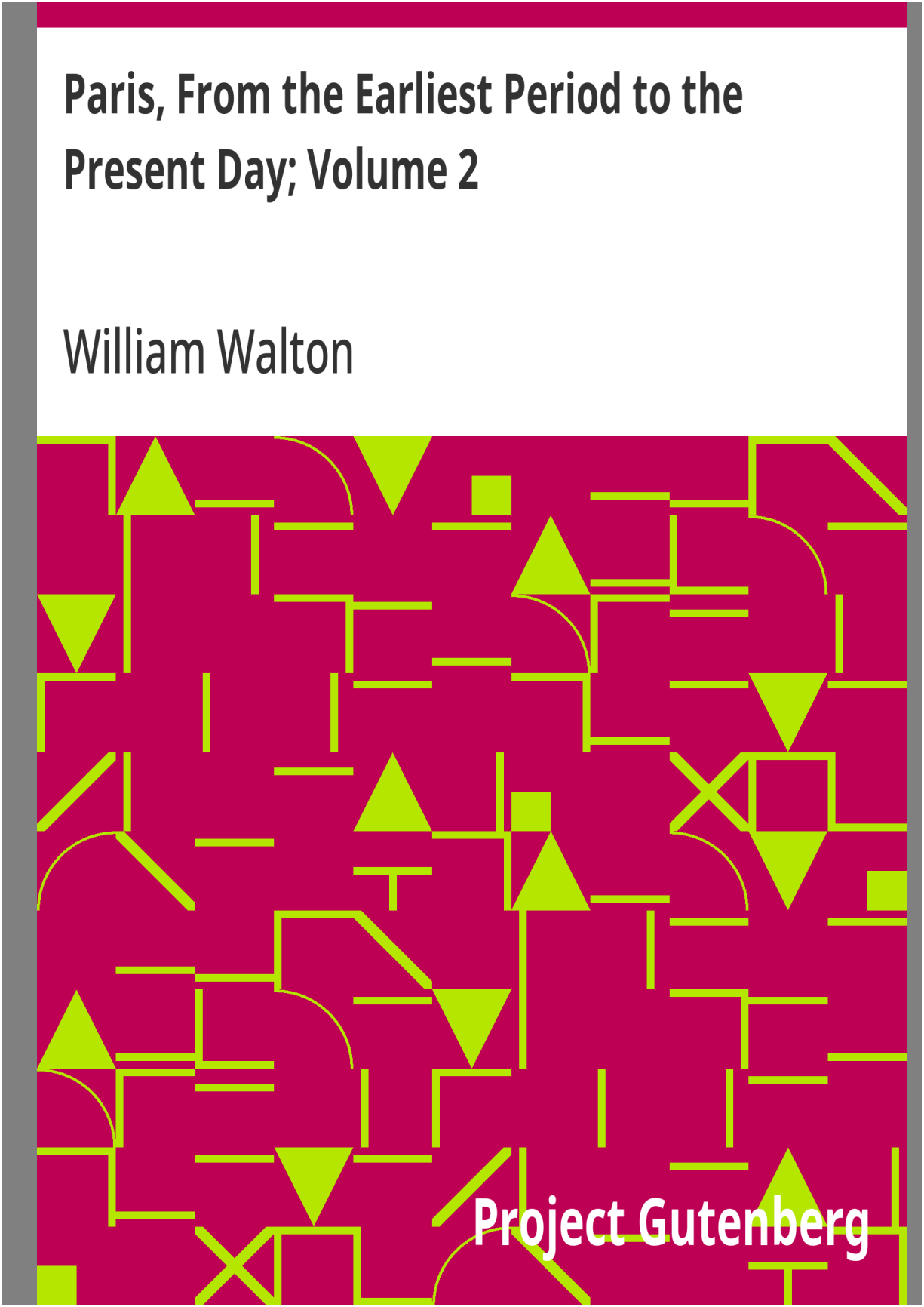
Paris, From the Earliest Period to the Present Day; Volume 2

William Walton

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PARIS
FROM THE EARLIEST PERIOD TO THE PRESENT DAY
VOLUME II



TYPES OF PARISIAN WORKMEN
PHOTOGRAVURE, AFTER THE PAINTING BY N. GÈNEUTTE

IL FLOTTE SANS ÊTRE SUBMERGÉ



PARIS

FROM THE EARLIEST PERIOD TO THE PRESENT DAY



VOLUME II

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CHAPTER IV

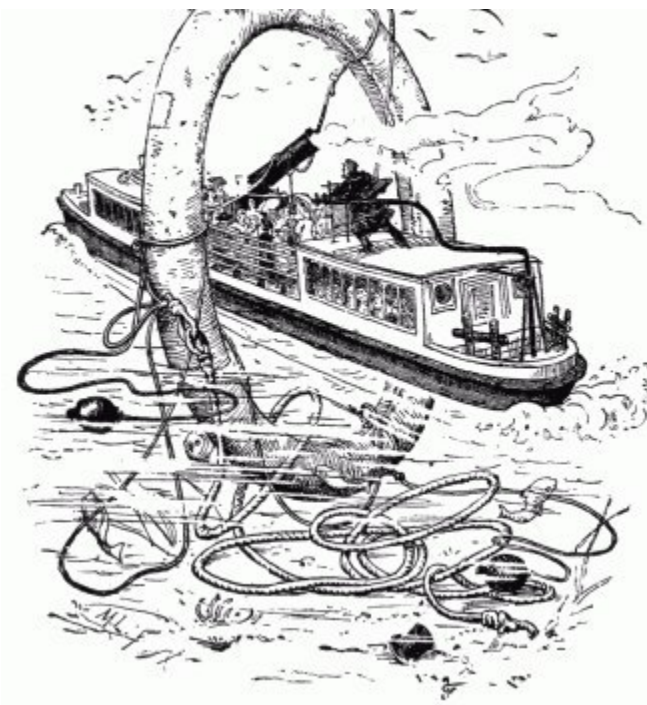
THE ADMINISTRATION, NATIONAL AND MUNICIPAL



LIFE IN THE CASERNE: LATE FOR RECALL. From a drawing, in colors, by George Scott.

THE ADMINISTRATION, NATIONAL AND MUNICIPAL

of the grandest institutions of ancient France was the Parlement de Paris, and its history and that of the *prévôts* would constitute a history of the capital, while that of the fitful and accidental convocations of the *États*



INITIAL FROM A DESIGN BY M. LELOIR.

Généraux would in nowise illustrate that of the nation. Our facilities for acquiring a knowledge of the functions and methods of procedure of the Parlement have been greatly increased by the numerous critical historical works which have appeared within the last few years, amongst which that of M. Felix Aubert, which covers the long period between its origin, in 1250, and the reign of François I, when it was "the instrument par excellence of the national unity and pacification," is, perhaps, the most valuable.

The establishment of the *magistrature prévôtale*, replacing that of the Vicomte de Paris, has been credited to Hugues Capet, but the first official record appears to be a charter given in favor of the monks of Saint-Martin-des-Champs, dated in the last year of the reign of Henri I, 1060, and bearing the signature of Étienne, *prévôt* de Paris. This officer was a lieutenant of the king, designated by him to administer justice in his name; he presided over the tribunal of the Châtelet, and commanded the *guet*, or watch, and the noblesse in the *arrière-ban* of the general muster for war. In Paris, this office required the command of important funds, and several citizens sometimes combined to give guarantees for the *prévôt*. Nevertheless, the latter was frequently found unworthy of this trust, and the Étienne of 1060 appears in the chronicles as advising the young king, Philippe I, to plunder the treasury of Saint-Germain-des-Prés, with the view of securing for himself the famous cross of gold brought from Spain by Childebert. This nefarious scheme was undertaken, but at the moment when the burglarious *prévôt* put out his hand to seize the cross, he was suddenly stricken with blindness.

Of a very different quality was the Étienne Boileau, selected by Saint-Louis to fill this important post, and who, according to Joinville, "executed such good and straight justice," that "no malefactor, thief, or murderer dared

to remain in Paris but he was immediately hanged and exterminated; neither family nor gold nor silver could save him." The king was so well satisfied with his *prévôt* that he caused him to be seated by his side when he presided at the Châtelet, and, in order to preserve to this office, after Boileau, the lustre which he had conferred upon it, he separated from it the receipt of the funds of the royal domains, and created for the latter a receiver, a guardian of the seals, and sixty notaries who exercised their functions under the authority of the *prévôt*, who, subsequently, was entitled *garde de la prévôt de Paris*. The *guet royal* was established, and the *prévôt* drew up the ancient regulations of the hundred trades or handicrafts which existed in the capital, "in order to establish peace and order in industry as he had established it in the nation." These trades were divided into various great corporations. Under this wise king, also, the Hanse, or confraternity, of the *marchandise de l'eau* became definitely the *municipalité parisienne*; for about a century the members of this confraternity had been called *échevins jures*, and their chief was known as the *prévôt des marchands de l'eau*, or *prévôt de confrérie de l'eau*. The numerous privileges which this corporation enjoyed passed in course of time to the *prévôt des marchands*, who acquired, successively, the administration of the *rentes* or funds drawn from the Hôtel de Ville, the regulation of public ceremonies, the care and construction of the public monuments, the opening of new streets, etc. The ancient privileges of the Hanse had previously been confirmed at various times, amongst others, by Louis VII.

Saint-Louis was but a boy of eleven when he succeeded to the throne on the death of his father, and a coalition of the great nobles was immediately formed to take advantage of his minority; but the wisdom, prudence, and piety of his mother, Blanche of Castile, not only preserved the crown for him until he came of age, but also stood him in great service during the years of his reign, especially in those in which he was absent from the kingdom on his ill-starred crusades. One of her most beneficent deeds has been immortalized by the modern painter, Luc-Olivier-Merson, in a noble mural painting,—the delivery of the prisoners held in bondage by the chapitre de Paris (Notre-Dame), several inhabitants of Châtenay who had incurred the displeasure of the ecclesiastical authorities, and who were so maltreated in their dungeons that the lives of several of them were despaired of. The queen at first sent a civil request to the chapter to release the captives under bonds, but the churchmen returned an uncivil refusal and

redoubled their severities; whereupon she proceeded in person to the prison with her son, struck the doors with her bâton, her guards immediately broke them down, and the liberated serfs, men, women, and children, flocked out tumultuously to thank their deliverers on their knees. The canons protested furiously, but the discreet regent, knowing their sensitive point, allowed them to rage openly and contented herself with seizing their temporal revenues. This immediately brought them to terms; in the smoothest of phrases they besought an accommodation, and speedily agreed to set at liberty, in consideration of a certain sum, all those whom they had unjustly incarcerated.

It would scarcely have been thought that this gracious sovereign lady, one of the noblest figures among the women of France, could have been made the object of malicious slander; but one of her latest biographers, M. Élie Berger, thinks it worth while to defend her seriously against the "legend born of jealousy and impotence" of having been the mistress of the Cardinal de Saint-Ange and of the Comte Thibaut de Champagne. His defence, apart from the inherent improbability of the story, seems to be quite convincing.

The centre of authority, for both the nation and the capital, was naturally the king, though, as we have seen, his power was often furiously contested and at times very precarious. Under the Mérovingians, the crown was both elective and hereditary, that is to say, the brother of the deceased monarch was frequently chosen in the place of his eldest son, too young to bear worthily the sword and the sceptre. The royal authority was practically unlimited, the king decreed constitution and laws, made war, and signed treaties of peace; he wore the Roman costume, spoke and wrote in Latin, sate, like the Emperor, in the prætorium to judge, and was given the titles of *Dominus*, of Excellency, and of Majesty. For the personal service of the king, and for the public service, there were a great number of officers,—the *major domus* or mayor of the palace, who eventually pushed the monarch off the throne and mounted it himself; the marshal, the treasurer, the cup-bearer, the chamberlain, and a multitude of inferior officers. The political officers were more particularly the *Comte du Palais*, who sate in the king's tribunal, and the *Référendaire*, a sort of chancellor, who kept the royal signet-ring and sealed the royal decrees. The court, or *palatium*, was crowded with important personages, counts, dukes, and bishops, any of whom might be called to the king's council or to sit in his tribunal. In the

provinces, the royal authority was represented in the *comtés*, which corresponded to the *civitates* of the Romans, by the *comtes*, who were at once judges, generals, and financial administrators, and the *ducs* whose administrative province included several *comtés*. The bishops already enjoyed very considerable political power, and the rôle of the king in their election, by the people and the clerks of their diocese, was confined to confirmation,—a limitation which they very frequently disregarded.

In the edict, or perpetual constitution, drawn up by the assembly of seventy-nine bishops and the *leudes* or great vassals of the three kingdoms, held at Paris in 615, the interference of the king in the election of the bishops was expressly forbidden, and his authority was in many other matters seriously impaired in favor of the double aristocracy, ecclesiastical and military, which was strengthening itself. With the unworthy sons of the "good king Dagobert" this authority gradually disappeared entirely under the rising power of the mayors of the palace, who succeeded in making their office hereditary under an Austrasian family, that of the Carlovings, already powerful in their own right.

Charlemagne's court was constituted much in the same manner as that of the Mérovingians: his royal officers included bishops, comtes, ducs, *missi dominici*, any of whom were eligible for the council that could at need be transformed into a tribunal to judge the causes of the Franks. The efforts of this monarch to repress the persistent progress of the aristocracy were more intelligent and successful than those of his successors, but the general movement of society was in their favor. Charles le Chauve, desirous of obtaining the imperial crown, which was without an owner in 875, assembled his vassals at a diet at Kiersy-sur-Oise and there signed a capitulaire which gave to the sons of those of his comtes who followed him into Italy the right to succeed to their fathers' titles. This formal recognition of a practice already ancient deprived the king of the powers which he had once conferred.



**THE YOUNG SAINT-LOUIS AND HIS MOTHER, BLANCHE OF CASTILLE,
DELIVERING ECCLESIASTICAL PRISONERS FROM NOTRE-DAME.
From a painting by L. O. Merson.**

The Capétiens were also elected to the throne, but the Roman tradition, preserved by the Church, recognized in their accession to power "a decree of Providence," and the *sovereign* was recognized in the feudal suzerain, "even when he was not obeyed." The great royal officers, the *Ministerium regale*, included the Chancellor, who signed the state papers; the Sénéchal, a species of mayor of the palace, of which he had charge of the service; the Connétable, chief of the royal stables and, later, head of the military forces; the Chambrier, keeper of the treasury and the archives; the Bouteillier, who administered the vineyards and the revenues of the royal domains. All these high offices were made the objects of persistent attempts on the part of the holders to retain them as hereditary privileges. In the eleventh, as in the sixth century, we find three classes of society in Gaul, the Gallo-Romans,—the barbarians,—the *clerics*,—the Church being replaced by the seigneurs,—and the serfs, each with its own organization and manners and customs and, in a certain degree, its peculiar language and literature. The first two were rich, active, and powerful; the last, poor and oppressed. There were three

species of jurisdiction exercised by the seigneurs, high, medium, and lower, though some of them had the right only to the last two; these distinctions were frequently regulated by the quality of the accused, and were definitely determined only in succeeding centuries. The right to administer high justice carried with it that of executing death-sentences, and the pillory and the gibbet, erected near the château, were the visible evidences of this power. The bishops and the abbots had the same rights as the seigneurs, even to the extent of donning armor and combating in person if they so willed.

The obligations of the *vilains*, or serfs, included a long list of services, taxes, and obligations of all kinds; in the cities, and wherever possible, the seigneurs were in the habit of requiring payment in money. There was for them a civil as well as a penal law, the *loi vilaine*. They had, however, the right of appeal to the suzerain against the decision of their seigneurs, and Saint-Louis favored these appeals to his own court as tending to subordinate the seigneurial justice to his own. In this royal court a change was taking place,—to the great officers of the crown were now added *légistes*, as the procedures were based upon written precedent, and these bookish personages, at first treated with contempt by the nobles, gradually assumed the leading rôle as their familiarity with the records and their legal knowledge triumphed over the ignorant assurance of their betters.

In the thirteenth century, "the great revolutionist is the king, as the aristocracy had been before Hugues Capet, as the people will be after Louis XIV.... The royal authority had overthrown a great many barriers, and it was marching with great strides toward absolute power. It had imposed upon its turbulent vassals the king's peace, the king's justice, the king's coinage, and it enacted laws for all." In the character of Saint-Louis, "the spirit of justice which is in the Roman law was well combined with his Christian sentiments. When he condemned, for example, the judicial duel, he did so because *combat is not a means of justice*,—this is the Roman conception, and because it is to *criminally tempt God*,—this is the Christian spirit." The enfranchisement of the serfs, which received so great an impulse in this century, was largely brought about by a somewhat similar combination of just impulses and of practical motives,—the latter being frankly expressed by Beaumanoir and in several charters of the period.

The feudal court of the king had the double character of a council and of a court of justice; with the growth of the royal authority the functions of this court naturally increased, and it became necessary to divide them,—there was accordingly constituted the political court, or grand council, and the judicial court, or Parlement. Philippe le Bel, who was far more of an innovator than even Saint-Louis, first gave the latter a distinct organization. It was to sit twice a year at Paris, two months at a time, in the Palais de la Cité, which, in 1303, took the name of the Palais de Justice. The monarch counted upon his sovereign court of justice, which extended its jurisdiction over the whole kingdom, to bring the nation definitely under the royal authority. As the Parlement had been separated from the *Grand Conseil*, or royal court, so was there separated from it the *Chambre des Comptes*, charged with the administration of the finances. With this monarch also originated the institution of the *ministère public*, or magistrates charged, in all legal cases, with the defence of the rights of the king and of the public welfare.



CASTELLAN. REIGN OF LOUIS XIII. After a drawing by Adrian Moreau.

But the most important measure of the administration of this reign was the convocation, in 1302, of the first States-General. "The *États Généraux* of Philippe le Bel," says Michelet, "constituted the national era of France, its certificate of birth." Despotic as he was, the king found himself under the necessity of seeking the support of the people for aid in his enterprises and to sustain him against the intolerable claims of the Papacy. The *Assemblées*

Générales, in which the bishops met with the seigneurs, had been convoked as early as the reign of Pepin le Bref, in the middle of the eighth century, but in the *États Généraux* the sons of vilains took their seats with nobles and clergy. And very loyally they came to the aid of the monarch, not only in granting him the right to levy subsidies on the Church, but also in protesting against the bull of excommunication which Boniface VIII had launched against the king and the nation, and which Philippe had caused to be publicly burned on the 11th of February, 1302. It was unanimously declared that "the kings recognized no sovereign on the earth excepting God, and that it was an abomination to hear Boniface maintain that the kingdoms were subject to him, not only spiritually but temporally."

Under Philippe V, the *États Généraux* were convoked three times, and the regularity of their sittings thus seemingly established; this monarch also, following the procedure established under Louis XI, 1462, excluded the clergy from the Parlement, in order that he might have there only docile members. They re-entered it later under the name of *conseillers clercs*. In 1318 was created the *Conseil étroit*, or Council of State, which was the deliberative power, as the officers of the crown and the *clercs du secret*, from whom were selected later the secretaries of State, constituted the executive power. In the reign of Philippe VI, in 1338, the great principle of "taxation without representation is tyranny" was openly proclaimed in a meeting of the *États Généraux*, and the monarchs henceforth found themselves constrained to wage a varying struggle against this claim of the representatives of the nation to be consulted before the levying of imposts upon them. In the Dark Ages, now fast drawing to a close, three great principles had been promulgated which were to survive through many tribulations to the present day,—that no tax could be imposed without the consent of those who were to pay it; that no law could be enacted if it were not accepted by the representatives of those who were to obey it; that no judgment was legal unless rendered by the peers of the accused.

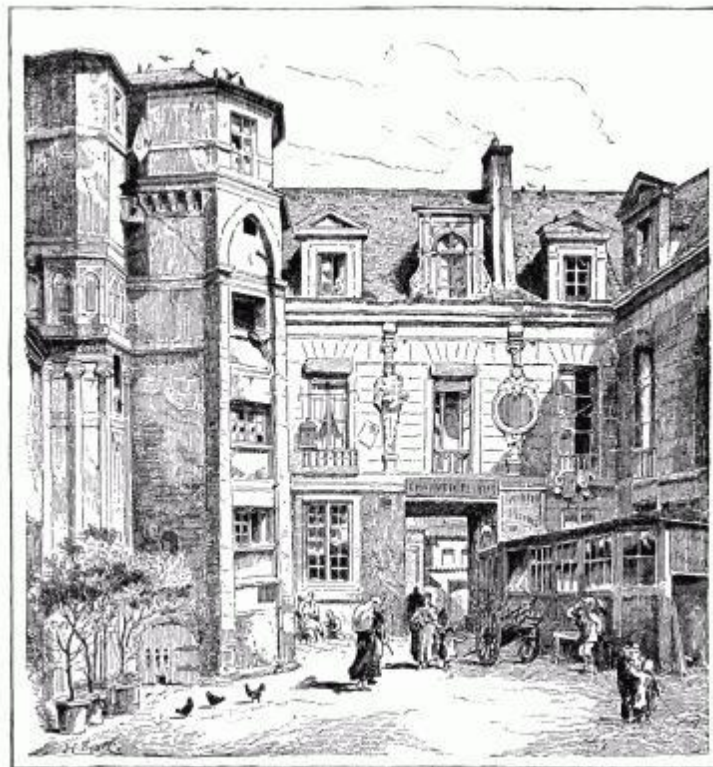
By an ordinance of Philippe VI, dated March 11, 1344, the personnel of the Parlement was fixed at three presidents and seventy-eight *conseillers*, appointed; of the latter, forty-four were ecclesiastics, and thirty-four, laymen. It was subsequently divided into seven chambers, the *grand'chambre*, the *chambre criminelle*, or *la Tourelle*, three *chambres des enquêtes*, and two *chambres des requêtes*. The first took cognizance of the

important causes which concerned the State, the city, and the corporations; the criminal chamber sat in appeal on judgments rendered in the criminal courts (after 1515 it was given general jurisdiction); the three *chambres des enquêtes* decided upon the validity of appeals addressed to the Parlement, and decided as a court of last resort in processes which entailed punishments by fine; the two *chambres des requêtes* judged personal suits between officers of the royal household and others who, by their rank, were entitled to be judged by the Parlement. The second *chambre des requêtes* was instituted in 1580; they were both suppressed at the establishment of the Parlement Maupeou, in 1771. When Louis XIV recalled the Parlement, he established only a single *chambre d'enquête*. In 1546, the members of the Parlement enjoyed the privilege of hereditary nobility. They had the precedence over all other constituted authorities.

When the disastrous war with England broke out, under Jean le Bon, this monarch assembled at Paris the three orders of the kingdom, the clergy, the nobility, and the bourgeoisie, the latter having for their leader the *prévôt* of the merchants of Paris, Étienne Marcel. The equipment of an army of thirty thousand men was authorized, and a levy of five millions of livres paris for their maintenance during a year, this money to be raised by means of the *gabelle*, the tax on salt, and an impost of eight deniers per pound upon everything sold, to be levied impartially upon all three orders, even the royal family not to be exempt, but—warned by past experience—the *États Généraux* demanded that the funds should remain in the hands of receivers appointed by them, and responsible to them only, and appointed a commission of nine of their members to supervise this measure. "This was nothing less than a revolution, for to vote and to collect the tax, to regulate it, and to supervise its distribution, this was to exercise one of the important functions of sovereignty. The deputies of 1355 began by going further than has been gone in our days under the constitutional monarchies, even under the republics."

Ten days after the battle of Poitiers, the dauphin Charles returned to Paris and convoked the *États Généraux*, who opened their second session on the 17th of October, 1356. This time, their demands were so increased that the dauphin, in dismay, adjourned their sittings, but the royal treasury was empty, and he was obliged to assemble them again on the 5th of the following February. The Bishop of Laon, Robert le Coq, made himself the

mouthpiece of their just grievances, and was so well sustained by the *prévôt*, Étienne Marcel, and by Jean de Picquigny, in the name of the nobles, that resistance was impossible, and the *grande ordonnance* of 1357, in sixty-one articles, provided for sweeping reforms in the administration, in the finances, in the army, in the courts of law, and in the arbitrary exercise of their prerogatives by the officers of the crown. But on this occasion Paris was in advance of the rest of the nation, and the period was, moreover, most inopportune.



ANCIENT HOTEL OF THE PRÉVOT OF PARIS, PASSAGE CHARLEMAGNE, IN THE RUE SAINT-ANTOINE.

In 1559, the Comte de Montgomery was imprisoned in the octagonal tower, after accidentally mortally wounding Henri II.

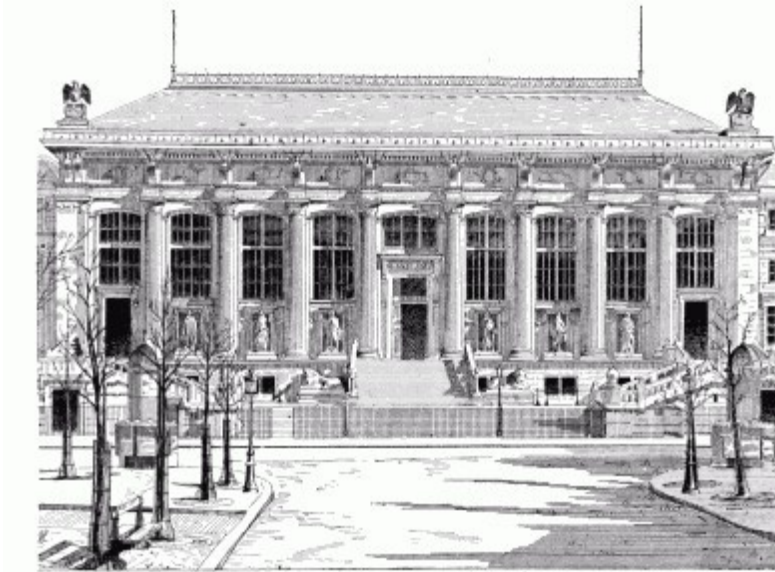
Charles V, called *Le Sage*, the son of Jean le Bon, in the midst of the numerous judicious and enlightened measures which characterized his reign, was guilty of some tyrannical and injudicious ones, and among the latter may be cited his giving to the members of the Parlement for their pay the fines which they inflicted in the course of their judgments. In the reign of his son, called *Le Fou*, the office of *prévôt* of the merchants, with all its

jurisdiction, and those of the *échevins*, or aldermen of the city, were suppressed by letters patent, dated January 27, 1383; the king took possession of the revenues and public funds of the city, and all the exercise of jurisdiction of the Hôtel de Ville was transferred to the *prévôt de Paris* or to his lieutenant. The upper bourgeoisie were decimated and ruined in punishment for their rising against the young king and his uncles. Five years later, Charles VI decreed that the authority of the *prévôt* extended through the nation, and that he should be empowered to search malefactors anywhere in the kingdom; this power was confirmed by Charles VII in 1447. The ordinances of the *prévôt* relative to the provisioning of Paris were also valid everywhere, so that the central authority of the Parisian police became supreme. The *prévôt* was present at the royal sittings, and took his place below the grand chamberlain; he walked at the head of the nobility, enjoyed the privilege of covering himself after the calling of the first case, a privilege reserved for dukes and peers; he assigned the peers in the criminal cases, and was entitled to twelve guards, called *sergents à la douzaine*. On his installation in his office, he presented a horse to the president of the Parlement; his costume consisted of a short robe with a cloak, the collar turned down, a sword, a hat with plumes, and he carried his bâton of office covered with cloth of silver.

He was also charged with the preservation of the privileges of the University, and it was for this reason, as prescribed in the ordinance of 1200, that he took his oath of office between the hands of the rector of the University. In 1613, the *prévôt*, Louis Seguier, refused to observe this formality. He had under his orders a civil lieutenant charged with the jurisdiction of civil affairs in the first hearing, and, later, of particular civil and criminal lieutenants; these magistrates had the direction of the police until 1667, when there was created a *conseiller lieutenant-général* of police. The municipal police of Paris absorbed successively various jurisdictions which had previously existed, and the *prévôt* administered this force in the interests of the public order.

Nevertheless, the disorder in the municipal administration became so great that Charles VI, by an edict dated January 27, 1411, restored to the *bourgeois, manants, and habitants* of his "good city of Paris" the *prevosté des marchands et eschevinage, clergie, maison de la ville, parler aux bourgeois, jurisdiction, coercion, cognoissance, rentes, revenus, possessions*

quelconques, droits, honneurs, noblesses, prerogatives, franchises, libertez et prévilèges, to have and to hold forever, as they had done before.



**FAÇADE OF THE NEW PALAIS DE JUSTICE, VIEWED FROM THE PLACE DAUPHINE.
JOSEPH-LOUIS-DUC, ARCHITECT.**

It was under this king that there was brought before the Parlement an important case, related at length by all the chroniclers of the time, and which may serve to illustrate the nature of the administration of justice. A certain Norman gentleman, Jean de Carrouges, residing in the château d'Argenteuil, near Alençon, having occasion to go on a journey, left his young wife at home. One of his neighbors, Jacques Le Gris, having heard of her beauty, presented himself at the castle and asked to be permitted to visit the donjon. He was cordially welcomed, invited to dinner, and the Dame de Carrouges herself conducted him to the tower. Once there, the visitor suddenly fastened the door behind them and then proceeded to avow his passion to the lady; indignantly repulsed, he threw himself upon her and inflicted upon her the last of outrages. Then, rushing down the stairs, he leaped upon his horse and effected his escape. When the Sire de Carrouges returned, he appealed for redress to the Comte d'Alençon, his suzerain and that of Le Gris; the comte summoned all the parties before him, but the accused gentleman stoutly proclaimed his innocence and endeavored to establish an alibi. The comte, unable to decide, referred the case to the Parlement at Paris; the trial lasted eighteen months, and the Parlement

finally decided that the lady could prove nothing against Le Gris excepting on a field of combat *jusqu'à outrance*.

The king, who was then at L'Ecluse, a town in Holland, with his barons, preparing to pass over into England, returned to Paris when he heard of the decree of the Parlement, followed by his uncles, the Ducs de Berry, de Bourgogne, and de Bourbon, and a number of other seigneurs who had also "a great desire" to witness this judicial duel. The lists were arranged in the Place Sainte-Catherine, behind the Temple, on the 29th of December, 1386; the king and all his court were present, seated in galleries, and a great crowd of people thronged all the available surroundings. The two adversaries were armed from head to foot; Carrouges approached his wife, arrayed in deep mourning and seated in a chair draped in black.

"Lady," he said to her, "upon your assertion I am about to adventure my life and combat Jacques Le Gris. You know whether my quarrel is just and loyal."

"Monseigneur," she replied, "it is so, and you combat safely, for the quarrel is righteous."

"In the name of God, so be it!" replied the knight.

Then, embracing her, he took her hand, crossed himself, and entered the lists, while the lady remained kneeling in her black chair, praying fervently.

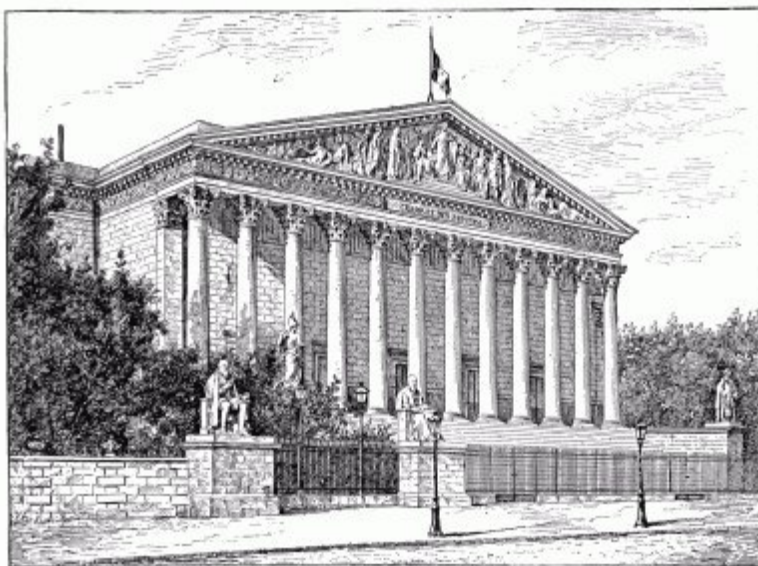
The two men took their oaths, one, of the truth of his accusation, the other, of his innocence; then they proceeded to their places at the extremities of the lists and waited for the signal; when it was given, they advanced toward each other, walking their horses, and attacked with their swords. Carrouges was the first to be wounded, seriously in the thigh, and he lost so much blood that the spectators feared for him; however, rallying all his forces, he assailed his enemy so vigorously that he succeeded in seizing him by his helmet and throwing him to the ground. Dismounting in his turn and maintaining his advantage, he endeavored to make Le Gris confess his guilt in the prospect of certain death; the latter maintained his innocence, but as he was vanquished he was adjudged culpable, and Carrouges thrust his sword through his body. Then, turning toward the spectators, he demanded of them if he had loyally done his duty. "Yes," they replied. After which he

knelt before the king, who caused him to be raised, and gave him a post in the royal chamber with an annual allowance of two hundred livres. Carrouges thanked the monarch, then turned toward his wife, kissed her, and they both proceeded to Notre-Dame, where they made their offerings and returned to their hotel. The body of Le Gris was delivered to the public executioner, who dragged it on a hurdle to the gibbet of Montfaucon, where it was hung in chains.

A decree of the Parlement subsequently granted to Carrouges the sum of six thousand livres, to be taken from the property of Le Gris. But, some time later, a criminal, condemned to death for other offences, confessed that he was guilty of the outrage on the Dame de Carrouges, having assumed the name of Le Gris and profited by a certain resemblance which he bore to that unhappy gentleman. The lady, filled with remorse, sought refuge in a convent after the death of her husband, and took the vows of perpetual chastity.

Under Charles VII, in 1443, took place the first division of the authority of the Parlement, which, however, had been long preparing. The preceding year, the king had made an expedition into Gascogne and Languedoc; on his retiral he left behind him "that which was worth more than an army," a parlement established in Toulouse with jurisdiction over all of Languedoc and the duchy of Guyenne. Ten years later, the dauphin created in his appanage the Parlement of Grenoble. The double jurisdiction of the Parlement of Paris at this period is thus defined: "First, it sat in judgment on *causes spéciales*, those of the peers of France and of the royal domain, those of *régale* (right possessed by the crown to receive the income of a vacant bishopric), and those of individuals who had received by letters of *committimus* the right to be judged by it; second, it received appeals from all the inferior jurisdictions, the royal, seigneurial, ecclesiastic, and university tribunals. In addition, it deliberated on a multitude of administrative matters, and, under pretext of interpreting the ordinances, rendered decrees which were veritable acts of legislation. The royal ordinances having the validity of laws only when enregistered by the Parlement, it frequently refused this *enregistrement*, and sometimes thus checked the royal authority. Finally, it frequently exercised the right of making *remontrances*, not only against the ordinary ordinances, but against treaties with foreign powers, particularly concerning the papal bulls, which

led to its exercising a superior superintendence over the entire government of the Church in France. These divers powers gave the Parlement of Paris a very high position in the State, and it will be frequently seen intervening in public affairs."



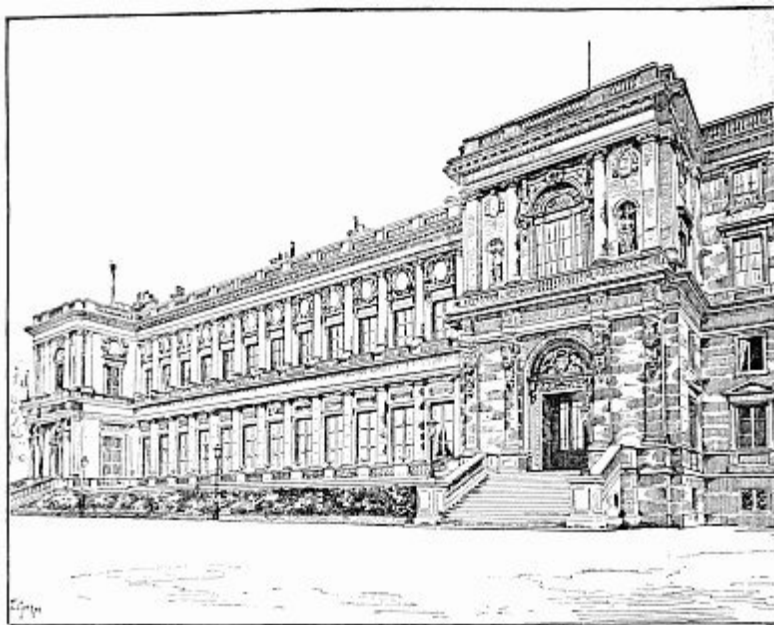
**CHAMBER OF DEPUTIES. PALAIS DE BOURBON PERISTYLE FACING QUAI.
DESIGNED BY GIRARDIN AND POSSET.**

Under Louis XI, there were parlements at Grenoble, Bordeaux, and Dijon; greater freedom of appeal from the decisions of the seigneurial tribunals to the court of the king, and the magistrates were relieved from the fear of removal from office. We have already seen instances of the affability of this monarch toward the bourgeoisie of Paris, and his not unsuccessful attempts to identify himself with them; the tangible benefits which he bestowed upon them were quite sufficient to win their gratitude. Their offices were rendered immovable, they were exempted from all taxation, their assemblies were authorized, the free election of their magistrates, their city was carefully fortified, they were armed to the number of sixty or eighty thousand men; he permitted them to acquire, by purchase, the right which the nobles had to command the *guet*, and to the noblesse was given the exercise of certain municipal offices.

The *États Généraux* of 1484, during the minority of Charles VIII, are considered to have been the first of the truly representative national

assemblies, even the peasants in the most distant communes being represented. The number of problems presented by the exigencies of the government was formidable; during the royal session, Jean de Rely, canon and deputy of Paris, addressed the monarch in an eloquent discourse, half Latin and half French, bristling with texts and citations, then he commenced to read the list of grievances demanding redress; he read bravely for three hours, when it was perceived that the young king was sound asleep, and the sitting was adjourned for two days. Neither François I nor his son Henri II had any desire to appear before the assembled representatives of the nation; the former replaced the *États Généraux* by a mixed assembly of notables and deputies of Bourgogne in 1526, and in the following year by an assembly of notables at Paris, which sanctioned his violation of the treaty of Madrid, and granted him two millions of golden écus for the ransom of his sons, left as hostages behind him, but it took no part in the affairs of State. The Parlement was not treated with any more consideration; a royal edict of 1523 divested the jurisdiction of the *prévôt* and of the Châtelet of Paris of all causes and matters of which it took cognizance in its quality as conservator of the privileges of the University, and for the judgment of these causes established a new bailiwick, of which the seat was to be the Hôtel de Nesle, where there were appointed a bailiff, a lieutenant, an avocat, a procureur du roi, twelve counsellors, an *audiencer* [usher, or crier], a sous-audiencer, and twelve sergents. The Parlement was much displeased at this diminution of its authority, and on the 9th of March a formidable protest against the new edict was made before it by the *prévôt* of Paris, his lieutenants, civil and criminal, the counsellors of the Châtelet, and all the other officers, sergents, greffiers, huissiers, and officials of the University. When the king heard of this demonstration, he sent to the Parlement the Sieur de la Barre, gentleman of his chamber, to inform that body, once for all, that when he granted letters patent it was understood that they were to be enregistered, no matter what protests might be made against them. The Parlement replied by appointing a commission to inquire concerning the necessity of establishing a new bailiwick, and sent word to the monarch that the members would inform themselves on the subject; on the 17th, the Comte Saint-Paul appeared before them with an order directing the immediate registering of the edict, and with the information that he would assist at their deliberations in order to be able to inform his royal master concerning those of them who permitted themselves to differ from him in

opinion. The decree was accordingly enregistered, and on the 30th of April the Chevalier Jean de la Barre presented himself before the Parlement with the title and quality of Bailli de Paris. This office, however, was suppressed in May, 1526, and its jurisdiction reunited to that of the *prévôt* and of the Châtelet. In 1527, the Parlement was forbidden to interfere in any matters of State, or in anything excepting what concerned the administration of justice; it was permitted only to give advice regarding the perfecting of the laws. The two most important legal monuments of this reign were the edict of Crémieu, 1536, restricting the jurisdiction of the seigneurs, and that of Villers-Cotterets, 1539, designed to put an end to the encroachments of the tribunals of the bishops upon those of the king, and restricting their competence to spiritual or ecclesiastical causes only. Of the principal offices of the crown, four were held by men of legal lore, *hommes de robe longue*,—that of grand chancellor, who held the royal seal and without whose advice nothing important could be decided; that of the secretaries of State; that of the presidents, counsellors, *avocats*, and all those to whom the administration of civil and criminal justice was confided throughout the realm, and that of the treasurers, precepteurs and receivers who administered the royal revenues. The superior officers of justice and finance enjoyed privileges of nobility which, while still confining them to their rank in society, exempted them from various imposts and charges.



MINISTRY OF FOREIGN AFFAIRS, ON THE QUAI D'ORSAY.

Henri II was obliged, after the loss of the battle of Saint-Quentin, in August, 1557, to convene an assembly of notables, in which the members of the Parlement sat apart, like a fourth order in the State, below the nobles but above the *tiers état*. There were still survivals of the feudal epoch in the administration,—the Connétable was invested with authority over the army and the Grand Admiral over the fleet, but the era of *ministries* was beginning. "The *clerks du secret*, become *secrétaires d'État* (in 1547), had in charge the correspondence of the king on all public affairs. An ordinance of Henri II, in 1547, fixed their number at four, each of them corresponding with a quarter of the provinces of the kingdom and a quarter of the foreign countries. The special attributions are of a later date; thus, all the affairs of the *maison du roi* and, later, of ecclesiastical affairs, were assigned to one of them. The other three were: in 1619 and in 1636, war; in 1626, foreign affairs; under Louis XIV, the marine; which did not prevent them from apportioning France geographically among themselves for those affairs which remained common to them all. The Chancellor was chief of the department of justice, and the Surintendant, of that of finances. The police, that great arm of monarchical times, was commencing."

The Parlement of Paris, however, cannot, by any means, be presented always as maintaining a more or less courageous stand for justice and right. In the massacre of the Saint Bartholomew, for example, it was a zealous coadjutor. The officers of the *municipalité* had prepared for this great measure, the *prévôt* of the merchants, summoned to the Louvre, received from Charles IX orders to close all the gates of the city and to have in readiness the captains, lieutenants, and bourgeois in whom he had confidence. He promised "to put so many hands at the mischief that it should be remembered." Rewards were given officially to the archers who had aided in the massacre, to the ferrymen who had prevented the Huguenots from crossing the river, to the grave-diggers of Saint-Cloud, of Auteuil, and of Chaillot for having interred in a week eleven hundred corpses. A municipal medal was struck in *mémoire du jour de Saint Barthélemy*. The president of the Parlement, Christophe de Thou, pronounced an eulogy on the prudence of the king which had saved the nation from the misfortune of seeing the crown fall on the head of the Prince of Condé, and, perhaps, on that of Admiral Coligny himself, who had been ambitious enough to dream of seating himself on the throne of France after having driven from it the king and ruined the royal family. The

Parlement, after deliberation, declared the admiral guilty of the crime of lèse-majesté, ordered that his body, or at least his effigy, should be dragged on a hurdle, attached to a gallows on the Place de Grève and then to the gibbet of Montfaucon, that his memory should be declared infamous and that his château of Châtillon-sur-Loing should be razed. The headless body of the admiral was at that moment swinging on the gibbet of Montfaucon.

In the religious wars that followed, the city paid dearly for this wholesale murder. The population, during the siege by the King of Navarre, was reduced to the last extremity of famine, even to cannibalism, and when that monarch had retired from before the walls, the horrors of anarchy and civil war succeeded. The Parlement, terrified by the execution of the first president, Brisson, refused to sit, and, when summoned to do so, replied to the agents of the *Seize*, the chiefs of the sixteen quarters of Paris who had formed a council to aid the work of the *Sainte Ligue* of the Catholics, that they would return to their functions only to hang those who had participated in the official murder of the president. The Duc de Mayenne, summoned to the rescue of public order, carried out these hangings in a summary manner; and the first care of the Parlement, when a government was partially established again, was to disarm the factious bourgeois.

Henri IV, who disputes with Dagobert in the legends of the people the honor of being the most popular of the French kings, was not exclusively the jovial monarch he is generally portrayed. His answer to some remonstrances of the Parlement, which have been preserved, would have been worthy of François I or Louis XIV. "My will should serve as a reason. In an obedient State, reasons are never required of the prince. I am king: I speak to you as a king; I desire to be obeyed." His nomination of a governor of Paris was sufficiently scandalous: on the death of the Sieur d'O, who held that office, the king sent to the Hôtel de Ville to say that he would not appoint a successor, that he would honor his good city of Paris by assuming that charge himself; the Parlement, the next day, despatched several of its presidents and members to thank the king for this great honor, and the gracious monarch thereupon nominated as his lieutenant-general Antoine d'Estrées, the father of his famous mistress.



OFFICIAL RESIDENCE OF THE PRESIDENT. ENTRANCE TO THE PALAIS DE L'ÉLYSÉE FROM THE RUE DU FAUBOURG SAINT-HONORÉ.

Nevertheless, so heavy and far-reaching a calamity was his assassination by the senseless fanatic Ravailiac, that forerunner of the socialists and anarchists of our own day, that a certain pitiless logic attends the frightful sentence which was pronounced upon the murderer, and which was carried out to the letter. Thirteen days after the fatal 14th of May, 1610, the Parlement pronounced the following judgment: "The Court, etc., after attentive consideration, declares that it has been that the Court has declared and declares the aforesaid Ravailiac attainted and convicted of the crime of lèse-majesté, divine and human, in the first degree, for the very wicked, very abominable, and very detestable parricide committed on the person of the late king Henri IV, of very good and very laudable memory; in reparation of which it has condemned and condemns him to make *amende honorable* before the principal door of the Church of Paris, to which he shall be led and conducted in a cart; there, naked in his shirt, holding a burning torch of the weight of two pounds, to say and to declare that, wickedly and treacherously, he committed the very wicked, very abominable, and very detestable parricide, and killed the aforesaid seigneur king with two strokes of a knife in the body, of which he repents and for which he asks pardon of God, of the king, and of justice. From there, conducted to the Place de Grève, and, on a scaffold which shall be there erected, torn with pinchers on the nipples, arms, thighs, and fleshy part of

the legs, his right hand, holding the knife with which he committed the aforesaid parricide, burnt and consumed with fire of sulphur, and on the places where he shall have been torn with pinchers shall be poured melted lead, boiling oil, wax, and sulphur melted together. This having been done, his body torn and dismembered by four horses, his members and his body consumed by fire, reduced to ashes, scattered on the wind; has declared and declares all his property confiscated to the king, orders that the house in which he was born shall be demolished; the individual to whom it belongs previously indemnified, no building to be ever afterward erected on the site thereof, and that within fifteen days after the publication of the present decree to the sound of trumpet and by public crier in the city of Angoulesme his father and his mother shall quit the kingdom, being forbidden to ever return therein under penalty of being hanged and strangled without any form or process of law whatever. We forbid his brothers and sisters, uncles, and others to bear hereafter the name of Ravillac, and we enjoin them to change it under the same penalties; and to the substitute of the procureur-général du roi to cause to be published and to execute the present decree, under penalty of felony; and before the execution of the said Ravillac ordains that he shall be again put to the question for the revelation of the names of his accomplices."

He was put to the question of "the boot" very thoroughly, but refused to the last to admit that he had any accomplices; the prayers of the two doctors of the Sorbonne who assisted at his execution were drowned by the clamors of the crowd protesting that no offices of the Church should attend the passing of the *méchant damné*, and the people themselves aided the horses to tear him asunder.

Marie de Médicis, the second wife of Henri IV, after ten years of entreaty, had succeeded in inducing the king to permit her to be crowned as Queen of France on the day preceding his death; within two hours after that event, she and the Duc d'Epemon had taken all the necessary steps to secure the decree of the Parlement declaring her regent. The judicious administrative measures of the Béarnais were to be reversed, the reign of Italian favorites was to begin, events were to be subordinated to persons, "as is nearly always the case when queens are kings." Nevertheless, the Parlement remembered, when it was too late, that she had recognized its right to dispose of the sovereign power.

The last reunion of the *États Généraux* before the famous one of 1789 was held in 1614, and was marked by the usual dissensions among the three orders. The nobles complained to the king of the insolence of the *tiers état* in asserting themselves to be the younger brothers of the same great family; "there is between them and us the difference between master and valet." The clergy refused to assume any portion of the public burdens; "that would be to diminish the honor due to God." Consequently, the president of the upper bourgeoisie, the *prévôt* of the merchants of Paris, Robert Miron, declared boldly to the king: "If your Majesty does not provide for the reforms which the nation demands, it is to be feared that despair will make the people aware of the fact that the soldier is only a peasant bearing arms; that when the vine-grower has taken up an arquebus, from the anvil which he was, he will become the hammer." Nothing was done; the king's great minister, Richelieu, was too much occupied with the direction of the foreign affairs of the nation to occupy himself with reforms at home.

Louis XIII was but eight and a half years old at the date of his father's assassination, and his melancholy, reserved, and suspicious character bore the traces of that tragic event through life. His early education was greatly neglected, excepting in the matter of floggings for obstinacy and disobedience; as a king, it was said of him that "no man loved God less, or feared the Prince of Darkness more." The weakness and irresolution which are generally attributed to him were conspicuous by their absence in his retention of his minister, notwithstanding the constant cabals, intrigues, and menaces of his mother and her adherents, and the famous "Day of the Dupes," in which they thought they had finally attained their end, was followed by dismissal of the Chancellor Marillac, and the trial and execution, on the Place de Grève, of his brother, Marshal of France, for the misappropriation of funds for the army,—"a matter of some hay, straw, stone, and chalk," he exclaimed, "not enough to whip a valet for!"



**DEPUTIES OF THE THIRD ESTATE, WAITING AT THE DOOR OF THE SALLE DES
SÉANCES, JUNE 23, 1789.
From a painting by M. Melingue.**

One of the most recent of the works on the great cardinal, that of the Abbé Lacroix, presents us with a Richelieu but little known, administering his diocese of Luçon, at the age of twenty-two, firmly and justly, regular in his habits and conciliatory in his character, ambitious, preparing himself, during eight years of obscure study and skilful intrigue, for his accession to power, and having already selected the men whom he would designate to carry out his great designs. "The bishop prepared the minister," says this biographer.

It was no part of his plans to have the Parlement oppose them, and that body was forced, during this reign, to swallow some of its bitterest mortifications. In 1631, having refused to verify a royal decree, the king returned from Fontainebleau hastily, and ordered the members to present themselves in a body at the Louvre, the greffier bringing with him the register of their debates; in the grand gallery of the palace they were obliged to kneel before the throne, and the monarch, rising, took the register which was presented to him, tore out the page on which was the record of their deliberation, and ordered that there should be inserted in its place the decree of the royal council which had been refused the *enregistrement*. Ten years later, in the midst of the Thirty Years' War, the magistrates having declined to approve of certain new taxes, Louis XIII held a "bed of justice," and again brought them to terms. The Parlement was formally forbidden to put

forth any remonstrances regarding the edicts which concerned the government and the administration of the State. Only on those relating to the financial decrees were they to be permitted to have a voice. These wearisome episodes were repeated at intervals during the reigns of all the later kings of France.

Neither was there any contemplation of the *États Généraux* in the administration of the king and his minister. A few assemblies of notables were held, one in 1625 on the subject of the Valteline and the rupture with the Pope, and another in the latter part of the following year, to which were admitted only magistrates, ecclesiastics, councillors of State, and the *prévôt* of the merchants of Paris.

Against Mazarin, minister and cardinal, but not a priest, the Parlement was more successful in its long contest. Entrenched in their office, rendered hereditary by the establishment of the *paulette* (so named from the contractor Paulet, who suggested it to Sully in 1604), the magistrates had acquired a spirit of independence and pride which led them to style themselves "the born protectors of the people," and to assert their right to assume the *rôle* of the *États Généraux*, and to play the part of the Parliament of England, which at that hour was accomplishing a revolution, and to which, indeed, Mazarin compared them. In January, 1646, they proclaimed the cardinal a disturber of the public peace, an enemy of the king and the State, and directed him to leave the court immediately, and the kingdom within a week. In February, 1651, he was again banished, he, his family, his adherents, and his foreign servants, and this decree, promulgated to the sound of the trumpet in all the quarters of Paris, was greeted by the populace with noisy exclamations of joy. In March and in June these orders were repeated, the wily favorite of Anne d'Autriche seeking every opportunity of regaining his power. It was these triumphs of the Fronde that inspired the despotic Louis XIV with that dislike for the city of Paris which he cherished all his life,—these, and the too-frequent public monuments which spoke of other crowned heads than his own!

The nation had already entered that period of incredible distress and degradation which was to lead to the Revolution, and on the surface of which the so-called splendor of the court glittered with a species of decaying phosphorescence which blinds the eyes of grave historians to this

day. In 1646 there were in the jails of the kingdom twenty-three thousand eight hundred persons, confined for non-payment of taxes, five thousand of whom died there. "*Tout le royaume*," said Omer Talon, two years later, "is sick with exhaustion. The peasant no longer possesses anything but his soul, because he has not yet been able to put that up for sale." No prince, in the judgment of Saint-Simon, possessed the art of reigning in a higher degree than did Louis XIV. "Louis Quatorze is certainly not a great man," says Duruy, "but he is very certainly a great king, and the greatest that Europe has seen." And yet the latter quotes from the *Mémoires* which the king demanded from his intendants on the condition of their provinces for the instruction of his grandson, the Duc de Bourgogne: "The wars, the mortality, the lodging and the continual passage of armed forces, the military regulations, the heavy taxes, the withdrawal of the Huguenots, have ruined this country.... The bridges and the roads are in a deplorable state, and commerce is abolished. The frontier provinces are the most completely crushed by the requisitions, the pillaging of the soldiers, who, receiving neither pay nor provisions, pay themselves with their own hands. In the district of Rouen, out of seven hundred thousand inhabitants, six hundred and fifty thousand have for bed a bundle of straw. The peasant in certain provinces is returning to a state of savagery,—living, for the most part, on herbs and roots, like the beasts; and, wild as they are, fleeing when any one approaches." "There is no nation as savage as these people," says the intendant of Bourges of those under his administration; "there may be found sometimes troops of them seated in a circle in the middle of a field and always far from the roads; if they are approached, this band immediately disappears."

At this great king's death, he left France, says M. Duruy himself, "in a prodigious state of exhaustion. The State was ruined, and seemed to have no other resource than bankruptcy. Before the War of Succession, Vauban had already written: 'Nearly the tenth part of the people are reduced to beggary; of the nine other portions, five cannot give any alms to the mendicants, from whom they differ but slightly; three are very much distressed; the tenth part do not include more than one hundred thousand families, of which not ten thousand are comfortably situated.' This poverty became especially terrible in 1715, after that war in which it was necessary to borrow money at four hundred per cent., to create new imposts, to consume in advance the revenues of two years, and to raise the public debt to the sum of two

milliards four hundred millions, which would make in our day nearly eight milliards!"



AFTER THE CAPTURE OF THE BASTILLE, JULY 14, 1789. From a painting by François Flameng.

Note.—The key was sent by Lafayette to Washington, at Mount Vernon.

"Behold the cost of his glory," says M. Duruy elsewhere, "a public debt of more than two milliards four hundred millions, with a sum in the treasury of eight hundred thousand livres; an excessive scarcity of specie; commerce paralyzed; the nobility overwhelmed with debts, the least burdensome of which had been contracted at an interest of fifteen and twenty on the hundred; the magistrates, the *rentiers*, long deprived of the revenues owed them by the State; the peasants, in certain provinces, wanting for everything, even for straw on which to lie; those of our frontiers passing over to foreign countries; very many districts of our territory uncultivated and deserted." For the credit side of the account of this greatest of kings, the historian can cite the acquisition of two provinces, Flanders and Franche-Comté, certain cities, Strasbourg, Landau, Dunkerque, "so many victories, Europe defied, France so long preponderant, finally, the incomparable

brilliancy of that court of Versailles and those marvels of the letters and the arts which have given to the seventeenth century the name of the *siècle de Louis Quatorze*!" Of the bigotry, ignorance, intolerance, and incredible and always uneasy vanity of the little soul of this great monarch the chroniclers of even his sycophants are full.

His political creed may be learned from this passage in his *Mémoires*: "The kings are absolute lords and have naturally the full and entire disposition of all property which is possessed as well by the churchmen as by the laymen, to use at all times, as judicious stewards, that is to say, according to the general need of their State. Everything which may be found within the limits of their States, of whatsoever nature it may be, appertains to them by the same title, and the coin which is in their strong-box and that which remains in the hands of their treasurers, and that which they permit to remain in the commerce of their peoples."

Consequently, the end of this reign of seventy-two years was "very different from its beginning. He received his kingdom powerful and preponderating abroad, tranquil and contented at home; he left it weakened, humiliated, discontented, impoverished, and already filled with the seeds of the Revolution." (Rœderer: *Mémoires*.)

For the administration of the government of the State, there were three great Councils, under the immediate direction of the king, who was his own prime minister. The *Conseil d'en haut*, to which he called the secretaries of State, and sometimes the princes of the blood, corresponded to the modern council of ministers in that it had the general direction of the great political affairs, with the additional function of judging appeals of the *Conseil d'État*, or *Conseil du Roi*. The latter, subordinate to the ministers but superior to the supreme courts, was the great administrative body of the kingdom and was composed of eighteen members. The *Grand Conseil*, which had been invested by Charles VIII with the judicial attributes up to that time appertaining to the *Conseil du Roi*, in order that the latter might remain a purely administrative body, sat in judgment on ecclesiastical matters, appeals to the higher courts, conflicts with parliamentary authority, etc.

For the administration of the city of Paris, and with the design of replacing the various seigneurial, ecclesiastic, and municipal authorities by one royal one, a decree was issued as early as 1674, in which all these justices, "and

even that of our bailiwick of the palace, shall be reunited to the *siège présidial de la prévosté et vicomté de Paris*, held at the Châtelet, ... so that in the future they shall never be separated from it, nor re-established, for any cause, or under any pretext whatsoever." A second seat of the *prévôté* and vicomté of Paris was established at the same time at the Châtelet with the same powers and prerogatives as the other,—the number of affairs being much too great for the cognizance of one jurisdiction. A supplemental decree, some months later, established the seat of the second in the abbey of Saint-Germain-des-Prés. This abolition of the divers administrations of justice by the seigneurs was greatly appreciated by the populace, and greatly resented by the deposed lords, secular and ecclesiastical. In 1687, a magistrate, Nicolas de la Reynie, was appointed as superintendent of the police of Paris, and he was succeeded, ten years later, by the Marquis d'Argenson,—these being the first two *lieutenants de police*. This police, in addition to maintaining the public order, exercised a surveillance over all printed and written matter—even searching the post and opening suspected letters in the *cabinet noir*, and making itself a servile instrument in the abuse of the *lettres de cachet* through which, as the president of the Cour des Aides, Malesherbes said to Louis XV in 1770: "no citizen has any assurance that his liberty may not at any moment be sacrificed to some personal vengeance."

An edict of 1705, recalling that, in 1690, *la noblesse au premier degré* had been bestowed upon the president, councillors, and other officers "of our *Cour de Parlement de Paris*;" that in 1691 the same privileges had been granted to the presidents, councillors, and other officers "of our *Cour des Aydes de Paris*;" in 1704, on the officers of the *Chambre des Comptes*, granted also this nobility to the presidents, treasurers-general of France, avocat, procureur, and *greffier en chef* of the bureau of finance. In the following year, the privileges of this nobility were granted to the *échevins*, the procureur, the greffier, and receiver of the city of Paris, and the *prévôt* of the merchants was given the title of chevalier. Following the ancient traditions of the French monarchy, the king preferred to see himself served by the men of the middle classes, rather than by the powerful lords, whose *rôle* was reduced to that of obsequious courtiers in his antechamber, but, "in working with the bourgeois, the grandson of Henri IV wished to remain always *le roi des gentilshommes*."

In the person of Louis XV the most ignoble vices of a man were united to those of a king, but he had sufficient intelligence to foresee the calamity that was coming. "The thing will last at least as long as I do," he said, "my successor may get out of it the best way he can." And to Madame Pompadour is credited the famous saying: "After us, the deluge." When the minister Choiseul was disgraced, in 1770, half the nobles deserted the court to follow him to his estate of Chanteloup, near Amboise,—so much had the splendor of Versailles, that great glory of the reign of the *Roi-Soleil*, departed!

There were thirteen parlements and four provincial councils in France having sovereign jurisdiction in civil and criminal cases; the authority of the Parlement of Paris covered two-fifths of the kingdom. The *chambres des comptes*, the *cours des aides*, and the *cours des monnaies* judged all cases relating to the imposts, to the coinage, and to bullion. The *grand conseil*, the *requêtes de l'Hôtel*, the tribunal of the University of Paris, the *capitaineries royales*, etc., had each a special jurisdiction. Certain persons could only be judged by certain tribunals. In 1735, the Parlement having despatched its first president and several of its members to the king, then at Compiègne, to remonstrate with him, Louis XV informed them that he "forbade his Parlement to meet, to issue any decree, or to deliberate in any manner on the affairs of State; that they were to assemble only to receive his orders and to execute them, and that they had better not constrain him to make them feel the weight of his authority." In September of the same year, he summoned them to a bed of justice at Versailles, contrary to all precedent, and when they returned protesting, all the presidents and *conseillers des enquêtes* and *requêtes* were summarily banished to different cities in the kingdom by *lettres de cachet*. In 1753, the whole body was sent into exile, at Soissons, and to replace it the king created a *chambre royale*, which held its sittings at the Louvre, but which, though duly registered at the Châtelet *au très exprès commandement du roi*, was received with such contempt for its authority and such general levity that the members "became so well accustomed to it that they frequently assembled laughing, and made jests of their own decrees." The Parisians, who ridicule everything, declared that these members enjoyed themselves greatly at the masked ball during the Carnival, because none of them were *recognized*.



BIRTH OF EQUALITY: THE ASSEMBLÉE ON THE NIGHT OF AUGUST 4, 1789.
Engraved by L. Ruffe, after the painting by A. Dawant.

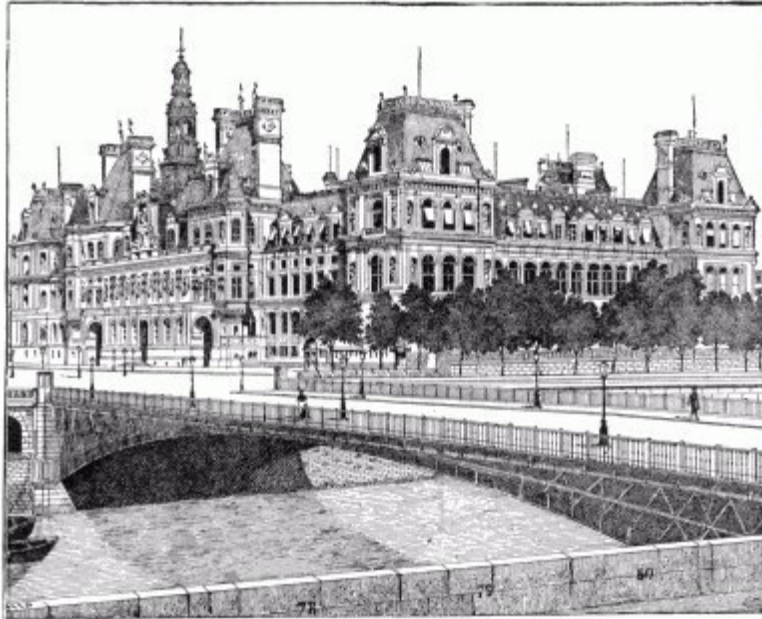
The members of the Parlement returned from their exile as contumacious as ever. Against the express command of the king, they persisted in occupying themselves with religious questions and manifesting a spirit of opposition to the pretensions of the Papacy. The public excitement was so great that a wretch named Damiens attempted to assassinate the king, in 1757, but only wounded him slightly. In 1770, the Duc d'Aiguillon, Governor of Brittany, having been relieved of his post and formally accused by the parlement of that province, was brought to trial before the Parlement of Paris in his quality of peer of the realm. He was about to be condemned when the king, in a bed of justice, quashed the proceedings. To the indignant protests of the magistrates, who suspended their sittings, Louis XV replied by dismissing his minister, Choiseul, and giving his post to D'Aiguillon. On the night of the 19th and 20th of January, 1771, a hundred and sixty-nine of the members of the Parlement were each awakened by two musketeers, who required them to sign *yes* or *no* on the order to resume their official functions. Thirty-eight signed *yes*, but retracted this consent two days later; on the following night a huissier notified the members of their suspension

from office, and the musketeers brought them lettres de cachet which banished them all in different directions. At the end of the year there were more than seven hundred magistrates in exile. The king transformed his council into a parlement, under the presidency of M. Maupeou, from whom it took its name, but it was received with a storm of popular insult and ridicule. Public opinion throughout the nation was aroused; all the princes of the blood, excepting one, and thirteen peers protested to the king "against the reversal of the laws of the State," and the name of the *États Généraux* was openly pronounced in the parlements of Toulouse, Besançon, Rouen, and even in Paris. "Richelieu and Louis XIV had destroyed the political importance of the nobility; Louis XV destroyed the great institution of the magistracy,—what was there remaining to prop up the ancient edifice and to cover the monarchy?"

The ribald Parisians circulated this *Pater*, and found amusement in it: "Our Father who art at Versailles, your name be glorified, your reign is shaken, your will is executed no more on the earth than in heaven; give us our daily bread, which you have taken from us; pardon your parlements, which have sustained your interests, as you pardon your ministers who have sold them: do not succumb any longer to the temptations of the Du Barry, but deliver us from the devil of the chancellor."

In the midst of the general decadence, which affected alike royalty, the clergy, and the nobles, in the general confusion and inequality of all laws and procedure, a formidable spirit of investigation began to stir. The nation had no written constitution, everything depended upon custom, and was maintained only by a sort of public opinion, which constantly varied. The contradictions and anomalies in all branches of the public administration were rendered even more hopeless by the general corruption and clashing of individual interests: "France has no general, positive, written law ... which defines all the powers," said Lally Tollendal in the chambre de la noblesse in 1789. Both the civil and the penal law bristled with the most flagrant injustice, the accused was frequently allowed no defence; torture, mutilations, and the death-penalty were awarded with the most shocking facility and for the most inadequate crimes,—the complete innocence of the victim was but too frequently recognized after his execution. "If I were accused of having stolen the towers of Notre-Dame," said one, "I would consider it prudent to run away." The right of asylum was still maintained in

Paris in the enclosure of the Temple, as in the Middle Ages; in 1768, "poor devils were sent to the galleys for having sold certain books, among them the innocent satire of Voltaire: *L'homme aux quarante écus*."



THE NEW HOTEL DE VILLE, AND THE PONT D'ARCOLE. After a drawing by Libonis.

The details of the trial and execution of Damiens, for his attempt on the life of the king, give a better picture of the times than any general description. Immediately after his arrest, his legs were torn with red-hot pinchers, and these wounds were not allowed to heal. He was confined in the Tour de Montgommery, in a circular chamber twelve feet in diameter, almost without light and air, strapped down, without the power of movement, to a mattress, the bottom of which was alternately pushed up and let down by a jack underneath. His examination lasted fifty-seven days; he was put to the question, "ordinary and extraordinary," to discover the names of his accomplices, and finally condemned to death by torture in very nearly the same phrases as those which we have quoted in the sentence of Ravallac. An enclosure was arranged in the Place de Grève, surrounded by a strong barricade of planks, pointed at the top, with elongations at the four corners for the four horses who were to *écarteler* the criminal; in the centre was a very solid wooden table, six feet long, four feet wide, and about three feet high, on which he was to be placed, fastened down with iron plates over

his chest, stomach, and between his thighs, in such a manner that his body should be perfectly immovable while his limbs were at liberty. "The roofs of all the houses in the Grève," says the contemporary *Journal de Barbier*, "and even the chimneys, were covered with people. There was a man and a woman who fell in a certain locality, and who injured others. It was remarked that there were very many women, and even some of distinction, and that they sustained the horror of this execution better than the men, which did not do them any honor."

From the memoirs of H. Sanson, one of the public executioners, the following details are quoted by M. de Genouillac. "The *tortionnaire*, who had charge of the pinchers, and who, by a singular mockery of circumstances, bore the name of a great seigneur of the time, Soubise, had assured his chief that he had procured all the implements indicated in the sentence. When he arrived at the scaffold, Gabriel Sanson immediately perceived that the miserable Soubise was drunk, and quite incapable of fulfilling his appointed task. Filled with violent apprehension, he demanded to be shown the lead, the sulphur, the wax, and the rosin which Soubise was to have purchased; everything was lacking, and it was recognized at the same moment that the 'patient' might arrive immediately, that the pile which was to consume his body was composed of damp and ill-chosen wood that would be very difficult to light.

"In contemplating the consequences of the drunkenness of the *tortionnaire*, Gabriel Sanson lost his head. For some moments the scaffold presented a spectacle of inexpressible confusion; the valets ran about distracted, everybody cried out at once, and the unhappy executioner of the *prévôté de l'hôtel* tore his hair while deploring the terrible responsibility which he had brought down upon his head. The arrival of the lieutenant of the short robe, who had finished disposing his men in the enclosure, the presence of the procureur général, who had been sent for, put an end to this disorder.

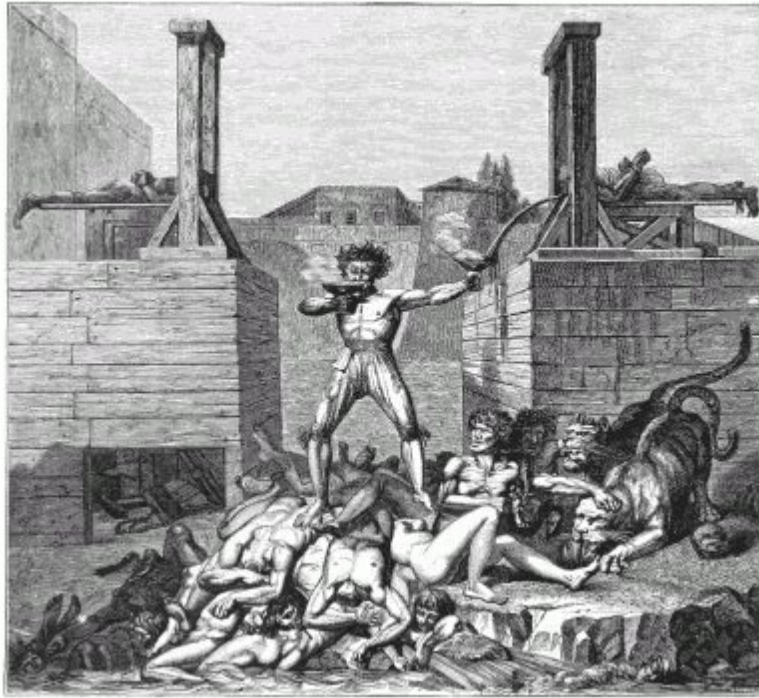
"The magistrate severely reprimanded Gabriel Sanson.... During this interval, the valets went into the shops of the grocers of the neighborhood to provide themselves with what was necessary; but when they issued from the enclosure, the crowd followed them,—in all the shops which they entered their purpose was made known and the merchants refused to sell them, or

pretended not to have what they desired; it was necessary for the lieutenant to send with them an officer to demand, *in the king's name*, the objects of which they had need."

"This scene was prolonged for such a length of time," says M. de Genouillac, continuing the narration, "that everything was not yet ready when the patient arrived on the Place de Grève, and they were obliged to seat him on one of the steps of the scaffold whilst they proceeded, under his very eyes, with the final preparations for his death. Damiens had remained three hours in the chapel; he had prayed continually, with a fervor and a contrition that had touched the hearts of all those present. When four o'clock struck from the clock of the Palais, Gabriel Sanson approached MM. Gueret and De Marsilly, and said to them that the hour to set out had arrived.

"Although he had spoken in a low voice, Damiens had heard him, for he murmured, in a feverish voice: 'Yes, it will soon be night;' and after a pause he added: 'Alas! to-morrow it will be day for them!'

"They raised him up to take him away; he made the motion of a kiss toward the crucifix; he was put into the tumbril, which took its way toward Notre-Dame. Before the porch of the church they endeavored to force him to kneel, but his legs were so broken that he uttered a piercing cry in endeavoring to stoop; he was obliged to pronounce while standing the words which the greffier dictated to him.



THE "FORMES ACERBES." After a drawing by Lafitte.

Expression used by Barère in his defence of Joseph Le Bon: "If Le Bon had employed formes acerbes, he had at least shown his devotion to the Republic." Le Bon caused the execution of more than fifteen hundred persons; it was he who installed an orchestra at the foot of the guillotine.

"He was replaced in the cart and all returned to the Place de Grève, which was literally full of people belonging to all classes of society. Arrived at the foot of the scaffold, Damiens asked to speak to the commissioners; he was carried to the Hôtel de Ville, there he retracted again the accusation he had made against Gautier, which had been wrung from him by torture, recommended his wife and his children to M. Pasquier, and at five o'clock he was set down again on the Place and they lifted him on the scaffold.

"The braziers in which was burning the sulphur mingled with burning coals were ready; his arm was attached to a bar in such a manner that the wrist extended beyond the outside plank of the platform. The executioner brought up the brazier. Damiens uttered a frightful cry and writhed; then, that movement over, he lifted his head and watched his hand burning without manifesting his pain in any other manner than by the chattering of his teeth. It was one of Sanson's valets, André Legris, who, for the sum of a hundred livres, undertook the tearing with pinchers. He carried his

instrument over the arms, over the chest, and over the thighs of the patient, and brought away shreds of flesh; then he poured into the gaping wounds boiling oil, flaming rosin, sulphur fused, or melted lead, with which the other valets supplied him.

"Damiens, mad with pain, his eyes immeasurably out of their orbits, the hair standing on his head, cried, in a voice that made every one tremble: 'More! more!'

"But he was taken down from the platform, the traces of the horses were attached to each one of his limbs. Each horse was held by the bridle by an aid; another was placed behind with a whip in his hand; the executioner, standing on the platform, gave the signal.

"The four horses sprang violently forward, one of them fell, but the body of the unfortunate wretch was not dismembered.

"Three times the horses recommenced their efforts, and three times the resistance of the body made them fall back. Only the arms and legs of the patient, who was still living, were immeasurably elongated.

"The curé had fainted; the executioners no longer knew what to do. The spectators, at first dumb with stupor and fright, now uttered exclamations of horror.

"It was then that the surgeon, Boyer, ascended to the Hôtel de Ville to ask of the commissioners permission to cut the joints; this was at first refused, on the pretext that the longer the execution lasted the more would the criminal suffer, and that this was what was necessary; but the surgeon having affirmed that the tearing asunder could not be effected without aid, it was resolved to permit the necessary amputation.

"But there was no instrument.

"André Legris performed the operation with blows of a hatchet, he cut the arm-pits and the joints of the thighs. The two thighs were first dismembered, then a shoulder, and it was not till after this that the wretched Damiens expired.

"A sigh of relief escaped from all breasts.

"But it was not finished: the four members and the trunk were gathered up and all placed upon the pile of fagots, and the flames arose. The execution of Damiens had lasted an hour and a quarter....



ROBESPIERRE GUILLOTINING THE EXECUTIONER.

From an engraving in the collection of M. Félix Perin.

"Robespierre, after having had all the French guillotined, beheads the executioner with his own hand." This caricature cost the engraver his life.

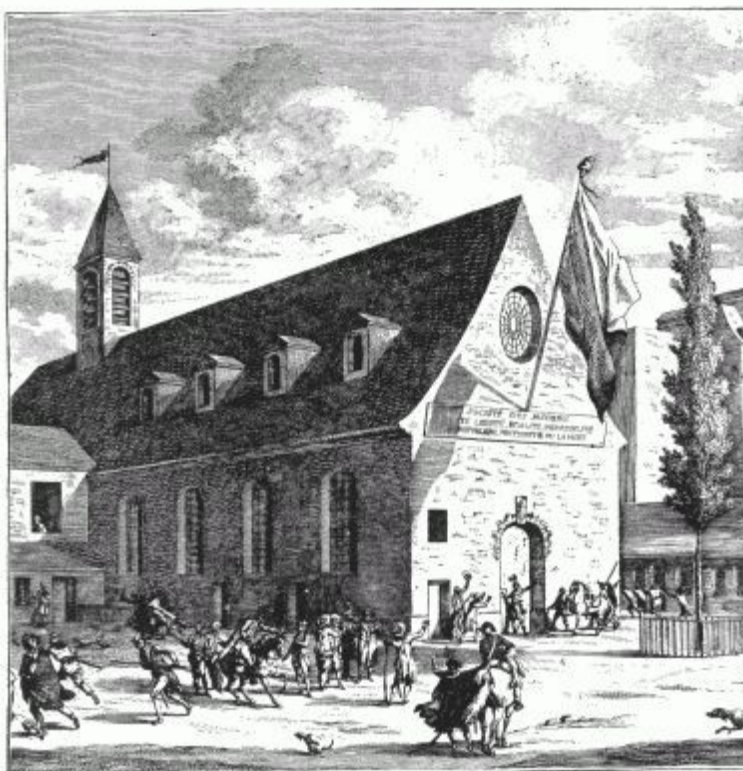
"It was observed, when they picked up the body of Damiens to throw it on the pyre, that his hair, which was brown when he arrived on the Place de Grève, had become white as snow."

The judgment rendered by the Parlement in the famous case of the diamond necklace, in the following reign, was received with very different emotions by the court and the people. It may be remembered that the Bishop of Strasbourg, Cardinal de Rohan, a member of one of the most arrogant families of the nobility, anxious to regain the favor of the Queen Marie Antoinette, had fallen into the snares of a clever adventuress, Jeanne de Saint-Remy de Valois, Comtesse de la Motte. The latter was aware that the

crown-jewelers, MM. Bœhmer and Bassenge, had offered the queen a necklace of diamonds for the price of one million six hundred thousand livres, but that she had declined it, saying that the money would be better applied in the purchase of a vessel of war. Madame de la Motte proceeded to open fictitious negotiations with the jewelers in the name of the queen, pretending that the latter had changed her mind but did not wish the affair to become public, that the purchase would be made by instalments and through the hands of a great seigneur of the court. This was the Cardinal Rohan, upon whom she imposed, by means of forged letters from the queen, skilfully prepared by her secretary, one Sieur Rétaux de Villette. She even arranged a brief nocturnal interview in the gardens of Versailles for him, as related in the last chapter, with a demoiselle from the Palais-Royal disguised as Marie-Antoinette. A few days later, the cardinal remitted to the comtesse the sum of one hundred and fifty thousand livres on a pretended letter; but when she proposed to him, later, to purchase the necklace himself on the strength of the queen's promise to indemnify him, he had so many doubts that he went to consult the adventurer Cagliostro, then in great favor in Paris. The magician pronounced favorably upon the enterprise; in January, 1785, the cardinal received the jewels from the merchants in return for a paper signed and sealed by him but bearing on the margin the words: "*Approuvé, MARIE-ANTOINETTE de France*" in which it was agreed that they were to be paid for in four instalments of four hundred thousand livres each, the first payment to be made on the 1st of August following. The queens of France were never in the habit of adding anything to the signature of their Christian names. On the first of February the cardinal delivered the necklace in a casket, in the apartments of Madame de la Motte at Versailles, to an assumed valet in the royal livery, whom he thought he recognized, but who was no other than the crafty Rétaux de Villette. The stones were immediately separated, the comtesse kept the small ones for herself and sold the larger ones in England. Naturally, the affair came to light a few months later, and on the 15th of August the cardinal was lodged in the Bastille.

Great was the excitement; the Papacy even interfered to prevent the trial of so eminent a churchman by the Parlement, before whom the king brought the *procès* in the following month, but the latter maintained its rights, and on the 31st of May, 1786, pronounced judgment. M. de la Motte (who had escaped to England) was condemned to the galleys for life; his wife, to be publicly flogged, branded on both shoulders with the letter "V," a rope

around her neck, and imprisoned for life; Rétaux de Villette banished for life, without branding or flogging; the demoiselle D'Olivia discharged; Cagliostro and the cardinal discharged from all accusation. The acquittal of the prelate was hailed with applause by the people, and viewed with great displeasure by the court and the nobility; the blow to the royal prestige was felt to be very serious, the publicity given to the fact that a cardinal, Grand Almoner to the Court, had mistaken a courtesan for the Queen of France was recognized as most unfortunate. Louis XVI banished him to his abbey of the Chaise-Dieu in Auvergne, ordered him to resign his post of Grand Aumônier de France, and to return his order of the Saint-Esprit.

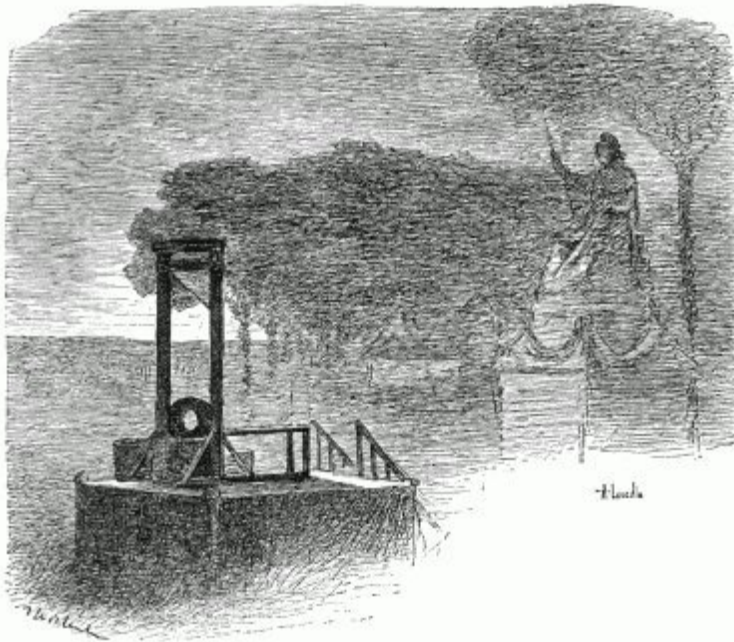


LAST EVENT OF THE REIGN OF TERROR: THE CLOSING OF THE JACOBIN CLUB.
After Duplessis-Berteaux.

Madame de la Motte, who had appeared on her trial coquettishly arrayed, and bearing herself with the greatest assurance, had become so violent on hearing her sentence that the *exécuteur des hautes-œuvres* was summoned to the Palais by the magistrates, and strongly recommended to avoid any public scandal in carrying out the sentence of branding her. It was proposed

to gag her, but it was feared that this would excite the people, and it was resolved to perform the operation at six o'clock in the morning, in the court of the Conciergerie. When it came to reading the sentence to her, four men were required to transport her before the Commission Parlementaire charged with this duty, and even then she escaped from their hands and threw herself upon the floor, rolling "in such convulsions and uttering such cries of a wild beast" that the reading had to be abandoned.

"When she was stretched on the platform," as the *Mémoires des Sanson* relate, "the fustigation commenced, and as long as it lasted, her cries became all the more furious. Her imprecations were especially addressed to the Cardinal de Rohan; ... she received a dozen blows with the rods; ... she remained during some moments mute, motionless, and as though fainting. Charles-Henri Sanson thought to take advantage of this to carry out the final directions of the sentence. Her dress had been torn in the struggles she had undergone, and her shoulder was uncovered. He took an iron from the brazier, and, approaching her, he pressed it upon the skin. Madame de la Motte uttered the cry of a wounded hyena, and, throwing herself upon one of the assistants who held her, she bit his hand with so much fury that she took out a portion of the flesh. Then, and although tightly bound, she began again to defend herself. Taking advantage of the care which the executioners exercised in this struggle against a woman, she succeeded for a long time in paralyzing all their attempts, and it was only very imperfectly that the iron was applied a second time, to the other shoulder."



THE GUILLOTINE IN THE PLACE DE LA CONCORDE, FORMERLY THE PLACE DE LA REVOLUTION, WHERE LOUIS XVI WAS BEHEADED, JANUARY 21, 1793.

The red-hot iron slipped, and the brand was made on her breast instead. "This time she uttered a cry more heart-rending and more terrible than all the others, and fainted. They took advantage of this to put her in a carriage and convey her to the Salpêtrière."

Such was the administration of justice in the middle of the eighteenth century, and in the most civilized capital in Christendom!

It is to be regretted that Destiny, with her usual disregard of sound ethics, should have passed over the heads of the vainglorious Louis XIV and the corrupt Louis XV to wreak the final vengeance due the Bourbons on that of their well-intentioned but incapable successor. In the eyes of Clio, weakness is the Unforgivable Sin. The grandson of Louis XV, when he ascended the throne in 1774, at the age of twenty, was "a prince of pure habits, of very limited intelligence, of an extreme timidity both in character and speech, loving the good, desirous of it, but, unfortunately, too feeble to be able to impose his will on those around him. While he was still dauphin, being one day reproached by the courtiers with his sober humor in the midst of the totally unregulated court of his grandfather, he replied: 'I wish to be called Louis the Severe.'" One day his minister, Turgot, entering his cabinet, found

him seriously occupied. "You see," the monarch said to him, "I am working also." He was drawing up a memoir for the destruction of rabbits in the neighborhood of cultivated estates!

The reforms instituted by this minister evoked such violent opposition, even from the Parlement in defence of the odious abuse of the *corvée* (forced labor on the highways), that the timid king dismissed him, in 1776. He was succeeded by the Genoese banker, Necker, who in his turn was obliged to resign, five years later, his intelligent efforts to redeem the hopeless confusion into which the finances had fallen serving only to increase the number of his enemies, amongst whom the Parlement was again to be found. The treaty of alliance with the revolted American colonies, signed February 6, 1778, was made the occasion of solemn warnings addressed to the king as to the dangerous encouragement he was thus giving the spirit of unrest and independence. The queen began to interest herself in the affairs of the government; at her advice, the direction of the finances was given to Calonne, in 1783, who in three years increased the debt by the sum of five hundred millions of borrowed money, and brought things to such a pass that he had no other resource to offer the distracted monarch but the discarded measures of his predecessor, Necker.

The quarrels with the Parlement increased in frequency and bitterness; the king was guilty of irregularity in forcing the enregistering of certain edicts,—"it is legal because I wish it so," he said; Calonne was succeeded by Brienne for a year, and the latter by Necker again for the same length of time, but it was too late; the demands for the *États Généraux*, or even for an *Assemblée Nationale*, became more and more peremptory. Brienne was burned in effigy in the streets of Paris, as Calonne had been, and it was even intended to insult the queen in the same manner. She was called *Madame Déficit*, and, at the request of the lieutenant of police, the king promised to prevent her appearing in the capital. Finally, a decree of the *Conseil du Roi*, December 27, 1788, convoked the *États Généraux* to meet at Versailles on the 1st of the following May, and the beginning of the end had come.

One of the very first of the questions to be settled was that of the number of representatives of the *tiers état*. Many things had changed since 1614, when they had been so humiliated, and it was recognized that an increased representation should be given them, though the nobles bitterly opposed this

reform. A royal decree of the 1st of January, 1789, fixed the total number of members at, at least, a thousand, and that of the third order at that of the other two combined. This decision was received with many demonstrations of satisfaction by the Parisians, and the six corps of the merchants of the capital addressed a congratulatory letter to the king. The amicable fusion of the three orders, which took place in the latter part of June, was prefaced by acrimonious dissensions, in which the king interfered, and was worsted. The custom, at first, was to permit the deputies of the clergy and nobility to enter the hall to take their places of honor, and to let those of the communes wait outside, frequently in the rain, as on the 23d of June,—the scene represented in M. Mélingue's painting, reproduced on page 35.

The first defections from the ranks of the aristocracy were made on the 13th of June, when three curés of Poitou took their seats with the third estate. On the 17th, on the motion of the Abbé Sieyès, the communes declared themselves the National Assembly, and on the 9th of July, the more clearly to indicate their mission, they added the word "Constituante." This bold step filled the court with rage, the king was advised to dissolve the Assembly, but had courage only to close the doors of the *Salle des Menus*, called the *Salle des Trois Ordres*, in which the sittings had been held. The president of the *tiers état*, Bailly, convoked the members in a tennis-court, where, on the 20th of June, they took a solemn oath not to separate until they had given a constitution to France. This was the famous *Serment du Jeu de Paume*. A week later, the king, at the instigation of Necker, invited the two higher orders to reunite themselves with the third. They obeyed and were courteously received, "We missed our brothers," said Bailly, "the family is now complete."



BONAPARTE WATCHING THE MOB IN THE TUILERIES GARDEN, JUNE 20, 1792.
From a painting by Georges Cain.

The Assemblée divided itself into thirty bureaux to facilitate the great work of creating the constitution, and the deputies of the tiers chose their presidents from among the nobles and ecclesiastics.

So far, everything had gone well, but the day of violence was at hand. More than thirty thousand troops had been concentrated around Paris and Versailles by order of the court; the Parisians, uneasy at their presence, demanded their withdrawal, the king dismissed Necker instead. The next day, the disturbances broke out, the Gardes-Françaises fired on a detachment of one of the foreign regiments, the Royal-Allemand, the people rose, clamoring for arms, fabricated pikes, plundered the arsenal of the Hôtel des Invalides, and moved on the Bastille as by a common impulse. The governor, the Marquis de Launey, had made the best preparations for defence that he could, but he had only one hundred and fifteen men under his command, and these but little disposed to make a good stand; at the end of a combat of several hours, they forced him to capitulate, on the solemn promise of the besiegers that their lives should be spared,—a promise which

was not kept. It is rather as the destruction of a hated instrument of tyranny than as a feat of arms that the French celebrate this event,—which inaugurated the long series of acts of bloodshed of the Revolution.

This news was received with such consternation at Versailles that the king commenced his half-hearted attempts to accept the situation and secure the friendship of his people. The next day, a royal courier announced to the inhabitants of Paris that, "relying upon the love and fidelity of his subjects," he had ordered the troops to leave the vicinity of the capital and of Versailles. The Assemblée sent a deputation of eighty members to Paris to confirm the news, there was universal rejoicing, a *Te Deum* at Notre-Dame, illuminations in the evening, Lafayette was appointed general of the Parisian militia and Bailly mayor of the city. On the 17th of July, the king made his famous visit to the Hôtel de Ville, was received by the new mayor and all the officers of the corporation, assumed the new tricolored cockade—with sufficient unwillingness,—and in response to the tumultuous acclamations of the crowd, swearing to defend his "legitimate authority," made them a little speech: "My people can always rely upon my love." "Louis might, on this day, have regained all hearts; but he was in nowise the man required for such times. The Revolution continued in his presence." On his return to Versailles, he consented to dismiss his cabinet of ministers and to recall Necker.

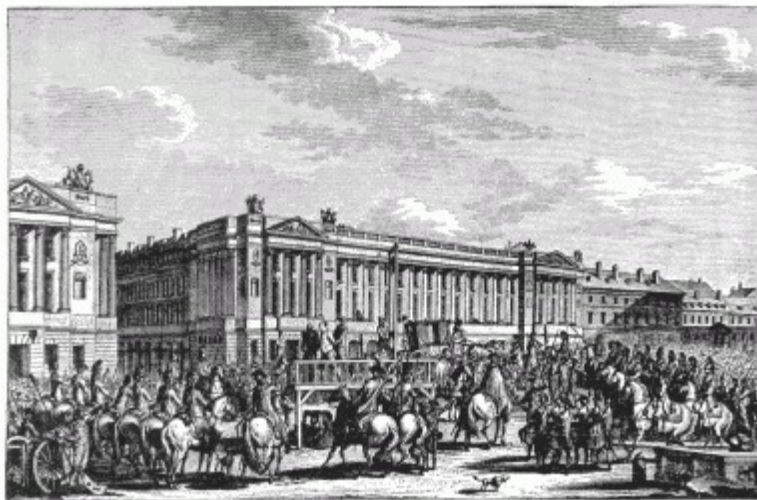
But misery and hunger were prevalent in Paris, and throughout the provinces the peasants had begun to burn convents and châteaux; the murder of former officers of the crown and the parading of their heads, and even of their hearts, through the streets had begun in the capital. In the celebrated sitting of the night of the 4th of August, the delegates of the nobility and the clergy voluntarily consented to the abolishment of all their privileges and feudal rights, of jurisdiction, of levying tithes by the clergy, privileges of persons, provinces, and cities. The right of redemption of all these privileges, excepting those which affected personal liberty, was stipulated, but this session was considered as memorable in establishing the dawn of equality, and the members of the Assemblée were saluted as "fathers of the country." Following the example of the American Congress, it was desired to draw up a declaration of the rights of the man and the citizen; those who wished to divide the legislative power into two branches, as in England, and give to the king the right of unlimited veto, were

outvoted, some of the moderate members retired from the committee on the constitution,—on both sides the advocates of extreme measures came to the front. The regiment of Flanders was recalled to Versailles; the king refused the proposition which was made to him to take refuge in Metz, with the army of Bouillé, which would have brought on the civil war, but the final catastrophe was hastened, nevertheless, by an imprudent banquet given to the officers of the various regiments, even the foreign ones and those of the national guard, on the night of the 1st of October, in which foreign airs were played, healths drunk to the royal family, white cockades distributed by the ladies, and the tricolored ones, it was said, trampled under foot.

The starvation in Paris had become so general, that the people, in their ignorance, murmured: "Ah! if the king only knew of our miseries; he is good, but he is deceived by the courtiers; if he were only here, and not at Versailles!" The news of this banquet, and of another given the following day in the *salle du manège*, set fire to the powder, an army of women assembled, crying: "Bread! bread!" and, accompanied by a great multitude, set out for Versailles, notwithstanding all the efforts of Bailly and Lafayette. Some of the *gardes du corps* were killed, and their heads paraded through the streets on pikes; the royal family were brought back to Paris, virtually prisoners, and the Assemblée committed "the unpardonable fault" of following them, and thus placing itself also within the reach of the mob that had finally learned all its power. The great nobles had already begun to "emigrate," leaving the king defenceless in the hands of his enemies, and rendering his situation still more desperate by their intrigues with foreign powers, which brought about the first of the coalitions against France.

On the 5th of November, it was decreed, and promptly approved by the king, that the sittings of the Parlement of Paris should be suspended until further orders, their powers to be exercised by the Chambres des Vacations; on the 24th of March, 1790, this ancient body was formally abolished, on the grounds that the nation had not concurred in its election. The consideration of the innumerable reforms, civil and political, voted by the Assemblée in its complete reconstruction of the government belongs rather to the history of the nation than to that of the city,—the absolute monarchy was deprived of the power of making laws, establishing imposts, deciding on peace or war, and reduced to the condition of the first of the administrative branches of the government, with a civil list of twenty-five

millions. Complete liberty of action was given to the press, to industry and commerce. The rights of primogeniture, of rendering estates inalienable, were abolished, and of confiscation, on the principle that the expiation should be strictly personal, like the fault. Protestants and Jews were admitted to all civic and civil rights, and the former recovered their property which had been incorporated in the domains of the State. All titles were abolished, the nobles were reduced to the condition of citizens, and the priests to those of public functionaries; the application of the death-penalty was greatly restricted; all Frenchmen, without regard to their birth or religion, were eligible to all public offices and all military grades; the ancient provincial departments of the nation were replaced by departments. "The territory of France is free throughout its length and breadth, like the persons who inhabit it."



**EXECUTION OF LOUIS XVI, JANUARY 21, 1793, PLACE DE LA CONCORDE.
MINISTRY OF THE MARINE IN BACKGROUND.**

After a contemporary engraving by Swebach.

To save the new State from bankruptcy, Necker proposed, and Mirabeau caused it to be voted by acclamation, that each citizen should sacrifice a quarter of his income. The domains of the Church were placed at the *disposition of the nation*, and the minister of finance was authorized to sell them to the amount of four hundred millions of livres, the State to take measures to provide suitably for the maintenance of religion and the support of its ministers, and the care of the poor. The crown-lands and the property of the *émigrés*, which were confiscated July 26, 1792, were also declared

national property, *biens nationaux*, and these biens were said to be the *dot* of the new constitution. The collection of the revenue was simplified and made less vexatious, each citizen to contribute his just proportion.

The supreme moment of the Revolution was, perhaps, the Fête of the Fédération, celebrated on the first anniversary of the fall of the Bastille, on the Champ-de-Mars, by the Parisians and the delegates sent by the army and the departments. The citizens, fearing that the great amphitheatre destined for this celebration would not be prepared in time, armed themselves with spades and picks, and thronged to the location to aid the workmen in this patriotic labor. The king presided; the queen, seated in a gallery of the École Militaire, took the dauphin in her arms and presented him to the people at the moment when his father was taking the oath to employ all the power delegated to him by the constitutional law of the State to maintain the constitution decreed by the Assemblée and accepted by him. The *Te Deum* was chanted before the immense "altar of the country" erected in the midst of the Champ-de-Mars, and the sun, suddenly breaking through the rain-clouds, illuminated the scene as if the heavens approved. In the evening, and for three days following, the populace danced on the Place de la Bastille.



SOLDIERS OF THE DIRECTOIRE. From a drawing by J. Le Blant.

It was in this year, 1790, that the municipalit  or commune of Paris was organized by the law of the 7th of May, which decreed that it should be administered by a *maire*, or mayor, sixteen *administrateurs*, thirty-two members of the council, ninety-six notables, a procureur of the commune, and two substitutes. The city was divided into forty-eight *sections*, which were to be as nearly equal as possible, relative to the number of citizens. The ninety-six notables, the maire, and the forty-eight members of the corps municipal constituted the *conseil g n ral* of the commune. The municipality had a treasurer, a *secr taire greffier* with two assistants, a keeper of the archives, and a librarian.

A very important part in the administration of the State, which became more and more an irregular administration in which the powers of the authorized government were tempered or set aside by popular clamor and bloodshed, was taken by the various clubs. That which was composed of the moderates, who wished to maintain the Constitution of 1791, having for leaders Lafayette and Bailly, took its name from the convent of the Feuillants in which it was lodged, and had separated from the formidable club of the Jacobins. The building of the latter was destroyed by the mob on the 28th of March, 1791, but the sittings were not finally suspended until November 11, 1794. The Feuillants ceased to exist after the 10th of August, 1792. The Jacobins, also named from the convent in which it held its sittings, had been the club Breton, and had left Versailles at the same period as the government. At first under the influence of moderate men, it gradually came under the sway of Robespierre. Danton presided over that of the Cordeliers, established in the ancient refectory and school of the former convent of that order; there was another turbulent association known as the *Amis de la V rit * [friends of the truth]; a ladies' club which published a journal; and even two royalists' clubs, one closed by the police in May, 1790, and the other by a decree of the municipalit  in January, 1791.

The Constituante Assembl e held its last sitting on the 30th of September, 1791, having finished its labors on the constitution, and seen it accepted by the king,—apparently restored to a position of security after the unsuccessful attempt of the royal family to escape on the night of the 20th of June. The maire of the city, Bailly, addressed his resignation to the officers of the municipality, and Lafayette resigned the command of the Parisian national guard, "the Revolution being terminated, and the reign of

law established," according to a decree of the municipalit  of the 1st of October. The Assembl e Legislative, which was to carry on this peaceable government, and to which no members of the Constituante were eligible, held its first sitting on this date. But the new constitution satisfied no one, republicans or monarchists, and the former were divided into numerous factions with very different views,—the Girondins, so named from the eloquent members from the Gironde, who directed the new Assembl e, and who wished to overthrow the royal authority without going to extremes; the extreme republicans, called Montagnards because they occupied the high seats on the left in the Assembl e, and the Feuillants, or constitutional royalists, who sat on the right.

On the 21st of September, 1791, the Assembl e had decreed that every criminal condemned to death should be beheaded, and to facilitate the execution of this law a Doctor Louis drew up a *m moire* which he presented to this body on the 20th of the following March, in which he described an instrument of his own construction, and which, after preliminary trials on animals and dead bodies, was finally adopted. Its name was derived from a Doctor Guillotin who, on the 1st of September, 1789, demanded that the sufferings of those condemned to death should be abridged by their execution with a species of machine that had been formerly in use. "With my machine," he said, "I will strike off your head in a twinkling, and without your suffering the slightest pain." This phrase, which provoked the Assembl e to much laughter, was repeated throughout Paris, and when a German mechanic, Schmidt, had constructed on the plans of Doctor Louis an apparatus, it was immediately called the *machine   Guillotin*, and presently, the guillotine. It was inaugurated on the 25th of April, 1792, in the Place de Gr ve, upon the person of a highway robber named Jacques Pelletier. "The novelty of the execution increased greatly the number of those whom a barbarous pity brought to view these sorrowful spectacles. This machine was preferred with reason to the other methods of execution; it did not soil the hand of a man with the blood of his fellow-creature."

The new instrument was put to such frequent use in the numerous political executions that it soon acquired a great notoriety, the prisoners jested concerning it, it was called the national razor, the mill of silence, and there were some persons who wore in their ears small representations of it. "In several of the h tels of Paris, those aristocrats who could not succeed in

emigrating killed time with a little guillotine in mahogany which was brought on the table after dessert; there were passed under its axe, successively, little figures or dolls whose heads, made to resemble those of our best magistrates, allowed to escape, as they fell, a reddish liquor resembling blood, from the body, which was a flask. All the guests, especially the ladies, hastened to dip their handkerchiefs in this blood, which proved to be a very agreeable essence of ambergris."

The site of the present Place de la Concorde, in which the guillotine was afterward set up, was embellished with a bronze equestrian statue of Louis XV, by Bouchardon, sculptor in ordinary to his Majesty, inaugurated on the 17th of April, 1763, and, Bouchardon having died, the design was completed by Pigalle, who placed on the marble pedestal four bronze figures typifying Strength, Prudence, Justice, and Love of Country,—supposed to represent the typical qualities of the monarch. Consequently, the Parisians soon had the pleasure of reading on the pedestal the following unofficial couplet:

*"Oh! la belle statue! oh! le beau piédestal!
Les vertus sont à pied, le vice est à cheval."*

[Oh! the fine statue! Oh! the beautiful pedestal! The Virtues go afoot, and Vice rides on horseback.] This statue was overthrown on the 11th of August, 1792, and the Place Louis XV became the Place de la Revolution, a stone and plaster figure of Liberty seated, colored to imitate bronze, being set up on the pedestal. On the 26th of October, 1795, it was rebaptized Place de la Concorde; the Restoration restored its name of Louis XV, and the Revolution of 1830, its present name.



THE DRUMS OF THE REPUBLIC. From a drawing by Adrien Karbowsky.

A very great majority of the bishops having refused to take the oath to the new *constitution civile du clergé*, decreed by the Constituante Assemblée, which placed them under the control of the civil authorities, and being strengthened in this refusal by the authority of the Pope, the new Assemblée, by the law of May 24, 1792, directed that as a measure of public security all these priests *non assermentés* should be banished. The king refused to sanction this measure, and dismissed his Girondist ministers; he sent a secret agent to the foreign coalition menacing the frontiers: in the Assemblée, which allowed its sittings to be constantly interrupted and overawed by irruptions of so-called delegations of the citizens, of the sections, of the national guards, the suspicion and the open denunciation of the court constantly increased. The agitation and violence in the clubs, in the streets, in the journals, augmented from day to day; on the 20th of June an enormous mass of the populace overflowed the Assemblée chamber, broke into the Tuileries, shook their fists in the queen's face, and compelled the king to assume the red cap. A thin, pale young artillery officer, standing on the terrace by the river, watched this mob with indignation. "The

wretches!" he exclaimed, "they ought to shoot down the first five hundred; the rest would take to their heels quickly enough." His name was Napoleon Bonaparte; he had been born in Corsica, in 1769, the year after that island had become French.

Not daring to do otherwise, the king was compelled to recall the Girondins to power, and to declare war against the German emperor on the 20th of April; the first actions of this war were unfavorable; the Duke of Brunswick, the commander of the Prussian army, issued a proclamation on the 20th of July declaring that he was coming, in the name of the allied monarchs, to restore the authority of Louis XVI, and the infuriated Parisian mob replied by the attack on the Tuileries on the 10th of August. The king, with all his family, escaped to the Assemblée at seven o'clock in the morning; the Swiss guards, badly led and short of munitions, were massacred after a gallant and ineffective defence. The atrocious Marat was hailed as the victor of this evil day; the Assemblée, under the inspiration of Robespierre, began to incline toward more extreme measures. The populace demanded of it that the king should be dethroned and a national Convention convened, it granted the second but not the first; the king was removed from the Assemblée to the prison of the Temple, and the Commune, headed by Danton, minister of justice, and composed of those leaders who had been elected to the principal municipal offices, became the real power in the capital. Through its instigation most of those confined in the various prisons of Paris were massacred in the first week in September. The helpless Assemblée held its last sitting on the 21st of this month, and the president, remitting its authority to the new Convention Nationale, announced in phrases which the future was to make but sinister mockery: "The aim of all your efforts shall be to give the French people liberty, laws, and peace."

The first step of the new legislators was to declare that "royalty was abolished in France," and to proclaim the Republic. The struggles to maintain the direction of affairs between the Girondins and the Montagnards increased in vehemence until the latter succeeded in acquiring the ascendancy at the end of May, 1793. "Educated in the ideas of Jean-Jacques Rousseau, they dreamed of the rude virtues of the best period of Rome and of Sparta for the France of the eighteenth century, and, even though society should perish in the experiment, they were determined to apply their theories." The question of bringing the king, or "Capet," as he

was now termed, to trial was debated in the Convention as early as the 7th of November, 1792; on the 2d of December, the Conseil Général of the Commune of Paris sent a petition to the Convention inviting that body to expedite this affair, and asking that the debate should be on these two questions: "1. Is Louis worthy of death? 2. Would it be advantageous for the Republic that he should perish on the scaffold?" By the terms of the constitution, the person of the king was sacred, and the extreme penalty provided for him was deposition, but the spirit of the "Terror" was already in the air; the situation on the frontiers was extremely critical; it was with some vague idea of defying or of awing the coalition that Danton had exclaimed in the Assemblée: "Let us throw them, in defiance, the head of a king!" The execution of the monarch, on the morning of the 21st of January, 1793, had, on the contrary, the effect of uniting against France all the sovereigns of Europe.

Around this execution have clustered the usual growth of legends and invention that supplement the great, trenchant facts of history with an embroidery to which history does not always condescend. The fine words which the king's confessor, the Abbé Edgeworth, are supposed to have addressed to him on the scaffold: "Son of Saint-Louis, ascend to heaven!" were invented on the day of the execution by a journalist named Charles His. The picturesque story of a secret midnight mass, celebrated every year on the anniversary of the execution, at the instigation and at the expense of the executioner Sanson, is equally devoid of foundation. It first appeared in the preface of a work published in 1830, under the title of *Mémoires pour servir à l'histoire de la Revolution française*, by SANSON, *exécuteur des arrêts criminels*. The preface was written by Balzac, the work itself by a certain Lhéritier, and Balzac reproduced the story with appropriate embellishments in his *Une Messe en 1793*, and later in the *Episode sous la Terreur*. One of the nuns who, in the first account, appeared as Mlle. de Charost here becomes the Mlle. de Langeais who figures so picturesquely and improbably in several of his romances. In the *Biographie universelle*, Michaud relates that Sanson, in his will, left directions to have a commemorative mass celebrated every year on the 21st of January; that he was so affected by the execution of the king that he fell ill immediately afterward, and died within six months, and that the provisions of the will were faithfully executed by his son and successor until his own death, in 1840. It appears, however, that the elder Sanson continued "to function" all

through the Terror, did not die till 1806, and that any attempt to carry out the pretended provisions of his will would have been very dangerous to his son, and to any notary who might have drawn it up. Through the Terror, and even under the Directory, there are numerous records of sentences of deportation against priests who had celebrated requiem masses for the repose of the soul of Louis XVI. The famous *Messe de Sanson* appears to have been invented out of the whole cloth by Balzac.

In the Convention, divided into factions, and rent by mutual suspicion and terror, efficient measures were, nevertheless, taken against the allied enemies on the frontier, and those in the bosom of the nation; a committee of general security was formed to look after the latter, with a revolutionary tribunal to judge them, and a committee of public safety, "a species of dictatorship with nine heads," took energetic measures for the national defence. To the cry of "*Citoyens la Patrie est en danger!*" the volunteers flocked to the enrolling offices in such numbers that it was thought necessary to issue a decree commanding the bakers and the postal employés to remain to exercise their functions. Everything was lacking in the way of equipment for the armies, the officers were suspected, and two or three of the generals went over to the enemy; but the nation, inspired with a double fury, against the foreign enemy and against its own citizens, put one million two hundred thousand men in the field, and the fourteen armies of the Republic, organized by the minister of war, Carnot, inaugurated that tremendous series of victories which carried the French name to its apotheosis of military splendor.



RETURN OF A REGIMENT OF GRENADIERS FROM THE CAMPAIGN IN ITALY. From the painting by J. Le Blant.

The excesses of the Reign of Terror are explained by the historians as the result of the universal fright and suspicion. "Under the reign of Hébert and Danton," said Saint-Just, "every one was wild and fierce with fear." A young girl, Charlotte Corday, came up to Paris from Caen and assassinated Marat, on the 13th of July, in the hopes of allaying the universal madness by the death of the principal wild beast; the queen was beheaded on the 16th of October; the king's sister, Madame Elisabeth, Bailly, the former maire of the city, Mme. Dubarry, the former mistress of Louis XV, and the Girondins, on the last day of October; the Hébertists on the 24th of March, 1794; and Danton, Camille Desmoulins, and other leaders of the so-called moderate party on the 5th of April. There remained only Robespierre, and a contemporary engraving, from the collection of M. Félix Perin, of Paris, reproduced on page 59, represents this dictator, "after having guillotined all the French," as executing with his own hand the executioner. He stands with his feet on the constitution of 1791; each guillotine represents a group of his victims. "A is the headsman; B, the Committee of Public Safety; C, the Committee of General Security; D, the revolutionary tribunal; E, the Jacobins; F, the Cordeliers; G, the Brissotins; H, the Girondins; I, the Philipotins (for Philippeautins, the followers of Philippeaux); K, the Chabotins; L, the Hébertists; M, nobles and priests; N, men of genius; O, old people, women, and children; P, soldiers and generals; Q, the constitutional authorities; R, the Convention Nationale; S, popular societies." The

ingenious draftsman might have added still another, one for himself, for we are not surprised to learn that he paid with his head for this work of art.

Another of these contemporary engravings, also reproduced for these pages, from the collection of M. le Baron de Vinck d'Orp, of Brussels, designed by Laffitte and engraved "under the supervision of M^e Poirier, avocat of Dunkerque," is dedicated to Joseph Le Bon, an unfrocked Oratorian, who had caused to be put to death more than one thousand five hundred persons; he had even established an orchestra at the foot of the guillotine. The title of the engraving, *Formes acerbes*, is taken from a phrase used by Barère in his defence of this sanguinary ecclesiastic: "If Le Bon had employed certain *formes acerbes* [harsh methods]," he said, "he had at least given proof of his devotion to the Republic." He is represented as standing upon a heap of naked and headless corpses, between the two guillotines of Arras and of Cambrai, drinking alternately from the two cups which he fills from the red streams from the scaffolds. At his side, two Furies excite the tigers to devour the bodies of his victims. But the invention of the caricaturists was no longer competent to record the actual march of events.

"An instrument of death better adapted to conciliate the requirements of humanity and the demands of the law could not be imagined," says a Paris journal of 1793. "The ceremonial of the execution might also be perfected, and delivered of all that pertains to the ancient régime. This cart in which the condemned is transported, and which was granted to Capet; these hands tied behind the back, which obliges the condemned to assume a constrained and servile position; this black gown in which the confessor is still permitted to array himself notwithstanding the decree which forbids the ecclesiastic costume, all this apparatus fails to proclaim the manners and customs of a nation enlightened, humane, and free."

Everything was reversed, reorganized and regulated by decree, from the conduct of those persons suspected of treason against the Republic because they ate only the crust of their bread, in the restaurants (18th of February, 1794), to the recognition of the Supreme Being and of the immortality of the soul (8th of May). A more practicable piece of legislation was that which divided the commune of Paris into twelve arrondissements or municipalités (21st of February, 1795), it having been recognized that the

city united under the power of one maire had been too powerful a force for seditious purposes, and that, divided into forty-eight sections, it had furnished too many centres of insurrection, which, communicating secretly with each other, had been able to elude the vigilance of the supreme authorities.

It was in this year 1795, "year III of the Republic," that was abolished the democratic constitution of 1793, which had not yet been put into execution, and established the Directory, of five members, one to be retired every year and replaced by a new member, all to be named by the legislative power and responsible to it. The latter was also divided, the council of the Five Hundred (*Cinq-Cents*) being charged with the duty of proposing the law, and that of the *Anciens* with that of examining it and executing it. By this division of power it was hoped to avoid a dictatorship and to constitute a liberal republic. The two legislative councils were composed two-thirds of members of the Convention and one-third of newly-elected delegates; the new government established itself in the palace of the Luxembourg. Carnot, the most illustrious of the five Directors, gave the command of the army of Italy to Napoleon Bonaparte.

On the 4th of September, 1797, the Directory, with the aid of Augereau and some twelve thousand men, suppressed the majority of the two *Conseils*, who had become royalists and anti-revolutionary, and sent a large number of them into exile. To this *coup d'état* of the 18th Fructidor, year V, succeeded that of the 22d Floréal, year VI (May 11, 1798), which annulled the election of the deputies who were called *patriotes*. General Bonaparte, with his army, was in Egypt; the European powers judged the time propitious to form a new coalition against such an unstable government and exhausted people. On the 30th Prairial, year VII (18th of June, 1799), the *Conseils* combined against the Directors and forced three of them to resign, but Bonaparte landed at Fréjus, and to all these futile little revolutions succeeded the vital one of the 18th Brumaire (9th of November, 1799), in which his grenadiers turned the members of the *Cinq-Cents* out of their hall at the point of the bayonet, and the *Anciens*, left alone in session, conferred the executive power on three provisional Consuls, Bonaparte, Sieyès, and Roger Ducos. Two commissions, of twenty-five members each, were appointed to revise the constitution.

"It was the Revolution abdicating, transferring its power to military authority, and about to enter with it on a new phase. And, moreover, it was still one more *journée*, that is to say, violent measure. What lessons given to the peoples by these perpetual insurrections, of the Commune, of the Convention, of the Directory, of the Conseils, of the royalists as of the republicans, and, finally, of the army! And how could it be possible to form citizens respecting the law, careful to modify it only with wisdom, instead of tearing it to pieces with rage, when, for the last ten years, nothing had been accomplished without sudden and violent measures?"

The new constitution, of the year VIII, was promulgated on the 15th of December, 1799. The consuls were three in number, elected for ten years, and eligible for re-election, but to the first was given all the power, his two colleagues being merely advisers. These three consuls were Bonaparte, Cambacérès, and Lebrun. The laws were to be prepared under the direction of the consuls by a *Conseil d'État*, named by them and revocable by them; these laws were to be discussed by the *Tribunat*, composed of one hundred members, but voted or rejected only by the three hundred members of the *Corps législatif*. Between these two powers, executive and legislative, was placed a *Sénat conservateur*, consisting of eighty members named for life, who were to watch over the maintenance of the constitution and select from the national lists, selected by a process of successive elimination from the whole body of electors, the members of the *Tribunat* and the *Corps législatif*.



**THE ARMY UNDER THE FIRST CONSUL: RETURN OF A REGIMENT FROM
MARENGO. From a water-color by F. Bac.**

The whole administration of the State was reorganized and given that character of "centralization," apparently rendered necessary by the danger from abroad by which it was threatened, which is still maintained, notwithstanding the many evils to which it has given rise and the extent to which the public liberty is impaired. Under the able hand of the First Consul, the new government was quick to inspire such confidence that the Parisian bankers lent it readily the first funds of which it had need. The laws against the recalcitrant clergy were greatly modified, the churches opened, the list of the émigrés was declared closed, and the former nobles admitted to their rights as citizens, but not to the enjoyment of their property which had been confiscated for the benefit of the *biens nationaux*. The Parlement of Paris having been suppressed, a new judiciary organization was established in the capital, the *tribunal de première instance* and the *cour d'appel* were created; the *cour de cassation* and the *cour d'assise*, the justices of the peace, were all reorganized. The army, strongly revolutionary in tendency, was so willing to be relieved of the incompetence of the Directory, and was so promptly provided with equipments, munitions, and confidence in the new order of things, that it willingly accepted the change in the State.

Marengo and Hohenlinden brought about the Peace of Lunéville, February, 1801, with the Continental powers; the fear of the camp of Boulogne from which the First Consul proposed to descend upon England (if we may believe the French historians), that of Amiens, March, 1802, with that power. The wars of the Revolution were finished, it was thought, even by Bonaparte himself. Then commenced that extraordinary display of the genius of reorganization, unhampered by any undue scrupulousness, which made his legislation almost as admirable as his military talent; the nation willingly resigned itself into his powerful and most skilful hands, and the machinations of the royalists against his life, the conspiracies and the infernal machine of 1800, only paved the way to the Consulate for life, 2d of August, 1802. The Empire followed on the 18th of May, two years later.

The name of the Republic, however, was retained long after its substance had departed. The title of Emperor appears as early as 1790, in a proposition

made by M. de Villette on the 17th of June, before the club of 1789, that the king should be saluted by that title on the day of the fête of the Federation. "Let us efface," he exclaimed, "the names of king, of kingdom, and of subject, which will never combine with the word 'liberty,'" *Empire* signified, under the monarchy as under the Republic, rather the extent of the territory of France than a form of government. The first article of the sénatus-consulte organique of the 28th Floréal, year XII, which modified the Consular constitution, read: "The government of the Republic is confided to an emperor who shall take the title of *Empereur des Français*." And the Emperor's oath was: "I swear to maintain the integrity of the territory of the Republic." The word *République* did not disappear entirely from the official language for four years. The figure of the Republic ceased to appear on the seal of State in 1805, and the inscription RÉP. FRA. from the official stamp on the news journals on the 1st of January, 1806. It was on this date also that the Gregorian calendar replaced that of the Republic. The decree of the 28th of May, 1807, is the last act of the Imperial government in which appears the phrase *par les constitutions de la République*, but it was only from the 1st of January, 1809, that the coinage was stamped *Empire Français*, instead of *République Française*. It would seem that in 1808, Napoleon, little as he liked the Republic, was the only one who remembered its official existence.

Among the most efficient of the minor measures taken to replace the old order of things by the new was the creation of a new honorary order, to supersede those of the ancient régime,—the cross of Saint-Louis, for military services; the cordon of Saint-Michel (cordon noir), for civil services; and the order of the Saint-Esprit (cordon bleu), which included only a hundred chevaliers, of the most ancient nobility. A law of May 19, 1802, created a *Légion d'honneur*, to be composed of a grand administrative council and of fifteen cohorts, each consisting of seven great officers, twenty commandants, thirty officers, and three hundred and fifty legionaries. By the eighth article of this law, every individual admitted into this Legion was to swear on his honor to devote himself to the service of the Republic, to the preservation of its territory in all its integrity, to the defence of its government, of its laws, of all property which it had bestowed, to combat, with the aid of all the means which justice, reason, and the laws authorized, every enterprise tending to re-establish the feudal régime, to revive the titles and qualities which had been its attributes,—in short, to aid

with all his power in the maintenance of liberty and equality. By the denial of any hereditary privileges it was thought thus to create an order which would not offend the new spirit of equality while offering a suitable reward to the soldier, the diplomat, the scientist, the professional or the commercial man who had rendered notable service to his country.

"The Empire succeeding the Republic," says M. Steenackers in his *Histoire des ordres de chevalerie*, "brought about certain changes in the Legion of Honor. In the first place, the form of the oath had to be modified, and was refused by certain men, such as the admiral Truguet and the poet Lemercier. The first distribution made by the Emperor, on the 14th of July, 1804, in the church of the Invalides, to the principal personages of the Empire, was again made the occasion of a manifestation of opposition by Augereau, although a grand officer of the order, and of about sixty military officers who remained in the court, not wishing to enter the chapel. In this distribution, the old invalided soldiers came first, then the members of the Institute, and finally the military legionaries. The youth of Paris also made its small protestation, some days after this distribution. It was the season for carnations,—the young men put these flowers in their buttonholes and thus were enabled to receive, at a distance, military honors from functionaries a trifle near-sighted. Napoleon, informed of the jests which ensued, and of the discontent of the soldiers, ordered the minister of the police to take the most severe measures with regard to these insolents. Fouché replied: 'Certainly these young people deserve to be chastised, but I will wait for the autumn, which is coming.' This clever reply disarmed the master, and presently the protesting carnations were seen no more, but the sarcasms and the pretended witticisms were not so easily checked. Thus, in the spring of 1803, General Moreau, giving a dinner, summoned his cook and said to him, in the presence of his guests, 'Michel, I am pleased with your dinner; you have truly distinguished yourself with it, I wish to give you a stewpan of honor....' Lafayette refused the decoration, characterizing it as ridiculous. Ducis and Delille would not accept it."



REVIEW IN THE PLACE DU CARROUSEL. FIRST EMPIRE. From a drawing by L. Marold.

The grand officers received a pension of five thousand francs; the commandants, two thousand; the officers, one thousand; the legionaries, two hundred and fifty. The poor daughters, or the orphans, of members of the Legion are educated by the State; but it is not considered "good form" to accept this honorable charity. A decree of the 30th of January, 1805, instituted a fifth degree in the order, superior to all the others, which was designated as the grand decoration or the grand eagle,—the number of these was limited to sixty. Later, the cross was surmounted by an imperial crown. The decoration, at the period of its founding, was in the shape of a star with five double rays, attached to one of the buttonholes of the coat by a red moiré ribbon. This ribbon had at first an edging of white, but this edging was soon suppressed. In the centre of the star was placed the head of the Emperor, crowned with a wreath of oak and laurel.

At the present moment, this decoration, which has been retained by all the succeeding governments of France, is passing through one of its periodical, but never very important, periods of partial disesteem. The somewhat inconsistent conduct of the administration of the Legion of Honor with regard to those of its members whom it has disciplined and those whom it has retained unquestioned on its lists, among those active in the Dreyfus-Zola-Picquart-Esterhazy affair, has led to considerable comment and disaffection,—even to resignation of the generally much-coveted red ribbon by certain peculiarly indignant members of the order.

In the year 1807, that of the peace of Tilsit, the Empire attained its highest point. After the Concordat, which aimed to establish peace and toleration in religious matters and the Legion of Honor, a system of national recompense for distinguished services, came the founding of the Université, and the publishing of the civil Code. "On his return from Marengo, the First Consul had empowered Tronchet, Portalis, Bigot de Préameneu, and Maleville to draw up a plan for a civil Code, for which the preceding Assemblées had prepared the materials. This great work was accomplished in four months. Bonaparte ordered that it should be sent to all the judicial courts, and a number of valuable observations were thus obtained. The section of legislation of the Conseil d'État examined them, then drew up the sketches of the laws, which were communicated to the Tribunat, and returned to the Conseil amended, clarified, but destined to be still more so. Then, in fact, commenced, under the presidency of the First Consul, those admirable discussions in which he took such a glorious part. He animated every one with his ardor; he astonished these old jurisconsults by the profundity of his views, above all by that exquisite good sense which, in the constructing of a good law, is worth more than all the science of the lawyers. In this manner was elaborated that chart of the family and of property which the Corps législatif adopted in its session of 1804, and which received, three years later, the name which it merited, of *Code Napoléon*."

Among the many testimonials by contemporaries to the prodigious faculties, the authority which seemed to disengage itself from the person of Napoleon, in this work of legislation in which lay his truest glory, one of the latest is to be found in the *Mémoires* of the Comte Mollien, who, after the 18th Brumaire, was called to the direction of the *Caisse d'Amortissement*, or bureau of liquidation, just established, and in 1806, to the post of Minister of the Treasury. "I felt myself," he says, "if not convinced, at least vanquished, brought to the ground, by this puissance of genius, this vigor of judgment, this sentiment of his own infallibility, which seemed to leave to other men only that of their inferiority. If he saw himself contradicted, his polemics armed themselves with arguments the most pressing, as likewise, in some cases, with a censure the most bitter, almost always with a torrent of objections which it was impossible to foresee, still more impossible to combat, because you would have as vainly endeavored to seize the thread of the argument as to break it."

After Wagram, Napoleon himself perceived the waning of his star, and it was with a view of reassuring public opinion, as well as of providing for the future, that he divorced Josephine and married the Austrian archduchess, Marie-Louise. A year afterward, on the 20th of March, 1811, the policy of this marriage seemed to justify itself, and the Empire to have acquired a new security, by the birth of a son. A contemporary writer, M. de Saint-Amand, gives a lively picture of the emotions with which the Parisians awaited the news of this auspicious event. "All the inhabitants of the city knew that the reports of twenty-one cannon only would announce the birth of a daughter, but that if a son were born, there would be fired a hundred and one. The explosions of the artillery commenced. From the moment the first report was heard, the multitude kept perfectly silent. This silence was interrupted only by voices counting the sounds of the cannon,—one, two, three, four, and so on.

"The suspense of the waiting was solemn. When the twentieth report was heard, the emotion was indescribable; at the twenty-first, all the breasts were breathless; at the twenty-second, there was an outburst of joy which rose almost to delirium. Cries of delight, hats in the air, applaudings; it was an ovation, a victory over Destiny, which it seemed was to be henceforth the servant of Napoleon."

Nevertheless, three years later, the Allies were in Paris, and the Senate, convoked and directed by Talleyrand,—to whom the Chancellor Pasquier, qualified by Taine as "the best informed and the most judicious witness for the first half of this century," denies every quality of "the heart or the soul," the superiority of talent with which he is generally credited, and even the sole virtue usually left him by his detractors, that of having skilfully and worthily represented France at the Congress of Vienna,—named a provisional government, on the 1st of April, 1811. On the 3d, it pronounced the end of Napoleon's power; on the 6th, it adopted a new constitution and called to the throne a brother of Louis XVI, who became Louis XVIII.



**THE FLOWERS. CEILING DECORATION FOR THE GRANDE SALLE DES FÊTES IN
THE NEW HOTEL DE VILLE.
Painted by Gabriel Ferrier.**

The return from Elba, the Chancellor states in his *Mémoires*, so far from being desired by the nation at large, was viewed with terror; and the unpopularity of the government of the Bourbons, after their return to power, he ascribes to the very poor opinion that it caused to be entertained "of its strength and of its capacity." Of its gross violation of law and justice, one of the most striking instances was that of the execution of Marshal Ney, after Waterloo, and the Duc de Richelieu, Louis XVIII's minister of foreign affairs,—whom the latest historical researches seem to combine to elevate, and of whom even Pasquier was an admirer,—here appears in the ignoble *rôle* of judge and accuser combined. Scarcely was he settled in the Tuileries again when the new king proceeded to draw up a list of eighteen citizens and eighteen superior officers to be proscribed, though in so doing he formally violated the articles of the capitulation of Paris, which provided that no citizen or soldier was to be prosecuted for having taken part in the preceding events. The presidency of the council of war which was to try, and condemn, "the bravest of the brave," was offered to the eldest of the

marshals, Moncey, Duc de Conegliano. He declined it, in an indignant letter to the king, as "sanctioning an assassination," and was imprisoned for three months in a fortress for disobedience of orders. By a majority of five votes against two, the council, in fact, declared itself incompetent, and Ney, with a sigh of relief, exclaimed: "You see, *ces b ... là* would have shot me like a rabbit."

He rejoiced too soon; the Duc de Richelieu made a furious speech before the Chamber of Peers in which he openly demanded the condemnation of the marshal; in the *acte d'accusation*, read before this new court, "the truth was so outrageously abused and mutilated that it was justly characterized as a masterpiece of hatred." In vain his defenders demonstrated that this prosecution was a violation of the solemn engagements made by the Allies *in the name of the king*; Davout and his chief-of-staff, General Guilleminot, deposed that they would have "delivered battle," instead of capitulating, had it not been for article 12 of this capitulation, in which an amnesty for all persons was expressly stipulated; they were peremptorily silenced, and at nine o'clock the next morning the marshal was shot by his old comrades in arms in the grand alley of the garden of the Luxembourg. A recent monograph by M. Henri Leyret, from which we draw these details, quotes the remark of a foreigner who was present at this execution: "The French act as if they had neither history nor posterity."

During the ten years of the Empire, the aspect of Paris had greatly changed, no less than one hundred and two million of francs having been spent on the embellishment of the capital. Among the minor details of these architectural changes may be cited the regulation of the numbering of the houses in 1805, and in 1808 a serious attempt to provide some sidewalks in the principal streets. Curiously enough, this latter measure met with considerable opposition on the grounds of its impracticability because of the numerous *portes cochères*. But it was not till 1825 that the use of these pavements for foot-passengers became general.

M. Duruy's summing-up of the reign of Napoleon may be compared with that he gives of the epoch of Louis XIV: "Victories gained by the superiority of genius and not by that of numbers, immense works accomplished, industry awakened, agriculture encouraged by the security given to the acquirers of the *biens nationaux*, an administration enlightened,

vigilant, and quick to act, the unity of the nation consolidated and its grandeur surpassing all imaginations,—this is what will plead always for him before posterity and to the heart of France."

The new Bourbon styled himself "king by the grace of God," without any mention of the national will or of the foreign enemy to whom he owed his crown; he replaced the tricolor by the white flag, and dated his accession from the death of his nephew Louis XVII, the dauphin, considering 1814 as the nineteenth year of his reign. So far was this fable pushed that in certain school histories of the Restoration the victories of the campaign in Italy were stated to have been gained by "M. de Buonaparte, lieutenant-general of the king." In a recent review of this reign, however, it is stated that when Blucher was mining the bridge of Jéna, during the occupation of the capital, and refused to be dissuaded from his purpose of blowing it up, Louis XVIII declared his intention of stationing himself on the bridge and perishing with it. The intervention of the Russian Emperor, Alexander, however, had probably more to do with the preservation of the structure; and a recent biography of the Duc de Richelieu asserts that the Czar's affection for this minister, who had been at one time governor of Odessa, brought about the evacuation of French territory by the allied armies at a date earlier by two years than that fixed by the treaty of November 20, 1815.

Notwithstanding the liberal provisions of the *Charte constitutionnelle*, drawn up on the 27th of May, 1814, the restored monarchy returned so promptly to all its old abuses that in ten months it had exhausted the public patience and brought about the return from Elba. On the second restoration, after the Hundred Days, it was so vindictive, as we have seen, adding even religious persecution to political, that it also has been given in history its reign of terror, *la Terreur blanche*. In 1824 the king was succeeded by the Comte d'Artois, under the title of Charles X, a typical Bourbon, who had "learned nothing, forgotten nothing," who considered himself called to revive all the powers and privileges of the ancient monarchy, and who did not hesitate to violate the prescriptions of the *Charte* when he found them in his way. Consequently, the nation, with Paris at its head, at the end of its patience and finding its constitutional opposition about to be encountered with a *coup d'État*, got up the bloody revolution of July, 1830, in the streets of the capital, and the last of the Bourbon kings took the road to permanent exile,—let us hope.

The Chamber of Deputies replaced him by the head of the younger branch of the Bourbons, the Duc d'Orléans, who assumed the title of Louis Philippe I, Roi des Français. The new monarch affected certain airs of bourgeois simplicity, not unmixed with bourgeois prudence. He declined to take up his lodging in the Tuileries until all traces of the devastation attending the exit of the late tenant had disappeared, and not even then until the windows opening on the garden had been protected by a ditch, bordered with lilacs and with an iron railing. "I do not wish," he said, "that my wife should be exposed to the risk of hearing all the horrors that Marie-Antoinette heard there for the space of three years." "The new royalty," writes M. de Saint-Amand, "adopted a demi-etiquette which occupied a position half-way between the customs of absolute power and those of democracy. The sovereign assumed the uniform of a general of the National Guard. He had neither écuyers, nor chamberlain, nor préfet of the palace, but there were aides-de-camp and *officiers d'ordonnance*. The bourgeois element increased greatly in the fêtes of the Tuileries. Nevertheless, for those who observed this court of the July monarchy, there was a sensible tendency to return to the methods of the past."



**THE FRENCH DANCES THROUGHOUT THE AGES. DECORATION FOR THE GRANDE
SALLE DE FÊTES IN THE NEW HOTEL DE VILLE.
Painted by Aimé-N. Morot.**

This tendency gradually became accentuated in the successive ministries which the king called to his aid; the republican and liberal aspirations on the one hand and the Bonapartist and Imperial souvenirs—greatly strengthened by the imposing ceremonial attending the return of the ashes of Napoleon to the capital in December, 1840—combined to make difficult the task of the government. Paris, which, in the words of M. Duruy, "loves to *fronder* as soon as it ceases to be afraid," was entirely given over to the opposition. At the opening of the session of the Chambre in 1848, the ministers persuaded the king to declare in a discourse that a hundred of the deputies were enemies of the throne. The republicans planned a great reunion at a banquet to be given in the twelfth arrondissement, the ministry forbade the assembly, the conflicts began in the streets between the citizens and the soldiers, the préfet de police, who, in his daily reports, was able to dispose of the 12th of February in this paragraph: "Order and tranquillity continue to prevail in Paris: no extraordinary agitation is to be observed," was obliged, ten days later, to conclude a long account of the manifestations in the capital by a recommendation to hold the army in readiness for an organized attack "in case the insurrection recommences." It did recommence, that night, and the next day Marshal Gérard announced to the insurgents in the Palais-Royal the abdication of the king.

He abdicated in favor of his grandson, the Comte de Paris, with the Duchesse d'Orléans for regent, and the duchess was left in the Tuileries when the king, taking off his grand cordon and his uniform, depositing his sword on a table, arrayed himself with his wife's assistance in a bourgeois costume and took his departure for Saint-Cloud. The duchess, with her two sons, was escorted to the Chamber, where the president declared that her regency should be proclaimed by that body, and Lamartine was in the midst of a speech advising the constitution of a provisory government for that purpose when he was interrupted by the invasion of a revolutionary mob shouting: "A bas la Régence! Vive la République! A bas les corrompus!" The little Comte de Paris was seized by the throat by one of these demonstrative citizens, and only saved from being choked by the intervention of a national guardsman. The provisional government

proclaimed the Republic; before the Hôtel de Ville, Lamartine, in a burst of eloquence, repelled the proposition of the mob to adopt the red flag and secured the adoption of the tricolor, and the provinces, following the lead of the capital, seemed to accept the Republic.

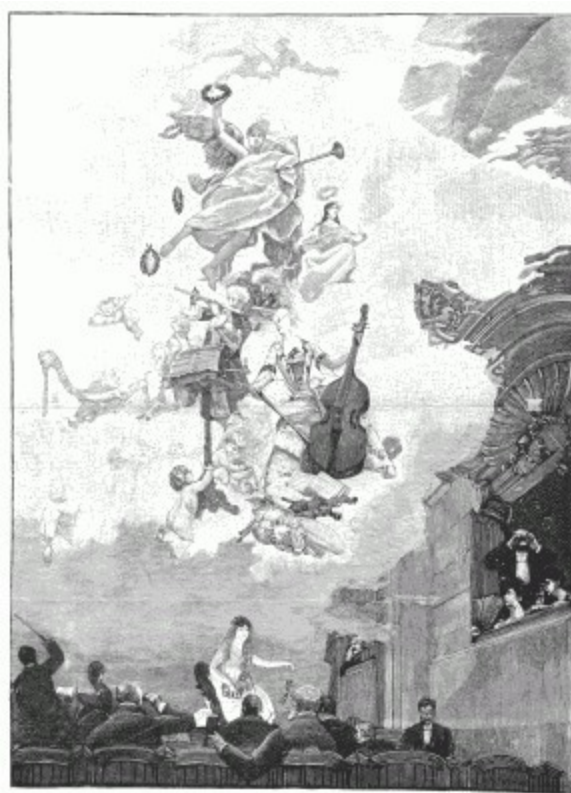
But a stable administration of the city and the nation seemed more unattainable than ever. The new government had to suppress popular uprisings in the streets of Paris in March, in May, and in June; the new *Assemblée Nationale*, elected by universal suffrage,—nine millions of electors, instead of 220,000, as under the late monarchy,—made haste to organize a new government consisting of a single president, to be elected, and a single legislative body. The new president, elected by an overwhelming majority, was Louis-Napoleon Bonaparte, a nephew of the Emperor. He was given power to nominate all the innumerable employés of the government, to negotiate treaties, and to organize the army, but he could not take command of the latter nor dissolve the *Assemblée*, and he was not eligible for re-election. The two chief powers of the government were not long in coming into collision; the legislative body, divided into numerous factions, lacked decision and initiative, and it lost in popular favor by the law of the 31st of May, 1850, which struck three millions of electors from the lists by restricting the suffrage to those only who could prove a continuous residence of three years in the canton. The President, seizing his opportunity, demanded the repeal of this law (November 4, 1851), and on the 2d of December following, by a series of summary nocturnal arrests, succeeded in putting all the chiefs of the various parties in the *Assemblée*, and all his most formidable opponents, under lock and key. "I have broken out of the way of legality," said he, "to re-enter that of the right;" and the nation, by 7,437,216 votes against 640,737, accepted the new constitution which he proposed for it, the renewal of his power for ten years, the abolition of the law of the 31st of May, and the dissolution of the *Assemblée Nationale*. The Empire followed naturally, a year later, and was ratified by the nation by an even more overwhelming majority.

So much obloquy has been attached to the person and the reign of this sovereign, he has been made the object of such unlimited denunciation, deserved and undeserved, at home and abroad, that it will doubtless come as a surprise to many of our readers to find how liberal and enlightened were at least many of the aims of his administration, and how

enthusiastically he was supported by the people that have since found no terms too strong to express their detestation. "Napoleon III," says M. Duruy, "at the very moment that he took possession of the throne, had promised that liberty should one day crown the new political edifice. After Solferino, he endeavored to introduce her again into our institutions. He began this work by the decree of the 24th of November, 1860, which associated the Corps Législatif more directly with the politics of the government. He continued it by the sénatus-consulte of the 2d of December, 1861, which deprived the Emperor of the power of decreeing extraordinary credits in the intervals of the sessions; by the letter of the 19th of January, 1867, which gave the ministers the right of appearing before the Chambers, in order that they might at any moment render an account of their acts to the nation; by the laws on the press, which was restored to its natural privileges, and on the popular assemblages, of which a few were useful and a great many detestable (11th of May and 6th of June, 1868). Finally, at the period when, abroad, the unfortunate issue of the expedition to Mexico, and the menacing position assumed in Germany by Prussia, after her victory of Sadowa over the Austrians; in the interior, the progress of public intelligence, favored by the general prosperity, had developed stronger desires for freedom which the elections of 1869 made evident, the Emperor renounced his personal authority, and by the sénatus-consulte of the 20th of April, 1870, proposed to the French people the transformation of the autocratic Empire into the liberal Empire. On the 8th of May, 7,300,000 citizens replied *yes* to this question, against 1,500,000 who replied *no*."

Thus this dignified and candid historian does not hesitate to lay the responsibility of the war of 1870-71, "most certainly, on the ministers, the deputies, and the unreasoning folly of Paris." "Paris," says another writer, an eye-witness, "was inflamed with a peculiar fever, and even words changed their meaning. Workmen were maltreated on the Boulevard des Italiens for having traversed it crying: '*Vive la Paix, vive la Travail!*' ['Give us Peace! Hurrah for Labor!'] The courts themselves interfered, and citizens were condemned to prison for having uttered publicly this seditious cry: '*Vive la Paix!*'" The latest historian of the war, the Commandant Rousset, who "has summed up, with more clearness and force than any other, the political and military considerations which explain its issue," in the opinion of the critics, defines as one of the three principal causes of its disasters

after the 4th of September, the excessive importance attributed to the capital. The necessity of delivering Paris paralyzed all the efforts of the armies of the provinces, in depriving them of all liberty of action. "Enough can never be said of the fatal incubus which weighed upon us in the shape of the specious theory which certain pontiffs of the high strategy had erected upon the abstract value of positions, and of entrenched camps, nor of the amount of profit which the German army derived from the disdain which it entertained for this theory." This inordinate importance of the capital, as we have already seen in many instances, is one of the most striking facts in the history of France.



**"THE PROGRESS OF MUSIC." PLAFOND OF THE GRANDE SALLE DES FÊTES IN
THE NEW HOTEL DE VILLE.
Painted by H. Gervex.**

The capital once more effected a change in the government, and by the familiar methods,—on the 4th of September, 1870, the mob invaded the Chamber and overturned the Empire. In the civil war that followed the withdrawal of the Germans—brought about by the *Commune* and the *Internationale*, the former, with the pretext of restoring to the city its

legitimate rights by giving back to it the election of its municipal officers, and the second, a socialism which was practical anarchy, repudiating patriotism, denouncing capital as theft, aiming to overthrow all society—it was again the capital which acted. In the private correspondence of one of those leaders of revolt, the nihilist Bakounine, lately published, he writes to his confidant: "What do you think of this desperate movement of the Parisians? Whatever the result may be, it must be confessed that they are brave enough. That strength which we have vainly sought in Lyon and in Marseille has been found in Paris. There is there an organization, and men determined to go to the bitter end. It is certain that they will be beaten, but it is equally certain that there will be henceforth no salvation for France outside the social revolution. The French state is dead, and cannot be revived."

In the number of the *Contemporary Review* for March, 1898, may be found an admirable condensation of the history of France for the last hundred years (quoted, without comment, in a Parisian journal), in the shape of a résumé of the various street cries heard in Paris during that period. (It is probably scarcely necessary to explain that *A bas* is "Down with" and *Conspuez*, practically, "Spit upon.") In 1788, the people cried: *Vive le roi! Vive la noblesse! Vive le clergé!* In 1789: *A bas la noblesse! A bas la Bastille! Vivent Necker et Mirabeau! Vivent d'Orléans et le clergé!* In 1791: *A bas les nobles! A bas les prêtres! Plus de Dieu!* [No more God!] *A bas Necker! Vivent Bailly et Lafayette! A bas Bailly!* In the first half of 1793: *A bas Louis Capet! A bas la Monarchie et la Constitution de 1791! Vive la République! Vivent la liberté, l'égalité, la fraternité! Vivent les Girondins!* In the second half of the same year: *A bas les nobles, les riches et les prêtres! Vivent les Jacobins! Vive Robespierre! Vive Marat, l'ami du peuple! Vive la Terreur!* In 1794: *A bas les Girondins! Vive la Guillotine!* In 1794 and 1795: *A bas la Terreur et ses exécuteurs! A bas Robespierre!* From 1795 to 1799: *Vive le Directoire! Vive Bonaparte! A bas le Directoire! Vive le Premier Consul! A bas la République! Vive Napoléon empereur! Hourrah pour la guerre et la Legion d'honneur! Vive la Cour! Vive l'impératrice Joséphine!* From 1809 to 1813: *A bas le Pape! A bas Joséphine! Vive Marie-Louise! A bas Napoléon, l'oppresseur, le tyran! A bas les Aigles! Vive le Roi légitime! Vive les Alliés!* In March, 1815: *A bas les Alliés! A bas les Bourbons et les Légitimistes! Vive Napoléon!* In June of

the same year: *A bas l'aventurier corse!* [the Corsican adventurer!] *A bas l'armée!* *A bas les traitres Ney et Lavalette!* *Vive le roi Louis le Désiré!* From 1816 to 1830: *Vive Charles X le Bien-aimé!* *A bas Charles X et les Bourbons!* *Vive Louis-Philippe, le roi citoyen!* In 1848: *A bas Louis-Philippe!* *Vive Lamartine!* In 1849: *A bas Lamartine!* *Vive le Président!* *A bas la liberté de la Presse et les Clubs!* In 1850: *Vive Napoléon!* In 1851: *A bas l'Assemblée!* *Vive l'Empereur!* In 1852: *A bas la République!* *Vive l'Empire!* In 1855: *A bas la Russie!* In 1859: *A bas l'Autriche!* *Vive l'Italie!* *Vive Garibaldi!* In 1869: *A bas l'Empire autoritaire!* *Vive l'Empire parlementaire!* *Vive Ollivier!* In May, 1870: *Vive la Constitution!* *Vive la Dynastie impériale!* In July: *A Berlin!* *A Berlin!* In September: *A bas l'Empire!* *Vive la République!* *Vive Trochu!* In October: *A bas Trochu!* *Vive la Commune!* *Vive Gambetta!* In 1871: *Vive Thiers!* *A bas Gambetta!* In March: *Vive la Commune!* *A bas Thiers!* In May: *Vive Thiers!* *Vive Mac-Mahon!* *A bas la Commune!* In 1872: *Vive Thiers!* *Vive la République!* In 1873: *Vive Mac-Mahon!* In 1874: *Vive l'Amnistie!* *A bas Mac-Mahon!* In 1879: *Vive Grèvy!* *A bas Gambetta!* In 1881: *Vive Gambetta!* *A bas Grèvy!* *Vive Lesseps!* In 1887: *Vive Carnot!* *Vive Boulanger!* In 1889: *A bas les Panamistes!* *A bas Boulanger!* In 1895: *Vive le Tsar!* In 1898: *Vivent la liberté, égalité, la fraternité!* *A bas les Juifs!* *Vive l'Armée!* *Conspuez Zola!*

And in the latter part of the same year may be added: *Vive Picquart,* *Vive la Révision!* *Vive Zola!* and, naturally, *A bas!* and *Conspuez!* all three.

As to the administration of the Third Republic, it may be illustrated with tolerable exactness, and without too much malice, by two extracts from the *Figaro* of the summer of 1898, in which will be recognized certain great theories of universal aptitude on the part of its citizens not at all unlike those which prevail on the part of the public functionaries of our own beloved country. The first of these articles appeared at the period when the precarious Brisson ministry was in process of formation, after several ineffectual attempts on the part of other statesmen summoned to this task by the President of the République. It may be premised that the care taken to identify M. Durand by the department which he represents is rendered necessary by the fact that his family is as prevalent in France as Smith or Jones in English-speaking lands.

"At noon, M. Peytral requested Durand (of the Loir) to enter his cabinet and offered him the portfolio of Minister of the Finances.

"Durand, who had never been minister, accepted with *empressement*.

"I am acquainted with our financial system from the bottom up,' he said. 'This is, therefore, excellent.'

"Truly,' replied Peytral. 'I was not aware of it.'

"But about half-past one of the afternoon, in consequence of the refusal of one of the members of the future cabinet, M. Peytral was obliged to change the combination. He summoned again M. Durand (of the Loir) and said to him:

"My dear colleague, I appeal to your patriotism. I have need of the portfolio of the finances. Will you be good enough to do me the friendly office to accept the Public Works?"

"M. Durand reflected a second.

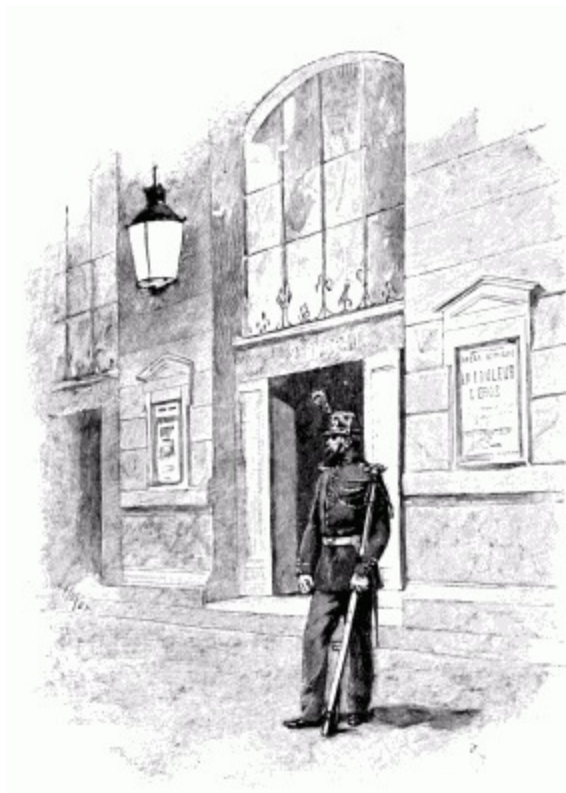
"I came near being an engineer,' he replied, 'I believe that I could be able to render great service to the country in this new ministry.'

"And after having been Minister of the Finances from noon to half-past one, he was Minister of Public Works from half-past one to three.

"At two o'clock, M. Peytral sent a *petit bleu* [telegram, so called from the color of the official paper] to Durand (of the Loir) to invite him to call for the third time.

"I have just perceived, my dear colleague,' he said to him, 'that my combination is not workable. It is not the Public Works that you require, nor the Finances, it is the Marine.'

"And Durand accepted the Marine, which he preserved up to half-past five, the hour at which the political necessities threw him upon the Public Instruction and Religion.



TYPE OF THE GARDE MUNICIPALE. MILITARY OF THE CITY OF PARIS. After a drawing by L. Marchetti.

"But rivalries suddenly sprang up. It was necessary to make new arrangements in order to appease the Isambert group. Durand left the Public Instruction.

"He was, during twenty minutes, Minister of War; he had the Post-Office and Telegraphs three-quarters of an hour; he was Minister of Foreign Affairs at a quarter to seven.

"Finally, at seven o'clock, M. Peytral convoked him once again and said to him:

"My dear colleague, I appeal in this moment to all your republican energy and to your patriotic disinterestedness. My cabinet is constituted. You are no longer a member of it.'

"Good,' replied Durand, coldly. 'I hereby give notice of my intention to interpellate the government.'"

The second of these contemporary documents professes to relate actual facts. "We announced, the other day, that the ex-deputy Fabérot, not re-elected at the late elections, had philosophically resumed his former occupation of journeyman hatter.

"Another victim of universal suffrage, the barber Chauvin, has also returned to his dear razors. Is it quite certain, moreover, that he ever left them, even in the Chamber of Deputies?

"However this may be, he has just reopened his shop. Only, M. Chauvin has abandoned his former quarter of the Rue des Archives, and has established himself in Passage Tivoli, near the Gare Saint-Lazare, where, in the most democratic fashion, he will shave you for twenty centimes and cut your hair for six sous.

"This melancholy return to former surroundings has, moreover, nothing in it but what is very honorable,—only, it is necessary that the customers should be notified.

"Which we hereby do."

The great question of the army, of its relations with the civil authority and of the apparent hopelessness of any attempt to reconcile its maintenance and effectiveness with the democratic evolution of the age,—never a more burning question in France than at the present day,—scarcely admits of any of these pleasantries. But seldom have the amenities of discussion more completely disappeared than in the polemics now raging over the trial for treason of an officer of the general staff. One of the more recent of these dispassionate studies of the military problem appears in an article by M. Sully-Prudhomme in the *Revue des Deux Mondes*, and the failure of his attempt to solve the antinomy is striking. "To say, with Renan," he prefaces, "that 'war is essentially a thing of the ancien régime,' is to say that it is not of the essence of the new one; and as formerly war would be considered as destitute of any cause in the case where there were no enemies, that is equivalent to supposing that to-day no people have enemies. Such an assertion assuredly does not express Renan's meaning. He intended to say, doubtless, that in our day the use of force to decide international conflicts is in contradiction with the moral principles professed by civilized nations; in other terms, that, logically, they should never have enemies.

"Would to God that it were so! Unfortunately, we know only too well that in reality this is not so. Therefore, no people, having a due regard for their preservation and their independence, can reasonably diminish their military forces, nor even risk diminishing them, unless other peoples do as much. For any one who has informed himself in this respect as to the dispositions of the greater number of them, this simple remark will suffice to condemn in any one of them any attempt at individual reform in its military laws in any manner tending to compromise its security in the midst of the others."

But he finds, very naturally, that all the qualities of the military spirit, and those conducive to military power, are becoming "more and more incompatible with the inclinations of the individual, and contrary to the expansion of his intellectual and impassioned life." None of the methods proposed to diminish this incompatibility—civilizing war by an attempt to reduce its horrors, modifying the rigors of discipline, specializing and restricting the military service—are available; the last two, indeed, are directly at variance with the necessities of the actual situation. For the acceptance thus rendered necessary of this survival of the past, this persistence of war and all its consequences, he finds that the intelligence may recognize the fact that to place itself under the direction of those more competent is not necessarily to abdicate, that an unprejudiced examination will demonstrate the necessity of military obedience. For the soul, for the spiritual qualities, he finds nothing in the progress of modern ideas "to aid in the perfecting of the instruments and the apprenticeship of death." The blind fanaticism of the Mohammedans, the unquestioning faith of the early Christians, which faced extinction even with joy, have been replaced among modern men by sceptical, questioning, and even material philosophies which "offer us really nothing which is worthy a sincere faith in a dream, in a survival eternal and heavenly." So true is this, that, were he able, by enlightening him, to detach a Breton conscript from his blind faith which enables him to die bravely for the honor of the country, he would not do so, he would "prefer to betray philosophy." "A ridiculous compromise, perhaps, but certainly less disastrous than a defeat. This is one of the ironical inconsequences to which war condemns us, and for which it alone is responsible. Whilst waiting for its suppression, let us resign ourselves to submit to it, and let us endeavor to make the best of its violences; it imposes upon us at least the cultivation of the virile virtues, the esteem of a labor

which does not enrich, and which places us in a position to interrogate very closely, willingly or unwillingly, the profundity of the tomb."

Another writer, who concerns himself more exclusively with military matters, M. Abel Veuglaire, arrives at an equally depressing conclusion. He, too, finds nothing to quite replace the old-time qualities which fed the military spirit. The soldier of the last century, under the rod of his corporal, did not rebel because he had been made an artificial being, brutalized, deprived of all those sentiments which, if they could excite enthusiasm, could also produce discouragement. In him, the desire for wine and pillage, the eagerness for quarrel, the sentiment of a point of honor, were carefully substituted for the family affections and the consciousness of moral duties. The promise of plunder and the fear of the gallows, a certain pride in his corps or his regiment, a certain *esprit cocardier*, made of him a soldier. But the moral worth of the modern recruit is derived from his family or from his school. "Very scarce, indeed, are those whom the regiment transforms. Scarcer still are those whom it will transform in the future. We are dupes of an illusion. We see the young men leave the military service very different from what they were when they entered it. We exclaim that the discipline is wholesome, that the air of the barracks is vivifying, that the regiment is a school of moral tendencies at the same time that it is a sanitary establishment. Ah, no!... I do not believe, in fact, that the moral qualities, that the civic virtues, are acquired in the caserne. If they exist in a condition more or less latent in the recruit when he arrives, they may be developed in him through the care of the officers, as, moreover, they run the risk of shrivelling up if their cultivation is neglected. But the result of this tardy education is always sufficiently meagre. The evil natures, the vicious characters, accentuate their defects, instead of attenuating them, under the compression of discipline. It is not strong enough to master the souls rebellious at the bottom. It chastises misconduct; it has no authority over thought.... Therefore, it would be logical to diminish the duration of the military service strictly to the minimum necessary to learn the trade."



LIFE IN THE CASERNE: AN ESCAPADE.
From a drawing, in colors, by George Scott.

And in summing up, after describing the "moral degradation" of the old soldiers, he concludes: "Imagine what, in our modern society, can be a soldier who re-enlists. He is a man who definitely bids adieu to family affections, who desires simply a small, tranquil existence, regular, well secured. This man is most decidedly a mediocre. Perhaps he may render some service to the *bleus*; but he cannot be offered to them as a model nor as a guide."

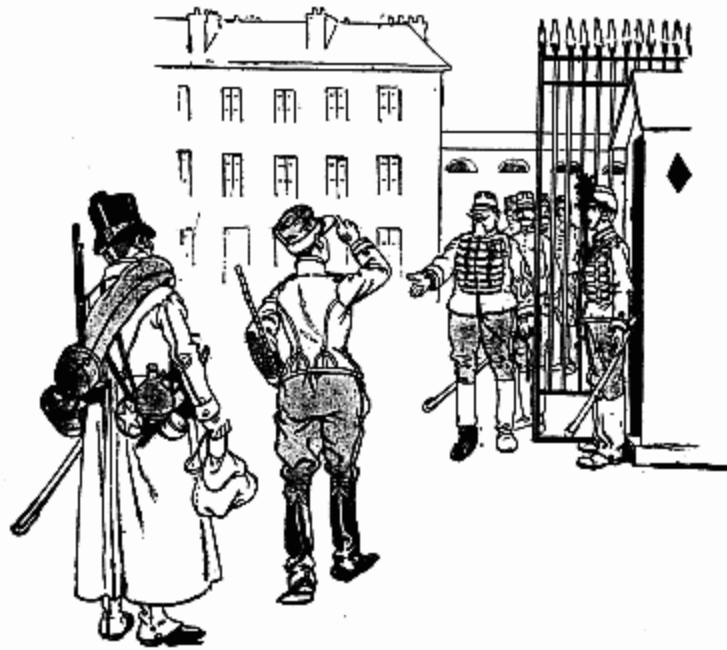
It is to be said, however, that not all the pictures drawn of this life in the caserne are as gloomy as these. On this subject there is indeed abundant information. Notwithstanding the respectable number of exceptions provided by the more or less merciful various laws of conscription,—the eldest of a family of orphans, the only brother of six sisters, the eldest of a family of seven children, the elder of two brothers drawn at one time or the younger brother of one actually doing service,—the experience of the class of the *bleus*, as the raw recruits are called, is sufficiently common among French citizens of very varying classes of society. Naturally, the gentlemen

find this very democratic experience more trying than do the peasants and the bumpkins. Every visitor to Paris who has passed the inoffensive looking and very youthful infantry sentinels on duty, or seen their comrades crowding in the open windows of the great, bare barracks, has experienced some desire to know something of the interior life of these great military warehouses. Our illustrations may serve to suggest many of the more picturesque and, so to speak, domestic of these minor incidents, and one of the most cheerful of the scribes who have participated in them, M. Henri de Noussanne, can give us further information. His experience lay in the daily life of an infantry soldier, but the general lines are the same for all arms of the service.

Unfortunately, to begin with, as there is always a possibility of war with the return of the swallows, the usage has been established of summoning to the colors the neophytes in the month of November. The rigors of the wintry season are thus added to those inherent in the rudiments of military discipline. Consequently, and as the State provides her budding warriors with but one handkerchief, two pairs of gloves, and no stockings, M. de Noussanne earnestly counsels the mothers and sisters to furnish these young men with thick underclothing and warm woollen stockings. Behold them finally enrolled in "the grand class, the real class, the most sympathetic of classes, that of the *bleus*," parading the streets, escorted by parents and relatives in tears and by joyous and unsympathetic urchins! At the sight of the great caserne which yawns to swallow them, their respect for authority becomes definite and concrete; otherwise, their ideas are like their marching, much bewildered. Once entered, the *anciens* take them in hand, *tutoying* them fraternally: "Thou, thou art my bleu.... Don't be afraid.... No one will *mistouffle* thee.... I will fix thy affairs." They even show them maternally how best to tuck themselves in their narrow beds; and the regulations no longer permit hazing of any kind. So that the first night is apt to be one of the repose that follows various and conflicting emotions.

The *réveil* sounds at six o'clock. The great operation of shedding citizens' garments and assuming the uniform is at hand, and is one of the most amusing in the life of the caserne. The captain of the company oversees it with the utmost care. "He has to verify everything, see everything. In the exact terms of the regulations, he is the father of the company. His *rôle* is of capital importance. No detail of the instruction, of the *tenue*, of the

discipline, should escape him. Two hundred men are confided to his care, for whom he is responsible to the colonel and the *chef de bataillon*, who, to reward or to punish, govern themselves by his notes. At every moment he is called upon to dispense justice, for in a family of two hundred members the conflicts are frequent. He can inflict only two weeks in the *salle de police*, or a week in prison, but his decrees are brought to the knowledge of the superior authority, which takes upon itself to increase their severity.



THE FRENCH ARMY OF TO-DAY. ARRIVAL OF A RICH CONSCRIPT.

"The captain is not only a judge, a father, an instructor, he is also an administrator. To his paternal duties are added maternal ones. The nourishment, the clothing, and the care of the men depend upon him. Certain funds are allowed him which he uses at his discretion. The material and moral comfort of a company depend absolutely upon the skill and the character of its captain, who is seconded in his delicate functions by the lieutenant, the sous-lieutenant, the sous-officiers, and the corporals. The *perfectionnement* of the whole of this organization concerns him. The captain is, in a word, the keystone of the vault of the military edifice. Everything depends upon him. It is not then surprising that the smallest

details interest him. It is specially on the occasion of the arrival of the *bleus* that he multiplies himself.

"I was very much surprised, on arriving at the regiment, at the attention which the commander of the company gave to the selection of the shoes. At every moment he could be heard exclaiming;

"Chaussez-vous large, chaussez-vous long [get your shoes long and wide]!"

"When we were shod, he passed us in review, causing all our foot-gear to be felt by a sergeant kneeling to assure himself that they were of a sufficient length, and this is the little speech with which he gratified us:

"My children, there are no good soldiers without good shoes. All the strength of Samson lay in his hair, all the strength of the foot-soldier is in his shoes. Never forget my principle: Chaussez-vous large, chaussez-vous long!... Rompez!"

Rompez signifies: Be off! scatter! clear out!

Then comes the initiation into the mysteries of the *paquetage*, the arrangement of the soldier's few effects, the regulation method of folding and disposing and hanging up, each on its peculiar hook. One of the first lessons in the *Code militaire* is that of the salute, and the language of the corporals is energetic in proportion to the dulness of the recruit. "Salute in three times.... Attention, Fouillon, listen to what I am saying to you!... You throw out the right arm, the hand flat, open, and the fingers together.—*Un!* ... Mark time, animal!" (Fouillon begins again; it is better, the corporal continues): "You carry the hand up straight as high as the button on the right side of the peak of your cap.—*Deux!*" (Here, a horrible roar): "Lift your elbow!..." (Fouillon, terrified, menaces the sky with an obedient elbow.) "*Trois:* you turn your head toward the superior officer whom you are saluting and throw the hand back quickly into position six paces after having passed him.—*Trois!* ... Go, now, and defile before the lieutenant and try a little to commence the salute six paces in advance, without marching as if you had a broomstick in your back!"

One of the favorite of the many jokes on the new recruit turns on the zeal with which, after he has mastered this lesson, he salutes everything in the

street that has the slightest appearance of an officer, even the sergents de ville and the many cocked hats worn by municipal officials of various grades. There are various minute regulations concerning this ceremony, it is always obligatory, but there is a certain amount of elasticity provided to prevent its becoming absurd, as in the case where the soldier encounters his officer every few minutes, in a gallery of a museum, etc.

The young recruit is strongly advised not to let the pleasures of his first sortie in the streets in all the splendor of his new uniform (duly arranged with the regulation folds in the back by his particular *ancien*) tempt him to prolong this promenade unduly. "Above all, no *frasques*! One is young, and the sunny Sunday jacket sets a man off admirably. Love beckons.... Take care! take care! The recall is sounded. It is necessary to return at a double-quick. Ten minutes late, that is four days in the *boîte*. If passion carries thee away, my poor Pitou, and if, with thy *pays* Dumanet, thou 'jumpest the wall' after recall, that will be *la grosse*. It is not gay, my friend, *la grosse*. A *demi-fourniture*, two soups, 'one of which without meat' and, for an aperative and digestive, the *peloton de chasse*, three hours in the morning, three hours in the afternoon, the knapsack charged according to the regulations. B-r-r-r!

"Believe me, youth, no *fredaines*.... Thou wilt be caught!"

Other writers who might be cited, more definite and unsparing in their details, give unquotable descriptions of the nights in the *chambrée*, or great dormitories, the uncouth associates, the language, the manners, the practical jokes, the quarrels, the hideous lack of ventilation at night and the rancid odor of so many imperfectly washed bodies, cheap tobacco, and soiled linen. Even M. de Noussanne is obliged to omit the termination of one of his recitals of the amusements of the caserne: "No; it is better to slide over this passage. The nude is difficult to paint. This is a pity; it plays a very important *rôle* in the facetiousness of the caserne. Would you have another example?

"The evening call has sounded; the sous-officiers are at mess or outside, and the men are preparing to go to sleep. All at once, charivari in the adjoining *chambrée*! The door opens, and two *lapins*, clothed only in a sack ... on the back, enter, rifle in hand, fixed bayonet, and in this picturesque costume parade round the room, leaping, cavorting, howling, whilst their

comrades roll in delicious enjoyment of the joke." And he adds: "You amuse yourself the best way you can in the regiment; for, it is only justice to say for it, the military authority does nothing to render the caserne agreeable to the soldier.

"Whenever there is an officer who, having a care for the private comfort of his men, looks after them outside of the service regulations and brings himself in contact with them, he very quickly becomes a target for the jests of his obliging little comrades who leave the club of the *Caricature* or the *Annuaire* only to go and swing censers before 'Madame la Présidente,' who has a mania for match-making.

"Even if this officer be the commander of a corps d'armée, the whole of France will badger him if he lays himself open ever so little to criticism. Nevertheless, if it be true that everything is becoming ameliorated and humanized, what is there surprising in the supposition that the army should become less rude, since it declares itself better instructed? But no: routine rules, and no minister concerns himself to enliven the life in the caserne.

"How simple it would be to put at the disposition of the men games of skittles, of bowls, of *croquet*, to organize in bad weather amusing and instructive entertainments with magic-lantern slides and dramatic spectacles. Actors, musicians, singers, they are all to be had.... But it is the business of the officers to organize everything, to conduct everything. Now, our officers think their duties ended when, at five o'clock, they leave the caserne."



THREE-YEAR MEN IN BARRACKS. A GOOD JOKE.
After a water-color by Georges Scott.

Fortunately, correspondence is not forbidden, and the arrival of the mail from home is always a great event. It is Saturday evening in the *chambrée*, and Pitou has arrived at the end of the week without a reprimand. His heart feels the need of expansion, and he is laboriously writing out a letter to his betrothed, down in the country. "The sweat stands on his forehead.... It is, perhaps, his method of showing tenderness, for he is greatly moved. I watch him out of the corner of my eye, and can see that his heart has returned to the paternal dwelling in the province, in the familiar chamber, where his *promise*, Françoise, has come to spend the evening, and says to herself as she knits:

"At this moment, what is he doing, my Pierre?"

"He is writing to thee, my poor Françoise; he has commenced a second letter, on beautiful lace paper ornamented with an immense rose, arranged like a transformation scene in a theatrical spectacle. When you unfold the sheet, the flower blooms out. It is a small prodigy of ingenuity, of open-work, and of coloration. This marvel resembles a symbolic cabbage; you look to see issue from it an infant newly born.

"But Pitou ceases writing and looks toward me with anguish. What has happened to him? Finally, confiding, he comes to a decision, and, in a low voice:

"I say, thou, *embaume*, how dost thou write that?"

"*Embaume?*"

"Yes, *embaume*.... "The rose, may it *embaume* [perfume] this letter...."
(With a sly smile): "I am writing to my *payse*.... I am not sure.... She was with the Sisters three years.'

"Ah, well! *embaume*: E-m-b-a-u-m-e.'

"B-a-u.'

"M-e.'

"M-e.... *Merci, pays*.'

"And he continues, without deigning to reply to the *loustic* who has remarked our colloquy, and who calls to him:

"Hé! Pitou, say to thy people that thou hast lost the umbrella of the squad, and that they send thee a hundred sous to buy a new one with."

At ten o'clock the bugle sounds: "Lights out!" and the dormitory sinks into darkness and slumber. "In the silence of the night, when sleep has already dulled all the caserne, a sound as gentle as a caress comes from outside, mysterious and far-away. The *clairon* has transformed itself into something soft and cradling, and modulates tenderly an old, old song:

"Do, do do, *petit soldat*,
Pense à ta bel', la plus belle des belles,
Do, do do, petit soldat,
Sois-lui fidèle,
Si elle t'aime, aime-la."

At two o'clock in the morning, a heavy step is heard on the stair, the door of the room is pushed violently open, and a hoarse voice, without any respect for the slumber of the others, calls out the name of the unlucky "cook for the day." The latter gets out of bed, feels around for his blouse and his sabots, and departs with an equal amount of unnecessary noise. Outside, he finds the corporal commanding the culinary department, with the keys of the store-house; between them, they open the kitchen, light the fires, and prepare the morning meal, first the soup and then the coffee,—

five kilogrammes of the latter for a battalion. When *réveil* sounds, the beverage is ready, the men of the *corvée* carry it up into the dormitory in great earthenware jugs, one in each hand. If their iron-pegged shoes should happen to slip on the ice or snow of the court-yard, not only would the unlucky bearer run a strong chance of being frozen on one side as he fell, and scalded on the other, but he would also have to face the wrath of some thirty hungry warriors. This coffee is not *exquis*, but it is hot, and the men receive a good allowance of it; if the corporal be good-natured, they drink it sitting on their beds, and steeping their bread in it in the inelegant fashion dear to all their compatriots.

Finally, when the conscript has become a soldier, mastered the intricacies of the *Théorie* and the details of the manual of arms, learned the secret of keeping his accoutrements in parade order, taken part in the interminable drills in the secrecy of the caserne that prepare for the great ones in public, he departs for the grand manœuvres. When they are over, the *classe* for that year is dismissed, except those unfortunates who are detained as many days longer as they have served days in prison. The cheerfulness with which the soldiers undergo the fatigues and discomforts of these annual exercises is rightfully considered as an excellent sign of the efficiency of the service. In the present year of grace, these manœuvres were rendered unusually trying by the persistent abnormal midsummer heat, and by the blinding dust that blotted out whole parades. And yet, says a correspondent of the *Temps*, "if the *armoire à glace* (the knapsack) be heavy, the road dusty, and the march across cultivated fields laborious, it is none the less true than in the ranks of each detachment there are to be found certain *loustics* whose inexhaustible repertory is sufficient to unwrinkle the most morose brows.

"The ancient French gaiety is dead, you say; follow, then, for a couple of hours a column of infantry on the march, and you will not be long in being undeceived. You will recognize very quickly that, in the army, this gaiety is still in very good condition, even though it be at times a little too gross. And, if you know your authors a little, you will see things that would astonish them.

"You will hear chanted the *Boîteuse*, which was hummed, some two hundred and odd years ago, by the troops of Louis XIV, and the couplets of which swarm with allusions to the infirmity of Mlle. de la Vallière; *Auprès*

de ma blonde ... song addressed to Mme. de Montespan, and a multitude of others bearing witness to the passage of noble sovereigns, or of illustrious chiefs now long since disappeared."

You will also, if you are a foreigner, see many other interesting traits of national character, and, not improbably, some such curiously unmilitary proceeding as that represented on our page, engraved from the record of an unsympathetic photograph. This particular incident took place at the manœuvres at Châteaudun in 1894; the President of the Republic, M. Casimir-Perier, is distributing the cross of the Legion of Honor to a number of specially deserving officers and sous-officiers.

That very modern instrument of warfare, the bicycle, appeared in the manœuvres of this present year of grace with more importance than ever. One correspondent, writing from Dompierre-sur-Besbre, on the 11th of September, says: "The *compagnie cycliste*, covering the advance of the march of the thirteenth corps, threw itself into Thiel at the moment when the advance guard of the division was attacked by superior forces. Taking advantage of the shelter of the woods, of the hedges, of the houses, it held the enemy at bay long enough to permit the division to come up, and the company bivouacked with the division." Another writes: "I rejoined the column by a cross-road at the end of which the dragoons were defiling past at a hard trot, followed by the *compagnie cycliste*, whose support at this moment was most valuable. It protected the retreat by delivering at certain distances volleys which momentarily arrested the pursuit. It was wonderful to see with what rapidity the men of Captain Gérard's command threw themselves into their saddles, covered a distance of five or six hundred mètres, faced about and opened fire. If they had been more numerous, what service would they not have rendered! The cavalry officers who see them every day at work are the first to recognize their usefulness." The employment of these instruments has even been extended to the *gendarmerie* by an order of the Minister of War, at the close of the manœuvres,—two legions of this force having been furnished with them. In 1897, some machines constructed by the artillery were distributed to a legion near Paris, as an experiment, with very satisfactory results,—the transmission of orders, maintenance of communication, etc., being thus assured in a satisfactory manner. There is, of course, some opposition manifested to this innovation, and the employment of mounted gendarmes

is not yet discontinued. As may be seen from the illustrations on page 139, the French military bicycle, the invention of Captain Gérard, is constructed in such a manner as to fold up and be transported on the soldier's back.



THE PRESIDENT CASIMIR-PERIER, KISSING ON THE CHEEK A RECIPIENT OF THE RIBBON OF THE ORDER OF THE LEGION OF HONOR.

As in all old armies, very many of the regiments have records which date back to the last century, and of which they are very proud;—one of the cavalry regiments, the Fourth Chasseurs, celebrated in 1890 the anniversary of its creation in 1744 with an historical restoration and a military carrousel of the most picturesque character. In the immense court of their caserne in the Quartier Gramont of Saint-Germain-en-Laye there might be seen to defile a cavalcade of all the uniforms worn by the regiment, and of all the standards borne by it since the date of its organization. The tendency of modern warfare is to abolish more and more the picturesque and artistic, but the wars of the Republic and the First Empire have contributed a series of costumes among the most martial and the most imposing known to history.

Something of this contrast of costume may be seen in the reproduction of M. Orange's painting from the Salon of 1891, the "Medallists of Saint Helena," on page 175,—the annual ceremony of the old soldiers of the First Empire depositing their memorial wreaths at the base of the Vendôme column; and it is with a very natural impulse that the French citizen and the French soldier of to-day turn from the bitter memories of their last war to

recall the images of those great days when the nation was afire as it has never been since. The curious revival of Napoleonic literature which we have witnessed within the last few years may doubtless be ascribed in part, at least, to this longing to dispel somewhat the national depression. There is not wanting in these memoirs abundant testimony to the strange transformation which the casting off of the ancient régime wrought in the whole people. In the *Consulat et l'Empire*, M. Thiers quotes the testimony of an astonished Prussian officer after the astonishing battle of Auerstadt in which Davout with twenty-six thousand men overthrew sixty thousand of the soldiers trained in the school of the great Frederick, repulsed twenty times the charges of the cavalry considered the best in Europe, and took with his forty-four cannon one hundred and fifteen of the enemy's. "If we had to fight the French only with our fists, we would be vanquished. They are small and weakly; one of our Germans could beat four of them; but under fire they become supernatural beings. They are carried away by an inexpressible ardor, of which no trace can be seen in our own soldiers." In much more recent publications, the *Mémoires du sergent Bourgogne*, the *Souvenirs d'un officier danois*, the Lieutenant Frisenberg, there is further testimony as to the quality of this *Grande Armée*. The latter, a young soldier, records the strong impression made upon him by the French officers when he first met them, their sobriety, their moderation, wonderful in the conquerors of Europe, their easy acceptance of orders. "What will not a Frenchman dare!" he exclaims. It is this apotheosis of military valor and efficiency which we see apostrophized in so much contemporary national art,—as in Karbowsky's "Drums of the Republic," Bac's spirited sketch of the return of the troops to Paris after Marengo, Marold's "Review in the Carrousel," under the eyes of the Emperor, and Le Blant's return of the veterans of the Republic and their fierce impatience under the supercilious inspection of the dandies and *incroyables* of the capital.

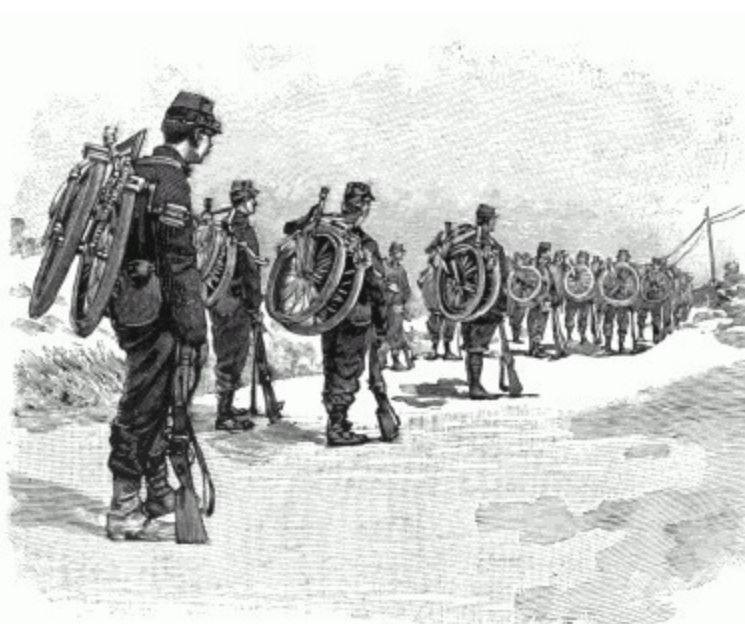
The military souvenirs of the Second Empire are much less imposing. Among the most interesting of those recently published are those of Marshal Canrobert, taken down from his verbal recitals by M. G. Bapst, afterward written out and corrected by the old soldier. His portrait of Louis Napoleon is interesting; he came to Paris on the eve of the Coup d'État and was presented to the Prince-President. "The man whom I saw before me was small in stature; his eyes, very small, were dull and very mild; while

they were professedly looking at me, they had the appearance, at the same time, of being directed at some much more distant object; his black hair, smooth on his head, very much pomaded, was long and fell below his ears and on his collar; his heavy moustache, not waxed, covered his lower lip. He wore a frock-coat, buttoned up, and a very high collar which enclosed the lower part of his face. He stood with his side rather toward me, the left arm considerably in advance, and offered me his hand with a constrained gesture. I felt, in clasping it, as though I were grasping the hand of a paralytic, almost an anchylosed one. He addressed to me some commonplace phrase, so commonplace even that I no longer remember it; but he spoke with a peculiar accent, which you would have taken for an Alsatian accent. This was all that happened."

In the military operations of the 2d of December, Canrobert took part as general of brigade: according to his own account, he constantly exerted himself to suppress the fire of the troops on the citizens and to save the lives of the latter. But when he was offered the grade of general of division afterward, he refused it, and thereby, says one of his commentators, "violated military discipline and condemned, himself, his action of the day before."

Among the recent minor monographs relating to this epoch is one devoted to the Imperial picked body-guard of a hundred men, the Cent-Gardes, by M. Albert Verly, a fervent Bonapartist. One of his incidents is worth quoting. One day, the Empress Eugénie, traversing her apartments, accompanied by Colonel Verly, stopped before one of these sentries, whose rigid immobility in the correct military attitude made her smile. "Admit, colonel," she said, "that this perfect motionlessness is only an appearance, and that the slightest thing would cause it to disappear." "Your Majesty may assure yourself to the contrary," replied the colonel. "And if I were to offer him an insult?" "I have nothing to reply to your Majesty. You might ascertain yourself!" The Empress, knitting her brows in an attempt to frown, approached the sentry and reproached him severely for some imaginary infraction of discipline; stiff as a statue in his position of salute, he made no sign whatever. Whereupon, pretending to take offence at his silence, she dealt him a vigorous blow on the cheek. She might as well have struck a statue! So she returned to her apartments.

But, not willing that the affair should rest there, she ascertained his name, and the next day, through his superiors, sent the soldier a note of five hundred francs as some recompense for the gratuitous insult offered him. And he immediately returned it, through the same channel, answering that he esteemed himself as "too happy in having received on his face the hand of his well-beloved sovereign." M. Verly considers this response as very fine, and as justifying all that has been said concerning the correctness of appearance and attitude, and the intelligent and affectionate devotion which all the men of the squadron of the Cent-Gardes maintained toward their Imperial Majesties.



COMPAGNIE CYCLISTE: ÉCOLE MILITAIRE DE GYMNASTIQUE AT JOINVILLE-LE-PONT.

One of the first acts of the military administration after the Coup d'État was the disbanding of the National Guard throughout France. By a decree dated from the Tuileries, January 11, 1852, the superior general commanding was charged with its reorganization. On the 2d of December of the same year, the new Emperor signed at Saint-Cloud the decree promulgating the *sénatus-consulte* ratified by the plébiscite of the 21st and 22d of November, endorsing the Empire, and made his solemn entry into Paris. At one o'clock in the afternoon the cannon thundered, the drums beat, the trumpets and bugles sounded: "then might be seen," says the official

Moniteur, "an inspiring spectacle, the new Emperor passing under that Arch of Triumph erected by his uncle to the glory of the French army.... From all the ranks of the army, from the Garde Nationale and from the people, there arose but one cry, powerful, unanimous, drowning the sound of the cannon of the Invalides which announced the entrance of Napoleon III into this ancient palace still resonant with the glory of his name. His Majesty, followed by his suite, traversed on horseback the Pavillon de l'Horloge and passed in review, on the Place des Tuileries and the Place du Carrousel, the troops of all arms there drawn up. He rode along the front of all the lines, receiving everywhere the most enthusiastic acclamations. After the review, the Emperor, followed by the generals who had formed his staff, ascended into the grand apartments of the palace," etc.

The renewal of the traditions of the First Empire was incessantly pursued. On the 21st of March, the President reviewed the garrison of Paris and distributed the military medal which he had just instituted, addressing the troops in a discourse in which he explained his object in creating this badge of distinction; on the 10th of May, there was a great military display on the Champ-de-Mars and the distribution of the eagles of the colors to the army. A decree of the 12th of August, 1857, instituted the medal of Saint Helena, given to those old soldiers of the first Napoleon who had served in the campaigns from 1792 to 1815. The Imperial Guard for the army, a reserve corps and corps d'élite, and the Cent-Gardes à cheval for the service of the Imperial palace, had been organized two years earlier. In 1867, at the culmination of the prestige of the Empire, when "the whole *Almanach de Gotha* passed through the salons of the Tuileries," these crowned heads were honored with a grand review of sixty-two thousand men in the Bois de Boulogne;—"the honors were carried off by the artillery of the Guard; the chasseurs, the zouaves, the *guides*, and the cuirassiers divided these acclamations, ... all these soldiers, presenting the most brilliant appearance, defiled before the King of Prussia, the Count Bismarck, the general Baron von Moltke, the major-general Count von Goltz! And three years later!..."

At the present day, the great number of these very red and blue soldiers, officers and privates, always to be seen promenading in the streets of Paris, the sentries on duty before all the principal public buildings, the mounted dragoons, or *estafettes*, riding about the streets with official messages, and the dragoons of the Garde-Républicaine, the municipal force, on duty

before the Opéra-house on nights of performance, add greatly to the animated and picturesque aspect of the capital. To those who were in the city in the early fall of this year, the efficacy of a standing army to maintain public order was abundantly demonstrated. There can be no doubt that the threatened general strike of workmen and laborers, affecting all private and municipal works, and even the success of the coming Exposition of 1900, was prevented, almost in its inception, by the abundant protection afforded those workmen who continued to labor. If it were necessary, a single *ouvrier*, or *terrassier*, could have half a dozen soldiers or police to protect him against the violence of those of his fellows *en grève*, and the city was dotted with pickets of infantry and cavalry, sergents de ville, sentinels before all unfinished buildings, railway stations, etc. The arts of the demagogue are by no means unknown in this land of universal suffrage, and frantic appeals were made to them on this occasion, but the government remained entirely unimpressed, to its praise be it said.

The drawing of the conscripts for the army by lot, and the revision of those thus selected, were formerly conducted in the Hôtel de Ville, but of late years have been apportioned among the *Mairies* of the various arrondissements. For those which offer no suitable locality for these operations, the Palais de l'Industrie was used until its recent demolishment. The *conseil de révision* held its sittings in the great Salle Saint-Jean at the back of the Hôtel de Ville, on the rez-de-chaussée, or ground-floor. These sittings began at eight o'clock in the morning, the members of the council took their places, according to their rank, at a large table in the shape of a horseshoe, the general or the colonel present at this function at the right of the president, then the oldest conseiller général, the intendant, the mayor of the arrondissement whose citizens were to come up for inspection, and who was present in an advisory capacity; at the left, the conseiller of the prefecture, the second conseiller général, the captain having charge of the recruiting. Before the table the examining doctor took his stand, and the patients presented themselves before him, after having been measured, all of them as naked as they were born, and yet in a correct military attitude, heels together, arms hanging by the side, the hands open and the palms forward. A sufficient force of gendarmes kept this somewhat incongruous parade in due order. And yet, in summer, a certain odor arises which compels the least delicate of the judges to have frequent recourse to flasks

of smelling-salts judiciously provided. The decisions of this court are without appeal, and are pronounced by the president, either after having consulted his colleagues or in voicing their common opinion. The conscripts are then directed by the gendarmes toward the neighboring salle, where they resume their garments. The *réservés* pass into a special chamber, where a *médecin-major* examines them carefully, either as to their eyesight or as to the action of the heart. Attempts to avoid military service are comparatively rare in the conseil de révision of the Seine, and the shamers are readily detected.



COMPAGNIE CYCLISTE: ÉCOLE MILITAIRE DE GYMNASTIQUE AT JOINVILLE-LE-PONT.

Theoretically, there is an absolute equality of all classes before the conscription. Even the law-givers have not been supposed to be exempt from the obligation of military duty. The law of the 24th of July, 1895, declared, in its first article, that no citizen was eligible as a member of the Parlement unless he had fulfilled all the conditions of the military regulations concerning active service. Those residing in Algeria or in the colonies came under the special regulations of a law of 1889. By article second, no member of the Parlement was to be called upon to do military duty during the sessions of that body, unless it were on the request of the Minister of War, by his own consent, and with the approval of the

Assemblée of which he was a member. By article third, the members of the Parlement while doing military duty could not participate in the deliberations, nor in the voting, of the Assemblée. In case of convocation of the Assemblée Nationale, their military service was suspended during the session of this body.

This general abolishing of social privileges to maintain the military strength of the nation naturally works with a good deal of friction. On the one hand are what might be called the inevitable tendencies of all human society to oppose it and to violate it; and on the other, the fierce watchfulness of the demagogues and the socialists to maintain it. M. "Job's" amusing sketch on page 126 of the arrival of a rich conscript at the caserne, adopts the evident and plausible view of the situation. The new soldier brings along his footman to carry his equipments, the officers of the regiment, colonel at the head, come out to welcome him, the sentry on duty is petrified with astonishment. This was supposed to be designed with reference to the celebrated M. Max Labaudy; but it is curiously at variance with the real facts in his case. This too-rich young man, the *Petit Sucrier* of the Boulevards, was the son of a great sugar refiner, deputy to the Chamber from the department of Seine-et-Marne, and who left a fortune of more than two hundred millions of francs. The young man in question spent his portion with commendable freedom, but when he drew an unlucky number in the conscription he was declared eligible, though it was said at the time that he was already threatened with an affection of the lungs. He speedily fell ill; there was immediately raised such a violent demagogic outcry that his illness was feigned that "not one military commission dared to declare him unfit for service, he was transferred from one hospital to another, from Vernon to Rouen, from Rouen to Val-de-Grâce, from Val-de-Grâce to Amélie-les-Bains, where he died,—died of his millions, it may be said, for if he had been only a poor devil he would have been immediately mustered out." The young man, fully recognizing the disability under which he labored in the eyes of his cowardly and truckling superiors, wrote pathetic letters from his hospitals, regretting his fatal millions.

For the service of the city of Paris, there is a special *corps d'élite*, the Garde Républicaine, comprising an infantry force of two thousand two hundred and ten men and one of one hundred and ninety mounted men. This is recruited from the sous-officiers, brigadiers, corporals, and soldiers of the

active army under certain conditions. Each applicant must have served at least three years uninterruptedly in the regular army, have an irreproachable record, be able to read and write correctly, be at least twenty-four years of age and not over thirty-five, and have a stature of, at least, 1 mètre, 66 centimètres—1.70 mètres for the cavalry. The members of this force have special privileges of pay, pension, ability to compete for the grade of brigadier and succeeding ones, and of resigning from the service after having complied with the requirements of the recruiting law. Those who serve as guards at the theatres and the race-courses have an additional indemnity of from 75 centimes to 1 franc .25, according to the length and nature of the service. It appeared, from statements published during the strike in the capital in the autumn of 1898, that the soldiers and police, of all grades, received, on an average, less pay than the workmen whom they were protecting.



LA VIE À LA CASERNE: THE MORNING COFFEE.
After a water-color by Georges Scott.

In the multiplicity of military regulations of all kinds, and of men who promulgate them and who are affected by them, there naturally appear from time to time some of the aberrations and eccentricities of ordinary human nature. Sometimes the French wit appreciates these oddities and makes much of them; and sometimes it completely fails to perceive them. One of the most distinguished of their generals, Poilloüe de Saint-Mars, enjoys quite a little reputation for the *cocasseries* of certain of his orders. One of

the most famous of these was that of the *soldat-tender*, designed to enhance the prestige of the infantry officer. For this purpose, he was authorized to select from among the men in his command one of the "most robust and alert," who would be the "most sympathetic and the most devoted to his officer, and who would follow him like his shadow." This soldier-tender, who "would be to his officer what the tender is to the locomotive," would carry his déjeuner and all his other baggage, being relieved from the ordinary company equipment,—the officer, thus lightened of everything but his weapons, would enjoy over his men the same physical and moral advantage that his comrades of the artillery and cavalry do by the excellence of their mounts and their "aureola of an orderly," and those of the marine by the superiority of their technical knowledge. "In campaign, the mission of the tender will accentuate itself and aggrandize itself. He will be authorized to halt if his officer fall wounded. He will assist him affectionately, will bandage his wounds, confide him to the litter-bearers, and, to avenge him, then hasten to rejoin his comrades." Practically, an arrangement is made by which the infantry officer, in reviews and parades and while in charge of detachments,—as may constantly be seen in the streets,—marches along unencumbered by the side of his heavily-charged men.

Another of General de Saint-Mars's theories was that the foot of man had been especially created by Providence for the pedal of the bicycle. During the annual manœuvres of 1896, he issued an order to the mounted escort of the foreign officers, recommending to them an extreme cleanliness, even to the point of cleaning their finger-nails with "a piece of paper folded in four." This was really a very practical regulation, for the hands of the French soldier are capable of the most extreme dirtiness. In this respect, they practice more than even the usual neglect of their countrymen for the most elemental rules of decency in washing. It may be said that they would be a much pleasanter people to live with if they observed the Semitic regulations and observances of their hated Jewish fellow-citizens.

In the present year, General Billot issued an order to the commandants of the corps d'armée to request the chiefs of corps and of detachments to take measures against those civilians who, by the unseemly cracking of whips, caused the soldiers to fall off their horses and get hurt. This measure calls attention at once to two national peculiarities, nowhere more noticeable

than in the streets of Paris,—the ungraceful and apparently insecure equitation of the mounted soldiers, and the childish, not to say idiotic, delight that the French driver and teamster takes in cracking his whip. It is not only the reckless youth who have in charge light wagons and trotting horses, but carters of every grade may be seen amusing themselves by filling the air with an ear-splitting series of detonations produced by their long lashes. Naturally, the more intelligent beast they conduct soon learns that this is not addressed to him, and plods along without even moving his ears while his master is awakening all the echoes in the neighborhood. The military horses are, apparently, more spirited or less intelligent, for General Billot proposed to hold these inconsiderate civilians to strict account, to make them pay the hospital expenses of his unhorsed troopers, and even, if need should arise, to hold them responsible for the pension charges that may ensue because of their intempestiveness. The sudden irruptions of barking dogs are also responsible for many equestrian accidents, and "the proprietors of *chiens hargneux*" are also to be held to strict account for any diminution of the military strength of France for which they may be responsible.

In the streets of the capital, the French soldier trots his horse instead of cantering him, and his military bearing disappears as soon as he gets in motion. There is no pretence of the fine old centaur theory, that horse and rider are one; there is no attempt to preserve the straight leg and stiff carriage which distinguishes the American military seat; the *dragon*, or the *cuirassier*, stoops forward and jounces up and down in his saddle like any amateur. The President's cavalry escort comes down the Champs-Élysées bumpety-bump, with an anxious and uneasy expression, instead of a proud and martial one. The officers, of course, ride better, and look very fine cantering out to the Bois in their peg-top red trousers and high boots; but it may be noticed that the only occasion on which they abandon their swords is on these equestrian promenades. Otherwise, officers and men are never seen without their side-arms, excepting an occasional escort of a wagon-train. These weapons are not allowed to trail, and there seems to be no method known of hooking them to the belt so that the wearer can walk comfortably; they are therefore carried in the left hand, or nursed under the left arm. As they are very long and heavy, with steel scabbards,—with the exception of the straight cuirassiers' swords, far heavier, both in blade and

grip, than any of the sabres of the First Empire, and as the wearers are by no means always tall men, they are sufficiently cumbrous. The shapeless, full trousers, and the leathern leggings in imitation of boots, combined with the heavy shoes and the inelastic tread of these dismounted cavaliers, give them an appearance that an English drill sergeant would scarcely consider "smart." The dragoons of the picked Garde Républicaine wear a blue uniform with the Napoleonic horse-tail helmet, and high boots, and have a much more efficient appearance; but there is not to be seen in Paris as truly imposing and martial a figure as a mounted sentry of the Horse Guards on duty. The undersized, callow, and youthful infantry soldiers seen in the streets are such evident rustics, in spite of their uniform, that the contemner of war drops an additional tear as he passes them. It may be observed that this uniform, with its red and blue, white gloves and white gaiters, is peculiarly adapted to being picked out by the enemy's sharpshooter at the longest possible range in a green landscape. The gloves and gaiters, however, promptly disappear in active service.



AN ESTAFETTE.

The most coveted position in the French army is that of military Governor of Paris, and the administration of this post, it seems, is attended with all the inconveniences which arise from a peace organization differing seriously from that which would be necessary in time of war. These difficulties, it is contended by the military writers, would largely disappear if more definite authority were given this officer, if the grade of *général d'armée* were created, as in other countries, and the holder made practically irremovable. To this the civilians reply—and not without a certain show of reason, as the events of the last few months have demonstrated—that it is probably safer for the constituted authorities not to do so. The duties and responsibilities of the Governor of Paris are very definite, engrossing, and important; very different from those which would be adjudged to the incumbent if he were officially appointed to a post similar to that which the King of Prussia fills, or that held by Lord Wolseley in England, replacing the Duke of Cambridge. As Governor of Paris, this officer has a general staff which is not similar in composition to that which he would have in active campaign in time of war; the officers who constitute it are occupied with duties which bear but little analogy with those they would be called upon to fulfil at the outbreak of hostilities.

That union which makes strength, it is asserted, is unfortunately lacking in the organization of the army. In its stead prevails an evil which is called *particularisme*. The origin of this evil is in the office of the Minister of War, where there is a *direction* of the infantry, one of the cavalry, and one of the intendance, or administration. These directions do not converge; each one goes off with its own theory and practice; consequently, there is wanting that military unity, that community of sentiment, which the Russian General Dragomirov calls "the comradeship of combat." This unity must necessarily come from above, that is to say, from the officers; hence, it has been proposed to educate them all in the same school, in hopes that this community of origin may give rise to intimacies, to friendly relations, and cause all jealousies and suspicions to disappear. Fruitful emulation will replace noxious rivalries; all the inconveniences which arise from the functioning of the present nurseries of officers will be done away with. Perhaps it will do to divide the army into two classes only; to instruct all the field combatants in Saint-Cyr, and the officers for the fortresses at the École Polytechnique.

These military critics are very positive in their statements. The *Revue hebdomadaire*, M. Veuglaire in the *Revue encyclopédique*, Captain Gilbert (G. G.) in the *Nouvelle Revue*, support each other in these statements. The former, in an article on the instruction of the officers, says that this instruction is very badly conducted; the special editor of the *Nouvelle Revue*, after having demonstrated that the competitions, the methods, the programmes, considered individually, are characterized by grave defects, proceeds to show that, taken together, there is a complete absence of co-ordination. "No general view," he exclaims, "no common impulse, presides over the functioning of our establishments of military education. Saint-Cyr, the École Polytechnique, the École d'application, the École de guerre, are so many entities absolutely independent; have distinct inspections, comités de surveillance having no relations with each other; admitting only one common attachment,—the Minister of War. Now, our ministers have a too precarious and too brief existence to exercise any regulating influence upon the schools." The administration varies according to the personal qualities of the successive directors; sometimes it is the physical exercises which are cultivated at the expense of the intellectual, and sometimes the reverse. The general commanding at Saint-Cyr two or three years ago, a former colonel of Zouaves, was, above all, a man of action, and that which he exercised upon the school "was bad;" he was succeeded by one of the most brilliant professors of tactics at the École de guerre, who gave to the oral instruction an importance which it had never had before, the evolutions, the perfecting of the manual of arms, the manœuvring in the field, the blacking of the shoes, and the proper alignment of the beds in the caserne.

"At the École de Versailles, where are formed the future officers of artillery and of engineers, there is to be found the same incoherence. The changes brought about each year in the '*coefficients de majoration*' demonstrate with how little spirit of consecutiveness these affairs are managed. Having attributed more importance to the general information than to the qualities of manœuvring, you are quite stupefied to see admitted novices, bachelors who have failed, more or less, and very mediocre subaltern officers, whilst excellent *maréchaux des logis*, intelligent, vigorous, industrious, are refused, because the blackboard intimidates them, because they design in but a mediocre fashion, and have, concerning the rivers of Asia, only vague ideas and perhaps erroneous ones," etc. Captain

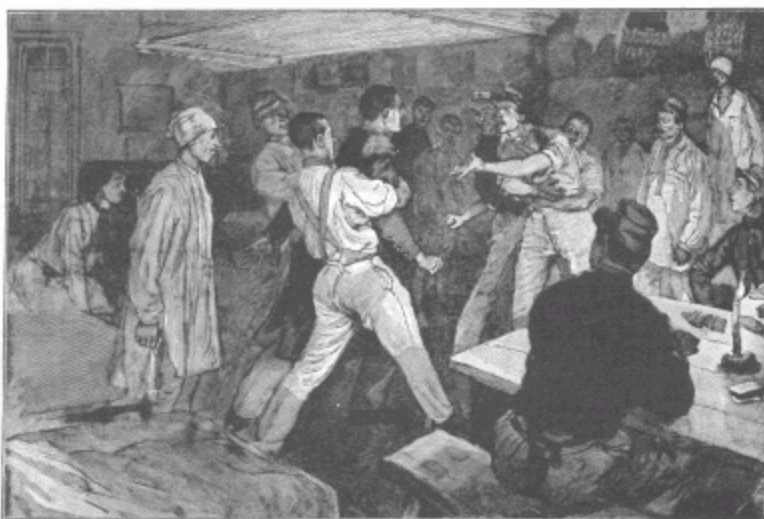
Gilbert has proposed, in order to do away with the inconveniences attending this anarchic régime, to institute, as in Germany, an inspector-general of all the schools, a sort of high master of the military University. "In any case, it is necessary to adopt some method that will put an end to a situation that is truly dangerous."

The greatest danger of all, of course, lies "in the fault of the French mothers, who do not give to the army soldiers enough," says another writer, M. Armand Latour, "and, alas! it is to be foreseen that they will be, in this respect, less and less generous in the future."

Of these military schools, the oldest is the *École supérieure de guerre* at the *École militaire*, founded by Louis XV in 1751, under the name of the *École royale militaire*. It was the king's intention to devote this institution to the education of five hundred young gentlemen, born without property, and, in preference, those who, having lost their fathers in battle, had become the children of the State. In addition to the five hundred young gentlemen, the hôtel was to be grand and spacious enough to receive the officers of the troops to whom the command was to be confided, the learned professors of every species who were to be proposed for the instruction and exercise of all those who would take any part in the spiritual and temporal administration of this household. The architect Gabriel commenced the construction of the buildings in the following year on what was then a portion of the plain of Grenelle, and in the meanwhile the school was opened provisorily in the Château de Vincennes. The architect was soon arrested by want of funds; but the king applied to these expenses the proceeds of a tax on playing-cards, those of a lottery,—the favorite method of raising funds at this period,—and the revenues of the Abbaie de Laon, which was then vacant. The first stone of the chapel, blessed by the Archbishop of Paris, was not laid by the king, till 1769. The pupils were admitted in 1756, divided into eight classes; at the age of eighteen or twenty years, they were graduated, and passed into the royal troops, receiving a pension of two hundred livres on the funds of the school.

In the month of August, 1760, the king issued a long statement setting forth the motives which had actuated him in drawing up the code of regulations; in the following February, the Archbishop of Paris published an equally long manifesto defining the functions and exercises spiritual which

the pupils were to practise. All this did not prevent the king from modifying the organization of the school, in 1764; recognizing the truth that a strictly military education was not the best adapted to the wants of youth, and establishing the Collège de la Flèche for a preparatory educational institution; in 1776, Louis XVI suppressed the École, and distributed the pupils among various colleges whose graduates were gentlemen cadets for the various royal regiments. In 1778, the school was re-established, and the king granted it an endowment of fifteen millions; a decree of March 26, 1790, abolished the restriction of titles of nobility for all applicants, and threw the entrance open to all sons of officers of the land and sea forces. The Convention, by a decree of 13th of June, 1793, ordered the sale of all the property from which the revenues of the school were drawn, and converted the buildings into cavalry barracks and a depot for flour. Under the Empire, Napoleon installed his Guard in the École Militaire; in 1815, under the Restoration, the Garde Royale was lodged there; under Louis Napoleon, the Imperial Guard again,—very important demolitions and reconstructions having been found necessary between 1856 and 1865.



LA VIE A LA CASERNE: NIGHT IN THE "CHAMBRÉE." After a drawing by Georges Scott.

The aim of the school, as at present conducted, is to develop the highest military studies, and to form officers for the service of the general staff. Captains and lieutenants of all arms of the two branches of the service, having served a certain number of years, and being acceptable to their

superiors, are admitted to compete. Three failures to pass the examination disqualify the aspirant.

The terrible Convention wished to have a military school of its own, and by a decree of the 1st of June, 1793, it founded the École de Mars, in the plain of Sablons. The idea had originated with Carnot; the institution was intended to educate soldiers for the corps of artillery, the cavalry, and the infantry. The pupils, from sixteen to seventeen years of age, were there to receive a Revolutionary education, "all the acquirements and the manners and customs of a Revolutionary soldier." Their costume, at first, consisted of a blouse of white ticking and a police cap. But this uniform was considered to be not sufficiently military, and the painter, David, was commissioned to design another. Being then in the classic and impracticable mood of his career, he furnished, for these budding warriors, a tunic *à la polonaise*, decorated with knots, *d'hirondelle*, to serve as epaulettes, and with frogs, a waistcoat *à châte*, a fichu *à la Collin*, as a cravat; tight pantaloons, disappearing in half-gaiters of black canvas. Each of these articles was of a different color from all the others, the stuffs having been procured by requisitions made among the merchants of the Halles. The footman was armed with a Roman sword with a red scabbard, suspended across his body by a black scarf, on which might be read: *Liberté, Égalité*, over the image of a sword placed over a row of other swords. The horsemen carried the sabre of the chasseurs à cheval. The cartridge-box was in the Corsican shape. The pupils were all awakened at daybreak by the report of a thirty-six-pound gun, which indicated the hour of morning prayer; this prayer being the hymn that Méhul had set to music, and which began with the invocation:

"Sire of the Universe; intelligence supreme."

The École de Mars was abolished by a decree of the 23d of October, 1794.

Almost behind Saint-Étienne-du-Mont are the buildings of the famous École Polytechnique, which, "to our French families, so essentially *fonctionnaresques*, appears like the portals of the Administrative Paradise: all the mothers dream of it for their sons." To be a graduate of this institution is to have a certain title to distinction in the intellectual and scientific world. It was founded by a decree of the Convention, under the initiative of Monge, in March, 1794, and consequently celebrated its

centennial in 1894, with great ceremony. It was instituted as a school of public works, a school of mines, maritime construction, bridges and highways, the marine, the artillery, etc. It was established in the Palais Bourbon, under the direction of Lamblardie; the pupils were to be admitted between the ages of sixteen and twenty, this limitation being afterward extended to the age of twenty-five. Their number was fixed at four hundred. By a decree of September 1, 1795, the name of the institution was changed to *École Polytechnique*. Within the next two years, the annual allowance from the State was fixed at three hundred thousand francs, and the number of pupils at three hundred. Napoleon, who took a great interest in this institution, entitling it his "hen with the golden eggs,"—and this hen has remained the emblem of the school,—changed its organization radically in 1804, and transferred its seat to the ancient college of Navarre, founded by Jeanne de Navarre, wife of Philippe le Bel, and De Boncourt. In 1840, in 1843, and 1844 the buildings were enlarged and improved; by a decree of November, 1852, the school was reorganized and made a dependency of the Ministry of War. Its general staff was composed of a general of brigade, *commandant supérieur*; of a colonel or lieutenant-colonel, *commandant en second*; of six captains and former pupils who had the title of *inspecteurs des études*, and of six adjutants, *sous-officiers*. Thirty-nine professors imparted instruction in analysis, mechanics, descriptive geometry, physics, chemistry, land-surveying, architecture, the military art, fortifications, plans, French composition, the German language and design.



INFANTRY OF THE LINE: CORPORAL AND PRIVATE.
After a drawing by Georges Scott.

The pupils were admitted through an examination; they could not be less than sixteen nor more than twenty years of age, unless they had served two years under the flag; in that case, the limit of age was fixed at twenty-five. Since the re-establishment of the Republic, these regulations have been somewhat modified. The number of pupils admitted annually is now from two hundred and twenty to two hundred and fifty; it is, perhaps, worthy of notice that the number of applicants, after having reached its maximum, seventeen hundred and twenty-nine, in 1893, has since greatly declined,—sixteen hundred and seventy in 1894, fifteen hundred and twenty-six in 1895, and twelve hundred and ninety-nine in 1896. The institution is now designed especially to furnish trained men for the artillery, marine and land; for military engineering; for maritime engineering; for the national marine; the corps of hydrographic engineers; the commissariat of the marine; the bridges and highways; mines; State manufactures, in which are included tobacco, gunpowder, and saltpetre; and the telegraph. At its foundation, in 1794, the pupils were not lodged in barracks, but billeted upon private citizens, and they received an annual allowance of twelve hundred francs; at

the present day, this allowance is reduced to a thousand francs, plus seven hundred for wardrobe and a hundred for outfit. To those pupils who are unable to meet the necessary expenses, an allowance, or *Bourse*, is accorded, provided the parents engage themselves to repay the cost of his education in case the ex-Boursier does not remain ten years in the service of the State. The duration of studies is two years.

At their close, the choice of the graduate's profession is determined by his standing in his class. Rather curiously, the civil professions are generally preferred,—mines, bridges, and highways, telegraphs, and manufacture of tobacco. The pupils admitted into the civil professions enter special schools, *École des Mines, des Ponts et Chaussées*, etc., with the title of *Élève Ingénieur*, and a brevet of sous-lieutenant de Réserve in the artillery or the Génie [Engineers]. The pupils who select the military career are appointed sous-lieutenants, and pass two years at the *École d'Application* of Fontainebleau.

A royal ordinance of May 6, 1818, created an *École d'État-Major* [General Staff], which was established in the old Hôtel de Sens, near the Place des Invalides. The school was destined to furnish officers to the general staff of the army; its organization was modified in 1826, and again in 1833. Under the Empire, it was designated as the *École d'Application d'État-Major*; it is to-day part of the *École Supérieure de Guerre*.

In the little village of Saint-Cyr, about three miles from Versailles, is the famous military school of the same name, which had existed at Fontainebleau since 1803, and which, in 1808, was transferred by Napoleon to the ancient buildings of the institution for the education of the female nobility founded by Madame de Maintenon, and for which Racine composed *Esther* and *Athalie*. This institution was, naturally, abolished during the Revolution, and the buildings appropriated to the reception of wounded soldiers. Under the Restoration, the school was suppressed, but later reorganized, and definitely reorganized by the decree of January 18, 1882. Its object is to educate officers for the infantry, the cavalry, and the marine infantry. The number of pupils is generally from seven hundred and fifty to eight hundred, from seventeen to twenty-one years of age. The number of pupils admitted each year is determined by the Minister of War. The requirements of the examination for admission are sufficiently strict to

make it somewhat difficult to secure this honor. Each pupil receives an allowance of a thousand francs, plus seven hundred francs for his outfit. Bourses and half-Bourses, outfits and half-outfits, are accorded by the Minister of War under certain conditions. Each pupil volunteers to do military service for the space of three years. The duration of studies is two years. The pupils graduate with the grade of sous-lieutenant, and select their corps and their garrison according to their standing in their class.



RESERVISTES DURING THE TWENTY-EIGHT DAYS. After a water-color by L. Sabattier.

The pupils of this school, with their jaunty white plumes, add much to the liveliness of certain quarters of Paris on Sundays and fête-days. Permission for these outings is greatly appreciated, and, it seems, is by no means easy to obtain. Many formalities have to be complied with before *Cyrard*,—as these gay young men call themselves,—in his neat uniform, can set out for the conquest of Paris. From time to time,—but not too frequently,—the *Poireau*, the general commanding, put in a good humor by some event which has flattered his professional pride in the school, grants a general permission to all the pupils for an outing, a *sortie galette*, without any

regard for *moyennes* and punishments. This qualification of *galette* derives its name from the fact that this general permission specially affects the pupils *fins* or *fines galette*, whose ranking in their classes does not always attain the desired altitude. The *galettes*, as happens in other educational institutions, frequently make the best officers. One day, a good while ago, it is related, an unfortunate *melon*, wandering about in the great space of the cour Wagram of the school buildings, found himself in the midst of a group of the elder pupils. "Monsieur," said a corporal to him, haughtily, "what are you doing here? you have the appearance of a toad in a basket of strawberries!" The humble *saumâtre* thought it better to reserve his reply to this mortifying comparison for a later date. A respectable number of years afterward, the President of the République, reviewing the garrison of Orléans, reined up his horse before an old colonel with a white beard, and said to him point-blank: "Well, colonel, have I still the appearance of a toad in a basket of strawberries!" The humble *saumâtre* was now the Maréchal de Mac-Mahon.

Sometimes the President of the République, or the Minister of War, on the occasion of some solemnity, requests the *Poireau* to grant a *sortie galette*. Sometimes a personage *croco*—that is to say, distinguished foreigner—visits the school; then the cry is: "*Calot, les hommes! calot! sortie galette!*"

On these great occasions, the pupils who have secured this coveted privilege of an outing assemble in the cour d'Austerlitz or the cour Wagram to be formally inspected by the captain of the week. "Oh! this inspection!" says an ex-élève; "I know nothing more terrible, more feared, and more to be feared. How many laborious efforts, how many cherished hopes, are made naught before this inflexible judge, who, for the slightest spot, the smallest grain of dust, transforms into bitter sadness the secret exultation of a heart which felt itself full of the joy of existence! One day, when I had painfully acquired my *petites moyennes*, the captain halted in front of me. I was confident; I felt myself to be irreproachable. 'Give me your promission!' said he, suddenly. And, before my eyes, sarcastically, he tore into fragments this talisman of my liberty;—it appeared that the contact of my cheek with the collar of my capote had left on the latter the almost imperceptible touch of a little rice-powder! There was nothing for me to do but to go back to my chamber, resume my working costume, and increase the number of *petits-cos*, prisoners."

Without going into the infinite details of the administration of justice in the capital, it may suffice to indicate briefly the different attributes and functions of the four great courts of Paris. These are: Cour de Cassation, which sits in the Palais de Justice; the Cour des Comptes, at the Palais-Royal; the Cour d'Appel, at the Palais de Justice; and the Cour d'Assises, at the Palais de Justice. The duties of the first of these—at the present moment occupying so large a share of the attention of the civilized world—are briefly stated to be "to maintain the sound and uniform application of the laws." This court sits in judgment on all demands for the quashing of judgment and decrees rendered by courts of the last resort; it decides upon the demands for transferral from one court to another, in case of legitimate suspicion or for the benefit of the public security, conflicts of jurisdiction, and decisions of judges. It has the power of annulling all procedures in which the legal forms have been violated, and all judgments which are in direct contradiction with the text of the law. It can take cognizance only of questions of law, and not of those of facts and material details; after having quashed a judgment, it sends the case back to another court of the same order as that of which the decision has just been annulled. This new decision may be again attacked and set aside, but to prevent the endless repetition of this process, the tribunal or the court to which the case is referred after a second reversal must conform on the point of law with the decision of the Cour de Cassation.

It can pronounce upon the decisions of all the tribunals of the judiciary, properly so called, but cannot take cognizance of any decision of administrative justice. The decisions of the military tribunals can be brought before it only by non-military persons appealing against the incompetence of the military jurisdiction in their case. It can quash the decisions of Juges de Paix only when they exceed their power. It cannot determine upon the decisions of voluntary arbitrators, who are not considered as legal tribunals, nor upon judgments which are not definitive and conclusive, or which have acquired the authority of the famous *chose jugée*,—decision rendered.

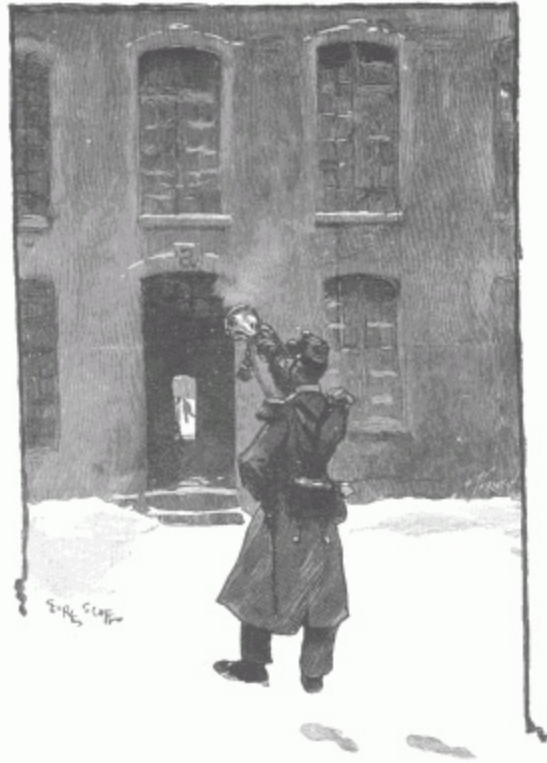
The Cour de Cassation consists of a first President, three Presidents of Chambers, forty-five Conseillers divided among the three chambers (of Requêtes, Civil and Criminal), a Procureur général, six Avocats généraux, a Greffier en chef, and four Greffiers. The Chambre des Requêtes sits in judgment in all civil matters not excepted by some law, if the appeal is

admissible. In this case, it sends back, by a decision the grounds of which are not given, the case to the Chambre Civile. Otherwise, it rejects the appeal by a decree the grounds of which are given. It renders judgment in electoral matters, and, within certain limits, in various special affairs.

The Chambre Civile decides definitely upon all appeals received and sent to it by the Chambre des Requêtes, it takes cognizance directly of appeals in questions of expropriation for the public utility, of appeals brought, in questions of law only, in civil matters, by the *procès gallican* before the Cour de Cassation; of appeals, when there are grounds, in disciplinary matters.

The Chambre Criminelle decides directly upon appeals in affairs criminal, *correctionnelle*, and of the police, upon demands for revision in judicial decisions and transferrals from one tribunal to another, in cases in which the legal powers have been exceeded and the decisions are annulled under proceedings instituted by order of the Minister of Justice. In certain cases, determined by the law, the three Chambres are united in a solemn audience to sit as the Conseil Supérieur de la Magistrature.

Since 1883, the Cour de Cassation has constituted the Conseil Supérieur de la Magistrature and has been in possession of all disciplinary powers with regard to those magistrates who cannot be removed from their offices, of the Cour de Cassation, of the Cours d'Appel, Tribunaux de Première Instance, and Juges de Paix. The Conseil Supérieur determines, the three Chambres being reunited, upon the requisitions of the Procureur général; representing the government. No irremovable magistrate of the courts and tribunals can be displaced excepting upon the decision of the Conseil Supérieur. This removal does not entail any change of functions nor diminution of position or income. The magistrates can be placed upon the retired list, for grave and permanent infirmities, by the decision of the Conseil Supérieur.



LA VIE À LA CASERNE: LE RÉVEIL. After a drawing by eorges Scott.

It may be interesting to know that the salary of the first President is thirty thousand francs; of the Presidents of Chambres, twenty-five thousand francs each; of the Conseillers, eighteen thousand francs each; of the Procureur général, thirty thousand francs; of the Avocats généraux, eighteen thousand francs each; of the Greffier en chef and the four commis-Greffiers, together, thirty thousand francs.

It is before the Chambre Criminelle of this court that the inquiry into the case of Captain Dreyfus has been conducted; and one of the many frantic appeals of the anti-revisionists, anxious to prevent another trial at any cost, has been to have the case transferred before the full Cour de Cassation,—which has been finally granted by the government.

The Palais de Justice, in which this august tribunal sits, shelters also the Cour d'Assises, the buildings of the Cour d'Appel, the prisons of the Conciergerie and of the Dépôt, the apartments devoted to the service of the Parquet, of the Juges d'Instruction, the smaller ones belonging to the library and to the Salle du Conseil des Avocats, etc., and encloses jealously the

beautiful Sainte-Chapelle, the slender spire of which and the great angel rise so incongruously over these secular buildings devoted to windy and dusty Law.

Through the great gilded gates which from the Boulevard du Palais lead into the Cour du Mai the visitor enters this ancient building, now almost completely rebuilt by the restorations which have been going on since 1840. Turning to the right, he passes into the great Salle des Pas-Perdus, and from that into the long Galerie des Prisonniers, which traverses the whole length of the Palais from east to west, and which was originally constructed by Philippe le Bel. This gallery gives access to the halls of audiences of the three Chambres of the Cour de Cassation and the Galerie Saint-Louis. A curious detail of municipal administration is connected with this supreme court. Though from an architectural point of view it is undoubtedly an integral part of the Palais de Justice, it is considered from an administrative point of view as a separate construction, appertaining to the direction of civil edifices, having its separate budget for construction and maintenance and its special architect. This variety of budgets and services extends throughout the building, the different institutions and tribunals under its roofs being considered as belonging to different branches of the administration. The State alone has charge of that portion of the building occupied by the Cour de Cassation; that occupied by the Cour d'Appel comes under the authority of the Minister of the Interior, since the costs of the maintenance of this court are supplied by a group of the departments of the nation. The department of the Seine and the City of Paris have each their portion in the costs of construction and of maintenance of the building, that of the city being by no means the lightest. The Galerie des Prisonniers, for example, on the ground-floor appertains both to the City of Paris and to the State, since on one side it communicates with the Cour de Cassation; the basement, which is a dependency of the Dépôt and of the Conciergerie, belongs both to the city and to the department of the Seine, and the upper story is equally divided in its allegiance. So that, if there is a question of replacing a tile in the pavement, of repairing a ceiling, or of repainting a wall, the architect is obliged to divide the cost, to a centime, between the State, the Minister of the Interior, the City of Paris, and the department of the Seine, each in its due and exact proportion.

The Cour de Cassation is very handsomely lodged, as is its due, the Salle des Délibérations, with its heavy ceiling of carved and gilded wood, being one of the most important and luxurious in the Palais, and the Chambre d'Audience having for its plafond the celebrated *Glorification de la Loi* of Paul Baudry. The literal and realistic magistrate who doffs his cap in the midst of all these pretty allegories, at the pedestal of the Law, wears the gown of the President of the Cour de Cassation.

"If, in the middle of the afternoon, you should issue from the Salle des Pas-Perdus, your ears buzzing with the incessant hubbub which fills it for three hours every day, deafened by the shrill ringing of the bell which calls the attorneys in different directions, and after having followed the long Gallery *des Prisonniers*, you should penetrate into the passages of the Cour de Cassation, you would be astonished at the extraordinary contrast presented by these two portions of the Palais, such near neighbors. Over there, the noise and the tumult of the crowd of lawyers, the arguing of cases and the spectators; here, the dull silence of deserted edifices.

"It would seem that Jurisprudence, a magician with somnolent powers, had steeped in lethargic slumber his faithful servitors, and the old councillors who nod their heads, during the hearing, in their majestic seats, wearing the toque of black velvet the peculiar form of which has procured for them the disrespectful appellation of 'lancers,' the occasional attendants who pass silently through the long corridors, the solitary soldier of the Garde Municipale seated on a bench in the gallery Saint-Louis, frightened almost at the solemnity of the place, all seem but sorrowful shadows guarding the sanctuary of the Supreme Court. Even the spectators complete the impression of profound ennui which disengages itself from the very walls; here are none of the ardent or tedious pleadings, the passionate or cheerful discussions, which keep alive the attention of counsellors and judges in the Cour d'Appel and the Tribunal. Facts, actions, with their complications and their peculiar interests, with their infinite variety, are here banished from the argument. The Law here takes an ample revenge; here are discussed only matters of pure legislation, profound decrees of the supreme court, or the interminable argumentations of authors who have produced sapient dissertations upon the uttermost juridical disputation.—It is the triumph of the ancient classic controversy, for discussions are still held in the supreme court *pro et contrà*, to conclude in *baralipton*, in the

same manner as in the ancient Sorbonne;—Latin alone is wanting to the festival.

"Pleadings, indeed, have but little importance before the Cour de Cassation: it is the *mémoire*, laboriously and lengthily composed by the avocat, which is the *pièce de résistance* in every case, because it sets forth a complete exposé of the affair and the minute discussion of each one of the juridical problems which it brings up, with infinite divisions and subdivisions. The monotonous reading of the Conseiller-rapporteur being finished, the avocat proceeds to develop his mémoire, and the Avocat général states his conclusions; then, if the question present only mediocre juridical interest, the conseillers gather in a circle in the centre of the Salle d'Audience to discuss, adopt, or reject the judgment prepared in advance by the Rapporteur;—this is what is called *faire le rondeau*. And there may be seen, in the unshaded light of the hall, under the ceiling in gilded oak of the Chambre Civile, these gray or white heads agitating themselves, and Passion (passion inspired by abstract law!) reappears. The apathy, the somnolence of a few minutes ago, have disappeared, and these hoary old men find again, for the moment, an ardor which seemed to have been forever laid to sleep....



MEDALLISTS OF SAINTE-HÉLÈNE IN THE PLACE VENDOME.

After the painting by Maurice Orange.

The Médaille de Sainte-Hélène was, by a decree, in 1857, a special distinction awarded to all survivors of the wars of 1792 to 1815.

"Silence, a silence which is scarcely troubled by the sound of the discreet footfalls of the rare promenaders, an icy chill, are the inalienable characteristics of the locality in which sits the first court of the justice of France. Respect it, do as do those who frequent it willingly or because of the necessities of the daily task, and issue from these deserted galleries, speaking in an undertone, and with the finger upon the lips, in order not to trouble the repose of its inhabitants."

The Cour des Comptes, which sits in the Palais-Royal, ranks immediately after the Cour de Cassation, and enjoys the same prerogatives. It is the modern representative of the Chambres des Comptes of the old monarchy and of the Commission de Comptabilité Nationale which replaced these Chambres at the period of the Revolution. It was created by a law of September 16, 1807, and constitutes at once an administrative tribunal charged with the verification and examination of certain financial accounts of the administration and an institution of the body-politic intended, by its

control over the financial measures of the administration and other administrative accounts which it is not called upon to examine, to advise the executive and legislative powers. It may therefore be considered as the superintendent of the public fortune and of its financial measures.

It consists of a first President, three Presidents of Chambres, eighteen Conseillers Maîtres, twenty-four Conseillers Référéndaires of the first class, sixty of the second class, a Procureur général, fifteen Auditeurs of the first class, ten of the second class, a Greffier en chef, etc. The salaries of these officials are about the same as those of the Cour de Cassation. The first President has the supreme direction of all the deliberations of the court, as well as of the police and general surveillance. The court is divided into three Chambres, having each a President and six Conseillers Maîtres who alone have a voice in the deliberations and constitute, themselves, the members of the administrative tribunal sitting in judgment. The deliberations are not public. The Presidents and Conseillers cannot be removed, and are placed on the retired list, the Presidents and Maîtres at seventy-five years of age, and the Référéndaires at seventy years. The court addresses an annual report to the chief of the State, in which it sets forth those matters which, in the course of its examinations, have seemed to it worthy of the attention of the government, and advocates those reforms and ameliorations in the administration of the public finances which have been suggested to it by its consideration of the various facts and enactments.

The Cour d'Appel, at the Palais de Justice, includes in its jurisdiction the departments of the Aube, Eure-et-Loir, Marne, Seine-et-Marne, Seine-et-Oise, Yonne-et-Seine. In all cases, the decrees are rendered by the magistrates deliberating, in groups of some odd number,—at least five, including the President. In all civil and commercial cases, appeal can be made from all decisions rendered by the tribunals of the arrondissements or of commerce, by referees, judicial reports upon cases in litigation in which the amount involved exceeds fifteen hundred francs of injury to the person or to personal property, or sixty francs of revenue from real estate.

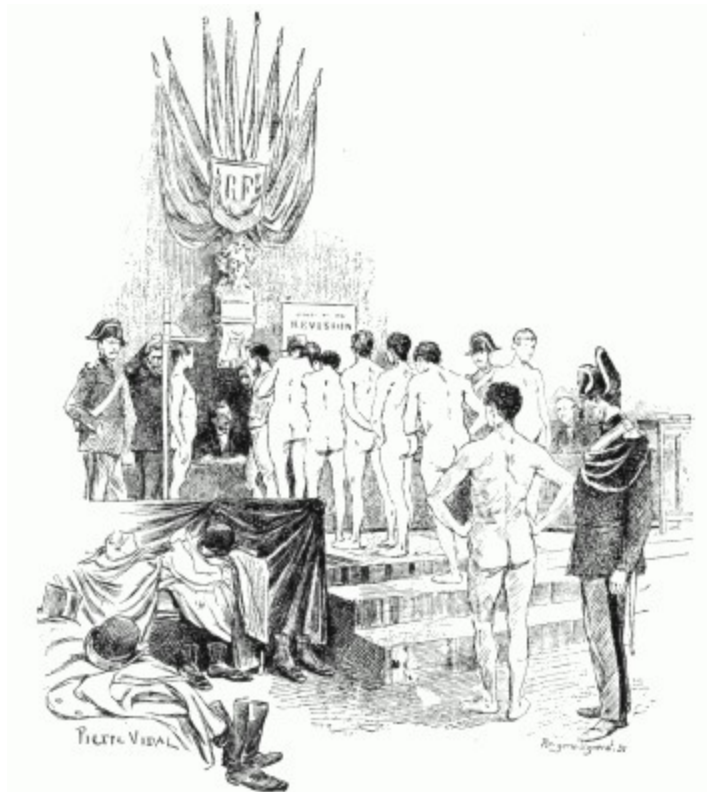
This court is composed of a first President, nine Presidents of Chambres, and sixty-two Conseillers, divided among nine Chambres, of which seven decide upon civil and commercial appeals, one upon appeals *Correctionnels*, and the ninth is the Chambre des Mises en Accusation,

before which are brought criminal cases after they have passed the stage of preliminary examination. The Parquet connected with the Cour d'Appel consists of the Procureur général, seven Avocats généraux, and eleven Substituts of the Procureur général. The Cour d'Appel sits in judgment as a court of first and last resort in all cases of misdemeanors, involving a legal penalty, committed by the magistrates of the Cour de Cassation, of the Cour d'Appel, of the Tribunal de Première Instance, by the Juges de Paix, the Préfets, the Grand Officers of the Legion of Honor, generals, archbishops, bishops, presidents of Consistoires in the Protestant and Jewish organizations.

In each department of France there is a Cour d'Assises to try those individuals who are sent before it by the Chambre des Mises en Accusation of the Cour d'Appel. In the departments generally these courts sit every three months, and more frequently if occasion requires. The Cour d'Assises of the department of the Seine holds its sittings every day, in the Palais de Justice. This court consists, first, of three Conseillers of the Cour d'Appel, the first sitting as President, the two others as Assesseurs, designated every three months, the President by the Garde des Sceaux, the Assesseurs by the first President; second, of a representative of the Ministère Public, selected among the Avocats généraux or the Substitutes of the Procureur général; third, of a Greffier; fourth, of a jury composed of twelve citizens selected by lot by the President from the list of thirty-six *juries* designated for the session. After the examination of the accused, the depositions of the witnesses, the Réquisitoire of the Ministère Public and the presentation of the defence, the jury retires to deliberate upon the probable guilt of the prisoner and the extenuating circumstances. When the jurors have agreed upon their verdict, the President causes the prisoner to be brought back into court, the Greffier reads to him the conclusion of the jury, and the court pronounces his acquittal, or sentences him to the penalty due the crime of which he has just been convicted, even when this penalty is only a matter of police regulation.

The decision of the jury is supposed to be final, but when a prisoner is found guilty and the court is convinced that the jury is entirely in error, it may set the judgment aside and postpone the case to another session. Against the sentence of the court, appeal may be made to the Cour de Cassation. The Cour d'Assises exercises full jurisdiction in all cases

criminal, *correctionnelle*, or of the *Simple Police*, excepting in the case of some special law. It takes cognizance, moreover, of actions qualified as crimes, of actions qualified as misdemeanors which a special law places under its jurisdiction,—misdemeanors committed during its sessions, political misdemeanors and those of the press, excepting offences against the public morality and slander, or insults offered to individuals, which all come before the Tribunal Correctionnel.



SCENE IN A MAIRIE DURING THE PHYSICAL EXAMINATION OF MILITARY CONSCRIPTS.

After a drawing by Pierre Vidal.

One of the oldest and most characteristic features of the French administration of justice, the *juge d'instruction*, has but recently disappeared. The very extensive powers of this magistrate, but vaguely defined by law and custom, lent themselves readily to the abuses which undoubtedly constituted a grave defect in the criminal jurisprudence of the nation. To him were confided all the details of the preliminary investigation of a crime and the detection of the criminal, the seeking for clues, the right of search, of arrest of any suspected characters, of summoning witnesses

and experts, of interrogating the accused, and—but too generally—of wresting a confession from him by any means that might present themselves. One of the methods employed was the ostentatious consultation before him of a blank memorandum which, the accused was given to understand, contained the complete avowal of a confederate. In the famous *affaire Wilson* of a few years ago, concerning the alleged sale of decorations of the Legion of Honor, M. Vigneau, the official charged with this investigation, telephoned to one of these purchasers of red ribbons in the assumed character of M. Wilson. These irregular practices, however, it is asserted, were mostly practised by younger and more inexperienced Juges d'Instruction, and were greatly disapproved by the graver and older magistrates. The accused—who not infrequently would declare subsequently that the statements which he was reported to have made by the *curieux*, in thieves' slang, were but a distorted version of his words—was considered to have an additional security in the presence of the magistrate's *greffier*, or clerk, who took down his testimony, and in the fact that he himself need not sign this statement if he considered it inexact.

It was recognized that the qualities, physical, moral, and mental, possessed by a truly able and upright Juge d'Instruction were necessarily exceptional. He should have a very extensive judicial knowledge and experience, he should be gifted with powers of precision, of observation, of decision, of activity, of patience, and of evenness of temper. He should be affected by nothing, surprised by nothing. His bodily health should be sound, his brain cool, and his digestion excellent. He was liable to be summoned from his bed at any hour of the night to investigate a new crime; and when he entered his cabinet tranquilly at one o'clock in the afternoon, it was possible that a minute afterward he would be leaving it hastily on the trail of a fresh offence against justice. In Paris, these magistrates, twenty-eight in number,—with the exception of two who sat in the Petit Parquet,—occupied the three upper stories of the Palais; in the antechamber of each, under the eye of an attendant, or *garçon de bureau*, might be found waiting, more or less impatiently, a number of witnesses and persons interested, from all classes of society. In the inner room, before the magistrate seated at his desk, and flanked by his *greffier*, the prisoner or the suspected criminal, guarded by two soldiers of the Garde Municipale, would be undergoing his examination,—badgered, bullied, cross-examined, threatened, matching his

dull and unaccustomed wits against the keener, trained, and experienced ones of the judge, outmatched at every point, and but too frequently failing to demonstrate his innocence which it should have been as much the care of his examiner as his own to demonstrate.



SENTRY OF THE GARDE RÉPUBLICAINE BEFORE THE OPERA-HOUSE.
After a water-color by Pierre Vidal.

Lowest in the scale of the courts of justice of the capital, but by far the most industrious, is the Tribunal de Simple Police. Before it appear the minor offenders against the law, those whose penalties, when convicted, attain a maximum of fifteen francs, or at the very worst, five days of prison. Usually, however, they range from about a fine of three francs if the culprit appear before the court, to five francs if he be condemned by default. The difference is not sufficiently great, usually, to compensate him for the expenditure of time and trouble in appearing, and he permits Justice to take her course without protest. These offenders are usually hotel-keepers, shopkeepers, cab-drivers, concierges, small proprietors, etc.; their crimes consist in neglecting the proper sweeping of their sidewalks, in shaking a

carpet out of a window, in watering a window-plant too copiously, in putting up the shop-shutters too late, in permitting the family dog to go about without collar and muzzle,—crimes usually committed in honest ignorance of the police regulations thus violated. As there exists but one Tribunal de Police for the twenty arrondissements of Paris, we are not surprised to learn that this court is the busiest one in France. The number of offenders who appear before it annually averages from forty-three to forty-five thousand.

But, as it does not sit on Sundays, Mondays, fête-days, and but three days a week during the vacation, the total number of hearings amounts to two hundred and forty annually. This makes nearly two hundred cases for each sitting, and as the sittings last from an hour and a half to three hours, the court has about one minute to devote to each case. To enable it to dispose of them with this rapidity, it classifies the offenders, and tries all those accused of the same offence at once. The Ministère Public announces: "Are accused of violation of the ordinance of police regulating public cabs: Pierre, Paul, Jacques," etc. From time to time, a voice from the audience answers to one of these names: "Present!" This roll-call finished, the Juge de Paix, who has marked on his list the names of the absentees, reads these names again and condemns them all by default to the maximum penalty. Then there is a second roll-call of those who are present. The Ministère Public calls on all those who have anything to say to come forward; two or three of the offenders advance, stammer out some excuses which are scarcely listened to, and this second list is condemned in a lump to the regulation minimum penalty. By this simple process, the forty-five thousand cases are tried in the course of the year.

The Tribunal de Simple Police is provided with apartments on the ground-floor, almost in the basement, of the Palais de Justice, under the stone arches that date from Saint-Louis, and where the atmosphere is always damp, chilly, and sombre. The Juges de Paix, in addition to their civil functions, are charged with sitting in judgment upon these petty misdemeanors, and they take their places in the Tribunal alternately, a week at a time. In addition to the Juges de Paix, the court is composed of three Commissaires de Police, delegated by the Procureur général, who fulfil the functions of the Ministère Public, one as Chef de Service, the two others as Substituts, and of a Greffier en chef and of four commis-Greffiers.

A grade higher in the judiciary scale is the Tribunal Correctionnel, which sits in the wing of the Palais on the south side of the court of the Sainte-Chapelle, and which occupies itself with what may be called the bourgeois of crime and poverty. The sittings of this court draw so many spectators that the visitor is frequently stopped at the entrance by the Garde Municipal, who says: "*C'est complet!*" like an omnibus conductor when his vehicle is full. Four Chambers are devoted to the sittings of this court, two on the first floor, and two on the second; on each of these stories is a Salle des Pas-Perdu. All these halls of justice are thronged by such a compact and democratic crowd that one of the attributes of the magistrates is a little flask of vinegar or smelling-salts placed on the bench, by the side of the Code, before each of the three judges of the Tribunal and before the Substitut. The avocats do not enjoy this privilege, nor the Greffiers unless they have been very long in the service of the court. Here, also, the pressure of affairs is so great that the judges leave the bench, saying to their consciences: "Well! those who are innocent can appeal!" The terror and ennui of the law are, however, so great that but very few of those condemned do thus appeal. One of the characteristics of this tribunal of the Police Correctionnelle is the number of *avocats raccrocheurs* who infest it in the search for clients of any degree, and who seem to bear a close resemblance to that unsavory class known in New York as "Tombs lawyers," or "shysters."

In the rear of the Palais, looking out on the Place Dauphine, is the Chambre des Appels de Police Correctionnelle. The Salle d'Audience is a vast, chilly, and cheerless hall in which the appellant follows anxiously the retrial of his case in the formal and dispassionate résumé of the magistrates. The president begins by interrogating him courteously on his age, profession, etc.; then he says, with equal civility, turning toward one of his colleagues: "We will now hear Monsieur le Conseiller-rapporteur." One of the group of seven counsellors thereupon proceeds to read a strictly legal and impartial summing-up of the whole case, quite devoid of literary ornament or of personal observation; when he has finished, the president, turning again to the appellant, directs him to arise and interrogates him summarily on the principal points of his affair. During this examination, the counsellors, for the first time, turn their attention upon the appellant, but very briefly, and then, like magistrates whose judgment is quickly enlightened, resume the various occupations in which they have been

engaged. Then the president calls upon the counsel for the defence; to him replies M. l'Avocat général. After these two orations, pro and con, the president announces that "the court will now deliberate;" all the counsellors rise, and, after some moments of consultation in a circle behind the arm-chair of the president, retire in procession into the Chambre du Conseil. This journey indicates that there is a question of law to be considered. Otherwise, the decision would have been rendered immediately, upon the spot.



SCENE IN RUE ROYALE DURING THE LABOR MANIFESTATIONS OF MAY FIRST.
ARREST OF A SOCIALIST CANDIDATE.
After a photograph.

The poor *prévenu* draws favorable auguries from this solemn deliberation. But his hopes are generally dashed; the court, usually, retires into the *Chambre du Conseil* only to correct the law, while affirming the decree, of the lower court. The president re-enters, the *dossier* of the case under his arm, and followed by his six counsellors; he proceeds to read the decision of the court, setting forth that, while the reasonings of the lower court are entirely erroneous, its conclusions are, nevertheless, irrefutable. Sometimes, however, this court, called the "Chamber of Bishops" by Henri Rochefort, demonstrates its judicial independence by overturning the decisions brought before it, even though they may be sustained by the popular verdict,—as it did in the case of M. Wilson.

The jury system of France resembles, in a general way, in its alleged safeguarding of the public liberties, and in its injustices, inequalities, and obstinate bringing to the service of Themis the uncertain aid of Chance and of Prejudice, that of the United States. Each year, in each canton of France, these generally unwilling aids in the administration of justice are selected among the respectable citizens by a council composed of *Maires*, *Juges de Paix*, and *Conseillers généraux*. Their names, forwarded to the central judicial authority, are subjected to a second revision, by a commission

sitting in the chief town or the capital. In this manner is obtained the "general list of the jury;" from this is drawn by lot, every three months, and in Paris every fortnight, the jury of each criminal session, composed of thirty-six titular jurors and four supplementary. All citizens, having the required qualifications, between the ages of thirty and seventy, are obliged to serve, under a penalty of five hundred francs. The juror receives a very small sum for travelling expenses if the court is at a distance from his residence, but nothing at all if it be in his neighborhood. Consequently, these arbitrary summonses in the name of Justice are viewed, generally, with as much disfavor by the recipients thereof as in other countries, with the exception of the members of some such leisure class as retired officers on half-pay. The tendencies of certain classes of jurors are well recognized, the law and the evidence being as they may;—thus, before a jury of peasants and farmers, the young girls guilty of infanticide are nearly always acquitted, the rural economy entertaining a natural aversion to illegitimate children, reared at the public cost to become vagabonds at the age of fifteen. On the contrary, incendiaries, counterfeiterers, and those accused of assaults upon young children in the fields, receive no mercy at the hands of these honest countrymen. The severity of the juries of Versailles is well known. Composed of market-gardeners, ex-officers, and retired shopkeepers and employés, living in small cottages in the suburbs, and exposed night and day to the incursions of the Parisian marauders, they give always to the prosecution the verdict which it demands, and sometimes even more. There was a case, a few years ago, of three young rascals who set out from Paris to assassinate an old innkeeper of Argenteuil; the Ministère Public claimed one of them for the guillotine, but the Versailles jury gave him all three.

As to the Parisian jury, its composition is naturally more complex, but its results are said to be equally unreliable. Its deliberations are not affected by any spirit of caste or class, since these distinctions are not sharply enough defined; "but it is at the mercy of a fine talker. This will not be the avocat, rarely listened to, nor even the Avocat général, offensive in the eyes of the Parisian *frondeur* as the representative of authority. No; it is among its own members that the jury will select this veritable chief, some reasoner with abundant and facile speech, discovering in everything concealed meanings, hidden allusions, and all the more dangerous for the good sense of his colleagues that he has an elegant talent for paradoxes."

The Parisian jury is also, it appears, peculiarly under the influence of the fashions and customs of the day, no matter what they may be. For several years it was almost impossible to secure a verdict of conviction in the so-called "passionate dramas;" the heroines of vitriol and the revolver passed with impunity before these complaisant juries. The Parquet was obliged to withdraw most of these cases from trial by jury and send them to one of the Chambres of the Tribunal Correctionnel, which did not fail to do them justice. The notoriety, the celebrity, of a case have also a great effect upon these citizen jurors. If a crime has been committed on some fête-day, or in the midst of a ministerial crisis, the twelve jurors take into favorable consideration all the extenuating circumstances and render a verdict of acquittal. If, on the contrary, the crime has attracted much popular attention, been exploited in the daily papers, with portraits of the accused, of his victim, etc., then is the condemnation to death inevitable. "The Parisian jury is nothing but a great child whom it is necessary to keep in leading-strings and to watch very closely."

One of the most picturesque and characteristic features in the train of justice, one in which the French themselves have always taken a lively, though a professedly disparaging, interest,—as befits a military nation,—is the black-robed multitude of *avocats*, the attorneys, the lawyers. The nature of their profession, their professional costumes, certain peculiarities of whisker and absence of moustache, all those qualities which, in all countries, offer cheap handles to easy wit at the expense of the members of this judicial order, all these unite to lend them an interest, of various kinds, as a class somewhat apart. Their intelligent, shrewd, generally unimaginative heads, under their cylindrical black caps, offer endless studies to the physiognomists and the caricaturists. Their services are indispensable for all those who seek the aid of the law. At Paris, the *avocats* alone have the right to plead for litigants, before all the Cours d'Appel and the Tribunaux Civils. They can also plead before the military, commercial, and administrative tribunals and the Conseils de Prud'hommes. The only exceptions are the Conseil d'État and the Cour de Cassation.

The Ordre des Avocats, with its monopoly of this privilege, claims to date back to the year 518 A.D., and to have had for sponsor an uncle of the Emperor Justinian. It was restored by Charlemagne and continued under various names: *Causidici*, *Avantparliers*, *Plaidoux*, and *Chevaliers de la loi*,

and was constituted the *Ordre des Avocats* in the time of Saint-Louis to distinguish it from the various confraternities of artisans which were then being organized. A decree of the *Assemblée Constituante* dated September 2, 1790, announced that "the men of the law, formerly called *avocats*, shall not form any order or corporation, nor shall they wear any peculiar costume in the exercise of their functions." This eclipse, however, was not of long duration. The former *avocats* had drawn up a list of the recognized members of their profession in good standing, this list became the official one, and the roll of the *Ordre des Avocats* was reconstituted by the law of the 22d Ventôse, year XII, reorganizing the law schools, the *Écoles de Droit*.

By the word *avocat* is designated those lawyers who, after having obtained the title of *Licencié en Droit*, have taken the professional oath before a *Cour d'Appel*. But, in order to be able to plead, they are required, in addition, to be admitted to the bar of the tribunal or the court. The *Avocats-Consultants* are those who, not having been admitted to the bar, cannot plead in the courts, but give legal consultations in their offices. The *Avoués*, attorneys, are appointed by the court or tribunal to represent the litigants before it. They cannot be *avocats*, and are obliged to be residents of Paris.



PUPILS OF THE ÉCOLE SPÉCIALES MILITAIRE DE SAINT-CYR.
Engraved, from a photograph, by E Tilly.

Among the multitude of attendants and habitués of the judicial tribunals are the necessary witnesses and experts, of all kinds in degree,—the *témoin à charge*, important witness, listened to with attention; the *témoin à décharge*, uncertain and ill at ease; the *expert-comptable*, very conscientious; the *expert en écriture*, in handwriting, very positive and authoritative and unreliable, after the manner of his kind; the experts in medicine, in mental ailments, in physics, etc. The various degrees of willingness and unwillingness on the part of those who receive these official *assignments à témoin* are much as in other climes.

After the summer vacation, the opening of the courts is preceded by an annual divine service, the *messe rouge* [the red mass], held in the Sainte-Chapelle and attended by all the magistrates in their robes of office, red, black, and ermine. In 1898, this ceremony took place on October 17th, and was presided over by Cardinal Richard, Archbishop of Paris. The mass was celebrated by Canon Pousset, of the cathedral of Notre-Dame. After the service, the magistrates return to their courts in hieratic procession, following each other strictly in the order of their rank, the walls of the passage-ways being hung, for the occasion, with Gobelins tapestry.

A similar ceremony has been introduced in London. For the second time, in this same month of October, 1898, the legal year was inaugurated by a religious service celebrated with great pomp at Westminster. The Lord Chancellor, the judges, the Queen's Counsel, and a great number of representatives of the bar were present at this *messe rouge* English and Anglican. The Catholic judges and lawyers have long been in the habit of attending a similar service on this occasion in one of their own churches.



OBVERSE.
CENTENARY MEDAL, ÉCOLE POLYTECHNIQUE.

By an excellent arrangement, the Palais de Justice is enabled to lodge its criminals in one of its dependencies, the prison of the Conciergerie, whence the guards conduct them directly, by private staircases, to the court-room where they are to be tried,—thus avoiding any unseemly exposure of these unfortunates to the populace. An ingenious supposition as to the origin of the name of this famous prison, a barracks under the old kings of France, is furnished by M. Pottet,—that it was inhabited by a certain captain who provided himself with the title of *Comte des Cierges* [Count of Candles], concierge, janitor, or house-porter. Those who are confined in the Conciergerie are the criminals who are to appear before the Cour d'Assises; those convicted by the police correctionnelle of the departments, waiting the result of their appeal to a higher court, and those condemned to death during the three days which the law allows them for their appearance *en cassation*.



REVERSE.
CENTENARY MEDAL, ÉCOLE POLYTECHNIQUE.

In the Dépôt are deposited temporarily all the individuals arrested in the department of the Seine, for any crime whatever, and held for justice. This general depository receives on an average a hundred and fifty prisoners a day. Any one arrested by a police agent and conducted to the *poste*, if not delivered by some friend before the arrival of the *panier à salade*, is put into this cheerful vehicle, much like a closed-up omnibus, and carted off to the Dépôt. There, he is interrogated, searched, measured by the *service anthropométrique* of M. Bertillon, and held for three days. At the end of this period, he is transferred to some other prison,—to Mazas, before it was demolished, or to the Santé. The desperate criminals have the privilege of remaining in the Dépôt under the eye of the agents de la sûreté.

Within the walls of the Palais de Justice is included a third place of detention, the *Souricière*, in which are confined the accused brought from the various prisons of the city,—la Santé, Sainte-Pélagie, la Petite and la Grande-Roquette, Saint-Lazare,—to appear either for their trial or for their examination before the Juge d'Instruction. The *Souricière* [mouse-trap] is a

gloomy and ill-smelling basement, almost without light and air, and frequently crowded to suffocation, situated under the chambers of the police correctionnelle. The prisoners are very often confined here from eleven o'clock in the morning to eight o'clock in the evening, without being given either food or drink. This abuse is of long standing, notwithstanding the many protestations that have been raised against it.



ENTRANCE FAÇADE OF THE ÉCOLE POLYTECHNIQUE. Engraved, from a photograph, by E. Tilly.

Before 1826, the entrance to the Conciergerie was from the grand courtyard, the Cour du Mai, to the right and at the foot of the grand stairway. This entrance, with its iron railings, still exists, it now gives access to the Tribunal de Simple Police, and through it the multitude of victims, illustrious and obscure, of the Revolution and the Terror, issued to take their places in the cart for the guillotine. This doorway was walled up in 1826, and the entrance to the prison is now on the Quai de l'Horloge, near the tower of Cæsar. It was at this latter date that the Conciergerie was transformed into a modern prison, with the *régime cellulaire*. In the course of this transformation, the ancient dungeons in which had been confined so many eminent historical personages disappeared; to-day there can be seen only the cell of Marie-Antoinette, which now communicates with that of Robespierre, and the latter with the Salle des Girondins. The apartment of the unhappy queen was transformed into a chapel in 1816. Of the original furniture of her cell, there now remains, it is said, the little lamp hanging

from the ceiling, and the ivory crucifix which she kissed before mounting the scaffold. As to the arm-chair in which she sat, it was prudently removed some years ago to his office by one of the directors of the Conciergerie, to protect it from the ravages of the tourists of all nations who were gradually carrying it away piecemeal. This apartment of the prison can be visited on Thursdays by securing a permit from the Préfecture de Police. The grande salle which was the prison of the priests and royalists during the Terror, and in which the Girondins passed their last night, is now the chapel of the Conciergerie. Through the little door at the left the latter passed on their way to the scaffold, and in this court-yard took place the massacres of September.

Before its demolition in the summer of 1898, the immense Mazas prison (Maison d'Arrêt et de Correction Cellulaire), on the Boulevard Diderot, received the prisoners from the Dépôt. This gloomy institution contained twelve hundred cells, of which eleven hundred and fifteen were occupied, the others being used for the service of the hospital and of the baths. Among the more illustrious prisoners who have been within these walls was Victor Hugo, confined here on the morrow of the *Coup d'État*, and who has left this description of his cell: "Walls whitened with lime and soiled here and there by various emanations; in a corner, a round hole, furnished with iron bars and emitting an infectious odor; in another corner, a shelf hinged to the wall like the *strapontin*, or folding-stool, of the city folks, and which might serve for a table; no bed, a chair stuffed with straw. Under the feet, a brick floor; the first impression was of darkness, the second, of cold." In addition to the hammock and the bedding, the furniture consisted of a table with a drawer, an earthenware vessel, a porringer, a cup in wrought-iron, tinned over, a wooden spoon, a spittoon, called *génieux*, two brooms, three shelves in whitewood, a wardrobe set in the wall. The round hole, to which M. Hugo objected, was used by the prisoners as a means of speech with each other; by conquering their scruples—if they had any—and inserting their heads in this hole, they were able to make their words carry from one cell to another and even the entire length of the gallery, as through a speaking-tube. The authorities were not unaware of this arrangement, and by placing an agent in the basement they could have surprised these confidential communications.

The new arrival from the Dépôt, after being subjected to the usual formalities, after having lost his civil personality and changed his name for an official number, was at first disposed to rejoice in the solitude of his cell after the hideous promiscuousness of the Dépôt, but this solitary confinement would soon have become unendurable, had it not been for the daily labor with which they were all occupied. Their exercise was taken in the *préaux cellulaires*, oblong or converging cells under low sheds, through the iron grating of one side of which they could look out into the narrow space of the court-yard. All the prisons of the department of the Seine are furnished by a contractor, who supplies the provisions for the prisoners at a fixed price plus a percentage of their small earnings.



SEARCHING A PRISONER AT SAINT-LAZARE, THE GREAT PRISON FOR WOMEN.
After a drawing by G. Amato.

This prison was built between 1845 and 1850 by the architects Gilbert and Lecointe, on the general plans of the English prisons of the same nature, and was considered at the time a model institution. It succeeded the Prison de la Force, in the Rue Pavée-au-Marais, immortalized in a chapter of *Les*

Misérables; the new prison was known officially as the Nouvelle-Force. Popular usage, however, gave it the name which it retained, from the Place Mazas, at the end of the Pont d'Austerlitz,—the name of the colonel of the Fourteenth Regiment of the line, killed at Austerlitz. His family protested strongly against this usage, and in 1858 the administration of prisons abandoned the popular term and recognized the institution only under the formula: *Maison d'arrêt cellulaire*. All in vain, even though, in 1879, the Boulevard Mazas became the Boulevard Diderot.

This prison was the first in France in which was adopted solitary confinement. In a single night, that of the 19-20th of May, 1850, the eight hundred and forty-one inmates of the Force were transferred to Mazas,—a much more expeditious operation than that of the transportation of the prisoners of Mazas to the Santé, in May, 1898, which took ten days, at the rate of eighty men a day. It appears that the prisoners from the Force objected strongly to this system of solitary confinement in their cells; they gave way to such excesses of fury and despair that the Académie de Médecine was moved in their behalf, and protested against the *système cellulaire* as conducive to suicide and insanity. The new prison—as any one might see from the top of the viaduct of the Vincennes railway—was built in the form of a great wheel, the spokes represented by six long galleries, eighty mètres in length and twelve and a half in height. The hub of this wheel was a two-story rotunda, the ground-floor of which was occupied by the central post of observation, and the upper story by the chapel, which could be seen from any point in any of the six galleries. At the hour of the celebration of the mass, on Sundays, the guards set the door of each cell partly open, so that the prisoner might receive spiritual comfort if he so pleased,—and if his distance were not too great. Each of the six galleries was two stories in height, lit by a glass roof. All the cells received light and air through a grated window, opening on one of the outside galleries or on one of the interior courts, but placed too high to afford the inmate any view outside. Each prisoner was entitled to an hour's exercise in one of the twenty préaux into which the interior courts were divided. This promenade was always a solitary one, under the eye of the guardians in the rotunda, and to be deprived of it was the lightest punishment inflicted. The most severe, in extreme cases, was imprisonment in the *cachot*, or dungeon.

Saint-Lazare (Maison d'Arrêt et de Correction), on the Faubourg Saint-Denis, is at once a hospital, a police station, and a prison for women, and its methods and regulation have long been the object of earnest denunciation. As a prison for women, it is divided into two sections, for those accused, and for those condemned to less than two months' imprisonment; among the latter are women of the town, who have a special hospital. The only *condamnées* who remain for any length of time within these walls are the sick, nursing women having a child less than four years of age, and those enceinte. There is a special *crèche* for the newly-born babies,—for there are no less than fifty or sixty births annually. The nursing mothers, whether convicted or only accused, have special dormitories, and there is a shady garden for the wet-nurses. The prostitutes are provided with a special section. These unfortunates have not passed before any court; they have been condemned without appeal by a Chef de Bureau of the Préfecture de Police to an imprisonment of from three days to two months. During the day, the inmates are assembled in a workroom under the surveillance of one of the Sisters of the Order of Marie-Joseph, to whom is confided a general oversight of the workrooms and the dormitories. These prisoners take their meals in common, take their exercise walking in a long file, and at night sleep in a great chilly and crowded dormitory. Those who have merited it by their conduct are given one of the cells of the *ménagerie*, a double story of grated cells, furnished each with a bed, a stool, a shelf, and an earthenware vessel. The menagerie was formerly devoted to the service of the *correction maternelle*.



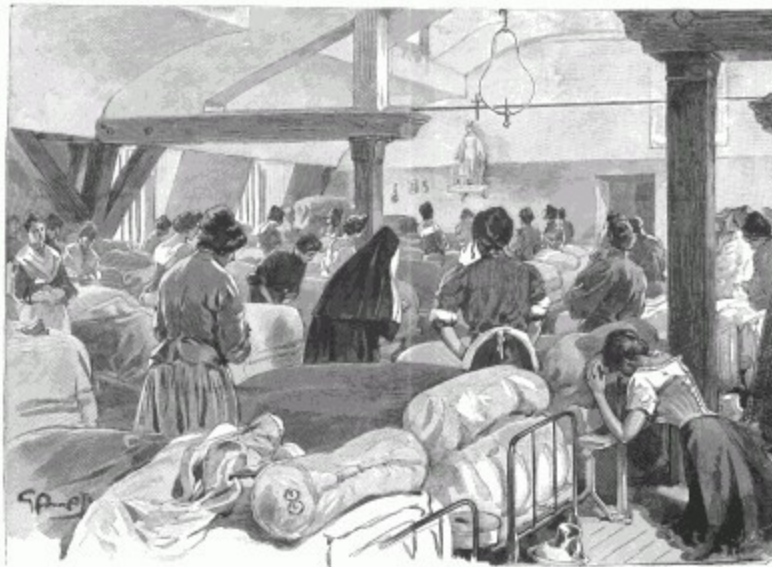
**RECORD-OFFICE OF THE ROTUNDA OF THE DEPARTMENTAL PRISON OF MAZAS.
ABOVE IS THE PULPIT FROM WHICH MASS IS SAID EACH SUNDAY.
Engraved by E. Tilly.**

In the great dormitories, there may be witnessed each morning such a scene as that reproduced in the illustration, the prayer addressed to the image of the Virgin on the wall, decked out with faded artificial flowers and with tapers in front of her; following the example of the Sister, all stoop with more or less reverence before this symbol and utter with more or less sincerity from impure lips the prayer for a pure heart. This grand dormitory is a great hall containing more than eighty beds arranged in four rows. The red tile floor is of irreproachable cleanliness, the eighty beds, with their gray blankets and white bolsters, are arranged with military symmetry. But this cleanliness and this good order, it is claimed, count but for little in the amelioration of these unfortunates, gathering contamination from each other in this indiscriminate herding together.

According to the law, those merely accused, the *prévenues*, and those actually convicted, are kept apart from each other, but in each of these two classes no distinctions are made,—the homeless unfortunate, arrested for

délit de vagabondage, is associated with the criminal guilty of infanticide or assassination. Even the little girls of ten and twelve years are kept together in the same promiscuousness, those already hardened in criminal ways corrupting the more innocent.

The *prévenues* enjoy certain privileges; they are not obliged to work, though it is but seldom that they refuse to take up some of the light sewing which occupies their leisure and brings them in small sums of money; they are not obliged, when they take their exercise, to walk round and round in a circle in the *préau*, forming in line only at the entrance and the exit. The formalities of search and interrogation, upon entering the prison, are the same for all, as are the general regulations and the discipline. All rise at five o'clock in summer, and at six or half-past six the rest of the year, and all go to bed at eight; all receive meat with their *bouillon* only on Sundays. The children are more favored in this respect, being furnished with eggs, roast meat, etc.



SAINT-LAZARE: MORNING PRAYER IN THE SECTION DE FEMMES DE MAUVAISE VIE. After a drawing by G. Amato.

Everywhere are seen in these gloomy and unwholesome halls and corridors "the austere and consoling figures" of the Sisters of Marie-Joseph. They wear a dark robe, sometimes with a white apron, a white *cornette* under a black veil which has a blue lining, and they supervise all the details

of the monotonous life of the prison. Rising in the dawn, a half-hour before any of the prisoners, they perform their devotions, and one of them rings the bell which summons all to leave their beds; they direct the workrooms in which the prisoners sew, a Sister sitting upright in a high chair, like a teacher presiding over her class, and they keep a watchful eye during the night on all the sleepers, in all the dormitories, great and little. Their hours of service as guards are from five or six o'clock in the morning to ten o'clock in the evening. After this hour, until the morning again, two Sisters remain on watch in the first section of the prison and one in the second. Their sole comfort and recompense is found in prayer and meditation in the mortuary chamber of Saint Vincent de Paul, now transformed into an oratory for their use. There is also a chapel for the use of the inmates, as well as a Protestant oratory and a synagogue.

The historical interest attaching to the buildings of this institution is very considerable. As far back as the time of Clovis, there was a hunting-lodge on this site; this was transformed, under the Carlovingians, into a debtors' prison. About the commencement of the twelfth century, this collection of ancient buildings was used as a hospital for lepers, under the appellation of Saint-Ladre [Saint Leper], standing near the road from Paris to Saint-Denis. In the year 1147, Louis VII, setting an example followed nearly a century later by Saint-Louis, visited this lazaretto, before setting out for the Crusades. "This was an action praiseworthy and very little imitated," says the chronicler. The hospital counted among its revenues the profits arising from an annual fair, known as that of Saint-Ladre; Philippe-Auguste, in 1183, annexed the proceeds of this fair to the royal revenues, and transferred it to the interior of Paris, where it became famous under the name of Saint-Laurent. In return, he provided the hospital with an annual revenue. Among the buildings attached to the hospital was one known as the *Logis du Roi*, where the sovereigns were in the habit of halting to receive the oath of fidelity from their good citizens of Paris before making their solemn entry into the capital. This was also the principal halting-place for the royal funeral cortèges on their way from Paris to Saint-Denis; and as late as 1793, when it was demolished by the all-demolishing Revolution, a Gothic tower standing here perpetuated the first rest made by Philippe le Hardi in his pious transportation on his shoulders of his father's coffin to its final resting-place.

In 1515 the canons of Saint-Victor established themselves at Saint-Lazare, and for more than a century here maintained a rich abbey, flourishing at the expense of the hospital. By 1623 their abuses had become too flagrant, and the direction of the institution was confided to Vincent de Paul, already renowned for his virtue. After having re-established order and discipline, he here installed the headquarters of his congregation of the *Missions*, created in 1624, and which became more generally known as the *Congrégation des Lazaristes*. The authority of the Archbishop of Paris compelled the new possessors of Saint-Lazare to continue to receive the lepers of the city and its suburbs. To these were gradually added those ecclesiastics and laymen who here sought a voluntary retirement, and certain youth here confined unwillingly by their parents or guardians that they might recover from the effects of a life of dissipation. Ten years before the Revolution, before the expulsion of the Lazaristes in 1792, and the appropriation of their property by the Revolutionary government, the use of Saint-Lazare as a temporary prison had become well established; Beaumarchais was confined here for three days after the first representation of the *Mariage de Figaro*. On the 13th of July, 1789, the day before the taking of the Bastille, a band of pillagers invaded the enclosure of the buildings, destroyed the tomb of Saint Vincent de Paul, and nearly set fire to the whole quarter by the burning of one of the store-houses of the establishment. During the Terror, it was crowded with the victims destined in advance for the scaffold; and under the Consulate it became definitely a jail, *prison civile*, *prison administrative et maison de correction*, to which was added a special hospital, as if to preserve the souvenir of the lazaretto of former times.

Of the buildings still standing, the superstructures mostly date from the reign of Louis XIII. The remains of the church built by Saint Vincent de Paul, in which he was buried at the foot of the high altar, may still be distinguished. The very extensive grounds surrounding the establishment, divided up and sold during the Revolution as *biens nationaux*, have now disappeared under the buildings and streets of the quarter. The chapel constructed by Saint Vincent is now a store-room; the crypt, with its tombs of bishops, is a bath-house; the low apartment on the ground-floor was reproduced by the painter Charles Muller in his *Appel des Condamnés*, formerly so popular at the Luxembourg; in the *Passage du Massacre*, between two courts, the victims of the Terror, in 1793, found death when

they had expected liberty; and the bells which sound the hours in the clock-tower are the same which rang under Louis XIII.

Saint-Lazare encloses also the general magazines, the store-houses of linen, and the central bakery, for all the prisons of the department of the Seine. It is here that is effected the panification for five thousand prisoners. In common with the general victualling of these penal establishments, this bakery is not managed by the State, but by private enterprise. In the prisons of the Seine, with the exception of Saint-Lazare, the food of a prisoner costs the administration daily 59.9 centimes, about twelve cents.

The Prison de la Santé (Maison d'Arrêt et de Correction), in the Rue de la Santé, has been devoted to three classes of prisoners,—those condemned to periods of from one day to one year, *prévenus* whose sentences have been appealed, and convicts and prisoners condemned to solitary confinement. The régime cellulaire adopted is known as the *système de Philadelphie*; this absolute solitary confinement is reserved for convicts awaiting their departure for New Caledonia, for other grave offenders, and also for minor offenders serving short sentences. The prisoner thus isolated leaves his cell only for an hour's exercise in *promenade cellulaire*; he is allowed to see no one and to receive no communication from outside, but the ingenuity of the prisoners contrives to modify these regulations. There is also a section in which the inmates pass the day together, but sleep in solitary cells. This *Quartier Commun* is to disappear in the reorganized prison which is to take the place of Mazas, and which will be specially devoted to *prévenus*, to those whose cases have been appealed and to those condemned to death. Among the numerous light industries to which the short-sentence prisoners are compelled to devote their time, that of the manufacture of dolls is one of the most important; designers, painters, and carvers, of sufficient artistic excellence, are all found among the inmates.

This prison was constructed to replace that of the Madelonnettes, destroyed by the opening of the Rue Turbigo. In the Protestant chapel attached to the institution, which serves also as a school for one hour a day, the prisoners accused of various offences appear each morning at ten o'clock—as in all the prisons of the Seine—in the "prætorium," the three judges of which, the director, the comptroller, and the inspector, sit under an immense open Bible displayed on the wall and surmounted by the

somewhat incongruous text: "Man may not live by bread alone, but by every word which proceedeth out of the mouth of God."



**SAINT-LAZARE: SECTION DE FEMMES DE MAUVAISE VIE, UNDER SURVEILLANCE
OF A SISTER.**

After a drawing by G. Amato.

Sainte-Pélagie (Maison de Correction), in the Rue du Puits-de-l'Ermite, though one of the smallest and worst-conditioned prisons in Paris, is one of the most celebrated, and the only one imprisonment in which is made a subject of jest. This singular reputation it owes to the numerous journalists and men of letters—Béranger, Alfred de Musset, Théophile Gautier, Balzac, Eugène Suë, J. Richepin, Henri Rochefort, among others—who have been sent here by a censorious government. These gentry have so exploited the *Pavillon*, the section of the prison devoted to the *politiques*, with its "great and little tomb," "little and great Siberia;" they have so ostentatiously received their friends every afternoon, from one to five, in their cells; they have so proudly worn their beards and their usual garments, as to diffuse a popular impression that imprisonment in this edifice is rather a joke than otherwise. Nevertheless, the *Pavillon*, says M. Paul Strauss, "is only one

quarter of the ugliest, the most frightful prison in Paris; fortunately, it is devoted to speedy destruction, and it is by this one that the work of reformation of the penal institutions of the Seine will doubtless be inaugurated; there is no demolition more urgently demanded than this, in the unanimous opinion of all those who have visited it. The extent to which the buildings are falling to decay, the narrowness and lack of cleanliness in the workroom, corridors, and dormitories, are not less offensive than the promiscuousness of the life in common, daily and nightly. Nowhere is the defile of the prisoners at the sound of the workroom bell, or from the sinister court-yard to the chapel refectory, more lamentable; the gray or chestnut-colored garb of the prisoners is more forlorn in its worn shininess than anywhere else, and the canvas sack itself hangs more dismally at the prisoner's back. It is not the fault of the penitentiary administration and the government of the institution; the establishment itself is worthless, the life, moral and material, that is there led is intolerable."



INTERROGATORIES BEFORE A "JUGE D'INSTRUCTION."
After a drawing by R. de la Nézière.

The prisoners for debt (to the State) enjoy the same privileges as the politicians. The baser, or more unfortunate, inmates, serving sentences of from one day to one year, are obliged to work in one of the six ateliers and to submit to the usual prison regulations, rising at six o'clock and going to bed at half-past seven. Among the articles produced in the workroom are toy balloons, Venetian lanterns, and, in general, all those materials for the illuminations with which Paris amuses itself on nights of festival. The fine gentlemen in the first and second quarters of the prison, instead of partaking

of the meagre prison fare, are nourished at the expense of the State by some restaurant designated by themselves. This prison was erected in 1635 by the Order of the Sœurs Repenties; it was a prison for debt till 1793; until the suppression of the Garde Nationale, it was known familiarly as *Prison des Haricots* [beans], because those refractory citizens who objected to serving in this corps were here confined on a strictly vegetable diet. In the chapel which serves as the refectory is preserved a relic of Sainte-Pélagie. Madame de Beauharnais, afterward the Empress Josephine, was here imprisoned in a chamber, which is still shown, on the second floor.

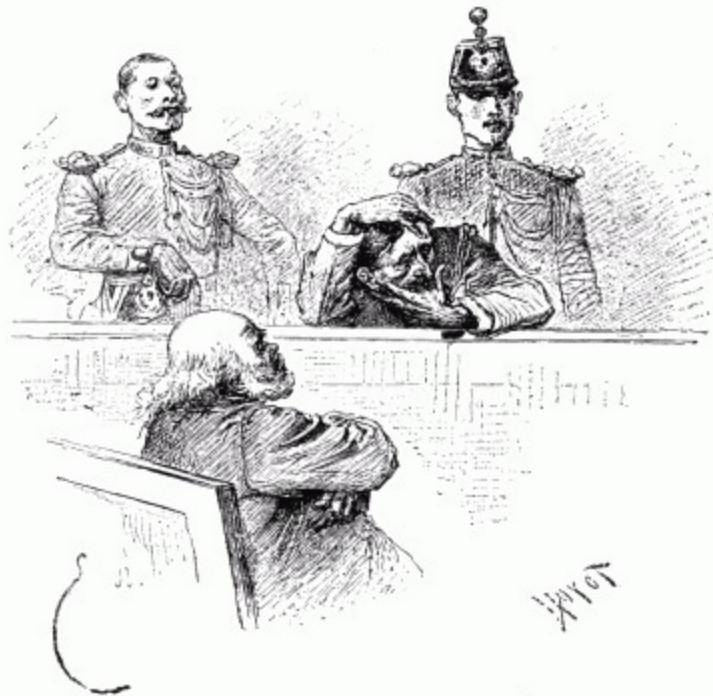
In the Grande-Roquette (Dépôt des Condamnés), in the Rue de la Roquette, are confined those condemned to death, or to deportation to some penal colony. As late as the first months of 1899, the executions were public, the guillotine being erected in front of the prison, in the space between it and the Rue de la Roquette; the locality was marked by five large oblong stone slabs in the pavement of the sidewalk. Hereafter the executions will take place in the Place Saint-Jacques; and the prisoners condemned to death will be confined in the Prison de la Santé. The three cells devoted to these unfortunates in the Grande-Roquette were larger than the others, and the condemned man enjoyed certain privileges. He was not compelled to work, he was given meat every day, he could smoke, read and write, and play cards with the two guards who kept him company day and night until the moment when Monsieur de Paris took possession of him. In the chapel, an upper lodge or box was provided for him, where, behind a grating, he could hear the mass without being seen by those below. The library which was at the disposal of these unfortunates, and which was their principal distraction, included some four thousand volumes. The books most read were novels and romances, and of these the works of Dumas père were the favorites. After these came those of Alphonse Karr, Mayne Reid, Eugène Suë, books of travels, and the *Magasin pittoresque*.

For those condemned to lighter penalties, the regulations were more severe;—there was not space in the workroom for all, or there was not work for all, and the greater part of the unhappy prisoners wandered round and round all day in the dreary court-yard, in all the weariness of utter idleness. They were even obliged to eat in this court-yard, having no refectory. This prison, constructed in 1836, was taken possession of by the Commune in 1871, and in May was the scene of a series of massacres. The cell occupied

by the most illustrious of these victims, the Archbishop of Paris, Monseigneur Darboy, has not since been occupied by any inmate, and has been preserved in the condition in which he left it at half-past seven on the morning of the 24th of May.

Directly opposite the Grande-Roquette, facing on the same street, is the *Prison des Jeunes Détenus*, the Petite-Roquette, which was devoted to three classes of youthful offenders, those placed here *en correction paternelle*; youths of not less than sixteen, *prévenus*, and those condemned to various terms of imprisonment and from sixteen to twenty-one years of age. The first class, imprisoned in cells in a separate quarter, were known only by their numbers, their names and stations in life were carefully concealed, and the guards themselves were kept in ignorance concerning them. All the inmates of this prison were isolated in their cells; in them they worked alone, and were visited by the instructor; they took solitary exercise in the *préau cellulaire*; and in the chapel-school, which occupies the central rotunda, each was imprisoned in a high stall from which he could see and hear but was invisible to all his fellow-prisoners. As he shut himself in his stall, he opened the door of that of his neighbor, who followed him at a distance of twenty paces. In this school he passed two hours a day, and in his *promenoir cellulaire*, one hour. A modification of this system was recently introduced;—the good-behavior inmates, those who were soon to be liberated, were brought together in a common workroom where they were employed in the manufacture of artificial violets. A new annex was recently added to this establishment, the *Infirmerie Centrale des Prisons de la Seine*, formerly installed in the Prison de la Santé. This hospital included three wards which could receive each thirty patients, an operating-room, and extensive bathing-rooms. This portion of the institution was entirely separated from the rest of the prison.

The Petite-Roquette, no longer in its gloomy surroundings, now stands on the banks of the Seine, nearly opposite the Terrace of Saint-Germain-en-Laye, from which it is visible, at the end of the road which leads from Montesson to the river. This happy removal marks an equally fortunate transformation in the character of the institution, for the stupefying and demoralizing system of solitary seclusion has been substituted the wholesomer labor in the open air of an agricultural and horticultural colony.



THE END OF AN AFFAIRE. After a drawing by Émile Bayard.

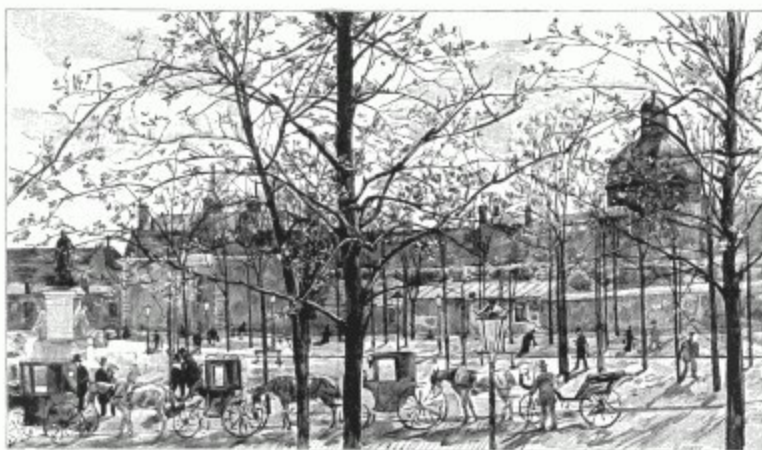
This important reform has been extended to the greater prisons of the capital: those of Mazas, Sainte-Pélagie, and the Grande-Roquette are all to be removed to the new penal institutions at Fresnes-lès-Rungis, in the department of Seine-et-Oise, inaugurated on the 18th of July, 1898. These were solemnly transferred by the Préfet of the Seine and the President of the Conseil Général to the *administration pénitentiaire*, and in the speeches which formed part of this ceremony the principles actuating this departure from ancient principles were duly set forth. M. Thuillier, Président du Conseil Général, after citing the transformation of the Petite-Roquette as the initiatory step in this great movement, declared that "from our profound compassion for the unfortunates who come under the hand of Justice sprang the desire to place the prisoner henceforth in surroundings in which might be born and strengthened the sentiments of self-respect, of bodily cleanliness, of propriety, which will frequently inculcate in him the noblest ideas of repentance and of moral regeneration. Hence those salubrious and almost comfortable arrangements which you have just seen.... Hence our desire to render the stay in the prison as little depressing as possible for the body and the conscience." "Without the *récidive* [the offender for the second time]," said M. Selves, Préfet de la Seine, "criminality in France

would have diminished within the last twenty years. It is, then, the *récidive*, above all, who is responsible for the augmentation of criminality, and, as it is the prison which makes the *récidive*, it follows that the amelioration of the penitentiary system should have a greater influence for good than all other methods."

It was accordingly resolved to endeavor to better the condition of the prisoners while at the same time preventing as much as possible their corruption by indiscriminate herding together. As far back as 1849, M. Dufaure advocated the keeping apart of *prévenus* and of those condemned for minor offences. But it was not till 1875 that a law was passed decreeing the separation of those serving sentences of imprisonment of less than a year. The department of the Seine endeavored to carry out the requirements of this law on as large and complete a scale as possible, and accordingly laid the foundations of these two large penal establishments outside the walls of the city. Those at Fresnes may be considered as model prisons; it has even been suggested that the comfort of the inmates has been almost too closely considered, and that, with the exception of the guards and the jailers, these buildings suggest the model cheap lodgings of modern practical philanthropy. The architect had taken the greatest care to assure the well-being of his involuntary clients, their health and personal cleanliness; their cells—more spacious than usual—have hardwood floors, the walls are painted and varnished, as are the table, the chair, and the iron bedstead provided with softer bedding; the latest mechanical and electrical appliances are to be found in these very modern dungeons. The extent of the mental and moral amelioration of the Parisian criminals that will follow the introduction of this new régime will doubtless be profitable to contemplate.

In addition to its various prisons, the department of the Seine maintains two very large establishments for beggars, paupers, vagabonds, and the wretched of every description, whether they have or have not records approved by the police. The largest of these *Dépôts de Mendicité*, that at Nanterre, is at once a prison and a hospital; it contains three thousand inmates of both sexes, and cost some twelve millions of francs. Of the five sections into which it is divided, the first, reserved for voluntary mendicants, is the only one which contains prisoners, properly speaking, men in one quarter and women in another. The other sections, each divided likewise into male and female quarters, are devoted, the second, to

voluntary patients whose antecedents are known; the third, to those whose antecedents are doubtful or unknown; the fourth, to the impotent, infirm, paralytic, and septuagenarians; the fifth is the hospital proper. The inhabitants of these different sections are distinguished from each other, the men by the color of their woollen caps, and the women by the little trimming of imitation lace in theirs. The Dépôt de Villers-Cotterets, which occupies the buildings and dependencies of the celebrated château built by François I, on an admirable site, was at first a prison, devoted to vagabonds and beggars of all ages and conditions; since 1889 it has been a *Maison de Retraite*, an asylum to which are admitted only the aged and infirm indigent whose past has been without reproach. The number of these peaceable inmates is about a thousand men and half as many women.



HÔPITAL DE LA SALPÊTRIÈRE, ORIGINALLY AN ARSENAL BUILT BY LOUIS XIII, AND NOW AN ASYLUM FOR AGED AND INSANE WOMEN. THE STATUE IS THAT OF DOCTOR PINEL, AN EMINENT BENEFactor OF THE INSANE.

All this imposing judicial edifice of Dépôts, prisons, magistrates, and high courts of justice is, of course, fed and maintained by the much humbler, almost unknown, and much more troubled service of searching out the criminal and laying hands upon him when found. Without the aid of the "simple police," *serjents de ville*, gendarmes, *brigadiers*, and *agents de la sûreté*, there could be no ermined judges and no *maîtres des hautes-œuvres*. The general methods employed in this obscure but indispensable preliminary work are much like those made use of elsewhere in civilized countries, but there are many details, not generally published, which are interesting, and we are indebted to a spirited newspaper article, by M. Guy

Tomel, for some information concerning the ways and means of the French police in these matters. He begins by putting in a plea for these very useful employés of justice: "Have you ever thought of the very material difficulties which the agents de la sûreté have to encounter in arresting malefactors? These modest defenders of society risk their lives daily that you may sleep in peace, Madame, and earn less at this perilous trade than your coachman or your *valet de chambre*. For their moral recompense, they have the prospect of being treated as '*mouchards*' [police spies], not by the thieves and the assassins, who call them the '*flics*,' but by the respectable tax-payers who are indebted to them for the minimum of security which we possess.

"If, by chance, some of the chiefs of this force, as Houillier, Jaume, and Rossignol, succeed, by dint of acts of bravery, in causing their names to be known to the general public, the private soldiers of this army of real salvation live and die in the most perfect *incognito*, fortunate if they succeed in attaining the age of retirement without being crippled by some malicious stroke! Remember that they are obliged to carry out their task without arms, without any brutality. A bandit injured in a hand-to-hand struggle assumes very quickly the character of an interesting victim, and there are always to be found sensational newspapers that will exploit his woes under flaming head-lines: 'Another Police Outrage!' 'A Brutal Police Agent!' etc.

"The problem that presents itself is, therefore, this one: 'To get in your power, in exposing yourself as little as possible, and without doing him any injury, a blackguard who is armed and who is capable of anything.'"

And he proceeds to explain the very simple tricks and tools by means of which this somewhat difficult task is accomplished. In the first place, he states a curious psychological fact,—that, generally, any criminal, no matter how dangerous or brutal, if suddenly arrested by surprise, is for the moment so stupefied that he does not think of resistance, and in this moment may be secured, by the handcuffs or otherwise. This brief paralysis is apt to be succeeded by a furious outbreak, but in the majority of cases it is then too late. Were it not for this temporary catalepsy, how would it be possible, asks M. Tomel, to effect the arrest of such desperate fellows, dynamiters and anarchists, with no more bloodshed and fracas than if they were girls of the

town! This little peculiarity of their clients is well known to the police agents, and they but very seldom fail to take advantage of it.

In the second place, the most dangerous offenders are not, as might be supposed, the hardened criminals, those who have repeatedly fallen into the hands of Justice. For them, a long experience has convinced them that, once caught, there is no escape. Neither are the assassins the most to be feared,—the sudden collaring by the iron hand of the law reduces them to temporary imbecility. Those whose arrest is usually attended with the greatest difficulty are young rascals in their first offence, and those who are accustomed to being rescued by a band of their companions. Bankrupts and ruined financiers are also apt to give trouble,—they take to their revolvers with "deplorable facility, quite ready to lodge the last bullet in their own heads if the others have not cleared the field for them."



SCENE IN THE CELL OF AN ACCUSED. After a drawing by R. de la Nézière.

It is, therefore, not without a certain amount of information concerning the irascibility and the bodily prowess of their quarry that the agents set out in his pursuit. Usually, they hunt in couples; if the game is reputed unusually dangerous, in larger numbers. For weapons, they carry each two pieces of stout cord,—a small one, fastened to the middle of a wooden handle at each end, this is the *cabriolet*; and a large one, the *ligote*, about two mètres and a half in length. These simple methods of correction have replaced—except in the country districts and where the prisoner has to be conducted a considerable distance—the old-fashioned *poucettes*, or handcuffs. Thus provided, the pursuers endeavor to surprise their prey as it issues from a house or an inn,—they wear no uniform, and they in nowise begin by summoning their victim in the name of the law, so that it is strongly

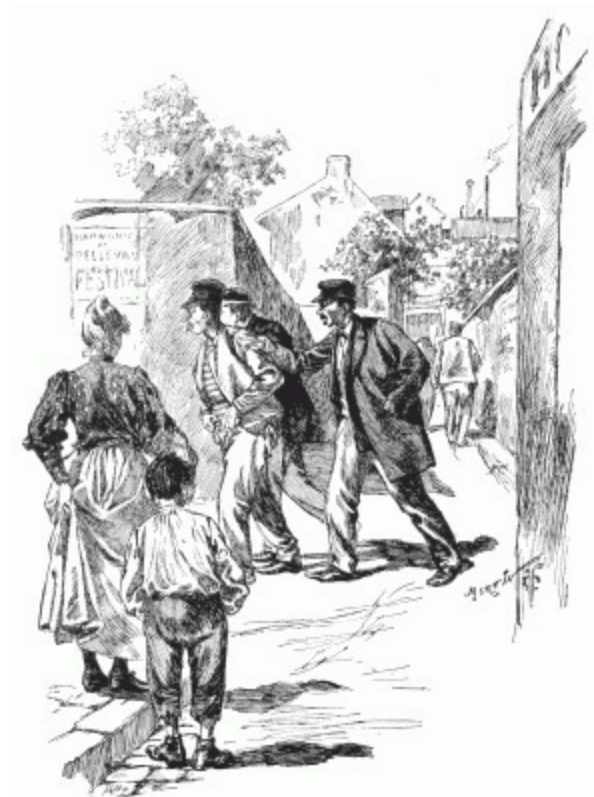
advisable for them to be very sure of his identity ere they fall upon him from behind, exactly in the manner of the highwaymen themselves. With one hand they grasp the collar of his coat, a little below the nape of his neck, and with the other, not his arm, but the sleeve of his coat. An individual thus collared on each side is helpless; if he wish to strike with his fists or his feet, he is obliged to lash out sidewise or obliquely, his arms are held securely; and the *coup de pied de vache*, which he may endeavor to give with his feet, though "it will break a tibia like glass," is easily avoided. Moreover, while he has one foot in the air, his equilibrium is in danger, and he is promptly brought to earth and secured. Usually, however, the cabriolet is round his wrist, and he is *bouclé* before he can say "Jack Robinson!"

These cord handcuffs are replaced by chain ones in the hands of the Gardes Municipaux in the service of the Palais de Justice, and the method of their application is the same,—once around the wrist of the victim, they can be tightened at pleasure by a simple turn of the handles in the grasp of the captor, and the pain speedily becomes intolerable. Even a slight pressure soon produces a numbness in the muscles of the arm. This simple apparatus—which can be replaced, as in Tunis, by a noose made in a silk handkerchief—is a somewhat brutal one, but it has the advantage of securing the victim absolutely for the time being. For a longer journey, and to avoid the constant personal attention which the cabriolet requires, the *ligote* is brought into action;—this is arranged in a double running noose in which is enclosed one of the prisoner's wrists, the cord then goes round his waist, passes under the flap of his pantaloons, and returns to be knotted on the opposite side. If the captured offender is not likely to give trouble, one arm is left free, but it is then necessary to watch him;—if both wrists are secured, he is helpless, and could be confided to the care of an invalid. So long as he keeps his hands quiet, carrying them in his pockets, for example, his cord is scarcely felt, but the moment he begins to agitate them with violent movements, it cuts into his flesh much like the cabriolet. He cannot rid himself of it, and, as he cannot swing his arms, he cannot run,—at the end of a hundred yards he is sure to come to the ground. It is related that a disciple of the Davenport brothers recently giving an exhibition of his skill in the Salle des Capucines was brought to confusion by a "flic" who happened to be in the audience and who asked permission to *ligoter* the

magician ere he was enclosed in his cabinet. On this occasion, the spirits were quite unable to liberate him.

This method of securing the prisoner has the disadvantage, if maintained for too long a period, of checking the circulation of the blood, and for longer journeys, by railway or steamboat, its employment is now superseded by that of iron-handcuffs, or *menottes*, of which there is a pleasing and instructive variety in use. The principle is always that of a double bracelet secured by a padlock, which permits the victim to move his arms only in a very restricted manner. For a very objectionable client, two anklets of iron, connected by a chain, are also applied. On those occasions on which one agent finds himself with several prisoners on his hands, or when he comes suddenly upon a sought-for malefactor and is quite unprovided with the tools of his trade, a very ingenious method is employed,—he cuts off all the buttons of his prisoner's trousers. The unhappy offender is thus compelled to hold on to the upper portion of this useful garment with both hands, and is quite incapable of either battle or flight, as at the first manifestation they come down about his heels! Thus is the dignity of Justice maintained, and the interests of society preserved, as may be seen in the illustration on page 235.

Equally formidable, from the point of view of a perfect commonwealth, and, perhaps, even more to be commiserated, the immense army of the helpless and sickly poor,—paupers, paralytics, scrofulous, consumptive, idiotic, cancerous,—demands from the State or the municipal administration a machinery as complex and as extensive as the criminals. For a multitude of these unfortunates the words of Victor Hugo are true: "They begin in the hospital, and end in the hospice." "The child comes into the world in a *Maternité*, and, later, if life has not been generous to him, he finishes his days in one of the asylums for the aged, at Bicêtre, at the Salpêtrière, at Debrousse, at Brévannes, at Ivry, after having more than once paid his tribute to sickness in the wards of some hospital! And still more, at intervals, during certain difficult hours, he has been obliged to ask aid of the Bureau de Bienfaisance, so that, during the whole of his life, this unlucky one has been the pensioner of the *Assistance Publique*."



**ARREST OF A DANGEROUS MALEFACTOR BY "AGENTS DE LA SURETÉ" IN THE
QUARTIER BELLEVILLE, CELEBRATED FOR ITS "GUINGUETTES."**

After a drawing by M. Martin.

Very fortunate are those who succeed in obtaining a bed at the hospice in which to end their days; the number of applicants each year exceeds by three or four thousand the number of vacancies. The crippled and incurable paupers, for whom all labor is impossible, are admitted without regard to age; the octogenarians, cancerous, blind, and epileptic, and the sick transferred from the hospitals to the hospices, are always eligible; but the slightest misdemeanor recorded on their civil papers, even though atoned for by a long life of honesty, is fatal to the hopes of the unfortunate aged;—for them there is no asylum but the Dépôt de Mendicité. The most celebrated of these hospices of Paris are the Bicêtre and the Salpêtrière; the former at Gentilly, about a kilomètre from the southern fortifications, and the latter on the Boulevard d'Hôpital. The Bicêtre especially, under the ancient régime, represented everything that was abhorrent in a mediæval hospital, asylum, and jail combined; it was "at once a prison, a dépôt de mendicité, an asylum for the aged, a special hospital, a lunatic asylum, a political Bastille, an establishment for receiving sick children." It owes its

name, it is recorded, to Jean de Pontoise, Bishop of Winchester,—corrupted into Bicêtre!—who built a château here in 1286. The present edifice was constructed largely by order of Richelieu, for invalided soldiers, in 1632; it has been devoted to its present uses as a modern hospital and asylum since 1837.

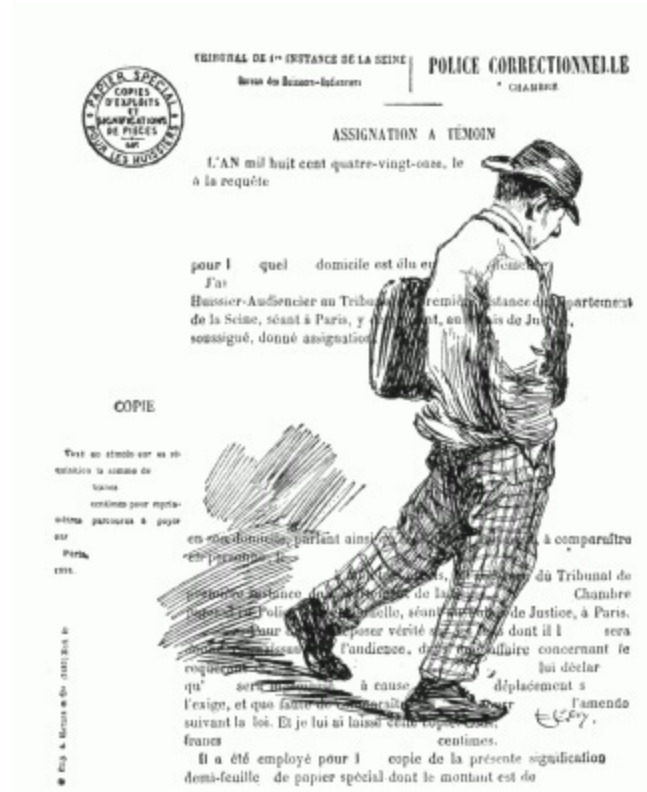
It is organized in two great divisions,—a hospice for old men, and an asylum for the deranged; but the latter includes an infirmary for idiot, epileptic, and feeble-minded children. The insane and the children are received from the Asile Clinique de la Seine, in the Rue Cabanis, and are maintained by the department of the Seine. The buildings of the hospice proper are arranged around four rectangular courts, planted with trees and gardens, in which the aged inmates sun themselves, and when it rains they take refuge under arcades known as the *Allée des Bronchites* and the *Rue de Rivoli de Bicêtre*. For a considerable distance around the establishment these pensioners may be seen in fine weather taking the air; they have this privilege for the whole of the day on Sundays, Tuesdays, and Thursdays, and from eleven o'clock in the morning to four in the afternoon on the remaining days of the week.

All the sounder ones, to the number of some four hundred, are obliged to work at one of the many useful trades practised in the various ateliers, and they gain, for their own use, from forty centimes to a franc a day, money which goes to provide them with various small creature comforts. Those who are not strong enough, or capable enough, to work in the ateliers are obliged to pick vegetables for the culinary department, for which they receive no pay;—from this obligation no one is free excepting the octogenarians, the sickly, and the active workers. The administration also encourages the enterprise of those who wish to work on their own account; it provides them with a locality and facilities, for which they pay a monthly rental of from twenty centimes to one franc twenty centimes a month. Some of these petty industries are very curious and ingenious.

At both the Bicêtre and the Salpêtrière, the quarters devoted to the children, boys and girls, in which almost every variety of childish affliction, bodily and mental, is under treatment, are the most worthy the visitor's attention, though the inspection is not always a pleasant one. The general method employed is that of Séguin and Delasiauve; by its aid, and that of

infinite tact and patience, very many of these helpless unfortunates are provided with faculties and made useful members of their community. At the Bicêtre, this section is visited by foreign physicians as a model institution; the honor of its installation is due entirely to Doctor Bourneville, who was a zealous advocate of its establishment before the Conseil Municipal, and who, as *médecin de service* at the hospital, has succeeded in obtaining admirable results from the methods employed. The number of his little patients is somewhat under four hundred; some of them are sound bodily and others almost helpless; with the exception of the *gâteux* [feeble-minded and incontinent], they are divided, according to their age, or their infirmities, into two schools, the "little" and "great," the first under the direction of women, and the second of men. The children of the first are taught to exercise with the gymnastic apparatus of the system Pichery, and their rudimentary senses are cultivated by giving them small objects to see, to touch, to weigh, etc.; in both schools, but principally in that of the older pupils, systematic instruction is imparted in the workrooms of cabinet-making, shoemaking, sewing, locksmithing, basket-making, the plaiting of straw seats for chairs, brushmaking, and printing. The children are gradually accustomed to this labor; the cabinet-makers and locksmiths are selected from among the most intelligent, the makers of baskets and straw seats from among the most feeble, and the tailors from among those paralyzed on one side. "We have in the sewing-room," said Doctor Bourneville, in one of his reports, "twenty-four afflicted with hemiplegia, that is to say, unfortunates condemned, almost certainly, to pass their entire existence in the hospice; five of them are already good tailors, the greater number of the others will be. Formerly, they knew how to do nothing; now, thanks to the instruction which they receive, whether transferred to the epileptic adults if they are still subject to attacks, or to the divisions of the hospice if they are not, they will be able to work in the common atelier of the institution, and their work will compensate in part, and during very many years, for the cost of their maintenance, and, at the same time, will afford them a small pecuniary resource." The little workmen are rewarded with slight payments, of from ten to forty centimes a week, and special efforts are made, as recommended in the system Séguin, to provide them with amusements and variety,—such as walks abroad, visits to their families, games, etc.

In the similar quarter of the Salpêtrière, similar results are obtained among the little girls afflicted with epilepsy, hysteria, *gâtisme*, and idiocy; they are taught to sew and to make artificial flowers; they are easily interested and amused by the concerts, the dramatic representations which are provided for them, and the ball of the Mi-Carême, in which they dance in company with the demented and insane women, is a great event in their lives.



SKETCH BY M. LOÉVY ON A WITNESS-SUBPŒNA.

The foundations of the older portions of this immense edifice were laid by Louis XIII, who began here the construction of an arsenal; the name, Salpêtrière, is derived from a manufactory of saltpetre (*salpêtre*) either in the buildings or in the neighborhood. By a decree of 1648, the buildings of the Salpêtrière or the Petit-Arsenal, situated in the Faubourg Saint-Victor near the confluence of the Seine and the Bièvre, were assigned as a prison for *filles et femmes débauchées*; and in 1653 this establishment was placed under the direction of the administrators of the *pauvres enfermez*, under the supervision of Mazarin. In 1656, the whole establishment was presented by Louis XIV, then in his minority, to the administration of the Hôpital-

Général; the greater part of the present buildings date from this period. At this time, says a contemporary report, the asylum consisted of "two main buildings and of fifteen grand dormitories of thirty or forty *toises* each, which are now occupied by six hundred and twenty-eight poor women of every quality that human misery could cause to conceive; one hundred and ninety-two children, from two to seven years of age, legitimate and bastards, exposed and abandoned to the care of Providence, and which are brought up by the poor women of the institution and shared among themselves as adopted, with the same affection as if they were their own, and twenty-seven officers and mistresses of the aforesaid dormitories, who are charged to watch over the conduct of the poor.

"Then there is a large new building which has been commenced for the reception of the married beggars...."

The chapel of the establishment was originally constructed of planks from demolished river-boats; in 1669, Louis XIV replaced it by a church more in keeping with the importance of the institution. In 1684, there was constructed a special quarter for "the debauched women," which was called the *maison de force*; the unfortunates confined here were subjected to the most rigorous regulations, their labor was made "as severe as possible," but was ameliorated if they showed signs of repentance; their food was restricted to bread, soup, and water, they were clothed in linsey-woolsey gowns and wore sabots, and they slept upon straw, with a thin coverlet. For lighter faults they were punished by withdrawal of the soup, imprisonment in the cachot, and the wearing of the carcan, or wooden collar; for graver offences they were locked up, for longer or shorter periods, in a dark and filthy dungeon which was called the *Malaise*, and which was much like the *in pace* of the Middle Ages. A regulation of this same year, 1684, applied the same system to the convicted prisoners and to the women imprisoned at the instance of their relatives or their husbands. The *maison de force*, placed in the centre of the Salpêtrière, became the prison de la Force. It included the *commun*, for the most dissolute and degraded women; the *correction*, in which were placed those who gave some hopes of reform; the prison, reserved for those detained by the king's orders, and the *grande Force*, for those condemned by the courts. The women and young girls destined to be sent to the colonies were kept in the Salpêtrière while waiting for their embarkation.



ANNUAL PROCESSION OF JUDGES, MAGISTRATES, ETC., ON THE OCCASION OF THE GRAND MASS, HELD AT THE BEGINNING OF THE JUDICIARY SEASON, IN THE SAINTE-CHAPELLE.

After a drawing by E. Loévy.

In 1780 were erected the infirmaries of the prison; these were destined for the reception of young girls enceinte, furious insane female patients, and the incurables of all kinds. Previous to this, all the inmates who became ill were sent to the Hôtel-Dieu. Eight years later, Tenon wrote that he had seen eighty thousand persons in the Salpêtrière; and La Rochefoucauld's description of the condition of this prison-hospital and its inmates is almost equally incredible: "The most horrible enclosure that could be presented to the eyes of those who have preserved some respect for humanity is that in which nearly two hundred women, young and old, attacked by the itch, scald-head, and scrofula, sleep four or five in a bed promiscuously, communicating to each other all those diseases which contagion can propagate. How many times, in traversing all these haunts of misery, does not one say to himself with horror that it would be almost less cruel to allow the human race to perish than to preserve it with so little care and consideration!" There were then imprisoned here a considerable number of female insane who were considered incurable, and whose condition was even more frightful,—they were "chained in small wooden cells, low and

narrow, veritable dungeons, damp and infectious, receiving light and air only by the door, and they were treated with the utmost brutality. That which rendered their dwellings more deadly, frequently fatal, was that, in winter, during the inundations of the Seine, these cells, situated on a level with the drains, became not only much more insalubrious, but, moreover, a place of refuge for very large rats, which during the night attacked the wretches confined there and bit them on every exposed portion of their bodies."

"At the morning visit, these lunatics would be found with their feet, their hands, and their faces torn by bites, which were very often dangerous, and of which several of them died."

In a report of one of the *administrateurs des hospices*, M. Desportes, this fact is attested; and one of the first cares of the conseil général of the hospices was to order a general renovation and reform, a thorough cleansing out. On the 1st Germinal, year X, the population of the Salpêtrière was reduced to four thousand individuals,—three thousand and forty in good health, six hundred insane, and three hundred sick. In 1815, the large building devoted to the epileptics was completely restored, and three years later the basement cells were all closed; in 1823, the hospital took the name of *Hospice de la Vieillesse-femmes*. In 1834, 1835, and 1836, further improvements and additions were made, and in 1845 the great reservoir of water was constructed, fed by the canal de l'Ourcq.



GARDES MUNICIPAUX: ARREST OF A DESERTER. After a drawing by I. Marchetti.

By royal letters-patent accompanying the edict of April 27, 1656, the union, under the direction of the Hôpital-Général, of the Salpêtrière, the hospital Saint-Jacques, the Hôtel de Bourgogne, and other houses, revenues, and dependencies appertaining to the Confrérie de la Passion, was declared; but the Hôpital Saint-Jacques never came into this union. To the Bicêtre were sent all the poor, men, sick and well; the Pitié was devoted in part to boys and youths, and at the *maison de Scipion* were established the butchers and the bakers for all the inmates of these various establishments. All mendicants, sick and well, came under the jurisdiction of the Hôpital-Général; all were required to labor according to their strength, and fifty-two skilled workmen were designated by their corporations or guilds to direct the workrooms established in the different branches of these institutions. "Prison labor" was not then the bugaboo it has since become to "organized labor." The directors had the right to administer justice among all the inmates of their institutions; the punishments most in vogue were the whipping-post, the carcan, the prison, and the lower dungeons. The missionary priests of Saint-Lazare had charge of the spiritual instruction of the mendicants, under the authority and jurisdiction of the Archbishop of Paris.

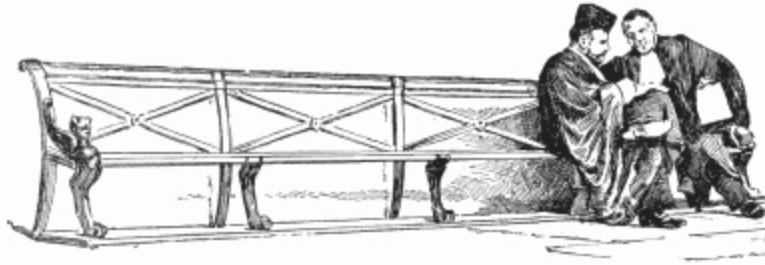
All this being regulated, it was announced in all the pulpits of the different parishes of Paris that the Hôpital-Général would be opened the 7th of May,

1657, for all the poor who wished to enter it of their own free will, while all mendicants were forbidden, by the voice of the public crier, to ask alms anywhere in the city. On the 13th, a mass of the Saint-Esprit was celebrated in the church of the Pitié, and the next day it was announced that five thousand of the poor had been admitted to the hospitals. It was then proposed to expel from Paris all those who had not come to constitute themselves inmates, or to imprison them by force; but this was found to be difficult. A patrol was sent through the city to gather up all these refractory ones, but the populace rose to recapture all those who had been arrested,—lackeys, bourgeois, artisans, soldiers, and especially soldiers of the guards, excited by the women of the town, gave themselves up to thieving and pillaging in the vicinity of the Salpêtrière and the Bicêtre and the other establishments of the Hôpital-Général.

The liberality of Mazarin, of the king, and of some of the wealthier citizens provided the administration of this great institution with its principal resources; the cardinal gave it at one time a hundred thousand livres, and left it sixty thousand francs in his will. It was exempted from numerous taxes and imposts, it was entitled to a third of all the confiscations awarded the king; to those fines imposed in the city, the faubourgs, and the jurisdiction of the *prévôt* of Paris which were not otherwise applied, to the duty on wine entering the city, to five sous on each *minot* [three bushels] of salt sold in the granaries of Paris, to a quarter of the fines from the departments of streams and forests, to a tax on the admissions to theatres, etc. Later, the Hôpital-Général was authorized to open the first *mont-de-piété*, or pawnbroking establishment, in France.

In addition to all their other functions, the Bicêtre and the Salpêtrière were created, by the regulation of April 20, 1684, *maisons de correction* for children of good families, of both sexes. The bureau of the Hôpital-Général ordered the arrest of idle, disobedient, or dissipated children, at the request of fathers or mothers, tutors or guardians, or of the nearest relatives, and even, in case of the death of the parents, on the complaint of the curés of their parishes. "Although originally created principally as a philanthropic institution, the Hôpital-Général was assuming more and more a penitentiary character; the regulation of 1680 had already added to the list of its criminals 'vagabond individuals, whom idleness leads to an infinite number of irregularities,' and had directed its officers to imprison them in a special

prison, either for a determinate period or for life; there, they were to be given only the amount of food actually necessary to sustain life, and were employed at the hardest labor that their strength would permit. It does not appear that this frightful severity produced any result, for, from year to year, new edicts were constantly appearing, redoubling these rigorous measures against the mendicants."

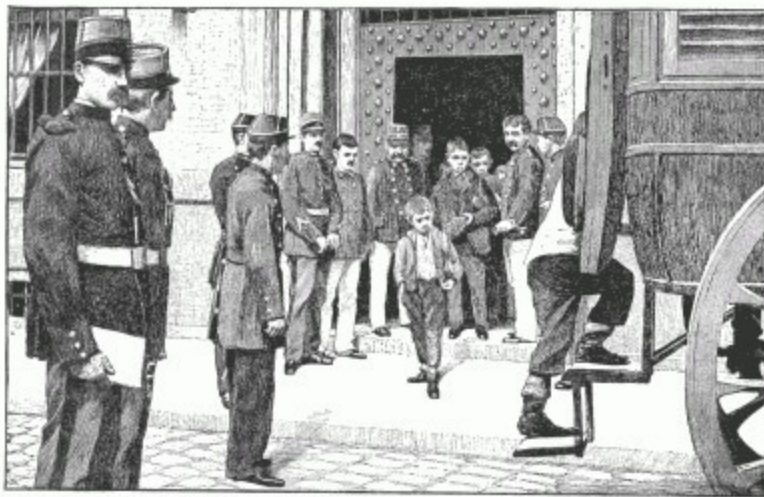


IN THE GALLERIES OF THE PALAIS DE JUSTICE: A CONFERENCE OF "AVOCATS."
After a drawing by E. Brun.

As organized at present, the Bicêtre contains three thousand one hundred and fifty-three beds, and the Salpêtrière three thousand eight hundred and eleven. The latter includes also a clinic for nervous diseases, with consultations for out-door patients, the former clinic of Doctor Charcot, and one service of electro-therapeutics, for both in-door and out-door patients, which attracts many from outside. There is a very curious medical museum; and the institution itself claims to be one of the great centres of scientific research.

An interesting feature of the general administration of the Parisian hospitals is the arrangement made by the *internes*, the graduates in medicine and pharmacy in the in-door service of the institution, for providing themselves with the necessary meals. These young men are paid by the Assistance Publique the modest sums of from six hundred to a thousand francs a year, from the first to their fourth year, out of which they have to provide for themselves until they are *de permanence*. They therefore make provisions for dining in common, and their *salles de garde* are cheerful and very informal gathering-places, gay and hospitable, liberally adorned with inscriptions, engravings, and paintings, permeated with the souvenirs and traditions of the institution to which they are attached. At the Hôtel-Dieu, owing to the size of the hospital and the

number of clinics, the number of *internes* and *externes*, *bénévoles* and *provisoires*, and their friends, is so great that the social character of the *salle de garde* naturally suffers; each one dines hastily, occupies himself only with his invited guest, and, after coffee, if his duties do not claim him, goes off in search of some shady promenade, which the cloisters of the Hôtel-Dieu—unlike the green courts of the Bicêtre and Salpêtrière—do not offer him. Consequently, the gastronomical qualities of the repast assume a considerable importance, and the duties of the *économe* become proportionally heavy.



DEPARTURE FROM THE "DÉPÔT" FOR THE HOUSE OF DETENTION—LA PETITE-ROQUETTE. After a drawing by E. Vavasseur.

This very useful official is a comrade endowed with the necessary domestic and executive qualities, who assumes the onerous task of directing this refectory. He must be a gourmet, of course, this is indispensable; he must have imagination and experience in order to prepare and to suitably vary the *ménus*; he must be economical, orderly, judicial, and discriminating, so as to know which rebellions and protests are to be heeded and which ignored, and to preserve suitable relations with his *cantinière*. The interne on duty alone has a right to have his repasts served by the Assistance Publique; as these are constantly changed, the administration furnishes the equivalent of what it owes in provisions, which are turned into the common stock. It also furnishes the necessary utensils and cooking apparatus. The *cantinière* must have given proof of her worth either as a

cook in the hospital or as a *cordon bleu* in the city. She must also be provided with a husband or some other connection capable of serving at table. At the end of each repast, the *économe* marks on a list of his subscribers a cross opposite the name of each participant, or two or more crosses if he has had guests. At the end of the month, the permanent expenses are added up, wages, etc., which sum is divided into as many parts as there are internes. This is a fixed amount, the proportionate share of which must be paid whether the subscriber has dined only once, or not at all. Then the cost of the number of meals actually consumed is added up and divided by the number of crosses. This cost of each meal varies greatly in the different hospitals, those outside the city walls being able to provide more cheaply. Thus, in 1893, it was one franc seventy-five centimes at the Hôpital de la Charité, and only eighty-five centimes at the Bicêtre. The presence of the monthly fixed charges which have to be met brings about the apparent anomaly that the more meals the young doctor eats in his messroom the less proportionally do they cost him.

As a recompense for his labors in the general service, the *économe* has the privilege of presiding in the centre of the table, of carving, and of sitting as umpire on all the *manifestations*. When any one of the habitués of the common table has passed an examination, assisted his master in some difficult operation, or otherwise had a chance to distinguish himself, it is in order for him to celebrate the great occasion by discreet libations in which his friends may share. As it sometimes happens that these fortunate ones—entirely through timidity and modesty—omit to mention their professional successes at the hospitable board, the custom has arisen of proclaiming their virtues for them and thus causing them to "manifest" themselves. "But, as the examinations are rare, and the flasks of Chartreuse small, some one is called upon to manifest, on the slightest provocation, for the promulgation of an unseasonable political opinion, for a bad pun, for anything you please. The *manifesteur* is made aware of the fate which menaces him by a clinking of bottles and plates, by a hammering with the backs of knives;—however, his condemnation is not definite until the *économe* has pronounced judgment upon it. He is careful to see that it is not always the same culprit who is executed."

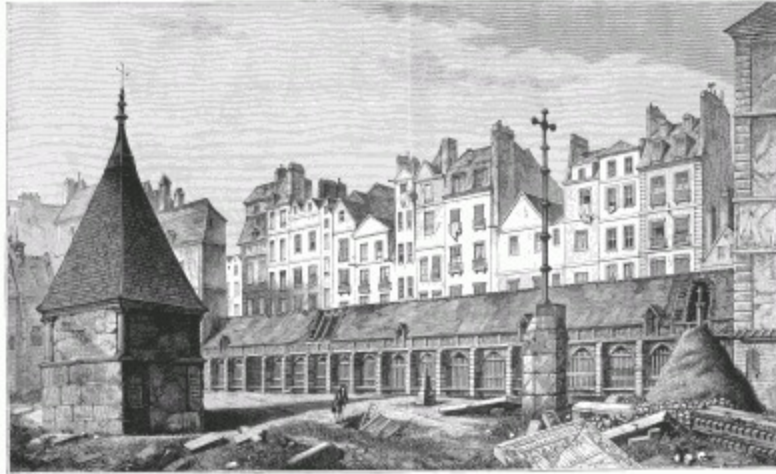


PRESIDENT M. DELAGORGNE, OF THE COURT WHICH SENTENCED M. ZOLA TO IMPRISONMENT AND FINE ON ACCOUNT OF HIS DEFENCE OF DREYFUS.
After a drawing by L. Sabattier.

As a contrast to the Hôtel-Dieu, the Hôpital Cochin, in the Faubourg Saint-Jacques, has one of the smallest salles de garde in Paris. In recompense, its diners have under their feet an immense city, with streets, open places, and many inhabitants, a city cool in summer and warm in winter, and which, for a long period of time, the internes of this hospital had been in the habit of considering as an annex to their dining-room. It is not every one who would take this view of the catacombs; but the practice of medicine and surgery does not lend itself to the cultivation of squeamishness. Every evening, accordingly, exploring parties were organized to visit these subterranean streets; underneath the hospital itself is a large open square, from which radiate, in every direction, lanes and avenues. These the internes at first explored by means of a compass, but, as a result of some judicious meditation before the commemorative slab recording the death by starvation of Philibert Aspaut, concierge of the Val-de-Grâce, lost in the catacombs in 1793, they took the trouble to unearth an old plan in the Musée Carnavalet and draw up a new one, probably now one of the best in existence. In consequence of this prudent conduct, they have never had any losses to deplore; but the frequency of these unprofessional rambles finally aroused the administration to action, and the hospital entrance to the underground city was closed. Since then, the disconsolate diners have had to seek other distractions;—it is said that they are greatly

given to equitation, but as they have no horses in their *salle de garde*, they paint them by squadrons on the walls, as illustrated on page 259.

The catacombs are those portions of the ancient stone-quarries under the city which have been used as municipal ossuaries since 1786. As far back as the Roman epoch, the inhabitants of Lutetia were in the habit of drawing their building material from these subterranean quarries, of clay, gypsum, and limestone. The clay, *argile plastique*, is found in the region of Passy and Grenelle; the zone of gypsum extends from Montmartre to Bercy, and the limestone, rich in fossils, is found under Passy and most of the city on the left bank of the river, from the Jardin des Plantes on the east to the former *barrière de Vaugirard* on the west. This stone was largely used in the construction of ancient and mediæval edifices,—the Palais des Thermes, the portal of Saint-Julien-le-Pauvre, a portion of Notre-Dame, Saint-Germain-des-Prés, and the old Hôtel-Dieu, were all supplied from the quarries of the Faubourgs Saint-Jacques and Saint-Michel. As the capital increased, these excavations were carried farther; those nearer the centre of the city were gradually filled up after being exhausted of their building material. By 1774, they had become the refuge of numerous thieves and vagabonds, and in consequence of the many accidents caused by the sinking of the earth over them, in the quartiers Saint-Jacques, of the Observatoire, and of Montrouge, in 1774, 1777, and 1778, an official inspection was ordered by the government, and a corps of engineers was directed to carry out all the necessary measures. The credit of the idea of using the quarries of Montsouris and of Montrouge as a receptacle for the bones from the ancient cemetery of the Innocents is ascribed to M. Lenoir, lieutenant général de police, as early as 1780; but it was not till November, 1785, that M. Guillaumot, inspecteur général of the quarries, received definite orders to prepare a suitable place for these relics of mortality.



ANCIENT CEMETERY DES INNOCENTS, IN THE RUE AUX FERS, 1780, SHOWING THE CHARNIERS FULL OF SKULLS. After a design by Bernier.

The accumulation of human remains, during eight or nine centuries, in this place had become so great and evil that, in 1786, they were all transferred to the Catacombs, and a market was erected on this spot.

This officer selected the quarries under the plain of Montsouris in the locality known as the Tombe-Issoire—it was said from a famous brigand of the time of Louis VII, who ravaged this neighborhood, because of their extent and their proximity to the city. It was proposed to deposit in this ossuary not only the bones from the Innocents, but from all the other cemeteries, charniers, and sepulchral chapels of Paris. On the 7th of April, 1786, the quarries were formally blessed by the clergy and consecrated to their new use, and on the same day the transportation of the bones from the Innocents was begun. It was carried on constantly, at the close of each day, in funerary cars covered with a pall and followed by surpliced priests, chanting the service for the dead. This operation, interrupted only during the heat of summer, was completed in less than fifteen months; and the catacombs—so called from this date—have since received a vast number of bones from other cemeteries and churches, and also of the victims of the many street revolutions of the capital. During the Revolution and the Terror, a number of bodies were also thrown in here, and down to 1810 no attempt was made to arrange the bones, which were piled up like rubbish. It is estimated that these subterranean crypts now contain the remains of nearly three millions of persons,—the guide-books say six.

In 1810, a new organization and rearrangement of the catacombs were carried out, the falling roofs were propped up, the galleries cleaned out,

ventilated, and dried, and the bones all symmetrically arranged along the walls—the large bones of the arms and legs piled up like cord-wood, presenting their ends, and interrupted by occasional rows, or centre-pieces, or cornices of skulls, and the smaller bones thrown in behind them, between them and the wall, so as to be out of sight. Various attempts at grotesque or fanciful designs, wrought out with craniums and tibias, break the monotony of these grisly corridors. Between 1792 and 1814, the catacombs permitted the suppression of sixteen cemeteries, and they still receive the bones that are turned up in the course of various excavations in the city. Visitors were formerly admitted to explore them every day, but in consequence of the numerous accidents which happened, greater restrictions were imposed, and it is now permitted to make this visit only on the first and third Saturdays of each month, and when furnished with a permit obtained from the Préfet of the Seine. The entrance is on the Place Denfert-Rochereau, and the exit on Rue Dareau; the journey is made under the care of a guide, and the visitor—who is advised to wear sufficiently thick clothing and heavy shoes—is furnished with a candle and a holder for which he pays fifty centimes.

The total number of entrances is sixty-three, many of them outside the city; these galleries are sufficiently well ventilated by numerous openings, and dry. The visitors traverse a certain route, in a general southerly direction, inspecting the various curiosities on the road and the great *Ossuaire*. In the latter are included several of these,—the *Fontaine de la Samaritaine*, so called from an inscription which recalls the words of the Saviour to the Samaritan woman; the *Tombeau de Gilbert*, which is only a column supporting the roof to which was given the form of a sepulchral monument; the *Lampe sépulcrale*, the *Crypte de Saint-Laurent*, similar constructions, and the geological collection formed by M. Héricart de Thury, chief engineer of mines and inspector-general of quarries in 1810, which contains specimens of all the earths and minerals encountered in excavating the quarries.



**UNDERGROUND WARD-ROOM OF THE MEDICAL STUDENTS OF THE HOSPICE
COCHIN, IN THE CATACOMBS.**

After a drawing by Henri Ballery-Desfontaines.

There were formerly to be seen in the Samaritan fountain numerous red fish, which were placed there in 1813 and thrived, but have now disappeared. The quarries are not without animal life,—in the region of the Jardin des Plantes have been found various insects, species of coleoptera, myriapod and thysanoura, and several small crustacea, all more or less blind. One of these latter, a species of small crayfish, inhabits the waters of a little stream which traverses the Ossuaire. The bones of the combatants of 1789 and 1790, and those of the victims of September, 1792, are collected and arranged by themselves in this ossuary. The walls of the galleries are set off with numerous quotations drawn from sacred literature and engraved on pillars in French, Latin, Greek, Italian, and Swedish.

One of the most remarkable of these curiosities, one which was the favorite show-place of the young doctors of the Cochin when they had guests and sufficient candles, is now no longer to be seen. This was a representation of the fort of Port-Mahon, in which he had been imprisoned by the English, cut in the face of the rock in high relief by an old soldier of the king, named Lescure, who had become a stone-cutter after his retirement from the army. This is situated in the quarry of Port-Mahon, under another quarry in the quarter of the Tombe-Issoire, which was discovered by Lescure, who kept his discovery to himself and passed his leisure in executing this record of his past career. When it was completed,

he began to talk, and in order to enable his visitors to reach it easily he undertook the construction of a stairway uniting the two quarries; he had scarcely commenced it, when the earth gave way, and the unfortunate artist was crushed in the débris.

Notwithstanding the care taken to shore them up, the roofs of the abandoned quarries still give way occasionally under the superincumbent weight. In May, 1879, a house in the Passage Gourdon, Boulevard Saint-Jacques, sank through the earth; in the following year, a tree in the Luxembourg garden, near the Médicis fountain, did the same thing, and in July of this year, 1880, the lightning fell in this garden, and at almost the same moment two houses in the Boulevard Saint-Michel began to sink, as well as a large section of the sidewalk. These events naturally produced a great excitement in the quarter, and measures were taken to prevent a possible recurrence of such happenings. Proprietors proposing to build in these suspected districts are now required to conform to certain regulations of the inspector-general of quarries, who examines the subsoil under their properties.



PARTY OF STUDENTS LUNCHING DURING A VISIT TO THE CATACOMBS.
Engraved from a flash-light photograph.

The Cimetière des Saints Innocents,—said to have dated from the time of Philippe-Auguste,—which thus contributed to the first furnishing of the catacombs, was one of the institutions of mediæval Paris. Surrounded by its arcades of *charniers*, it had long been one of the most popular resorts of the city, and the Danse Macabre, earlier than the famous one at Bâle, painted along fifteen of these arcades, with inscriptions "to incite the people to devotion," only incited them to dance themselves. It was believed that the Duc de Berry had caused these paintings to be executed after the assassination of the Duc d'Orléans, the king's brother, in 1407, and the verses written under each personage were attributed to Jean Gerson, who was "inspired by serious contemplation to appeal, by the presentation of death, to his contemporaries of this fifteenth century—so abounding in calamities of every nature." The contemplation of death ceased to appal them,—for the space of six months, from August, 1424, to Lent, 1425, the people were in the habit of assembling in the cemetery on Sundays and fête-days, grotesquely attired to represent various classes of society, and, led by a mask disguised as Death, dancing frantically over the graves and along the *charniers* heaped with skeletons. In this *ronde infernale* might be recognized some obnoxious abbot, or procureur, or bourgeois, or serjent, travestied and caricatured; the people, "seeking for the moment to forget their cares and sorrows, mocked at that death which they no longer scarcely feared, for it was, at this disastrous epoch, very often for them a deliverance." Too close familiarity with the *Camard*—"the flat-nosed," the death's-head—had bred the proverbial lack of respect.

There is not very much information available concerning this Danse Macabre,—it is known that it was the most important mural painting of the cemetery of the Innocents, and it is now attributed to Jehan d'Orléans, *valet de chambre* and painter in ordinary to Charles VI, familiar companion of Jean, Duc de Berry. The first record that is known of it is found in the memoirs of a contemporary, printed under the title of *Journal de Paris sous Charles VI et Charles VII, à l'année 1424*, and which gives this "ITEM: l'an *iiii^e xxiv fut faite la Danse Macabre à Saint-Innocent, et fut commencée environ le moys d'aoust et achevée au carême ensuivant*,"—begun in August, 1424, and finished in the following Lent. In the library of the city of Grenoble is the only known copy of a work illustrating this painting with wood-cuts,—"*cy finit la dāse macabre imprimée par ung nommé Guy*

Marchant demeurant en Champ Gaillard à Paris le vingt-huitiesme iour de septembre mil quatre cēt quatre vings et cinq,"—printed by Guy Marchant, Champ Gaillard, Paris, September 28, 1485. The earliest known wood-engraving is the German one of Saint Christopher, dated 1423,—one year before the execution of the Danse Macabre on the walls of the Innocents. The famous Dance of Death in Bâle was not executed till 1439, and Holbein—to whom it has been attributed—was not born till 1498. The Paris dance is thus much the earlier, and in the reproduction given by Guy Marchant the varying buffoonery of the grotesque figures of death is remarkable,—they laugh, they become astonished, they become enraged,—the "serious contemplation," which they were to inspire, seems far away to our modern eyes, so conventional in their conception only of a conventional horror, silent, menacing, without any shade of humor.

Another image of this mediæval Death has been preserved to our day. This is the small alabaster statue, formerly known as the *Mort Saint-Innocent*; now preserved in the museum of the École des Beaux-Arts. It stood under the fifth arcade, when issuing from the church, in the charnier of "Messieurs les Martins," and had been executed by their order. It was kept enclosed in a box of which the church wardens had the key, and on All-Saints'-day it was exhibited to the people until noon of the next day. Although attributed to Germain Pilon, it is probably anterior to his time, and is now considered to be the work of a sculptor named François Gentil, a native of Troyes. As shown in the illustration, on page 278, it represents a corpse in the process of dissolution, "a much more striking figure than a skeleton;" it is about a mètre in height, stands upright, with a menacing expression, in its right hand it holds the folds of a shroud or winding-sheet, while the left rests upon the top of a species of shield on which is engraved the following quatrain, which was indicated by a dart placed between the fingers of the left hand:

"Il n'est vivant, tant soit plein d'art,
Ni de force pour résistance,
Que je ne frappe de mon dard,
Pour bailler aux vers leur pitance."

Which may be translated "There is none living, however artful or strong to resist, that I do not strike with my dart, to give to the worms their share." Underneath this somewhat trite observation is a sort of monogram, the

upright of which is supported by an M. When the church, the cemetery, and the charniers of the Innocents were all suppressed in 1786, this figure was transferred to the church of Saint-Jacques-la-Boucherie, afterward to the Musée des Monuments français, by M. Alexandre Lenoir, then to the Louvre, and finally to the Beaux-Arts.

"In the Middle Ages, Death played a very important part; in the arts, the games, and the ornamentation, his image was everywhere. The churches, the cemeteries, and the charniers were covered with epitaphs and with sinister phrases relating to death, and paraphrases of the *De profundis* and the *Dies iræ*. At every step, says the author of the *Légende des trépassés*, the thought of the life eternal presented itself, sombre and terrible;—the melancholy chants and lamentations sobbing under the vaults of the churches hung with black, the hurried tolling of the death-bell which seemed to appeal for help and to sound the tocsin of eternity, the slow and solemn processions of the monks and the penitents intoning in the public squares the seven psalms of penitence, the great dance macabre performed in the cemeteries and the city streets, the representation of the Last Judgment by the brothers of the Passion, ... the bell-ringer of the dead making his nocturnal round,—all these formed an ensemble of awe-inspiring scenes well calculated to alienate the living from the frailties of this world."



ENTRANCE TO THE CATACOMBS, PLACE DENFERT-ROCHEREAU.
After a drawing by A. Sauvage.

The use of *charniers* to receive the bones of the dead, disinterred to make room for more recent corpses in the century-old cemeteries, was peculiar to Paris, and began with the Cimetière des Innocents at an unknown date. The word seems to have first been used in France in the eleventh century;—the historian, Raoul Glaber, quoted in MM. Firmin-Didot's important work on Paris, previously cited, tells us that after a terrible famine, "as it was no longer possible to inter each body separately because of their great number, the pious people who feared God constructed in divers localities charniers, in which were deposited more than five hundred corpses." A dictionary of architecture, published in Paris in 1770, defines the word as meaning a "gallery or portico, formerly constructed around the parish cemeteries, in which the catechism is taught, and in the lofts of which are stored the fleshless bones of the dead. They may be found in several parishes of Paris." Their use was not entirely discontinued till the close of the last century. A pious regard for the relics of the departed led to the search for some honorable place in which to store this constantly increasing multitude of skeletons; sheds or penthouses were used, chapels, the lofts of cloisters and churches. In Paris there were six important churches, the cemeteries of

which were surrounded by extensive galleries, lit by rich windows and ornamented with elaborate funerary monuments, and eight other parishes of minor importance; one of the latest built of these, that of Saint-Philippe-du-Roule, prided itself on having its steeple and its charnier in miniature. The two most important were that of the Innocents, the popular cemetery, and that of Saint-Paul, the aristocratic one.

To the accidental and isolated places of storage in the former succeeded a series of symmetrical constructions, built independently of each other, yet rapidly succeeding one another, and apparently all by funds proceeding from pious legacies and donations in the fourteenth century. These different galleries enclosed from twenty to twenty-five arcades each, and were largely open to the air, so that their ghastly contents were plainly visible. Some of them, it is thought, had no roofs, or very imperfect ones. Notwithstanding these charnel-houses and the reeking soil of the cemetery itself, a deposit for refuse and offal of every description, this locality was one of the most thronged in the mediæval city. The present Halles Centrales and the Marché des Innocents, which occupied the same site from 1785, are but the legitimate successors of the busy commerce carried on in this locality from the earliest times. Louis XI authorized the construction, in the Rue de la Ferronnerie, against the walls of the charniers, of little stalls or sheds to be let to poor trades-people on condition that they did not display their merchandise on the public street, very narrow in this quarter,—a restriction which was speedily disregarded. "An ordinance of Henri II, on highways, directed that this street should be widened, May 14, 1554; it was not executed, and, fifty-six years later, to the day, Henri IV was assassinated here, May 14, 1610." It may be remembered that the temporary obstruction of the narrow street, which compelled the royal coach to halt, gave Ravaillac his opportunity. In 1669, the charnier des Lingères was ordered to be demolished, and two years later it was reconstructed to form the northern wall of the Rue de la Ferronnerie.

Even the very imperfect sanitary science of the Middle Ages recognized this cemetery as a centre of infection, and innumerable complaints were addressed to the civic authorities from reign to reign. Toward the middle of the eighteenth century, these protestations became more frequent, and various reports were made upon the subject. In 1737, the Parlement, by a decree dated July 9th, appointed a committee of experts, consisting of MM.

Lemery and Hunault, physicians of the Hôtel-Dieu, and Geoffroy, *médécin chimiste*, all three of them members of the Académie des Sciences, to report "upon the grounds for the complaints which have been made for more than forty years, perhaps for more than a century, upon the infection caused by the Cimetière des Innocents." The report of this commission, dated May 22, 1738, gives some lively details concerning the manners and customs of the times that may be sought for in vain in other and less candid records. "Two causes of these evil odors may be observed,—the fecal matter which the inhabitants of the neighboring houses throw into the cemetery, partly in a trench that has been made along the sides of the houses that are on the Rue de la Ferronnerie, and the infection from the graves during the time that they are open and being refilled. The first cause is the most obvious; the second does not seem to exercise any injurious effect on the health of the neighborhood.... Do the exhalations from the cemetery augment in time of epidemics?... The experience of the past does not seem to furnish any grounds for these slight suspicions.... The soil is not exhausted, but it is less fit to bring about the dissolution of the dead bodies."

Various remedies were proposed in the conclusion of the report: "Prevent the lodgers in the neighboring houses from throwing their water, urine, and filth into the cemetery, and, to this end, increase the number of *lunettes* in the closets and close the windows up with gratings." This particularly concerned the row of houses along the Rue de la Ferronnerie, which formed one of the long sides of the cemetery; they were five stories in height, and had been reconstructed under Louis XIV, eighty years before. A typical detail of the period may be found in the fact that there were "lunettes" only on the first floor; the dwellers in the upper stories found it more convenient to throw their refuse out of the windows than to carry it down-stairs. In fact,—says MM. Firmin-Didot's editor, from whom we gather these details,—had the private individuals any right to complain when, in building the palace of Versailles, only one thing had been forgotten,—the closets? "And yet these were the good old times, and Monsieur *Purgon* [of Molière's *Malade Imaginaire*] was then held in great honor!"

The commission also made several recommendations concerning the cemetery, which to-day would be thought to be very insufficient. It was proposed to level the ground, to divide it into squares, to dig graves in a diagonal direction opposite to the one formerly followed, to oblige the

grave-digger to take out the bones each time, to have only one common grave open all the time—instead of three, to double the size of the graves, to cover the bodies with eight inches or a foot of earth—according to the season, to open the graves by preference only in the winter, to burn the bones or transport them to the new grounds of the Porcherons, acquired by the chapter of Saint-Germain, and to exchange part of the soil taken from the graves for new soil from this locality. Another report, made by the commissioner Laumônier in 1780, advised the establishment of a provisional cemetery under the charge of the Capuchins,—“it were better,” said the commissioner, “to have monks for a guardian rather than a drunkard, like that of the Innocents.”

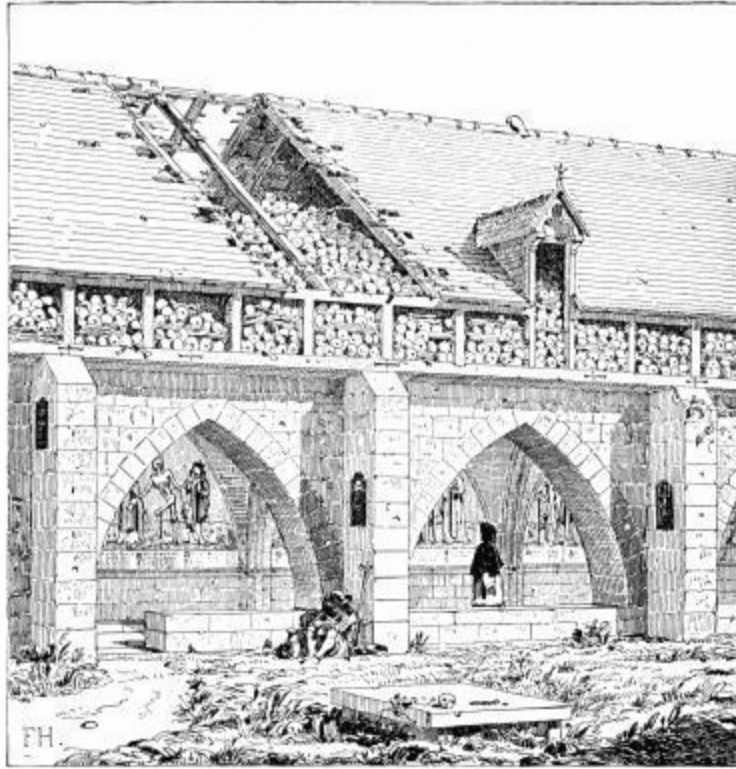
This was Maître Poutrain, who had been *fossoyeur* here for thirty years, and who made application to be transferred to the new cemetery as soon as he heard that his old one was to be suppressed. It was not suppressed, however, till six years later, and in 1785 we find another commission from the Académie des Sciences taking testimony and adopting the recommendations of the grave-digger Poutrain as though he had been a member of their own learned body. They even accepted this statement from him:—there was a square tomb in the cemetery, near the church, then only some three feet high, and which, when he commenced his labors in the grounds, had been so high that he could scarcely reach the top with his hands. That the soil had risen, however, cannot be doubted. There were two thousand or three thousand burials a year; Poutrain said he had officiated at ninety thousand himself during his term of office; and M. Héricart de Thury has estimated the number of inhumations in the course of six centuries as high as one million two hundred thousand. This has even been considered as below the probable number, on a basis of three thousand a year, and not allowing for famines, pestilences, epidemics, and wars,—all in a space estimated at nine thousand six hundred square feet.

Another account says that the cemetery was closed on the 1st of December, 1780, in consequence of the following incident: In July of that year, a shoemaker of the Rue de la Lingerie, having occasion to go down into his cellar to get some leather, was driven back by an insupportable odor. His neighbors having been called in and due investigation made, it was discovered that the foundation wall had yielded to the pressure of the earth of the cemetery, and that the cellar was half full of decomposing

bodies, mostly from a trench that had been opened on that side of the grounds in the latter part of the preceding year, for the reception of some two thousand corpses. The police forbade the gazettes and journals to give any publicity to this incident, and a commission was appointed to investigate. A decree of the Archbishop of Paris, June 10, 1786, definitely closed the cemetery, the earth was screened, the bones placed in sacks and transported in covered carts to the old quarries under the plain of Montsouris in the locality called the Tombe-Issoire, as has been stated. Those which it had been intended to transport to the cemetery of the Faubourg Montmartre were, for want of space, taken to Montrouge.

The vegetable market which had been held in the Rue de la Ferronnerie was transferred to the site of the old cemetery, and for a number of years this Marché des Innocents, with its four or five hundred immense red parasols, under which the vendors sheltered themselves, was one of the sights of Paris. In 1813, galleries of wood were constructed around the enclosure for this purpose. In the centre was placed the old fountain from the corner of the Rues Aux Fers and Saint-Denis, with the five naiads in relief sculptured by Jean Goujon supplemented by three more, more or less in the same style, by Pajou. Since the reconstruction of the Halles Centrales, the Marché des Innocents has been transformed into a public garden, surrounding this monumental fountain.

As early as 1766, the Parlement of Paris had taken up the very important reform of suppressing all interments within the city, "a custom which had its origin only in the growth of the city which, in extending its limits, had gradually taken into its enclosure the cemeteries originally outside its walls." A municipal decree, in nineteen articles, forbade any further burials in the cemeteries then within the city walls, after the first day of January, 1766, or in churches, chapels, or vaults, excepting under certain limitations. This sanitary measure was, however, so vehemently opposed by all the curés of Paris that it was never enforced; the question of compelling all interments to take place in suburban cemeteries was not seriously taken up till 1804, when the grounds of Père-Lachaise were purchased by the city, and, to this day, the only interments that are forbidden within the built-up limits of the capital are the temporary ones, and the common ones for the poor,—the *fosses temporaires*, and the *fosses communes*.



CLOISTERS OF THE CHURCH DES INNOCENTS, SHOWING UPPER PORTIONS CONTAINING HUMAN SKULLS, AND THE FRESCOES OF THE "DANSE MACABRE."

By a grotesque arrangement, the funeral arrangements in Paris were formerly in charge of the town-criers, the *crieurs de corps et de vins*, the *crieurs-jurés*, who held a monopoly of these public announcements, and who bawled through the streets, indifferently, the proclamation of *choses estranges* which were lost, mules, children, horses, and the like, of wine to sell—when they carried a gilded drinking-cup, and of deaths—when they wore a sort of dalmatic sown with black "tears" and death's-heads. Their number was at first fixed at twenty-four, then at thirty, and an edict of January, 1690, raised it to fifty. They had a reprehensible fashion of announcing deaths and ringing their bell through the streets at all hours of the night: "Pray to God for the soul of Messire Suchaone, who has just died! Awake, all ye who sleep, and pray God for the dead!" The Parisian bourgeois, suddenly aroused from slumber by this hoarse appeal under his windows, entered into a state of fright, or of fury, according to his temperament. These *crieurs* and *clocheteurs des trépassés*, moreover, formed a wealthy and influential corporation which held the monopoly of what is to-day the *Pompes funèbres*,—they furnished the serge, the robes,

the mantles, the chaperons or hoods, the hangings, and the torches for the funerals, they even furnished the hired mourners when required, who preceded the cortège to the graves in black garments, "ringing their bells, drawing lugubrious sounds from grotesque instruments, appealing to the people to pray for the defunct, making an infernal uproar, and, in order to honor the dead, nearly killing the living." This corporation was in existence after 1789, but the hospitals and hospices had obtained the right of furnishing hangings for funeral ceremonies, and a decree of the year XII transferred it to churches and consistories.

The arrangements for interments, generally, were in harmony with the condition of the overcrowded and reeking cemeteries,—the bodies were usually transported to their last resting-places on men's backs or by their arms, the poor enjoyed the luxury of a bier only during this journey and were thrown half-naked into the common grave. From this period of the Revolution, these summary processes were forbidden; the bodies were obliged to be carried in wagons or cars, excepting those of children, though sometimes several coffins were placed in the same vehicle. For more seemly processions, the cars were drawn by two horses, walking, accompanied by an *ordonnateur* and three porters in costume, or even by four *aumôniers* on horseback supporting the canopy. In the latter case, the hearse would be furnished with no less than eight horses. For these sumptuous occasions, however, the *jurés-crieurs* would deem it necessary to accompany the funeral cortège with a convoy of saddle-makers, harness-makers, and wheelwrights, in case the heavy funeral car should happen to upset or to become stalled in the mud. The presence of these auxiliaries in their working costumes was concealed as much as possible; they were placed in the hearse, sitting on the coffin itself, and concealed from view by the heavy black curtains of the vehicle,—here they amused themselves by playing at dice on the bier, drinking, if they had had the forethought to bring a bottle along, or sometimes by showing their faces through the openings of the black curtains and making grimaces at the four mounted *aumôniers*, whose dignity forbade them to reply in kind.

A certain contractor, a *Sieur Bobée*, was authorized by the *Préfet* of the *Seine*, *M. Frochot*, in 1801, to furnish to wealthy families the means necessary to give their interments the desired pomp, and he was, in fact, the first organizer of the *Pompes funèbres*. He collected, at his own cost and

risk, all the requisite material, and drew from his wealthy clients a sufficient recompense to reimburse him for the gratuitous burial of the poor, which was required of him. He received, also, the proceeds of the funerary tax, which provided the indigent with a shroud, a coffin, and the necessary transportation to the grave. Under his successors, the business gradually enlarged till, in 1869, the municipal administration judged it expedient to purchase a site and erect buildings that should assure a sufficient establishment for the future. The war with Germany delayed the completion of this undertaking, but the new buildings of the Pompes funèbres, offices, stables, store-rooms, etc., all complete, were finally inaugurated in 1873. They were constructed in the name, and at the cost, of the city of Paris, and the funerary establishment pays a rent of two hundred thousand francs. These buildings are situated on the site of the former abattoirs de la Villette, on the Rues Curial and d'Aubervilliers. In the manufactory is kept a large stock of coffins and caskets of all kinds, and a reserve stock is always on hand in case of epidemics; in the carriage-houses are nearly three hundred and fifty vehicles of all kinds, and in the stables, three hundred and sixty-four horses,—two hundred and ninety-one black ones.

The service of the Pompes funèbres is placed under the surveillance of the Préfet of the Seine. The administration centrale may be addressed directly by telephone, to 104 Rue d'Aubervilliers, when required, or application may be made to the bureau of the Pompes funèbres in each Mairie, or to their agents in each arrondissement. There is a conseil d'administration of thirteen members, elected, ten by the city churches, one by the consistory of the Reformed Church, one by the consistory of the Confession d'Augsbourg, and one by the Israelite consistory. This conseil represents the *fabriques*—that is to say, the revenues and property—of the parochial churches, divided into ten circonscriptions, and the consistories of the non-Catholic churches of the city. There is also a vicar-general, delegated by the Archbishop of Paris, who is a member of the conseil, and ranks next to the president.



DEATH.

Alabaster statuette, one mètre high, kept in the charniers of Saint-Innocent; uncovered on All-Saints'-day.

The expense of a funeral, of course, varies very greatly. An ordinary coffin costs from eight francs to forty-four. The municipal tax, which brings in to the city treasury annually some eight hundred and sixty thousand francs, is included in the cost of each class of funeral, and varies from forty francs for the first and second classes to six francs for the ninth. For the *convois catholiques*, the expense is from eight thousand to ten thousand francs for the first class; for the *convois protestants*, four thousand two hundred to seven thousand five hundred for first class; for the *enterrements israelites*, two thousand nine hundred at the most. The ninth, or cheapest, class of funeral, of all these may be had for eighteen francs seventy-five centimes for the Catholic, nine francs for the Protestant, and three francs for the Israelite. These figures vary according to the parish, the size of the church or temple, etc., but they generally include the decoration of the residence, the draping of the place of worship in which the service is held, the payment for this religious service, etc., but not the cost of the coffin, of the land in the cemetery, of the tickets of invitation or notices of death, and

other details. In the Jewish service, there is an item of a thousand francs for the choir, either at the dwelling or in the cemetery. For the *convois civils*, where there is no official religious service, the price varies from eighteen hundred and fifty to twenty-four hundred francs for the first class to nine francs for the ninth. For incinerations, the cost is about the same, adding the tax to be paid the city,—three hundred francs for the first class, and fifty for the sixth, seventh, and eighth. A permit for a gratuitous interment may be obtained by presenting at the Mairie a certificate of indigence obtained from the Commissaire de Police upon application sustained by two witnesses in good standing.

As in every other important event of his life, the Parisian is obliged in this—the last—to occupy himself with the official *procès-verbaux* of his *état civil*. At his decease, an *acte* must be drawn up, upon the declaration of two witnesses, if possible the nearest relatives, or neighbors, giving his name, Christian name, profession, age, place of birth, domicile, those of his father and mother, and those of the attestors, with an indication of their relationship if they are relations; stating whether the deceased was married or widowed, and, in either case, the name and Christian name of his spouse. No operation upon the corpse, such as autopsy, embalming, or taking a cast, can be performed before the expiration of twenty-four hours after death, and then only upon the authorization of the Préfecture de Police, and in the presence of the Commissaire de Police of the quarter. This authorization is granted only upon the statements of two doctors,—one of the official Médecins de l'État Civil, and another physician, sworn and delegated for the occasion. The family must preserve and produce upon the demand of the Médecin de l'État Civil all the prescriptions of the doctor who had attended the deceased in his last illness; they must also give the name and address of the doctor and of the druggist who prepared the prescriptions. It is also forbidden to clothe the body or place it in the coffin, or to cover the face, before the expiration of twenty-four hours,—a light veil of very thin gauze alone is permitted. It cannot be denied that these are all very intelligent precautions.

In these funeral processions, the public authority is represented by the *ordonnateur des Pompes funèbres*; "it is he who, from the residence of the defunct to his last resting-place, never quits him, watching over him like a faithful friend." His official costume has been modified of late years,—he

now wears a red and blue scarf, a cockade with the two colors, and his insignia is embroidered on the collar of his coat. The Napoleonic cocked hats, black garments, and high boots of the drivers of the hearses are familiar sights in the streets of the capital, especially in the neighborhood of the cemeteries, driving slowly at the head of their mournful processions, or, in their moments of relaxation, descended from the heights of their sable chariots and drinking familiarly at the zinc bar of a workman's wine-shop, side by side, it may be, with the white blouses of masons and plasterers. The four hundred *porteurs* of the *Pompes funèbres* still retain their ancient familiar designation of *croque-morts*, concerning the derivation of which there is much uncertainty. A number of the *Revue des traditions populaires* suggests that it may come from the mediæval custom of biting the little finger of the deceased at the moment of placing in the coffin, in order to obtain a final assurance of death. At the masked balls of the Opéra, these personages are represented by the traditional Père Bazouge and the cheerful Clodoche,—shedding their decorum with their official costumes.

By the decree of 1804, which forbade all inhumations within the walls of the capital, it was provided that there should be established cemeteries outside the city limits, and at a distance of not less than thirty-five or forty mètres. Four such enclosures were ordained: the Cimetière du Nord, or of Montmartre, on the north; that de l'Est, or of Père-Lachaise, on the east; that du Sud, or of Vaugirard, on the south, and that of Sainte-Catherine. The first of these was already in existence, having been established in 1798 by the municipal administration, to replace that in the plain of Clichy, comparatively new, which had replaced the old one of Saint-Roch. The Montmartre cemetery occupied the site of an abandoned and very extensive plaster quarry, whence it took its popular name of Cimetière des Grandes-Carrières, and it was also known, more poetically, as the *Champ de repos*, while the Montparnasse, later, was given that of *Champ d'asile*. When the city limits were enlarged, in 1859, Montmartre, in common with other communes of the suburbs, was brought within the enclosure, and, after the creation of the new cemetery of Saint-Ouen, called by the people Cayenne, the only interments in Montmartre were those made in the vaults of certain private families.

Père-Lachaise, the most important and most picturesque of these enclosures in Paris, takes its name from the confessor of Louis XIV, to

whom it was presented by his royal penitent. The Cimetière de l'Est was inaugurated, in 1804, in a locality which originally bore the name of Champ l'Évêque, because it had been the property of the Bishop of Paris. The Jesuits purchased it, in 1626, under cover of a private individual, and established there a country house, surrounded by trees and shrubbery, the site of which is indicated to-day very nearly by the central rond-point of the cemetery. Popular report ascribed to this pleasure-house a character in keeping with the hypocrisy and luxury of the order as painted by its enemies; and young Louis XIV visited it, in consequence of which it became known as Mont-Louis. Afterward, when in the possession of the royal confessor,—who said, himself, of his office: "*Bon Dieu! quel rôle!*"—it was still further enlarged, and the grounds handsomely laid out around his little villa, two stories in height, overlooking Paris. At his death, it came again into the possession of the fathers of his order, and at their suppression, in 1763, it was sold to pay their creditors. The Préfet of the Seine purchased it for its conversion into a municipal cemetery in 1804.

That of Vaugirard was situated near the ancient barrière and at the entrance of what was then the village of Vaugirard; it had in nowise the importance of the two just mentioned, and was much more the burial-ground of the poor than of the rich. As early as 1810, its insufficiency was recognized, and in 1824 it was closed, and replaced by that of Montparnasse. The Cimetière Sainte-Catherine was in the quarter Saint-Marcel, by the side of the old cemetery of Clamart, which was full of bodies and closed in 1793; Sainte-Catherine was also replaced by Montparnasse in 1824. The latter, the necropolis of the left bank of the Seine, is the least interesting and least visited of any of the Parisian cemeteries. The ground is quite level, and the enclosure so crowded with tombs that there is very little space left for verdure or shade. The number of distinguished dead who rest here is also less than in either Père-Lachaise or Montmartre. Previous to 1824, it received only the human débris from the hospitals and the bodies of criminals from the neighboring scaffold. Vaugirard and Sainte-Catherine have since been completely removed, and the sites devoted to other uses; and the number of ancient urban cemeteries that have thus disappeared is very considerable. That of the old church of Saint-Roch is now traversed by the narrow streets which enclose the church; that of Saint-Gervais is buried under the caserne Lobau, back of the

Hôtel de Ville; Sainte-Marguerite-Saint-Antoine, in which were placed the remains of the young dauphin, is now a waste land; Saint-Joseph, and the little Cimetière de la Chapelle Marcadet which was used during the siege of 1871, are now occupied by commercial or secular establishments. Among those the sites of which are still recognizable are Saint-Vincent and Saint-Pierre at Montmartre; Saint-Médard—so famous in the last century as the scene of the extravagances of the convulsionnaires and the alleged miracles on the tomb of the Jansenist deacon, Paris—has been only partially destroyed by the opening of the Avenue des Gobelins; and on the old Cimetière de la Madeleine now rises the Chapelle Expiatoire to the memory of Louis XVI and Marie-Antoinette.



A CORNER IN THE CEMETERY OF PÈRE-LACHAISE: TOMBS OF COUTURE, THE PAINTER; LEDRU-ROLLIN, THE STATESMAN; COUSIN, THE PHILOSOPHER; AND AUBER, THE COMPOSER.

Drawn from a photograph.

Each of the great cemeteries, both within and without the walls, is under the charge of a *conservateur*, having under him a receiver or steward, a surveyor, clerks, guardians, and grave-diggers. The guards, who number in all a hundred and thirty-five, including five brigadiers and fifteen sous-brigadiers, have all been sworn into office and are empowered to draw up *procès-verbaux*. The landscape-gardening of the cemeteries is all under the direction of the *service des promenades*, and the municipal administration

of the city of Paris takes a laudable pride in maintaining the picturesqueness and attractiveness of these places of sepulchre. Many of the tombs, or funerary monuments, are preserved through legacies or donations, and the city assumes the care of others possessing an historical or patriotic interest, as those of Abélard and Héloïse, of Molière, of La Fontaine, of Casimir Périer, and the "four sergeants of La Rochelle." Consequently, the cemeteries of the capital are, distinctly, one of the features of the city,—Père-Lachaise, particularly, is a most curious, picturesque, original, and characteristic "sight," and, alike on the day of Toussaints when they are visited by the populace almost *en masse*, and when they receive the solitary funeral procession winding slowly through the streets, the carriages followed by a long train of mourners on foot, they may be said to be truly representative institutions of this people with whom we are for the moment concerned.

"The people of Paris," says M. Henry Havard, "are, assuredly, the most extraordinary people that there are in the world. [This, of course; no reference to the capital, even the slightest, is permissible without this statement.] Not only do they possess a prodigious quantity of remarkable qualities, and a number almost equally great of not less remarkable defects, but that which distinguishes them from the rest of humanity is, that their virtues and their vices, their good qualities and their defects, are in a measure contradictory.

"To cite only one example,—no population is more profoundly irreverent and more completely sceptical. The glories the most assured, the reputations the most solidly established, scarcely find toleration in their eyes. A scoffer by nature, a jeerer by temperament, a humbugger by education, the Parisian perpetually forces himself to accept nothing seriously, and to respect neither sex nor age nor glory. But, by one of those contradictions with which this character swarms, the moment that death has accomplished his sinister work, everything becomes to him sacred.

"When a funeral procession traverses a street or passes along a boulevard, all noise ceases at the moment, and it might be said that all life is momentarily suspended. Poor or rich, young or old, this dead man who, two days earlier, would have found no consideration from this jesting crowd, is respectfully saluted by the multitude. The vehicles which, during his

lifetime, would have taken the chances of running over him sooner than slackening their speed, now pull up suddenly to allow him to pass. The sentry on duty salutes; the women cross themselves; the men uncover!

"In the enclosure specially reserved for death, the spectacle is not less edifying. There are but very few cemeteries in Europe as well maintained as the Parisian cemeteries. In no other city are they more frequently visited, and more respectfully. The multitude that there throngs scarcely dares to speak, and converses only in subdued tones. Even those who have in them neither relatives nor friends visit them at least once a year. The first and the second of November are generally selected for this pious pilgrimage. These are the fête-days of our cemeteries.

"In order that they may appear more attractive on these days, the toilette of the funeral monuments and the tombs is commenced long in advance. The bouquets are renewed. The wreaths that are too much faded are replaced by others. All the flowers freshly planted are carefully watered; each one employs his best taste in setting forth the resting-place of the dear absent ones. Regret makes itself friendly and gracious; grief itself takes on a little coquetry. Nothing is more delicate and more moving than this annual pilgrimage of the people of Paris to these places of eternal repose."

Many of the details gathered by M. Havard in the course of his careful inspection of these respect-compelling enclosures are worthy of preservation. In Père-Lachaise, for example, it is well not to be too credulous. "You may there discover, in fact, very many tombs decorated with names familiar in various ways, and even very great names, which certainly have never contained the ashes of those whose memory they honor. Neither Lavoisier, nor Lesurques, 'victim of the most deplorable of judicial errors,' as his epitaph says, nor General Malet, whose body was interred in the cemetery of executed criminals, would be able to find themselves under the monuments which a posthumous piety has reared to them. The same can be said of the tombs of Racine, of Molière, and of La Fontaine, which were the first to embellish these groves, and of which the style proclaims clearly enough that they do not date further back than the First Empire. It is the same for Héloïse and Abélard, and for their graceful little structure to which the lovers and the newly married do not fail to pay pious visits. This historic tomb, constructed of composite materials, is also

of very recent erection. The two statues ornamented, in the last century, the monument which stood in the Abbaye de Paraclet; from there they were transported at first to the Musée des Petits-Augustins, and, in 1817, to the place where we now see them. The graceful canopy which covers them is formed of materials borrowed from the ancient Abbaye de Nogent-sur-Marne. As to the ashes of these perfect lovers, they have been scattered to the winds for a great many centuries."

Many of the old cemeteries in the city, he says, owe their temporary celebrity to the accidental interment within their enclosures of some particularly illustrious deceased. "That which surrounded Saint-Roch received the remains of Corneille. It is known that Molière was secretly buried in the Cimetière de Saint-Joseph, which received also the body of La Fontaine. As to the little cemetery of Saint-Gervais, we should be ignorant of its existence if the authors of the seventeenth century had not taken pains to reveal to us that Marion Delorme was there laid to rest. Still more, the fact would have remained unknown had it not been for the whim of her family which, after having crowned her with a wreath of orange flowers, had the assurance to accord her the funeral of a virgin. The curé of Saint-Gervais, who had received her confession, opposed this masquerading, and he did well. Let us not laugh too much at these curious pretensions. At Père-Lachaise, in the chapel in which Mlle. Mars reposes, there can be seen very clearly, through the gratings of the door, a wreath of white roses and orange flowers."



TOMB OF ABÉLARD AND HÉLOÏSE, CEMETERY OF PÈRE-LACHAISE.

For the poor, the three great Parisian cemeteries have long been closed,—space within their walls is reserved by the law for the fortunate owners of the ninety thousand *concessions perpétuelles*. The indigent and the working population are relegated to the two enormous enclosures situated, the one at Ivry and the other at Saint-Ouen, which have received from the people the picturesque appellations of *Champ de Navets* and *Cayenne*. *Champ de Navets* means a turnip-field, and *Cayenne* is a penal colony. Even in this exile, the dead are allowed to rest undisturbed only five years; at the end of that period, the earth is reclaimed, turned over again, and prepared to receive new tenants for the same length of time. The surroundings of these two suburban cemeteries are, moreover, of the most barren and forlorn character; the plain around Saint-Ouen is occupied by various factories and manufacturing establishments which fill all the air with evil odors. The *Fosse commune* is simply a long trench in which the cheap coffins are placed all together, and the earth heaped over them indiscriminately. But even the tombs of malefactors who have perished under the axe of Justice

are not forgotten in these dreary receptacles; although it is illegal to designate with a name the grave of one of these, "there are still to be found pious hands to mark these accursed tombs with a cross and to surround them with a modest railing. In the Champ de Navets there may be seen the grave of the assassin Géomey ornamented with wreaths bearing his initials, and the tomb of the infamous Vodable surmounted by a cross with this word: AMI.—friend." In Père-Lachaise, that of the socialist, Blanqui, is still the object of annual pilgrimages and "demonstrations," which frequently culminate, as on the very last anniversary, in a free fight among the pilgrims, and the intervention of the police; and the "wall of the Federals," against which the Communists were stood up to be shot, is almost covered with memorial wreaths. "How many years longer," says M. Havard, "will there still resound these instigations to hatred and these appeals to vengeance?"

The only private cemetery in Paris is that of Picpus, the entrance to which is in the street of the same name. When the guillotine was transported from the Place de la Revolution to the former barrière de Trône, it became necessary to find in the quarter a place of burial for the victims, and the Commune of Paris selected, on the 26th Prairial, year II, a "piece of ground that had belonged to the so-called canons of Picpus." Here these victims of "the law" were interred, to the number of thirteen hundred and six, all executed between the 14th of June and the 27th of July, 1794; and this *cimetière des guillotiné*s has been preserved as the property of the relatives and friends. It includes the tombs of a number of the most ancient and illustrious families of France, that of General Lafayette, of General de Beauharnais, of the poet André Chénier, of Talleyrand, Montalembert, etc. It was acquired, under the First Empire, by the Prince de Salm-Kirbourg, one of whose ancestors had been buried in the Revolutionary fosse commune; and is open to visitors on payment of a fee of fifty centimes. The victims of the guillotine of the Place de la Concorde were buried in two provisional cemeteries which have disappeared,—one which had served as a kitchen-garden for the Bénédictines in the Rue de la Ville-l'Évêque, and the other near the Folie-Chartres, in the neighborhood of the present Parc Monceau and the Boulevard de Courcelles.

That lugubrious institution, the Morgue, dates from 1714, at least; it was then a low room in the basement of the Châtelet, near the vestibule of the

principal stairway, and in the court adjoining was a well, the water of which served to wash the corpses. It was under the care of the *filles hospitalières de Sainte-Catherine*, and was, as may be supposed, a noxious cell in which the bodies, thrown one upon the other, waited to be inspected by the light of lanterns by those searching for missing relatives or friends. In March, 1734, it was thronged with visitors attracted by the unusual presence of some fifteen or sixteen infantile corpses, none of them more than three years of age; it appeared that a celebrated anatomist, Joseph Hunault, had collected these subjects for his investigations, in the house of a surgeon, the affrighted neighbors had complained to the police, who had caused them all to be transported to the Morgue. A police ordinance of August 17, 1804, directed that this establishment be suppressed, and that all bodies drawn from the river or found elsewhere should be taken to the new Morgue on the Marché-Neuf, in the quartier de la Cité. The object of the municipal administration was to secure the recognition of the greatest number possible of these remnants of humanity, and for this purpose they were exposed, for three days at least, behind a glass screen protected by a rail, on inclined tables of black marble, the heads reposing upon a raised piece covered with leather. There was provided a room for the autopsies, containing two dissecting-tables; another for the washing of the garments found on the dead, and a third for those bodies recognized or in which decomposition had proceeded too far to permit of their public exposure. Two attendants were always on duty to receive any bodies that might be brought, at any hour of the day or night.



ENTRANCE TO THE CEMETERY OF PÈRE-LACHAISE.

In 1809, it was proposed to transport the Morgue to a site between the Pont Saint-Michel and the Petit-Pont, but in 1830 it was enlarged and improved where it stood; in 1864, it was transferred to its present locality, behind Notre-Dame, between the Pont Saint-Louis and the Pont de l'Archevêché. The bodies were still exposed nude, with the exception of a leathern apron across the loins, on twelve black marble slabs, to the public gaze, with their garments hanging over them; to preserve them as long as possible, they were exposed to a constant sprinkling with fresh water. When recognized, or when they could no longer delay, they were carried into the adjoining *salle du dépôt*; adjoining was the *salle d'autopsie*, and, on the ground-floor, the *salle des conférences*, in which the accused were brought before and after being confronted with the bodies of their supposed victims. Some of these arrangements are still preserved in the present institution; but, since the establishment of the *appareils frigorifiques*, or freezing machines, in 1881, the length of time during which a corpse may be preserved has been greatly extended, from one month to years, according to various claims. In the *salle d'exposition* the temperature is maintained at about zero, Centigrade, freezing point, Fahrenheit; and in the cells in which the bodies are first placed, at fifteen degrees below zero, Centigrade. The bodies of criminals are not submitted to the public inspection. The garments are returned to the families, when the body has been recognized or burned; their sale has been forbidden since 1883.

All persons are formally invited to furnish any indications they possess that may lead to the recognition of the bodies, and are informed that they will be put to no expense. A photographic plant was installed here in 1877, and all bodies are photographed,—those which are not recognized before burial have these, their last portraits, affixed at the entrance. The number of corpses received annually is about nine hundred, including new-born babies, fœtuses, and the remnants from the dissecting-tables, and this number increases year by year. In it are included also those bodies which it is desired to submit to a medico-legal examination. About six-sevenths of the total number exposed are those of men, and about one-seventh are never recognized. The sanitary surveillance is under the charge of three medical inspectors; not only are the autopsies here frequent, but there are also held many conferences in legal medicine, and there is a laboratory of toxicology. All departments of the establishment are cramped for want of space, and it

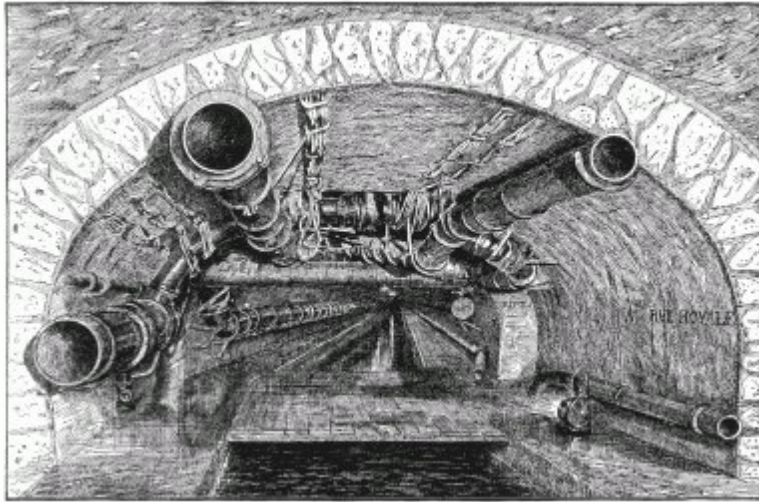
is proposed to establish a distinct medico-legal institution on a new site, at the angle of the Quai aux Fleurs and the Rue du Cloître-Notre-Dame.

On the crest of the hill in Père-Lachaise, in a fine open space from which the tombs recede on all sides,—as if appalled at the presence of this horrible new-comer,—rises the tall Crematory furnace, with its quasi-classic columbarium behind it. Great improvements have been made in the material details of this method of disposing of the dead since its first revival in modern times, and even since the erection of this edifice,—but the overturning of immemorial prejudices proceeds but slowly. France claims the credit of introducing this excellent sanitary measure, and as far back as the end of the last century, in the year V of the Republic, a law was proposed by a commission of the Cinq-Cents granting to each family the privilege of choosing between inhumation and cremation for their dead. Later, "the administration centrale of the department of the Seine adopted a regulation prescribing the cremation of all those bodies destined for the fosse commune whose owners had not expressed, during their lifetime, a contrary desire. Under the Consulate, Madame Geneste, wife of the citizen Pierre-Francois Lachèze, chargé d'affaires of the French Republic at Venice, obtained from the préfet Frochot an authorization to cause the body of her deceased son to be burned. The préfet invoked, in support of his decision, this consideration, 'that the last cares to be rendered to mortal remains constitute a religious act of which public authority cannot prescribe the methods without violating the principle of liberty of opinions.' Madame Dupuis-Geneste, however, did not make use of this authorization."

In 1882, M. Casimir-Perier, then minister, proposed a law granting to every person who had attained his majority and to every minor who had been relieved from guardianship, the power to regulate all the details of his own funeral at his own discretion. The *Société pour la Propagation de l'Incinération*, which now includes six hundred members, had been founded two years before by M. Kœchlin-Schwartz and M. Georges-Salomon, and this society caused to be erected, in Père-Lachaise, in 1887, on the plans of the architect Formigé, a building destined for the cremation of dead bodies,—this process, it was declared by the *Conseil d'Hygiène et de Salubrité de la Seine*, on the proposal of Doctor Bourneville, could be applied to the disposal of subjects from the dissecting-tables without any menace to the public health, provided that it was effected in suitable furnaces and without

emitting any odor. M. Casimir-Perier's proposal was finally recognized by the Chamber and the Senate in 1886 and 1887, and this legal sanction decided the question practically in favor of the Cremation Society and of the Conseil Municipal of Paris, which had long been in favor of the optional incineration of the dead.

The first apparatus, a reverberatory furnace burning wood, was found to be entirely insufficient, and was replaced by a chamber of combustion filled with incandescent gas, much more elaborate in construction. A special apparatus, called a *Gazogène*, evolves carbon protoxide, which, set on fire by peculiar burners, produces a temperature of eight hundred degrees Centigrade in the chamber of combustion. The entire arrangement at Père-Lachaise is some nine mètres in height by five and a half in width, the actual furnace is below the chamber of combustion and not directly under it, this space being occupied by long, perpendicular flues through which the air—fed through a large horizontal shaft passing under the furnace—rises. In the chamber of combustion, into which the body is introduced in its coffin, the destruction was formerly effected by the aid of the actual flames, and the result was not completely satisfactory,—the skull was left almost intact and some of the bones, with a few fatty acids and salts. The attendants gathered these remnants up with pinchers, brushed the black and greasy residue from the bones, and placed the whole in a little wooden casket, about the size of a child's coffin, for final deposit in the columbarium. Now, by the improved process, the total residue that issues from the furnace is a quantity of white ashes, varying from nine hundred to twelve hundred grammes in weight, although the flame is no longer permitted to reach the body and the combustion is effected by refraction alone. A curious detail in both operations is that the liver is the last of the organs to be destroyed, and remains an incandescent mass when all the rest of the body has disappeared.



**UNDERGROUND PARIS: ARCH OF THE GREAT SEWER, UNDER THE RUE ROYALE,
CORNER OF THE RUE DE RIVOLI.
After a drawing by A. Montader.**

In the funerary chamber, in which the mourners assemble, in the second story, the coffin is received by the attendants, placed on a metallic chariot, running on rails, the long shafts or extensions of which carry it, with its contents, directly into the fiery heart of the furnace and there deposit it. The time required for the complete combustion is, at present, twenty-five minutes for a child, and fifty-five for an adult. An urn of a peculiar model is now provided for the reception of the ashes, and this can be either buried in the family vault or placed in one of the cells of the municipal columbarium, erected in 1895. Although this latter receptacle does not, as yet, meet with much favor, and has been irreverently compared by one of the apostles of cremation to a shed, it might be made a very neat and unobjectionable mausoleum. At present, it is a species of lofty white marble arcade, or porch, the wall side of which is filled up with cells about two feet square, the panels closing which bear the name and dates of the occupant. This panelled white marble wall is, however, defaced by the black wreaths, beadwork, and artificial flowers which the misguided mourners hang over the remains of their departed. In this municipal columbarium, families have a right to deposit their ashes for the space of five years, at the end of which period the urns are taken out and emptied in the fosse commune. A concession perpétuelle for the urns in a cemetery may, however, be purchased for the sum of three hundred and sixty-nine francs and eighty centimes. The columbarium provides for three hundred urns; less than half

these receptacles are as yet filled, but the number of cremations increases slowly year by year. There is also a similar establishment in the cemetery at Clichy, and others are projected for other sites.

Statistics show that the annual mortality in Paris is about 22.6 per thousand inhabitants, which the Parisian publications erroneously claim is below the average for large cities. In London, for example, in the week ending January 14, 1899, it was 18 per thousand, and averaged 18.5 in thirty-two provincial towns. In some of them, as Brighton, Derby, Leicester, and Hull, it ranged from 11 to 12.9; and the highest rates were from 22.4 in Manchester to 24 in Sunderland. It is a constant source of wonder to the newly-arrived in Paris, however,—especially if he be inoculated with modern ideas concerning sanitary sewage in dwelling-houses,—that the city escapes an annual epidemic of typhoid fever. So very primitive are the methods of cesspools, and the official emptying of them, in very many quarters of the city, that it is an article of faith with the citizens to close all their windows tightly at night,—an article of faith that is adopted by many American and English residents with the usual wholesome Anglo-Saxon ideas concerning ventilation of sleeping-rooms. It may be stated, however, as the result of much experience, that—even for those who are able thus to sleep in tightly-closed rooms—the open windows at night are *not* deadly. The prejudice against night air, which is by no means confined to France, here takes on an acute form,—it is even asserted stoutly, and this, too, is believed sometimes by the otherwise intelligent foreigner, that the entrance of fresh air into the sleeping-room at night produces affections of the eyes. The quarters of Paris in which the mortality is the lowest—those which show quite white on the graded annual mortality plan of the city—are the arrondissements of the Élysée and the Opéra, 11.1 and 14.5 respectively; and those which are printed quite black on the same plan are those of the Observatoire and the Gobelins, 32.8 and 31.4 respectively.

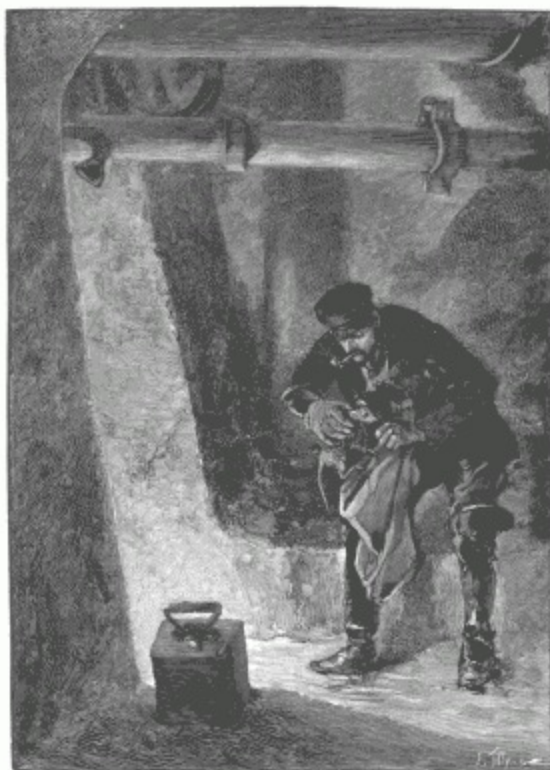
Nevertheless, the sewerage system of Paris is conceived and carried out in its general plan with an appreciation of the requirements of modern sanitary science and an intelligent employment of the science of the engineer that are quite admirable. The methods of disposing of the city's refuse in use by many American municipalities, as those of New York and Chicago, are, by comparison, but dull and stupid perpetuation of antiquated traditions. The animated controversy over the great question of *Tout à l'égout*, "all refuse to

the sewer," was not finally settled till 1894, and this method has as yet not been applied to all the quarters of the city, as stated above, but is being gradually extended, and nothing but time seems to be wanting to bring about in this capital a complete solution of one of the most difficult problems of material civilization. The object of the Parisian method is to avoid fouling the Seine in any way, and to utilize all the city's refuse, instead of throwing it away or allowing it to accumulate, a menace to health and a hideous nuisance. By an excellent system of underground conduits, well lighted and ventilated, the sewage and the rain-water are collected, carried by canals and pipes outside the city, and applied, after proper treatment, to the fertilization of certain arid tracts of land farther down the river. The principal agent in this "hygienic transformation of Paris" was the engineer Belgrand, who, at his death, in 1870, had increased the length of the municipal sewers from two hundred and twenty-eight kilomètres in 1860 to six hundred. It has now attained a total of fourteen hundred and twenty-one, representing a capital of a hundred and fifty millions of francs.

The first principle of Belgrand's system was to avoid any discharge from the sewers into the river during its course through Paris. The great main sewer, the *collecteur général*, of the right bank, called the *collecteur d'Asnières*, follows the quais from the basin of the Arsenal to the Place de la Concorde, then burrows under the heights of the Batignolles to reach Clichy; the *collecteur général* of the left bank, which includes the poor little Bièvre, traverses the bed of the Seine by means of a siphon at the Pont de l'Alma and is prolonged by the *collecteur Monceau*, which passes under the hill of the Place de l'Étoile to join the *collecteur d'Asnières*. A third *collecteur*, known as the *départemental*, or *du Nord*, at a higher level, receives the drainage of Belleville and Montmartre, and issues from the city by the Porte de La Chapelle to reach the Seine at Saint-Denis. A new siphon, constructed under the Seine in 1895 and 1896, unites the *collecteur général* of the left bank to the *collecteur d'Asnières*. The sewage of the Iles Saint-Louis and de la Cité is carried by two other siphons to the *collecteurs* of the quais of the right and left banks.

A new main sewer, called the *collecteur général de Clichy*, was commenced in 1896, to supplement those of Asnières and Monceau, become insufficient; this passes under the Avenue and the Rue de Clichy to terminate at the Place de la Trinité. The prolongation of the line of the

Orléans railway to the Quai d'Orsay, by means of a tunnel, has necessitated a very important modification of the sewers of the left bank of the river, which has had much to do with the lengthening of the work of excavation which has so greatly annoyed the dwellers on this side of the river in 1898 and 1899. It was understood that this excavating was to be done entirely underground, whereas it has blockaded many of the narrower streets, and even when it tunnels it contrives to raise the street level about a mètre and substitute a wooden floor, as along the Quai Voltaire. It is stated that this work will cost the railway company not less than five million francs.



UNDERGROUND PARIS: LICENSED RAT-CATCHER IN A SEWER. After a design by G. Amato.

Henri Dayre: Chasseur de rats de la Ville de Paris, fournisseur de toutes les Sociétés de France et de l'Étranger.

The diameter of the vault of the *égouts collecteurs* varies between four and six mètres; that of the *égouts secondaires* from two mètres to three mètres, seventy centimètres; that of the *égouts ordinaires*, including ten varieties, from one mètre to one mètre, seventy-five. The size the most in use has a diameter of one mètre, forty. The problem of purifying and utilizing the

contents of the sewers, which were provisionally discharged into the Seine at Saint-Denis and at Asnières, occupied the attention of the municipality from the period of the establishing of the *collecteurs*, but the vigorous local opposition which was encountered greatly delayed the carrying out of these projects. Consequently, the purification of the river is not yet complete. On the sandy and arid plain of Genevilliers, situated in the first loop of the Seine, beyond Clichy, the experiment of fertilizing with this drainage was commenced in 1869. At present, the ground thus under cultivation includes some seven hundred and ninety-five *hectares*,—about two and a half acres each,—of which six belong to the city of Paris and constitute the model garden. The remainder is held by private individuals, who pay a rental of from four to six hundred francs the hectare. The distribution of the sewage is effected by agents of the administration in regular rotation, in three zones. In 1896, each hectare absorbed thirty-seven thousand and sixty-seven cubic mètres. All varieties of vegetables are grown, and this land, on which were raised formerly only meagre crops of rye and potatoes, is now a flourishing garden.

A second agricultural establishment at Achères, farther on, on both sides of the Seine, was inaugurated in 1895, the larger portion of which is held by individuals, but as each hectare of land can absorb not more than forty thousand cubic mètres annually, it has been found necessary to seek additional *champs d'épuration*. These have been secured by the municipality at Méry and les Gresillons and in their neighborhood, still farther westward, and the completion of these is promised for the summer of 1899. In the model garden of Asnières, all varieties of culture are practised, the sewage is carried in trenches into the cultivated land in such a manner as to bathe only the roots of the plants. The extremely winding course taken by the Seine west of Paris renders it necessary for the conduits conveying this drainage to cross the river three times before reaching Achères, as may be seen by reference to the map. From the *usine élévatoire* of Clichy it is carried under the Seine by a siphon, four hundred and sixty-three mètres in length; the aqueduct crosses the river again near the usine de Colombes, opposite Argenteuil, on a steel bridge, and again near Herblay, by another siphon. In 1897, on the total surface, a thousand hectares, under cultivation, there were spread seventy million cubic mètres of sewage.

After many and long debates, carried on both in the Conseil Municipal and the Chamber of Deputies, the much-discussed question of *Tout à l'égout* was disposed of by a law passed on the 10th of July, 1894, by which the proprietors of all houses situated in streets provided with a public sewer were required to make connections with this and drain into it all the refuse of their *cabinets d'aisances*. This connection was to be made within the space of three years, and a proportionate tax for this privilege was laid upon each dwelling. But the streets in which there are no public sewers,—including those private streets, *impasses*, and *cités* which the municipality considers as the property of individuals, and for which it provides neither policemen nor street-cleaners,—and those buildings in which this connection has not been made, still furnish occupation for those nocturnal vehicles the mere thought of which drives the careful citizen to close his windows. In the seventeenth century, this nocturnal agent was known as *Maître fy-fy et des basses-œuvres*, and he fulfilled his task by carting his material to one of the public dumping grounds and there discharging it. Many of the now picturesque sites of the city owe their characteristics to these eminences of refuse,—the Buttes of the Rues Meslay and Notre-Dame-de-Nazareth, Bonne-Nouvelle, des Moulins, the labyrinth of the Jardin des Plantes. "The *voirie* of Montfaucon," says M. Strauss, "with its infected basins, its pestilential reservoirs, its charnier and its gibbet, was a cause of shame and anxiety to several quarters of Paris; even after being transferred from the Faubourg Saint-Martin to the foot of the Buttes Chaumont, it was an object of horror and disgust. An army of rats garrisoned the charnier, whilst the basins overflowed with rottenness. This horrible establishment had its clientèle; in 1832, the Préfet de Police, M. Gisquet, found, according to the account of M. Mille, a hideous thing,—individuals who, in the midst of these lakes, fished up again the dead fish.

"In 1848, this notorious laystall was installed in the forest of Bondy, where it has undergone various transformations; for many years the basins were encumbered with a stock but very slightly appetizing; to reduce these mountains of refuse to industrial products was a very serious undertaking. After being, by slow desiccation by drying in the air and grinding, transformed into a fertilizer called *poudrette*, they are subjected to various chemical processes; there is extracted from them sulphate of ammonia, etc. The odors which are disengaged during these operations, while not injurious to the health of man, are not of those which leave public opinion indifferent;

the girdle of insalubrious establishments which immediately surrounds Paris, individual *dépotoirs*, private *voiries*, manufactories of fertilizing materials, is no less menacing than disgraceful.

"A single establishment is an exception to this rule, it is the *dépotoir* of La Villette, in the neighborhood of the *Marché aux bestiaux*. It would never be thought, from its appearance, that it was the nightly rendezvous of the most infectious scavengers' carts that traverse Paris. A coquettish garden, of a surprising greenness, all flowery and perfumed, charms the eyes; the receiving cisterns conceal themselves under vaults that do not reveal their secret to the first comer. The basin of the water of the Ourcq has the most innocent air in the world, and the return-pumps reveal nothing.

"All night long, the *dépotoir* is visited by vehicles, two or three hundred in number, which arrive in single file, with a mysterious heaviness, to discharge themselves in the cisterns. What a discharge! a thousand to twelve hundred cubic mètres—of matter!

"The next morning, all this deposit is relegated to a distance of nine kilomètres, as far as Bondy, by elevating machines: the cisterns are washed out and cleansed by floods of water; the heavy matter which the pumps do not take up is put in casks and taken away to be employed directly in the manufacture of manure, by mixing it with other fertilizing materials. The transportal of the liquid matter to Bondy is effected by means of a machine of twenty-five horse-power, through a conduit thirty centimètres in diameter, which follows the right bank of the canal de l'Ourcq."



SERVICE MUNICIPAL FORESTIER: TRANSPLANTATION OF TREE ON THE BOULEVARDS.

After a drawing by L. Vauzanges.

The great collecteur d'Asnières, a sectional view of which under the Rue Royale, is shown on page 299, is five mètres, sixty centimètres, in width, and three mètres, forty, in height; the channel for the water in the centre is three mètres, fifty, in width, and one mètre, thirty-five, in depth. On each side is a *banquette*, or sidewalk, ninety centimètres wide. The collecteurs, as well as the smaller sewers of the streets and houses, are constructed of masonry laid in mortar, and they are lined with cement which insures their cleanliness and their sonorousness. The former quality is maintained by an incessant surveillance, an organized force of nine hundred and thirty-one men being constantly employed, and an arrangement of fans or wings, mounted either upon the fronts of the boats or attached to the bottoms of the little trucks which run on rails along the edges of the canal of the larger sewers. These fans descend into the canal and sweep all obstructions before them,—the sand from the street pavements overhead constituting a large portion of this obstructive material. The siphons are cleansed by an ingenious process invented by Belgrand and applied by him to that of the Alma,—a large wooden ball, eighty-five centimètres in diameter, traversing twice a week each of the two conduits, a mètre in diameter. So thorough is

this policing of the sewers, that it is recorded that the number of heavy leathern thigh boots furnished the *égoutiers* is some twelve hundred or two thousand annually, representing a value of nearly a hundred thousand francs. One pair of these boots lasts about six months.

An analysis of the air of these sewers gives surprising results. The proportion of carbonic acid is somewhat greater than in the air of the streets overhead, that of ammoniacal azote is much more considerable, and that of bacteria only half as great. Consequently, not only does the personnel of this underground labyrinth traverse it constantly without danger, but visitors from the upper world find amusement in exploring it. Every fortnight, on the second and fourth Wednesdays of the month, the Préfet of the Seine, or the Chief Engineer of the *Service de l'Assainissement de Paris*, grants permits for these visits to a certain number of applicants,—the visitors are transported through the collecteurs of the Châtelet to the Place de la Concorde, under the Boulevard Sebastopol and the Rue de Rivoli, in little vehicles forming two trains, drawn each by an electric engine; then from the Concorde to the Madeleine, under the Rue Royale, in boats drawn by an electric tug. The trip takes about an hour, and can be made in either direction; the sewers are open to this invasion from Easter to the end of October, excepting in case of storms, when the water in the canals is apt to rise rapidly over the banquettes and drive the workmen to the *regards* or places of ascent provided every fifty or a hundred mètres apart. The danger of asphyxia, which was formerly very serious, is now practically abolished, the ventilation being assured by numerous openings in the street gutters under the curb-stones, which are kept free from floating materials and obstructions by a special corps of *égoutiers*.

For the *wagonnets de service* in the larger sewers, an ingenious arrangement is used,—on the little four-wheeled truck which runs on rails along the edge of the central canal are laid two more sections of railroad at right angles, and on these are mounted two more four-wheeled trucks carrying each a rectangular little tank or receptacle, with a rounded bottom. The outside rail, at each end, is blocked, so as to keep these tanks in position while in transit,—when arrived at their destination, the blocks are removed and the two run off on other rails to be emptied. The Parisian sewers carry not only the drainage of the streets and houses, but also all those various underground means of communication which in other, and

less well-ordered, municipalities have each their own burrowing to do,—at the cost of infinite expense and confusion. The water-pipes, the telegraphic cables, the telephone wires, the pneumatic tubes for the postal service, and the piping for the conveyance of motive power, are all sheltered in these underground thoroughfares. So complete and well organized, indeed, are these égouts, that that constant habitant of sewers, the rat, is being driven out of them,—neither the black rat nor his enemy, the great Norway animal, can find lodging and refuge in these cement-lined walls, as hard as steel. The task of the hunter of rodents is greatly facilitated by all these improved methods.

It is difficult nowadays to conceive the condition of the streets of a mediæval city, and Paris was no exception. Not only were they very crooked—each householder building where he chose, with very little consideration for the general alignment, badly paved or not at all, unsewered and dark, but they were the receptacles for absolutely all the refuse of the dwellings. The butcher, the baker, and the candlestick-maker threw everything out of the windows, and nobody carried it away. The first vaulted sewer was constructed in the reign of Charles VI, in the Rue Montmartre, by Hugues Aubriot, *prévôt* of the merchants; but the state of the public thoroughfares remained much as it had been in the preceding century. The houses were built on the level of the streets, and inundated at every violent shower, the choked-up gutters refusing to carry off the sudden flood. Even the kings of France struggled in vain against the universal infection,—"incommoded in their Hôtels Saint-Pol and des Tourelles, they were constantly protesting to the municipality of Paris; Louis XII, François I, and Henri II vainly attempted to secure the removal of the égout Sainte-Catherine; this unwholesome neighborhood even caused François I to change his property of Chanteloup for the locality of the Tuileries." In 1473, the Parlement ordered the Lieutenant Criminel to clear away the filth which obstructed the entrance to Saint-Nicolas-du-Chardonnet and along the course formerly traversed by the Bièvre, and three years later a more general effort at reformation was made. The main streets, the surroundings of the Palais, were submitted to a sort of system of cleaning, the cost of which was defrayed by a tax laid upon the inhabitants thus favored. The aqueduct of Belleville had been constructed in 1244, to supply the fountain of the monastery of Saint-Martin-des-Champs, and afterward furnished water to most of the fountains of Paris; in 1457, it had been repaired by the

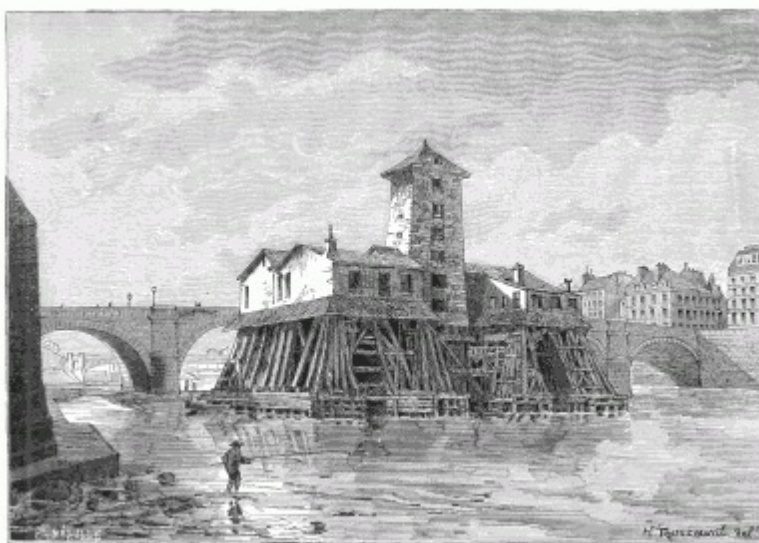
prévôt of the merchants, and thus supplied a means of cleansing the streets. In 1265, there was existing a fountain in the upper part of the Faubourg Saint-Denis, known as the Fontaine Saint-Lazare, and fed by the aqueduct of Saint-Gervais—from Romainville, near Vincennes—constructed in the last years of the reign of Philippe-Auguste. The fountain of the Innocents, that of Maubuée, and that of the Halles were also watered by this aqueduct of the Pré-Saint-Gervais. The Cité and the quartier Saint-Jacques were for centuries the most pestilential quarters of the capital, and, despite the various measures taken to ameliorate them, it was not till the reign of Henri IV that the evil was effectively attacked by the widening of the streets so as to permit the noblesse and the bourgeoisie to traverse them in carriages.

To such a height had the deposits of refuse outside the city walls attained, that, in 1525, during the panic that prevailed in Paris at the news of the captivity of François I, Jean Briçonnet, President of the Chambre des Comptes, secured the passage of an ordinance directing their razing, as from their summits an enemy could command the city walls! During this reign, however, considerable progress was made in cleansing and embellishing the capital; the king particularly enjoined upon the municipality the importance of paving and sweeping the streets, and a royal edict of November, 1539, prescribed minute regulations for the conduct of the inhabitants and the measures to be taken that would be considered very satisfactory, if enforced, at the present day. The paving of the streets, which had been commenced under Philippe-Auguste, had proceeded so slowly that in 1545 the greater portion of the Faubourg Saint-Germain was not yet paved, and the Cardinal de Tournon, Abbé of Saint-Germain-des-Prés, undertook the task. A decree of the court, March 30, 1545, ordered the commencement in the Rue de Seine; but when the cardinal desired to straighten the street lines also, he encountered a vigorous opposition on the part of the inhabitants. The Parlement was obliged to come to his assistance, and a decree of the 21st of the following October directed that all those who had valid reasons for opposing this measure should appear by means of a procureur, within the space of three days, to state them.

Five years later, another public-spirited citizen, Gilles de Froissez, an iron-master, proposed to bring the water of the Seine to aid in the great task of cleaning the city, and was instrumental in beginning this good work. In 1605, still another, François Miron, paid out of his own pocket for the

facing with masonry of the égout de Ponceau from the Rue Saint-Denis to the Rue Saint-Martin. Various other open sewers were gradually transformed into covered ones, but under Louis XIV, while the total length of the first was only two thousand three hundred and fifty-three mètres, that of the latter, including the long *égout de ceinture*, or stream of Ménilmontant, was eight thousand and thirty-six.

Marie de Médicis, having begun, in 1613, to plant the trees for the park of her proposed palace on the site of the old Hôtel du Luxembourg, was desirous of securing a supply of water for her fountains, and arrangements were made to divide that which was to be brought from the source at Rungis by the Aqueduct of Arcueil. The old one built by the Romans in this locality—whence its name, *Arculi*—had fallen to ruins; one Hugues Cosnier had engaged, the preceding year, to construct a new one in three years, which should bring thirty inches of water to the Faubourg Saint-Germain, eighteen for the palace and twelve for the inhabitants. The work was carried out by Jacques Debrosse, between 1613 and 1624; and on his handsome, dressed-stone construction there was erected another in rough stone, less high but twice as long, between 1868 and 1872.



THE PUMPS OF PONT NOTRE-DAME, FROM THE QUAI DE GESVRES, AS THEY APPEARED IN 1861. THEY WERE DEMOLISHED IN 1866.
From a drawing by H. Toussaint, after a contemporary engraving.

A detailed report has been preserved, setting forth the condition of the streets of the capital, made by Anne de Beaulieu, Sieur de Saint-Germain, to the king, in April, 1636. Everywhere, *ordures, immondices, bouès*, and *eaux croupies et arrêtées*, the latter proceeding from the broken sewers; in the quartier Saint-Eustache, the égouts were stopped up, as everywhere else, "which causes the aforesaid waters to stagnate and to rise nearly to the church of Saint-Eustache and to give forth such a stinking vapor, in consequence of the carriages, carts, and horses which pass through the aforesaid waters, which is capable of polluting the whole quarter, and the same rising and stagnating of water is caused in the Rue du Bout du Monde as far as the aforesaid Rue Montorgueil; and it is to be remarked that the stench of the aforesaid waters is much more stinking and infectious in this locality than in others, because of the butchers and pork-butchers who have their slaughter-houses on the aforesaid *esgout* (the égout of the Rue Montmartre), and that the blood and the garbage and other matters proceeding as much from the aforesaid slaughter-houses as from the sweepings of the houses."

In 1670, the city established the two pumps at the Pont Notre-Dame to raise the river-water, which, elevated "to the height of sixty feet and to the quantity of eighty inches, was conducted into different quarters of the city by pipes six inches in diameter." Two mills which were standing on this site were purchased by the city, which diminished considerably the expense and hastened the completion of the work. These pumps were enclosed in a building of the Ionic order of architecture, the door of which was decorated with a medallion of Louis XIV, and with two figures sculptured in bas-relief by Jean Goujon, one representing a naiad, and the other personifying a river. These had previously ornamented an edifice in the Marché Neuf which had been demolished. An inscription by the poet Santeuil completed the decoration of this building. These pumps were restored and reconstructed in 1708, and finally abandoned in 1854.

The most important reformation effected in the eighteenth century was the reconstruction, throughout its whole length, of the great main sewer and the construction of a reservoir for the water with which to flood it. This was decided upon in 1737, and completed in 1740. Sewers were constructed also in the Rue Vieille-du-Temple and Rue de Turenne, the open ditch Guénégaud was covered over, and the Invalides and the École militaire were

supplied with water. A police ordinance of January 9, 1767, forbade the inhabitants to put out in the streets any broken bottles, crockery, or glassware, or to throw them out of the windows; all individuals were forbidden, also, by the eighth article, to throw out of the windows in the streets, "either by night or day, any water, urine, fecal matter, or other filth of any nature whatsoever, under penalty of a fine of three hundred livres." The Parisians objected strongly to this interference with their usual habits, and this question of sanitation remained long unsolved; in 1769, the Contrôleur Général, M. de Laverdy, proposed to establish at the street corners *brouettes*, or small, closed vehicles, in which could be found *lunettes* for the benefit of the public. "The contractors promised to turn in a certain sum to the royal treasury," says the author of the *Mémoires secrets*, "which transformed the affair into an impost worthy of being compared to that which Vespasian laid upon the urine of the Romans."

This idea, much derided at the time, was the germ of the modern *cabinets inodores*, those very useful institutions which do so much to disfigure the streets of Paris. In 1845, small cabinets of this species, mounted on wheels, could be seen on the Place de la Concorde, drawn about by a man, who stopped when signalled by the passer-by, but these soon disappeared. By a special law, passed February 4, 1851, the establishment of *lavoirs publics* was authorized in several quarters of Paris, and these establishments have continued to multiply.

The problem of supplying Paris with good drinking water is not yet completely solved, though immense progress has been made within the last sixty years. The cholera epidemic of 1832 did much to arouse the municipal authorities to the necessity of radical reform both in the water-supply and in the system of sewage. At this date, the city was furnished by the pumps in the Seine, by the selenitic water drawn from Belleville, from the Pré-Saint-Gervais and from Arcueil, and from the canal de l'Ourcq,—inferior in quality and insufficient in quantity. The public fountains had long been the great resource of the inhabitants, and these were frequently architectural constructions worthy of their importance,—the Fontaine des Innocents, that of the Birague—now disappeared, that of the Arbre-Sec, of Gaillon and of Grenelle. The *porteurs d'eau* were robust young fellows, mostly from Auvergne, who carried about the Seine water in two metal buckets by means of a neck yoke, and delivered it in the loftiest houses. At night, the

water-casks, always filled, were stationed at various points, so as to be available in case of fire;—the first water-carrier who reached the scene of conflagration received a reward of twelve francs. The *eau de Seine*, filtered, was retailed at ten centimes the *voie*, or two pailfuls, of ten or fifteen litres, twenty times the price it is to-day; the poor preferred to use the water just as it came from the river, polluted as it was by the sewage.

As late as 1608, the only resource available outside the Seine water and that of wells was that furnished by the two little aqueducts of Belleville and the Pré-Saint-Gervais, constructed by Philippe-Auguste about the beginning of the thirteenth century. This supply was called *les Eaux du Roi*, and was dispensed graciously by the monarch to the grand seigneurs and the rich monasteries. The aqueduct of Belleville, which was falling into ruin, was partly reconstructed by the *prévôt* of the merchants in 1457. Henri IV, in 1598, granted the first concession for a fixed price, which was the origin of the custom of paying for the municipal water-supply. At the end of the eighteenth century, the city was furnished by the "Eaux du Roi," which included that brought by the aqueduct of Arcueil and drawn from the *pompe de la Samaritaine* (1606-1608); and by the "Eaux de la Ville," from the aqueduct of Belleville and the pompes Notre-Dame. The Eaux du Roi were ceded outright to the city in 1807; their administration is confided to the Préfet of the Seine, under the authority of the Minister of the Interior.

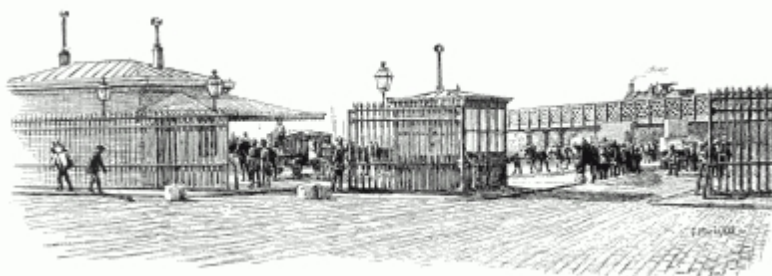
In 1802, the first attempt to seriously increase the volume of water supplied the city was made by drawing on the little river Ourcq. This canal brings a supply to the Bassin de la Villette, which serves as a reservoir to distribute it through Paris by means of the aqueduct of the Ceinture and large mains. The necessity of securing a larger supply, and a much purer one, was strongly felt by Baron Haussmann, who did so much for the embellishment of the city during the Second Empire, and in conjunction with the Engineer-in-chief of the navigation of the Seine, M. Belgrand, the present system was inaugurated. The latter found means of solving the problem after a careful study, in 1854, of the basin of the Seine. The bed of gypsum on which Paris is built furnishes neither water of a good drinking quality nor sources high enough to bring it into the city at the requisite altitude; it was therefore necessary to go outside this basin, extending from Meulan to Château-Thierry. At present, Paris is furnished with potable water by three aqueducts,—that of the Dhuis, a hundred and thirty-one kilomètres

in length, constructed from 1862 to 1865, running from a source nearly due east of the city; that of the Vanne, a hundred and eighty-three kilomètres, 1866-1874, from the southeast, and that of the Avre, a hundred and eight kilomètres, 1890-1893, from the west. A fourth is to be built, of a length of seventy-two kilomètres, which will draw its supply from the valley of the Loing and the Lunain, a little west of Vanne.

When the city was enlarged by the annexation of the surrounding communes, in 1860, the municipal administration signed a contract with the *Compagnie générale des eaux*, which then held similar contracts with several of the communes both within and without the walls. By this, the city obtained the control, not only of its own water-supply and distribution, but also of that previously established by the company. The general management of the distribution is in the hands of the *Compagnie*, which collects the subscriptions, constructs branch pipes from the public conduits to the façade of the dwelling to be served, and turns the gross receipts into the municipal treasury, less its commission. To it, or to the *bureaux d'inspection*, all complaints are to be addressed. The purer *eaux de source*, brought by the aqueducts, are reserved for domestic use; the *eaux de rivière*, from the Seine and the Marne, are elevated to the altitude requisite to serve the higher quarters of the city by eleven *usines*, within and without the walls. The river-water is served by means of gauges and meters; the eau de source by meters only, which are officially examined and verified by the Municipal Laboratory, established in the Palais du Bardo, in the Pare Montsouris. This laboratory also analyzes this water, that of the drains, the sewers, and the wells, and reports to the municipal administration. With a view to the diffusion among the people of correct hygienic ideas, the Préfet of the Seine appointed, March 21, 1898, a commission of savants, architects, and hygienists to draw up a series of measures the most practical available for rendering dwelling-houses healthful.

The general distribution is effected from the eighteen reservoirs fed by these various sources; the eau de source is furnished on the public streets by six hundred and seventy-three fountains established against walls, etc., and by ninety-seven of the "Wallace fountains;" the water of the Ourcq and of the rivers is furnished by thousands of *bouches d'eau*, on the sidewalks, in the streets, etc., for service in case of fire, watering the streets, the innumerable lavoirs, etc. The monumental fountains, such as those of the

Place de la Concorde and du Châtelet, which play every day from ten in the morning to six in the afternoon, are furnished by the canal de l'Ourcq, whilst that of the Trocadéro and its cascade, that of the Place d'Italie, and the luminous fountain of the Champ de Mars, which function only on fête-days and Sundays, are supplied by the Seine water. The fountains of the Luxembourg are fed by the Arcueil aqueduct. The water-pipes throughout the city are generally carried in the upper part of the égouts,—on curved shelves in the smaller ones, and on upright stems carrying a curved holder in the larger ones. In the grand *galerie du Boulevard Sebastopol*, for example, the water of the Ourcq is carried on one side in an eighty-centimètre main, and that of the Seine on the other in a main one mètre, ten, in diameter.



MUNICIPAL PARIS: POST OF THE OCTROI AT THE BARRIÈRE DE LA CHAPELLE SAINT-DENIS.

After a drawing by G. Maréchal.

When the canal de l'Ourcq was first opened, the work was carried out by a company to which was granted the right of navigation on the new channel, connected with the Seine by the canals Saint-Martin and Saint-Denis, but in 1876 the city of Paris repurchased this concession from the canal company. A supply is also drawn from several important artesian wells in different localities,—that of Grenelle, in the Place de Breteuil, driven between 1833 and 1852, draws the water from a depth of five hundred and forty-nine mètres and elevates it to a height of seventy-five. This supply is turned into that of the Ourcq. The artesian well of the Butte aux Cailles, begun in 1863, was resumed in 1892 and is just being terminated; the depth attained is some six hundred mètres. That of Passy, 1855-1860, somewhat less deep, supplies the lakes of the Bois de Boulogne; that of the Place Hébert, 1863-

1893, seven hundred and eighteen mètres in depth, furnishes some large ponds in the neighborhood.

Among the great reservoirs, the most noticeable is that of Montmartre, rising high by the side of the church of the Sacré-Cœur, and containing within its gray walls no less than three lakes, one above another. The largest of all these storage basins in the city is that of the Vanne, at the side of the principal entrance to the Parc Montsouris; in its vast, vaulted enclosure, covered with turf, may be stored two hundred and fifty thousand cubic mètres of water. Visitors are admitted to the under vault, where, by the light of torches, the enormous walls and the innumerable columns that sustain this weight are dimly visible. The water of the Avre, drawn from the two sources of the Vigne and Verneuil, is to be stored in the still larger reservoir on the heights of Saint-Cloud, similar in construction and now nearly completed. Each of the three sections in which it is built will contain a hundred thousand cubic mètres.

The ancient mediæval methods have all been put away, the inevitable little open gutter running down the middle of the street—celebrated by Boileau and Mme. de Staël, and many others—has long since disappeared, but the water-supply is not yet entirely adequate, and the citizens may still suffer for the lack of a pure liquid to drink,—as they did through so many centuries. It not infrequently happens, as it did in the early autumn of 1898, that several quarters of the city are simultaneously deprived of eau de source, and compelled to use the river-water alone. Every effort is made to avert this—as it is rightly considered—calamity, the streets are placarded with official notices warning the inhabitants of the approaching curtailment of their supply, and they are notified in a similar manner when the scarcity is over. Two solutions have been proposed for this insufficiency, both of them involving such heavy expense that the municipality shrinks from adopting either;—the first, to supply every dwelling with a double set of pipes, one carrying the pure water of the aqueducts, and the other the river-water, forced up into the upper stories; the second is to go as far as the lakes Neuchâtel, or Geneva, for an uncontaminated supply. The complete application of the *tout à l'égout* system has been delayed by the want of the greatly-increased volume of water necessary for its application, and strong petitions have been presented demanding the postponement of the application of the law of 1894. The present supply is about a hundred and

twenty-four litres of eau de source and ninety-six of eau de rivière daily for each inhabitant, but in summer this amount may become greatly diminished. Paris thus stands second in the amount of daily water-supply in the European capitals,—the figures ranging from Rome with four hundred and fourteen litres per capita, daily, to Constantinople with fifteen. London has only a hundred and seventy-three for each inhabitant daily; and Berlin, seventy-three, next to the Turkish capital. The figures for American cities are very much higher,—New York, three hundred and fifty-nine; Boston, three hundred and sixty-three; Philadelphia, six hundred; Chicago, six hundred and thirty-six, and Buffalo, eight hundred and forty-five (September, 1898).

ANOTHER grave evil produced by an insufficient water-supply is the lack of pressure in the pipes in case of fire, and the possible lack of water itself. The number of *bouches d'incendie*, or fire-plugs, which it is proposed to raise to eight thousand, placed a hundred mètres apart, in all the streets of the city, is as yet far from attaining that figure. The infrequency of serious fires in the capital is, however, very noticeable when compared with the losses of American cities. Various causes contribute to this result: the solid character of the dwelling-houses generally, especially in the older quarters of the city—the handsome, new apartment-houses that have been put up in such numbers of recent years in the neighborhood of the Arc de l'Étoile are, very many of them, much less well built; the general absence of furnaces and of those overwrought fires to which the severity of his climate incites the American citizen; the total absence of buildings of an inordinate height, and, in modern times, the much more restricted use of electricity and the consequent diminution of that too frequent danger of the present day, "defective insulation." The fire service is, also, very efficient; the brass helmets of the *pompier*s are as inseparable from any public performance, theatrical or musical, as the uniforms of the Garde Républicaine; these faithful sentinels are on duty behind the scenes as well as before them, and even up in the "flies," where, before the introduction of electricity, they were obliged to pass several hours in a temperature of, frequently, thirty-five degrees Centigrade, ninety-six Fahrenheit. At present, the fire department of Paris has adopted most of the modern improvements common to other civilized capitals, and the details of its service differ from those with which we are familiar principally in the military character given it.

The regiment of Sapeurs-Pompiers is, in fact, a regiment of infantry, lent to the city of Paris by the Minister of War. It is paid out of the municipal budget, with the exception of the pensions of the Legion of Honor, the military medal, and the retired list, which are the charge of the State. The regiment is composed of two battalions, of six companies each, with a total strength of seventeen hundred men. The pay of the men and their indemnities are the same as for the regiments of infantry in garrison in Paris, there are special privileges for the officers, and the quality of the recruits, especially with regard to their physique, is maintained at a very high standard. Their bravery, their efficiency, and their devotion are equal to those which are displayed so frequently by this well-organized service in other large cities, and are equally appreciated by the public; when, at the annual review at Longchamps on the day of the national fête, the regiment of sapeurs-pompiers defiles before the reviewing-stand, the great wave of applause and recognition which envelops it, drowning the other cheers in its roar, betokens the intimate appreciation of the Parisian, of high and low degree, of these unpretentious heroes.

By the new organization of this service, now in process of completion, the city is divided into twenty-four "zones," in the centre of each of which is a post of men and material, known as a *centre de secours*. The smaller posts, scattered through the city, in case of fire, notify by telephone these central stations and the état-major of the regiment, adjoining the Préfecture de Police; if the fire is of sufficient importance, the centre de secours sends a reinforcement and the steam fire-engine, the *pompe à vapeur*, but in very many cases the service of the latter is not needed. Its appearance in the streets is comparatively rare, and it is seldom driven at the mad gallop of the American machines. Moreover, its whistle is the curious thin treble so common in European motor engines, railroad and other. The old-fashioned hand-pumps have almost completely disappeared, with the exception of some localities like the Butte Montmartre, too steep to be approached by horses. In the central stations, the arrangements are those generally adopted nowadays to secure the quickest possible service,—even to the harness suspended from hooks in the ceilings to be dropped on the horses' backs, and the metal pole down which the men slide from their sleeping-rooms above.

For particular service, details for the theatres, balls, private clubs, etc., the number of men is fixed by the Préfet de Police, and there is extra pay in all these cases. The department is also called upon in case of street accidents, falling buildings, asphyxia in sewers, etc. The service material includes special apparatus for respiration in cellars, basements, etc., where the presence of gas or smoke is to be apprehended; and the great ladder, carried on a special truck, has a length of twenty mètres, greater than the average height of the Parisian houses. It is stated that the time allowed to elapse between the receipt of an alarm in the stations and the departure for the fire is often under a minute, and never exceeds two; in 1896, the time between the alarm and the attack of the fire was less than five minutes in ten hundred and seventy-nine fires out of a total of twelve hundred and four. In seven hundred and eighty-four cases, in the same year, the conflagration was completely extinguished in five minutes, and the very longest fire lasted six hours and a half.



SAPEUR-POMPIER AT A FIRE-PLUG.

After a drawing by M. Carney.

At the entrance of each of the twelve casernes, or barracks, of the regiment, the names of the officers and soldiers who have been killed in the discharge of their duty are engraved on a slab of black marble, the Golden Book of the regiment. In the court of the état-major the names of the forty sapeurs-pompiers who have thus died since 1821, are engraved on a marble panel. In his order of the day, March 11, 1888, "the colonel informs the regiment, with profound grief, of the deaths of Corporal Toulon and former sergeant Sixdenier, who perished yesterday, at noon, victims of their devotion, in endeavoring to save an imprudent workman who had descended, without taking precautions, into an excavation of the Rue des Deux-Ponts." Three citizens were also asphyxiated in trying to save him,

two of whom died; "and the deaths of Sixdenier and Toulon will be for all another and a grand example to add to the history of the regiment."

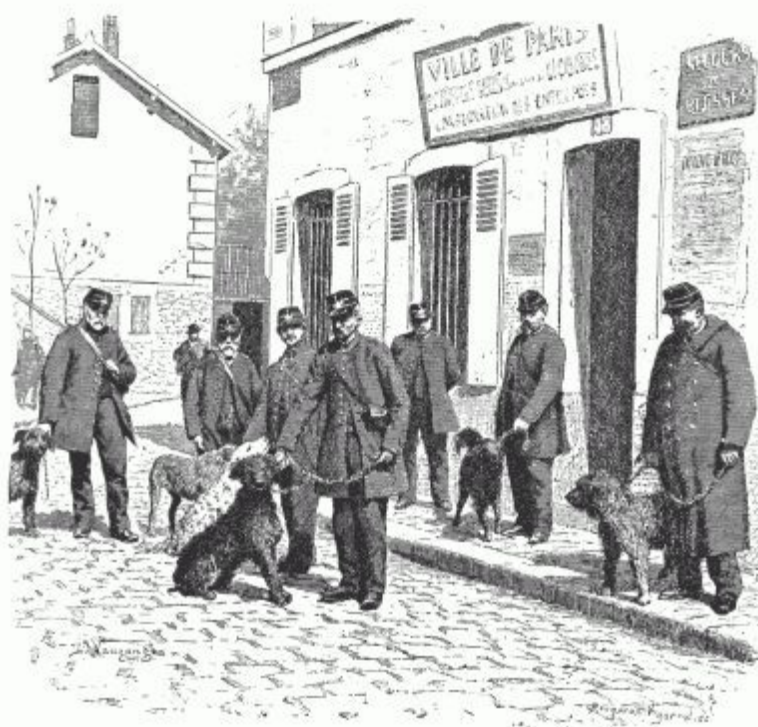
A Parisian merchant or manufacturer, Dumourrier-Duperrier, in 1699, furnished the first effective, organized system of combating fires in the city, and in 1717 he received, by letters-patent, the direction of the *Compagnie de Garde-Pompes*, the origin of the present organization. In 1792, the total effective of this force was two hundred and sixty-three men, officers included, with forty-four force-pumps, twelve suction-pumps, and forty-two casks. The men were provided with uniforms and, later, armed with sabres; in the year IX of the Republic, the corps, then four hundred strong, was placed under the direction of the Préfet de police, under the general administration of the Préfet de la Seine. The frightful conflagration which ended the fête given by the Austrian ambassador, Prince von Schwartzemberg, to the Emperor, in honor of his marriage with Marie-Louise, in 1810, awoke public attention to the insufficiency of the arrangements for extinguishing fires, and in the following year measures were taken to secure a larger authority and more energetic action. Napoleon decided that the gardes-pompes should be put on a strictly military footing; an imperial decree of September 18, 1811, created a battalion of sapeurs-pompiers consisting of four companies with thirteen officers and five hundred and sixty-three men. For the first time, they were armed with muskets, and as a military force were held as an auxiliary in the police service and in the maintenance of public order. One of the articles of this decree provided for the payment of this force by the city until the establishment of a company to insure against fire,—which was held to foreshadow an intention to place this expense, at least in part, upon these companies, and thereby relieve the municipal budget.

During the Revolution of 1848, the provisory government thought it prudent to deprive the pompiers of their muskets; and in April, 1850, the President of the Republic disbanded the battalion and reorganized it, retaining a small proportion of the former members. Down to this date, it had been recruited from the engineers and the artillery of the army, but since then, from the infantry only. In 1860, the annexation of the banlieue necessitated a new reorganization; the successive augmentations of the force brought its total effective, in 1866, up to a regiment of twelve hundred and ninety-eight men, divided into two battalions of six companies each. The

efficiency of the organization was greatly augmented by the introduction of steam fire-engines in 1873.

BY the law of December 29, 1897, all the communes of France were authorized to suppress their octroi duties upon "hygienic beverages," wines, ciders, beers, perry, hydromel, and mineral waters, and replace them by others, after December 31, 1898. As the entrance duty upon these *boissons hygiéniques* constituted a very important fraction,—in Paris, in 1895, sixty-eight million five hundred thousand francs out of a grand total of a hundred and fifty-five million six hundred and one thousand,—the question of supplying this deficiency in the municipal budget is exciting discussion. In case the octroi is not suppressed altogether, the communes are obliged to diminish the tax in certain proportions, according to their population and their locality,—the cider-producing departments standing on a different footing from the wine-growing ones. To replace the octroi, they are given their choice of five other taxes—upon alcohol, or upon horses, dogs, billiards, clubs, and various other articles of luxury. It was generally predicted in Paris that the consumer of alcoholic beverages would not experience any benefit from the removal of this tax.

Under the ancient régime, the octroi, like most other imposts and duties, was in the charge of the *fermiers généraux*, who obtained the royal authorization to enclose Paris within a wall to facilitate its collection. Consequently, one of the first manifestations of the Revolution was the demolition of these *barrières* by the people, on the very day of the taking of the Bastille. On the 1st of May, 1791, at midnight, all the gates of Paris were thrown open to the hundreds of vehicles, boats, and barges which had been waiting for weeks for this moment of free entry; a triumphal mast was erected in honor of the Assemblée and to celebrate the abolition of "the most odious of tyrannies;" the National Guard, under Lafayette's orders, paraded around the demolished barriers in the midst of the universal rejoicing. But, seven years later, the necessities of the municipal finances constrained many of the thus emancipated cities, Paris included, to return to the system of levying a tax on articles entering their gates, and the masons continued the work of enclosing the capital again within walls.



**GUARDS OF THE OCTROI AND THEIR DOGS IN THE ENTREPÔT OF WINES AT
BERCY.**

After a drawing by L. Vauzanges.

Many difficulties attended the levying of this impost; "as soon as night fell," says M. Maxime Du Camp, "the city was literally taken by assault; the tavern-keepers of all the villages of the suburbs set up their ladders against the city wall, and the casks of wine, the bottles of brandy, butcher's meat, pork and vinegar, were lowered by means of ropes to the confederates who were waiting for them inside, in the *chemin de ronde*. Should some ill-advised customs clerk undertake to interfere with these fraudulent practices, he was set upon, beaten, gagged, and the introduction of the prohibited commodities continued undisturbed. They did even better; they excavated tunnels, which, passing under the exterior boulevards, under the wall of fortification, under the *chemin de ronde*, opened communication between the inns of the *banlieue* and those of the city; it was a veritable pillage,—the octroi was sacked." These violent measures have been replaced in the present day by more suitable ones, and the *musée des fraudeurs*, in the administration centrale of the octroi, contains a very curious assemblage of objects used in this contraband service. Alcohol was the favorite object of smuggling, and it was carried into the city in rubber corsets, worn under the

blouse, rubber petticoats which would contain as much as thirty litres of the liquid, and were known as *mignonnettes*, false backs, false calves, false stomachs, and false upper arms, mostly in zinc. The women would not hesitate to appear as *plantureuses* wet-nurses, or as in an interesting condition; the vehicles were mined and hollowed with concealed receptacles, and even the collars of the harness; the blocks of granite, the rolls of carpet,—all the arts of the smuggler were employed. That very general popular disposition to consider the evasion of a customs duty as a trivial offence is as common in France as elsewhere.

At all the gates of the city, in the railway stations, and at the river entrances of the capital, the posts of the octroi are established, and the formula of address of the green-uniformed officials is generally the same: "You have nothing to declare?" Foreign visitors are especially advised against the carrying in their baggage of tobacco and matches, the manufacture of these being a government monopoly; French *allumettes* are very bad, but it is better to throw away your cherished boxes of neat wax-matches before entering the barriers. With these exceptions, the officials are tolerant of the introduction of contraband articles in small quantities,—a half-bottle of ordinary wine, two pounds of fish caught by hook and line, a pound of salt, a bundle of hay or straw, etc. The agents act under the authority of the Préfet of the Seine; the objects submitted to this duty, intended for local consumption, are designated by the Conseil Municipal and approved by the government. The officials have the right of search; dutiable objects to be carried through the city are entitled to "escort" by the agents of the octroi, or they may pay the tax at the entrance with the privilege of having it refunded when leaving. All the communes of the Department of the Seine, considered as the banlieue of Paris, have the right of levying an entrance duty upon brandies, spirits, and liquors. The penalties provided for smuggling are the confiscation of the article and of the means used in its transportation; a fine of from a hundred to two hundred francs, and even imprisonment, if the attempt has been made by means of escalade or subterranean proceedings, or with prepared methods of concealment. All dutiable articles must be declared, no matter how small the quantity carried.

As both the city and the State are interested in the collection of this tax, the agents have a double mandate to execute their duties, and the contraventions of the law are pursued at one time in the name of the public

Treasury and the octroi, and at another in the name of the Préfet of the Seine. Each gate of the city has its peculiar class of produce to tax, according to the locality to which it gives entrance; and the daily receipts vary to an astonishing degree. At the Orléans dépôt, the duties on merchandise have reached a hundred thousand francs a day and fallen to five hundred; the Porte de Saint-Denis ranges from fifty thousand francs to four!

To the establishment of the *octroi municipal et de bienfaisance* by the Directory is due that of the great dépôts or *entrepôts* of wine and alcohol on the quais of the Seine,—the importers finding it very inconvenient to pay the duties upon all their casks on their first arrival. They are, therefore, allowed to store them, under the supervision of the octroi, and pay as they are sold. When the ancient corporation of the *crieurs jurés* announced throughout the city the arrival of a shipment of wine, the purchasers would throng to the banks of the Seine; when Louis XIV granted the first authorization to establish a *halle aux vins*, on condition that the profits should be divided with the Hôpital Général, the site selected was the Quai Saint-Bernard, the entrepôt of Bercy being then a market outside the city walls. The latter, on the site of the ancient Halle des Hôpitaux of the seventeenth century, developed greatly after its incorporation within the city limits; it is at present divided into two sections, *Le Grand Bercy* and *Le Petit Château*. The city is the proprietor, and rents spaces to applicants, generally for a year at a time. The octroi is stationed at every gate of exit, and at numerous posts within the enclosure. Not only is the wine stored here, but it is blended and assorted in great tuns, and there is also storage for alcohol, liquors of all kinds, and oil. The huge enclosure is very carefully policed, not only for the detection of thieves, but also of fraudulent practices; at night there are four rounds, of which the second and third are made by guardians armed with revolvers (a recent innovation), and accompanied by eight shaggy watch-dogs.

AMONG the scientific establishments of the city may be mentioned the observatory established on the top of the Tour Saint-Jacques, the beautiful fragment remaining of the old church of Saint-Jacques de la Boucherie, demolished in 1789. In the vaulted open chamber of the base of the tower stands a statue of Pascal, who, from the top of it, repeated his

experiments on the weight of the air; and on this top—only fifty three mètres from the pavement—there has been in operation for the last seven or eight years a meteorological observatory. The varying conditions of the atmosphere, the winds, and the smoke which pollutes it, are closely investigated, weather predictions are hazarded, and the observers even descend into the sewer at their feet, under the Rue de Rivoli, to investigate and analyze the subterranean air. About 1885, M. Joubert, the director, established here a gigantic pendulum, to repeat the experiments made by Foucault at the Panthéon in 1851, and afterward a water-barometer, the only one in existence. The incongruity of this modern scientific apparatus on top of this mediæval tower, among the four monsters of the Evangelists at the corners, is rather amusing,—even the statue of Saint James himself carries placidly an anemometer on his back.

Another of these minor municipal details—and possibly a more affecting one—is the official Dépôt des Marbres, established adjoining the official museum of the Garde-Meuble at the end of the Rue de l'Université, by the side of the Champ de Mars. Here are deposited irreverently and in various stages of dilapidation all the official statues, royal, imperial, and republican, that have out-lived their day. "The marble of the statues of the State," said a cynical sculptor, "has the peculiarity of cracking after only a very short period of use." Some of these official marbles have had a longer period than others; but they all end here. Our illustration shows a corner of this depository,—at the angle, Napoleon III, sculptured by Iselin; behind him, a relief representing the return of the ashes of his great uncle; in the foreground, the Imperial eagle, with his fiery glance forever dimmed, and, at the left, a seated figure of Louis XVIII. Kings, potentates, and powers, official allegories, emblems, and symbols, are all set down here together, at the mercy of the weather. In the adjoining grand central pavilion are accumulated the official portraits of these departed rulers, including very many of the late Emperor and Empress,—*"all the old rattles of France, all the playthings that she has broken."*



**Louis XVIII. Group: Transferring the Napoleon III. ashes of Napoleon I.
KINGS IN EXILE: DEPOSED STATUES IN THE GARDEN OF THE GARDE-MEUBLE DE
L'ÉTAT, ON THE QUAI D'ORSAY.**

If the city is regardless of the effigies of her deposed rulers, she at least has some consideration for the living citizen who falls into trouble. The official Mont-de-Piété, or pawnbrokers' establishment, stands always ready to rescue him from the grasp of the usurer—provided he has some security of any kind to offer, and although its services are not altogether gratuitous, they are of very great benefit to the public. No private individual is allowed to make a business of lending money on personal objects. It was by letters-patent of the king, dated 9th December, 1777, that the original establishment was authorized, to be placed under the inspection of the Lieutenant Général of Police and of four Administrateurs of the Hôpital Général; the amount to be loaned to applicants was fixed at four-fifths of their value on objects of gold or silver, and at two-thirds on all others. The administrators were permitted to establish branch offices in different quarters of the city, and the central bureau was located in the Rue des Blancs-Manteaux, where, very much enlarged, it still is. This institution proved to be of the greatest service to the people, well-to-do as well as poor, but the indiscriminating Revolution promptly abolished it as a monopoly, and was forced to restore it under the Directory, May 22, 1797. By the law of February 4, 1799, no similar establishment could be opened without the consent of the government.

At its reconstitution under the Directory, it made its loans at the rate of thirty per cent., this was gradually reduced to twelve, and it was not until after the Revolution of 1830 that the figure was fixed at nine. At present, the interest and the charges amount to seven per cent. In the first century of its

existence, from 1777 to 1877, the total amount of the loans advanced was two trillion three hundred and eight million six hundred and fifty-five thousand six hundred and ninety-six francs. The number of objects pledged was over a hundred and twelve million five hundred thousand, of which there were redeemed, or sold as forfeited, a hundred and ten million seven hundred and ninety thousand.

The first of the succursales, or branch establishments, was for a long time in the Rue Bonaparte, the ancient Rue des Petits-Augustins, in the neighborhood of the École des Beaux-Arts; in 1814, a royal ordinance authorized this succursale to enlarge itself, and granted to it an old building and a slice of the garden of the Musée des Monuments français, on several conditions, one of which was that it should transport to Père-Lachaise and reconstruct there the tomb of Héloïse and Abélard, which was in the ceded portion of the garden. This was faithfully carried out, but in 1833 the State changed its mind, the cession was revoked, and the Mont-de-Piété was obliged to restore the ground and demolish its building, but was not reimbursed for its outlay on the tomb of the lovers. At present, the succursales are three in number, in the Rues de Rennes, Servan, and Capron, and there are bureaux auxiliaires for very nearly all the letters of the alphabet, by which they are designated. These latter have no storage-room, and consequently are unable to deliver an object redeemed until the following day; the transportation of these pledges through the streets is effected in the company's own wagons, and with every precaution against loss. In the auxiliary bureaux, or bureaux of the quarter, no loan is made for a greater sum than five hundred francs, while in the central establishment the limit is ten thousand francs, but all the regulations are otherwise the same; only one style of ticket is used, and this varies in color according to the year, being white, pink, yellow, green, etc., in sequence.

By the terms of the present regulations of the establishment, the object offered as a pledge is appraised by eight official *commissaires-priseurs* who are responsible for the deficiency in case the object, being neither renewed nor redeemed, is sold at public auction at less than their valuation. As may be supposed, they take care to guard against this eventuality,—the amount to be loaned on each pledge being the same proportion of its value as that fixed by the ordinance of 1777. The disappointment of the borrower at the inadequate sum offered him is not considered; but it has been proposed to

establish by law a percentage nearer the actual market value of the security. The borrower is also subject to a tax,—of one per cent. on the sum he receives, without regard to the duration of the loan, and of six per cent. additional,—three for interest and three for running expenses. This last is calculated proportionally on the sum received and on the length of time the pledge remains unredeemed, counted by fortnights; loans of three, four, and five francs, not remaining unredeemed longer than two months, are not subject to this six per cent. tax.

Careful precautions are taken against the Mont-de-Piété being made a receptacle for stolen goods. The applicant for a loan must be known and have a permanent residence, or be vouched for by some one fulfilling these requirements; a married woman must bring the authorization of her husband, and no loans are made to minors. If the employés have any reason to suspect the integrity of the applicant, his loan is refused until he furnishes more satisfactory guarantees. In one year the number of watches recognized as stolen was two hundred and fifty, out of a total of three hundred and fifty thousand received. Loans are made for a year, at the longest, but in practice two months of grace are added; if at the end of this period the object is not redeemed, it is sold at public auction. Some of these pledges have been in the establishment for forty, forty-five, and fifty years, and very many for twenty,—constantly renewed and never redeemed. When sold, the surplus or *boni* remaining after deducting all charges is held at the disposal of the owner of the pledge for three years, and then turned over to the administration of the Assistance Publique.

By the law of July 25, 1891, this establishment is permitted to advance money, at its usual rates, on French Rentes and other bonds and securities authorized by an ordinance of the Préfet of the Seine. These loans are not to exceed five hundred francs each, nor to be less than three francs, and the duration of the loan is for six months, unless renewed. The capital on which the Mont-de-Piété does business is borrowed from stockholders or subscribers, to whom it pays interest; one of the principal of these is the Comédie-Française, which, by the famous decree of Moscow, is required to place two millions of its surplus in this official benevolent institution.

MUCH the most important public service of Paris is the Bureau of *Postes et Télégraphes*, the administration of which is confided to a

Sous-Secrétaire d'État, and which employs, altogether, nearly thirteen thousand *fonctionnaires*, male and female. Of the efficiency of the postal service, the Parisians are justly proud; the telephone service, on the contrary, since it has passed under the management of the government, is a source of more earnest and heated complaint on the part of the unfortunate subscribers than even is usual in other lands before this aggravating mouthpiece and tube. The earliest postal service in France, according to the historians, was maintained by the Université for the benefit of its students, who were enabled to correspond with their relatives by means of messengers; this exclusive privilege, long preserved, was finally combined with the service which Louis XI established to serve the ends of his crooked policy. The modern postal service may be said to date from the reign of Louis XIII; and, in its gradual development, has passed through much the same phases as in other countries. During the seventeenth century, the central office was located in some contracted quarters established in front of the colonnade of the Louvre, and was eventually transferred to the old hôtel in the Rue Jean-Jacques-Rousseau, constructed on the site of the ancient Hôtel de Flandres. Although enlarged by successive additions, this building never afforded sufficient facilities, and proposals to abandon it and construct another and more ample central office elsewhere were seriously debated from 1793 to 1811, but the Corps Législatif was unwilling to incur so great an expense. On the night of the 7th-8th of August, 1880, the central office for Paris and the department of the Seine was established in temporary quarters in the Place Carrousel, and the demolition of the ancient building, preparatory to the construction on its site of a much larger and more efficient one, was commenced. The new Hôtel des Postes et Télégraphes was completed four years later.



THE MONT-DE-PIÉTÉ: SCENE IN A BRANCH OFFICE OF THE GREAT MUNICIPAL PAWN-SHOP.

After a drawing by Pierre Vidal.

An ordinance of 1692 gives the details of the commencement of the *Petite Poste*, or daily collection of letters: "there will be established six boxes from which the letters will be gathered every day at noon precisely and at eight o'clock in the evening in winter, and nine o'clock in summer, so exactly that after these hours in the evening the letters which may arrive will remain for the mail offices following, to wit:"—and the six localities of these offices are given. In 1759, a royal ordinance decreed the establishment in the city of different *bureaux* to effect the transportation from one quarter to another of letters and small packages; and on the 1st of August this service commenced,—there were nine distributions a day, by means of a hundred and seventeen *facteurs*, or carriers, and the postage was required to be paid in advance. The departure of the mail-coaches from the old post-office in the Rue Jean-Jacques-Rousseau, at six o'clock each morning, was a daily event of importance,—the diligence drivers prided themselves on issuing from the cour du Meridien into the cour de l'Horloge and from that into the street at the full gallop of their four horses; unfortunately, the street was very narrow, and so was the gateway of exit; it is recorded that the proprietor, named Florent, of the shop immediately opposite this exit, which was, and still is, a hair-dressing establishment, was enabled to retire with a fortune as the result of the numerous reimbursements he received for his broken shop-windows, dashed in by the mail coaches unable to make quickly enough the sharp turn to the right or the left in the narrow street.

The arrangements for mailing and receiving letters in Paris are, in general, very satisfactory,—the branch post-offices are over a hundred in number, and they will receive not only letters and mailable packages, but telegrams. They do a very large business, and are generally thronged all day in the popular quarters,—the registry department being greatly in favor. At night, they are recognizable by their blue lanterns, and there are also, since 1894, auxiliary offices in certain shops designated by blue signs. The letter-boxes, set in the wall of the building, so that letters and packages may be mailed from the street, are usually four in number, one each for Paris, the departments, foreign mail, and for printed matter. Stamps may be bought and letters mailed also in very many of the small tobacco-shops, in public buildings, and in the dépôts of the railways and the tramways of the suburbs. There are eight collections and distributions a day, on work-days, and five on Sundays and fête-days; the facteur, or carrier, has discharged his duty when he has left the mail with the concierge of the building, and its final delivery rests entirely with the latter functionary. These facteurs, who are generally intelligent and conscientious, wear the inevitable uniform of all French officials, and carry their mail in an absurd stiff little leathern box, suspended in front of their stomachs by a strap around their necks. Their distributing matter never seems to exceed the capacity of this box,—ranging in quantity from a third to a tenth of the ordinary burden of a New York letter-carrier.

A more rapid method of distribution, for which a higher rate is charged, is by means of the pneumatic tubes which traverse the city, mostly through the égouts, and which have their termini in the branch post-offices. Envelopes or enclosures sent by this medium must contain neither valuable objects nor hard and resisting bodies. The service of *colis postaux*, so called although there is no necessary connection with the post, and which corresponds nearly with the American express system, is, for Paris, in the hands of a director to whom it is a concession by the Administration des Postes, and for the departments and the colonies in those of the railway companies and the subsidized maritime companies. The inevitable conflict with the workings of the octroi interferes very seriously with the promptness and efficacy of this service, and in the summer of 1898 the complaints of the despoiled patrons were unusually loud and deep. In their search for contraband articles, the octroi inspectors open a large number of these packages received from the departments and containing in very many cases

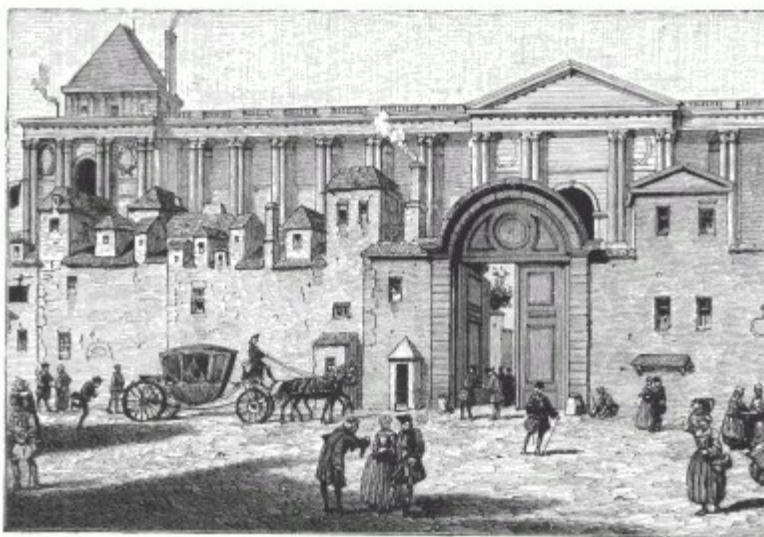
consignments of wine, game, patés, and other delicacies,—the closing up of these numerous cases is left to the employés of the railways, and the result has been a perfect pillage. In vain do the consignees protest,—the Compagnies interpose the interminable delays of corporations, and justice is not to be had.

The annual receipts of the Paris post-office—population in 1896, 2,543,000—are given as 178,000,000 francs; of the telegraph, 37,000,000; of the telephone, 9,000,000; a total of 224,000,000 francs. The expenses, borne by the post-office alone, are 178,000,000, so that the annual profits are 46,000,000 francs, or about \$9,200,000. For New York City, the figures, as given by the postmaster for the year 1898, are, total receipts, \$8,564,247.03; expenditures, \$3,398,071.38; net revenue, \$5,166,175.65. The postage rate in France, for the city or the departments, is fifteen centimes for fifteen grammes.

In 1879, the telephone service was introduced in Paris, and was divided among three companies,—the société Edison, the société Gower, and the société Goulevin et Compagnie. The following year, these united in one, the *Société générale des Téléphones*, and in 1889 the State took possession. The wires were at first carried on poles through the streets, but the municipality soon ordered them underground. As the invention was introduced from abroad, it brought with it the English "Hello!" necessary to open communication with the distant correspondent, and the French subscriber consequently begins with "*Allô! Allô!*"—which is as near as he can come to it. It may be added, that he usually introduces a great many more interjections as he proceeds.

THE recent tragic and very sudden transfer of the Executive power of the French Republic exemplified in a most striking manner the advantages—at least, for an inflammable nation—of the constitutional method of electing a President. Instead of a heated and disturbing political campaign, extending over six months of every fourth year, and frequently carefully planned long in advance by the actual incumbent, the chief Executive of France is elected promptly by the Senate and the Chamber of Deputies reunited in *Assemblée Nationale* and sitting at Versailles. One of these bodies, at least, the *Chambre*, enjoys no more of the public confidence than do the national legislators of the great American Republic; but the

Presidents of the Third Republic, so far, at least, may be said to have made quite as dignified and worthy representatives of popular suffrage as those who have occupied the White House at Washington during the same period. Instead of the two great parties into which Anglo-Saxon suffrages are usually divided, the parliaments of European nations generally represent a great number of small political divisions, differing fiercely on minor points of political doctrine, and thus, possibly, presenting a fairer average representation of the whole people at any one given time than the others in which Conservatives or Republicans may be enjoying an accidental or temporary majority.



BUILDING OF THE POST-OFFICE, OPPOSITE THE COLONNADE OF THE LOUVRE, SEVENTEENTH CENTURY. From an old engraving.

In case of the death of the Président de la République, the Chambre and the Sénat are immediately convoked, as in February, 1899; should he live to fill out his legal term of seven years, the two bodies are summoned to elect his successor at least a month before the expiration of his term. He is eligible for re-election. His carefully limited powers are much like those of a constitutional sovereign; he has power to originate laws, in conjunction with the two Chambers; he has the pardoning power, the direction of the army and navy, he presides at all the national solemnities; the envoys and ambassadors of all foreign powers are accredited to him. He negotiates and ratifies treaties, and communicates them to the two Chambers as soon as, in his judgment, the interests and the safety of the State will permit; he cannot

declare war without the assent of the Chambers; with the consent of the Senate, he may dissolve the Chamber of Deputies. He is responsible only in case of high treason, cannot be impeached but by the Chamber of Deputies, and cannot be tried except by the Senate sitting as a High Court of Justice. He receives from the State an annual allowance of a million two hundred thousand francs.

The legislative power is divided between the two assemblies,—the Chamber, elected by universal suffrage, and the Senate, by a restricted suffrage. The financial budget must originate in the Chamber, and the two bodies, beginning their sessions on the second Tuesday of January, must sit at least five months every year. Their adjournment, which must be on the same day, is pronounced by the President, who communicates with them through the ministers of his cabinet, and the frequent *crises ministérielles*, which have done so much to discredit the Third Republic, have been caused by the responsibility of these ministers to the Chambers for the general politics of the government. If they are defeated by ever so small a minority on any question which they have made a "vote of confidence," they place their resignations in the hands of the President, who accepts them, and sends for one of the leaders of the victorious opposition to form a new cabinet. This cabinet, in its turn, can only hold power so long as it can command the support of a certain combination of parties, and, as these combinations shift, so do the ministries.

So well recognized is the material impossibility of arriving at any permanent grouping of political parties, and, consequently, at any permanent and coherent ministerial policy, that various amendments to the Constitution of the State are being proposed. One of the methods suggested is to suppress the ministerial responsibility, and to cause the Parlement to elect the President of the Conseil d'État each year. As to the Senate, it is to be reduced in power and privileges, and condemned to a *rôle* subordinate to that of the Chamber of Deputies.

At the palace of the Élysée, which is his official residence, the President holds his audiences on Mondays and Thursdays, from nine o'clock to noon. To be received by him, it is necessary to write to the Secrétariat de la Présidence, requesting this honor, and to receive a reply stating the day and hour. The Deputies and Senators are received, without any letters of

audience, on Wednesdays, from five to seven. The President gives each year two State balls, for which some twelve thousand invitations are issued, and also a garden-party in the grounds of the Élysée in June. The two legislative bodies hold their sessions on the other side of the river,—the Chamber, in the old Palais-Bourbon, opposite the end of the Pont de la Concorde, and the Senate, in the Luxembourg palace.

The Conseil d'État, which sits in the Palais-Royal under the presidency of the Garde des Sceaux, is at once a council of the government by its participation in the drawing up of laws, a council of administration, and the highest of administrative juridical bodies. It deliberates in two sections, in *Assemblée Générale* and in *Assemblée du Contentieux*. The Conseil Général de la Seine, which holds its sessions in its chamber at the Hôtel de Ville, is composed of eighty municipal councillors of Paris and twenty-one general councillors elected by the cantons of the banlieue. The Conseil Municipal, which also sits at the Hôtel de Ville, is elected from the twenty arrondissements of the city, one from each quarter, for four years, and corresponds to the Conseils of the Communes in the departments. The Préfet de la Seine and the Préfet de Police have the right of attendance at its sittings and of being heard whenever they wish. In the Palais du Tribunal de Commerce, the Conseil de Préfecture de la Seine holds its sittings and occupies itself with a great variety of municipal matters confided to its jurisdiction by law.

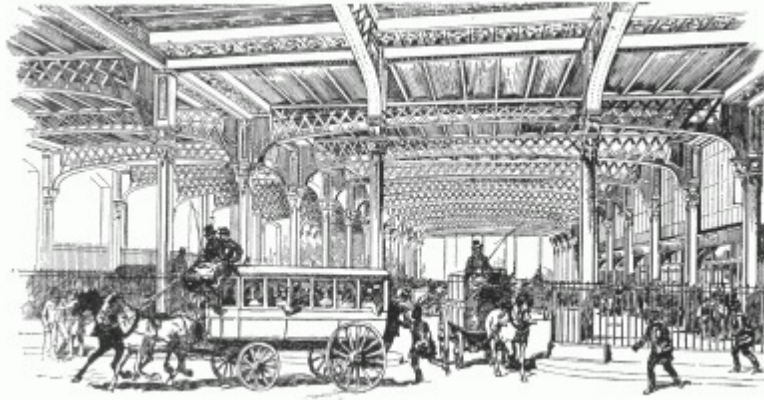
In the capital, the executive power, which in the other communes of France is confided to the Maires, is exercised by the two Préfets, of the Seine and of Police, who are thus invested with the triple character of representatives of the State, of the Administration of the Department of the Seine, and of superior officers of the State performing the duties of Maire of Paris. Those divisions of the municipal administration which depend directly upon the Préfecture of the Seine are located in various buildings,—in the Hôtel de Ville itself, in the *Annexe Est*, the old caserne Lobau, just across the Place Lobau, in the *Annexe Nord*, on the Place de l'Hôtel de Ville and the Avenue Victoria, and at numerous other localities throughout the city. The balls of the Hôtel de Ville—which are a portion of the municipal administration—have recently been replaced by more frequent receptions, at which there is always dancing and a concert.

The administration of the Préfecture de Police is divided into three Bureaux, the first of which is closely connected with the cabinet of the Préfet, and the two others constitute the first and the second divisions. The first Bureau is divided into four sections, and the second into two, each of these subdivisions having its special department. The Commissaires de Police are municipal officers appointed in Paris by a decree of the President of the Republic on the nomination of the Minister of the Interior, in the proportion of one for every ten thousand inhabitants. In cities and towns having a population of less than six thousand, these officers are appointed by the Préfet. They are charged with the duty of enforcing the laws and the regulations of the municipal police, the pursuit and arrest of criminals, and they have authority in all controversies and litigations brought before the Tribunaux Civils, or those which never appear in court. The immediate chief of the police, or *gardiens de la paix*, of each arrondissement, is the Officier de Paix, who has his headquarters in the Mairie of that arrondissement, and who is the functionary to appeal to in all matters connected with the public highways. "(1) If you have cause to fear any scandal, if you have need of police protection, he will give orders to have a gardien posted at your door; (2) if you have any cause of complaint against individuals, cab-drivers, cartmen, street-vendors, who crowd the street, or who make a disturbance before your dwelling, he will draw up against them *procès-verbaux de contravention* [which is a very efficient remedy]; (3) he is obliged to assure, by the *gardiens de la paix*, the safety of children who have to cross wide streets when leaving school; (4) at night, it is he who sends to the hospitals the persons who may be found sick or wounded in the streets; (5) it is to him that notice must be given of the disappearance of old persons, children, sick, or those demented; he immediately notifies the municipal police headquarters, which, in turn, sends word to all the posts throughout Paris."

Gardiens de la Paix is now the official title of the efficient Paris policemen, who were formerly known as *Sergents de Ville*, under which title their corps was organized in 1829. Modified in their organization in 1848 and in 1859, they were disbanded on the memorable 4th of September, 1870. Like the firemen, they are all soldiers, and in case of war rejoin their respective corps. From the point of view of the police, Paris is divided into four great divisions, each including a certain number of arrondissements, and having at its head a *Chef*. Under the orders of the Commissaires are placed the twenty-five Officiers de Paix, and the Inspecteurs Principaux,

their substitutes; next in rank come the Brigadiers, a hundred in number, then the eight hundred and eighty Sous-Brigadiers and the seven thousand one hundred *agents*.

A sufficiently high standard is set for the recruits to this force,—they must be in the enjoyment of all their civil rights, have their papers perfectly correct, have been a soldier, not be more than thirty years of age (thirty-five, if they have served ten years under the colors), and be at least a mètre, seventy centimètres, in height. They must have a knowledge of orthography, and an excellent physical condition. After twenty-five years of service, in which is included that in the army, they are entitled to be retired on a pension of half-pay, calculated on the average payment of their last three years of service. Rewards are provided for special acts of courage or devotion, arrest of a dangerous criminal, stopping a runaway horse, extinguishing a fire, etc.; after three such proofs of bravery, duly certified by *procès-verbaux*, they are proposed for one of the four medals of honor, of which two are in gold and two in silver. The State is by no means chary in the distribution of decorations and medals to those who serve it, and very many of these agents wear from one to four of these highly-prized tokens, military and other, on their breasts. On their capes and tunics are also embroidered in silver the number of their *arrondissement* in Roman letters and their own, in figures. In stormy weather, they pull the pointed hood of their capes over their heads, which gives them a very picturesque appearance; and in summer, they all appear in white trousers, as do the postmen. They have recently been furnished with white bâtons, much smaller than a New York policeman's club, which at first gave great amusement to the easily-amused loungers on the boulevards, but which are very efficient in arresting street traffic when held in the air.



COURT-YARD OF THE NEW POST-OFFICE: DEPARTURE OF CARRIER OMNIBUSES.
After a drawing by E. Pouchot.

As at present organized, the force is divided into twenty-six *brigades*, one for each *arrondissement* and six companies, known as the reserve, formerly the *brigades centrales*. There are four posts in each *arrondissement*, each of which is provided with a litter, mattress, and appliances for aid to the injured, and the men are all instructed in the first treatment of injuries, while waiting for the surgeon. All these posts are united by telegraph with the central offices in the Mairies, and these communicate directly with headquarters in the Rue de la Cité. There are also supplemental posts established in the kiosques of the carriage-stands; one agent looks after the cabs, and another is at the service of the public. In each *arrondissement*, a certain number patrol in civilian costume, to keep an eye on the street-vendors and to suppress prostitution. The evening service of theatres and concerts is furnished by the reserve companies and the carriage brigade; this is supplied without costs for the theatres, but the concerts pay one franc for each *gardien de la paix*, and a franc and a half for a brigadier. These payments are all turned into a common fund, which, every three months, is divided among the force. For those who have been killed while on duty, the city of Paris has erected in the Montmartre cemetery a monument, on which their names are engraved.

Although its functions, strictly speaking, are confined to the pursuit and punishment of misdemeanors and crimes, the Paris police occupies itself with a great number of other affairs that tend to enhance the comfort and security of the citizen. In the cabinet of the Préfet, a vast number of delicate affairs are treated with the utmost discrimination; the Commissaires render

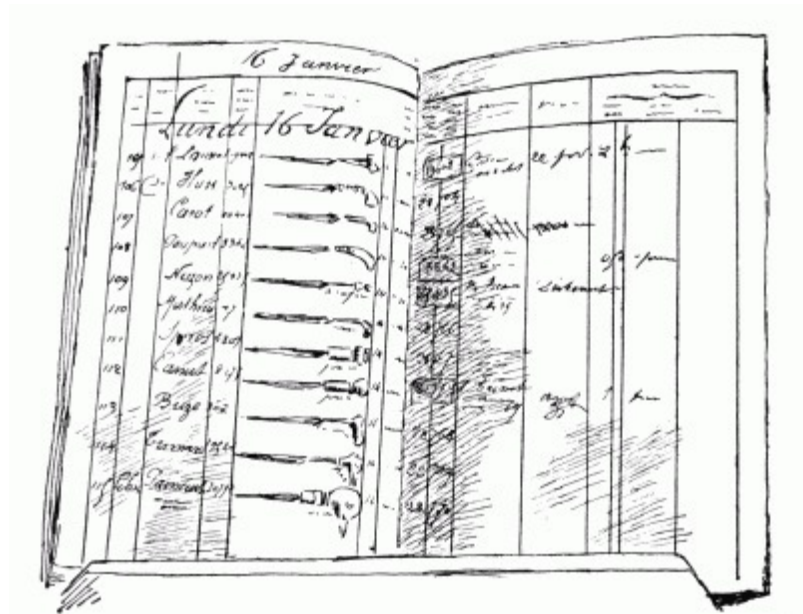
daily numerous services of this kind to the public. Very many disputes which would otherwise be brought before the Juge de Paix are settled before a Commissaire, without cost and with a great saving of time. A tenant summons before this officer his landlord who refuses to allow him to move out on the pretence that he has not paid his rent; the case is argued before the police magistrate, and a judgment rendered which is accepted as final. Two persons quarrel in the street and come to blows; instead of being arrested and brought before the tribunaux correctionnels, they are conducted before the Commissaire, where one of them admits his error and apologizes. A jeweler confides a quantity of precious stones to a trusted agent to dispose of, but afterward has reasons to believe that the salesman is meditating flight; if he carry his case to the Tribunal de Commerce, the delays will give the other ample time to abscond. But if he cause him to be brought to the Commissariat of police, the chances are that he will recover his property and that the culprit will depart admonished and repentant. A married couple are on the point of disagreeing, and applying for a divorce; this useful official summons them before him, listens to their explanations and accusations, delivers to them a moral lecture, and effects a reconciliation. The search for a missing spouse—whether he or she be really wanted by the abandoned partner, or whether the latter cherish secret hopes that the search be fruitless, so that the divorce may be obtained—is one of the most frequent charges of this confidential police. Those parents who cruelly treat their children, those dissipated sons of families who will not listen to parental admonition, are summoned before the Commissaire and speedily brought to reason.

Le Service de Sûreté is enabled by its organization to assure protection to persons menaced. "For example, you receive a letter threatening trouble at the ceremony of your marriage, at the church or the Mairie; carry that letter to the Chef de la Sûreté, Quai des Orfèvres. He will place on the watch inspectors to whom he will give a description of the author of the threat. This service is completely gratuitous. It is not so for that which consists, we will say, in watching over the display of wedding-presents. If you want some inspectors to mount guard in your salon, so that you may not be robbed, you must pay them. They have, in fact, under these circumstances, to meet the expenses of dress which are not provided for in their budget." La Sûreté will also place at your disposal, for any legitimate purpose, retired inspectors who have served their twenty-five years, and who will shadow

any one whom you have cause to suspect, for ten francs a day and expenses, who will guard banks, or villas, or travellers with valuable luggage, or assume the duties of a concierge. All these official services rendered to individuals must be with the consent of the Procureur de la République and the Préfet de Police, the Sûreté acting only under the orders of these two officials.

Paris, in fact, may be said to be a very well-policed city,—the police regulations are intelligent, and cover all those points in which the safety, or comfort, or peace of mind of the majority of well-meaning citizens may be menaced or disturbed by the inconsiderate action of individuals, and yet these strict *ordonnances*, which might become harsh or tyrannical, are generally administered with discretion and—in the case, for example, of the peripatetic vendors of vegetables, the *marchands* and *marchandes des quatre-saisons*—with due consideration for the difficulties of the poor. Great care is taken to assure the free circulation in the streets, with one very important exception,—the householder must not deposit any garbage, or mud, or broken bottles on the sidewalk, he must wash his shop-windows only between certain hours in the morning, he must not beat nor shake carpets out the window nor in the streets, he must not put his flower-pots in the windows where there is any danger of their falling on the passer-by, he must not keep domestic animals in such numbers or of such a kind as to be disagreeable to his neighbor, he must not burn coffee, nor card the wool of his mattresses, on the public highway, and he must not set out chairs or tables on the sidewalk. This last regulation, however, is practically a dead letter, all the cafés, big and little, on the wide *trottoirs* of the boulevards and on the two-foot sidewalks of the narrow streets, monopolize from a half to three-fourths of the pavement for pedestrians. The latter file along cheerfully on the curb-stone, or turn out in the street altogether, and make no protest. In the poorer quarters, a great number of domestic occupations and maternal cares are transferred to the street in front of the dwelling; in fact, the fondness of the French for out-of-doors is one of their most striking characteristics. The women and young girls will sit sewing or knitting in the streets or the public parks, and the men at the open-air tables of the cafés, in the wettest and rawest of days, and the women of the lower orders, concierges, workwomen, small shopkeepers, etc., constantly go with their heads uncovered. This healthy hankering of all classes for the open air

contrasts very strongly with their imbecile terror of fresh air, or *courants d'air*, in a closed vehicle or under a roof.



LEDGER OF THE "LOST-AND-FOUND BUREAU," AT THE PREFECTURE OF POLICE, SHOWING SKETCHES OF HANDLES OF FOUND UMBRELLAS.

Sketch by M. Martin.

One of the most complete departments of the Préfecture de Police is that of the *sommiers judiciaires*, in which are preserved the *fiches* or records of every person brought before the tribunals, giving his name, age, place of birth, etc., and the date, the cause, and the nature of his sentence. The *récidivistes*, the hardened offenders, have each a regular bulletin, sometimes a variety of *fiches* if they have various aliases. These archives of crime are contained in thousands of boxes, filling a number of rooms, and are constantly consulted; their inspection is strictly forbidden to private individuals. This bureau contains records, systematically arranged, of all the sentences pronounced by the courts and the civil and military tribunals of France; the number of ordinary bulletins exceeds eight millions. In addition to these judicial archives, the Préfecture de Police preserves a personal record of every prominent personage. Less closely connected with affairs of State, the bureau of lost articles is more appreciated by the public; it was opened in 1804, but became generally known only after 1848. The number of these objects found in the streets and public places and deposited here has exceeded twenty-six thousand, and every one of them is carefully

numbered, catalogued, and ticketed. After remaining here till all attempts to find the rightful owner have failed, they may be restored to the *inventeur*, the finder, on his demand, after a period of three months for garments, furs, and woollen stuffs, of six months for other articles capable of deterioration, umbrellas, books, and opera-glasses, and of a year for all others.

THE first well-organized attempt to light the streets of Paris at night seems to have been made under Louis XIV. The Abbé de Caraffe had previously undertaken to establish a force of link-boys and torch-bearers, but the bureau which he opened in the Rue Saint-Honoré was soon closed, to the great regret of the honest bourgeois who scarcely dared to stir out of his house after dark without a lantern. Thieves abounded, and even the lackeys of good houses, sword in hand, made a practice of insulting and striking the unlucky commoner who fell in their way. The lieutenant of police, La Reynie, undertook to establish a regular system of illumination, —at the end of each street and in the middle, he hung an iron and glass lantern, some two feet in height, enclosing a candle weighing a hundred and twenty-five grammes, the whole suspended from a rope, and hoisted and lowered by means of a pulley. The malicious breaking of these lanterns was punished by the galleys. This illumination at first was given only from the 1st of November to the 1st of March, but later, an ordinance of May 23, 1671, extended the period from the 20th of October to the 1st of April, and, still later, it was lengthened to nine months, with the exception of the week in which the moon shone. For the period of six months, the cost was a million and a half of francs, it is said.

This innovation excited universal enthusiasm. The king was so well pleased with it, that he caused a medal to be struck bearing the inscription: "*Urbis securitas et nitor* [security and lighting of the city]." In a passage in *Saint-Evremoniana*, we find: "The invention of lighting Paris during the night by an infinity of lamps is worthy of attracting the most distant peoples to come and contemplate that which the Greeks and the Romans never imagined for the policing of their republics. The lights, enclosed in glass lanterns suspended in the air at an equal distance from each other, are arranged in an admirable order and give light all the night; this spectacle is so handsome and so well planned, that Archimedes himself, if he were still living, could add nothing more agreeable and more useful."

As late as the end of the eighteenth century, the vegetable and animal oils and fats furnished the only means of artificial illumination. The tallow-candle dates from the eleventh century, and was an humble partner for the much more aristocratic wax taper. In 1791, Philippe Lebon commenced a series of experiments upon the extraction from wood of a gas for illuminating purposes; and in the following year, Murdoch, in England, succeeded in extracting it from pit-coal. A manufactory of gas, constructed by the Comte de Chabrol, served to light the Hôpital Saint-Louis, in 1818; and, two years later, another furnished illumination for the Palais du Luxembourg and the Odéon. Chevreul's experiments in the saponification of fatty substances and the extraction of oleic, stearic, and margaric acids, undertaken in 1823, led to the manufacture and general use of stearic candles by 1831. In the previous year, the introduction of mineral oils and petroleums had begun; the very extensive importation of the coal-oil of Pennsylvania commenced in 1859, and has been supplemented of recent years by that of the produce of the oil-wells of the Caucasus. Both these are largely imported in the crude state, and are distilled and refined in France. The *huile de colza*, extracted from the colewort, is still very largely used, and is an excellent oil for lamps; and acetylene is beginning to take the place of coal-gas as an illuminator.

When the permanent street-lamps, burning oil, replaced the ancient lanterns and candles in the streets of Paris, they excited as much admiration as the latter had done. "The very great amount of light which they give," said the lieutenant of police, M. de Sartines, "forbids us to believe that anything better can ever be found." The introduction of gas excited much opposition, as late as 1830; the householders feared to be asphyxiated by sulphuretted hydrogen and adopted the new method with much hesitation. Philippe Lebon was assassinated on the Champs-Élysées on the evening of the coronation of Napoleon I, and his invention, "as is usually the case, made the tour of Europe before returning to benefit France,—the first companies that undertook to work his invention were managed by foreigners, Winsor, Pauwel, and Manley-Wilson." The five or six rival companies that furnished gas to the city, united in 1855 in one corporation, the *Compagnie parisienne d'éclairage et de chauffage par le gaz*. At present, the *Compagnie du Gaz* delivers it to private houses within the city at an average price of thirty centimes the cubic mètre, and at varying prices

in the suburbs. It cannot refuse to furnish it to any subscriber, but it has the right of demanding that payments be made in advance.

Much apprehension was at first excited in the neighborhood of the companies' works by the enormous metal tanks, or reservoirs, until, as is related, an Englishman, named Clegg, one day went up to one of these huge gasometers, drove a hole through the side, and applied a lighted candle to the aperture. The escaping gas burned in a steady jet, as from a burner, but did not explode. At the opening of the siege of Paris, General Trochu was alarmed at the possibility of one of these gasometers in the suburbs being exploded by a German shell and destroying the ramparts in its vicinity; the Conseil de Défense, having communicated these apprehensions to the gas company, were assured by the latter that the reservoirs would not explode, even though pierced by a projectile. This statement was soon verified; at the works at Ivry, one of the enemy's shells fell through one of the iron *cloches*, —a long sheaf of fire rose in the air, and was extinguished within a few minutes. At La Villette, a shell burst inside the tank, but the gas escaped without any further damage. It was the latter usine that furnished the means of inflating the balloons that, for so long a time, constituted the city's only method of communication with the outside world.

If the municipality was somewhat slow in adopting the use of gas for its streets, it claims to be the first to have introduced that of electricity. This new method of illumination appeared in 1876, and in the following year the Avenue de l'Opéra was lit up by the Jablochhoff system. In England, the use of electricity for lighting public streets and dwellings was inaugurated in the town of Godalming in 1881; and in America, in New York, in 1882. The Place du Carrousel followed the Avenue de l'Opéra, using sixteen Mersanne lights; experiments were made in the Parc Monceau with fourteen arc lights, and in the Parc des Buttes-Chaumont with fifty arc lights and seventy-nine incandescent. The tragic burning of the Opéra-Comique, in May, 1887, gave a great impulse to the adoption of the new method in preference to the use of gas, and the city north of the Seine was divided into five *secteurs*, each furnished by its own electrical company. This method still prevails, the number of secteurs having been increased to seven, one for the left bank of the river, and the different companies hold their concessions for the space of eighteen years. The unit of measurement is the *hectowatt-heure*, the price of which ranges from ten to fifteen centimes, whilst in other cities, according

to statistics of November, 1897, it ranged from five to seven centimes in Brussels, from six to seven in London, and at about seven and a half in Berlin.



**AN "IMMORTAL" AT THE ENTRANCE TO THE INSTITUT DE FRANCE.
After a drawing by Émile Bayard.**

This excessive price has had the natural result of curtailing the use of electricity as an illuminator; and the usual thrifty habits of the French householder and municipality contribute to make the capital anything but a well-lighted city at night,—contrary to the general impression. The stranger who leaves the main boulevards and enters any of the minor streets, even such a wide and important one as the Boulevard Saint-Germain, is struck with the village darkness of these thoroughfares. Not only is there no other means of illumination generally but the street-lamps burning gas, which are sufficiently widely spaced,—and, in the case of the boulevard just mentioned, masked by trees,—but all the house-fronts are tightly closed and as black as night. One may cross the Place Vendôme, five minutes from the Opéra, in the middle of the evening in the middle of the season, and have barely light enough to avoid other pedestrians. All around the great circle the houses show no gleam of light in their windows, with two or three exceptions, and the effect is anything but cheerful. In this Place, as in so many localities in Paris, the pedestrians take to the middle of the streets,—

in the wide thoroughfares, to cross them, or to avoid détours, and in the narrow ones, because of the insufficiency of sidewalks,—and good eyesight becomes of the utmost importance. Fortunately, the cabs and carriages all carry double lanterns, and even the bicyclers, those terrors to foot-passengers, are compelled to show a light of some kind and to sound some kind of warning. Of these, the neat and efficient little lantern and the bell fixed to the handle-bar are not yet in general use,—the French cyclist mounts any kind of a lamp, even a paper Venetian lantern, on the front of his machine, and rings a tea-bell, or sounds a small horn, as he dashes along. If he display no consideration whatever for the pedestrian, he, in turn, perils his own neck with the utmost willingness, and the risks he takes in the narrow and crowded streets, and the coolness and skill with which he avoids the fate he so justly deserves, are equally remarkable.

In the summer of 1898, the discussion concerning the deficient *éclairage électrique*, periodically revived, took on new animation in view of the approaching Exposition of 1900 and the admitted inferiority of Paris in this respect to other cities. The question was brought up in the Conseil Municipal in the spring; the various companies made a proposition to modify their contracts with the city and to effect a considerable reduction in their price, as much as twenty-five or thirty-five per cent, to individual consumers, in return for a prolongation of their contracts to 1930,—the present ones expiring in 1907 and 1908. This prolongation, they said, would allow them to assume the heavy expense of establishing new plants, and extending their wires, while at the same time reducing the price,—the near approach of the end of the present contracts restraining them from doing either in view of the necessity of securing a speedy return upon the capital already invested. The municipal councillors replied with another proposition,—to maintain the *status quo* until the expiration of the present contracts, and then, in some ten or fifteen years, when the condition of the municipal finances would permit, to establish three great *compagnies fermières*, which should furnish both gas and electricity at a very moderate price, to be set by the Conseil itself. The objections to this plan were set forth very freely,—in the first place, it prolonged an intolerable situation, and just at the moment when the capital was inviting all the world to visit her. In the second place, nothing is more doubtful than the future,—it is quite possible that in the course of fifteen years electricity may be superseded by some other power, as the utilization of the solar heat; if the

Municipal Council are so convinced of the excellence of their system, why not put it in practice at once, as they have the power? Moreover, it is very doubtful if the financial condition of the city will be better in 1907 or 1908 than it is at present; it will be necessary at that date, at the expiration of the concessions, to purchase the plants of the companies. The municipal debt, so far from diminishing, has, so far, steadily increased; it is estimated that the city will have to borrow, in these ten years, the sum of four hundred and seventy-five millions of francs,—twenty millions for the conversion of the loan of 1886, forty millions for the water-supply, a hundred and sixty-five millions for the Métropolitan railway, fifty millions for education, and two hundred millions for the opening and maintenance of highways. It is, therefore, highly probable that the municipal control of the electric lighting, so far from bringing any amelioration of the lot of the consumer, will only be considered as another source of municipal revenue, like the State monopoly of tobacco, powder, etc. It is recalled that these monopolies always incite the public administration to draw from them the greatest possible profit,—as in the case of the water-supply, the price of which has doubled since the city has assumed the management of it. One of the immediate results of this augmentation has been a great increase in the number of electric elevators.

In this connection, the experience of the city with the gas company is recalled. In 1888, the *Compagnie parisienne du gaz* offered to lower the price to twenty-five centimes the cubic mètre for lighting and to twenty for motive power, in return for certain considerations which involved no pecuniary cost to the city. The Conseil Municipal refused this offer. The result was somewhat as follows: in 1888, there were consumed in Paris and in the banlieue, in round numbers, two hundred and ninety-eight millions of cubic mètres of gas, and in 1897, three hundred and fifteen; the average consumption for the period 1888-1898 being thus something over three hundred millions. Consequently, if the terms of the company had been accepted, the consumers would have had to pay in these ten years a hundred and thirty-three million francs less,—and the municipal council had made a present of this sum to the shareholders of the *Compagnie du gaz*. In the present case, the acceptance of the offer of the electrical companies would involve a reduction in the cost to the consumers, and also to the city, of two or three million francs a year, that is to say, of thirty or forty-five millions for the fifteen years of waiting which are proposed,—supposing, which is

not at all probable, that the consumption would not greatly increase with the lowering of the cost. So that, from every point of view, it is considered that the necessity is for immediate reform.

ALL these larger administrative municipal details, and the Third Republic itself, date from 1870, the most important year in the history of France, and it may be thought that no record, however brief, of the machinery of government, of the characteristics, the aspirations, and tendencies of this modern society, would be approximately correct without some allusion to its recent origin, to those tremendous political events which so transformed it, and which still remain for it an endless and hopelessly bitter source of speculation, of discussion, and of fierce recrimination. In this overthrow of a nation, it is the great figure of the Chancellor of the German Empire that fills the scene, moving apparently at his will kings, emperors, and ambassadors, and influencing, even at this late day, every measure of the government of the capital and the nation by an enduring Consternation,—by a fear that does but increase from year to year. The incompetence of the Emperor, the folly of the Empress, probably but served to aid or to accelerate the ruin which Bismarck thought necessary to secure his great building,—the Confederation of the North German states had been consolidated by the defeat of Austria at Sadowa, but France, he was convinced, would never consent to the re-establishment of the German Empire. Even the vanquished admit that he did not want war for the sake of war; but, by his own admission, in 1892, he was willing to secure this necessary result by any trick, even that of the forger.

Despite the recent assertions of the French minister, M. Ollivier, it is probable that the Empire of Louis Napoleon had lost all its allies. Austria, anxious to avenge Sadowa, was restrained by the threat of the intervention of Russia; that power still considered the dual empire its rival in the Balkans and still remembered the Crimea; an offensive and defensive alliance had been concluded by Prussia with the German states south of the Main. Thus prepared, the chancellor waited for an opportunity, and as none presented itself soon enough, he made one. The revolution in Spain in 1868 had driven Queen Isabella into exile and left her throne vacant; Marshal Prim, who retained the reins of power, was negotiating in the different courts of Europe to find an acceptable new sovereign. At the beginning of July, 1870, Paris

was surprised to hear that the candidate chosen by him, and who would probably be proclaimed by the Cortès, was Prince Leopold of Hohenzollern. This negotiation had been carried on secretly, the French ambassador at Madrid had been informed of nothing, and from Marshal Prim's documents it was afterward learned that Bismarck himself had suggested the prince for the crown. It was very certain that France would oppose this union of the dynasties of Berlin and Madrid, and, in fact, on the 6th of July the government sent a message to the Chamber protesting against this candidature and declaring that it would be compelled to oppose it, if necessary, to the last extremity.

Three days later, M. Benedetti, the French ambassador at Berlin, sought an interview with the King of Prussia at Ems, where he was taking the waters, and requested him, as head of the Hohenzollern family, not to give his consent to the candidature of Prince Leopold. The king replied that, in this affair, he had intervened not as King of Prussia but as head of the family, and the interview ended without any definite assurances on his part. However, Prince Anthony of Hohenzollern, the father of Leopold, officially announced that his son was no longer a candidate. Then the French diplomacy came to Bismarck's aid by committing a great blunder; M. Benedetti sought another interview with the king, who had not yet heard of this withdrawal, informed him of it, and requested him to give the French government formal assurance that Prince Leopold would abide by it. This promise the king refused to give, but he notified the ambassador that he would inform him when he had received a confirmation of the renunciation. When this was received, he sent word to M. Benedetti by an aide-de-camp, refusing him the third audience which he requested, stating that he approved of the prince's decision, but declining to bind himself with regard to any future negotiations.



**PRIVATE OF THE LINE
ACTING AS POSTMAN
DURING AN EPIDEMIC OF
INFLUENZA.**

After a photograph.

An official statement of these interviews was drawn up under the eyes of the king by his private councillor Abeken, and telegraphed to Bismarck, with authority to publish it. This statement contained nothing that need inflame the national feeling in either Germany or France, but, as re-edited by the chancellor, it represented the French ambassador as unduly importunate, and as having received a flat refusal from the monarch. The patriotism on both sides took fire; and war was declared on the 19th of July. The Germans assert that it would have been inevitable in any case, without this falsification of the despatch of Ems, but the Iron Chancellor is convicted, on his own testimony, of having desired it and of having wrought to bring it about.

M. Émile Ollivier, Louis Napoleon's minister, president of the Conseil, whose "light heart" for the "great responsibility" of the war with Germany has earned him a special measure of obloquy, has within the last two or three years appeared again in public, in his own defence. In an interview granted an editor of the *Gil Blas* on the twenty-sixth anniversary of his fall, the ex-minister made a series of statements justifying the men and measures of that fatal period, and contributing some very important assertions to history. "We committed no faults," said M. Ollivier; "we were unfortunate, that was all, and I have nothing, nothing with which to reproach myself." France, he declares, was assured of the alliance of Austria and Italy, even after Reischoffen; the plan of campaign, which has been so much criticised, the scattering of the troops along the frontier, was imposed by the Austrian general staff. Sedan, however, chilled these allies, and delivered Germany, as Bismarck himself wrote, from all danger of a coalition against her. The inertia of the Emperor, who was ill with the stone, who could not command himself, and "would suffer no one to take the command in his place;" the errors of the generals, including Mac-Mahon; the treason of Bazaine, and the council of war held by the ministers and presided over by the Empress, at which the fatal march on Sedan was determined upon, all combined to ruin the national cause. The Empress would not comprehend, notwithstanding the instances of the Emperor, of Mac-Mahon, of Prince Napoleon, that "it was at Paris alone that the Empire could be defended, at Paris that France could be armed, at Paris that the allies, who had promised their aid, could be constrained to pronounce their adherence." Through a false conception of the interests of the dynasty, it was resolved to go to Sedan, notwithstanding the Emperor, who said to Mac-Mahon: "Since it is

so, let us go and get our heads broken." The last volume of M. Ollivier's work, *L'Empire libéral: études, récits et souvenirs*, has appeared in this present year (1898), and completes an able and very interesting defence of a dynasty which has not found many apologists as yet.

General Trochu, military commandant of Paris during the siege, has also, in his *Mémoires*, published in 1896, dwelt upon the all-important part which the capital might have played in the great drama of the national defence. "I dreamed," he says, "of a Parisian population forgetting before the grandeur of the common peril its animosity toward the Empire, in order to associate itself with us in the supreme effort which we were about to make in conjunction with it; of Paris, with its immense resources, put in a state of defence by the labor of a hundred thousand arms and, after a brief delay, rendered impregnable." This theory of the great importance of the capital is, however, by no means held by all the military critics of the war.



AVENUE DE L'OBSERVATOIRE, FROM THE CARREFOUR.

It is, perhaps, well to dwell, at some length, in any effort—however superficial—to appreciate the present condition and the promise for the future of this nation and this capital, on this period of the war with Germany, for the burden of contemporary testimony seems to be that there has been, practically, no recovery from the blow. Nothing is more interesting in contemporary sociology than the tone of depression, almost of humility, of lack of national elasticity and self-assertiveness, in the current

French literature. There are still to be met with, of course, the familiar assertions that France is "the cradle of enlightened liberties," the "hope of struggling nationalities," and similar vague phrases, but always qualified with some allusion to the present depression and extinguishment. These admissions appear on every hand:—in *Le Temps*, of November 7, 1898, in its review of the second volume of M. Samuel Denis's *Histoire contemporaine: La chute de L'Empire*, we read: "The period comprised between the 15th of July, 1870, and the last months of the year 1875 is, perhaps, of all our national history, the most fruitful in dramatic events. It is, without any doubt, that which has for us all the keenest interest,—the most poignant. The history of these days of mourning, it is what our fathers did, with their tears and with their blood, and it is the history of events which still oppress with all their weight our national life. It is that which constitutes our malady; it is, that after twenty-eight years, we are still the vanquished." The Duc de Broglie, in an article in the *Revue des Deux Mondes*, July 1, 1896, a review of the colonial policy of the Third Republic between the years 1871 and 1896, a period in which her ministers strove—with very doubtful success, he thinks—to recover in some degree the prestige lost in the war and in the subsequent check in Egypt, *vis-à-vis* with England, sums up: "We are not alone in bearing the heavy heritage of the war of 1870; all the world has its part in the sentiment of general uneasiness, from which no one escapes. It is the common condition, and even though France should be the only one to suffer from it, the other peoples, still, should not resign themselves to it without mortification.... Well! behold it revived, this sombre right of conquest, in all its nakedness, in all its rigor;—it has installed itself in the very centre, in the full light of civilization, and all, statesmen as well as doctors of philosophy, political and social, have bowed before it.... So long as this spectacle lasts, a brand is imprinted upon the front of modern society like a *memento homo* which recalls to it that the progress with which it flatters itself has purified only the surface and which notifies democracy, so proud of its puissance, that it is only a dust of men, a plaything, like all human things, of all the winds that blow of brute strength or of fortune."

Some interesting details have recently appeared concerning the official residence, the Tuileries, under the last of the French Empires. For the commonplace furniture which they found there, the Emperor and the Empress gradually substituted other, much more luxurious. His apartments

were on the ground-floor, communicating by a small stairway with those of the Empress on the floor above. There, the first salon, in pale green and gold, reserved for the chamberlains and the ladies of honor, was furnished with a great mirror in which were reflected all the gardens, the Champs Élysées and the Arch of Triumph in the distance; this room gave access to the pink salon, of which the chimney-piece was in white marble, set off with lapis-lazuli and gold, and the ceiling represented the Arts rendering homage to her Majesty. From this salon the visitor entered the blue one, where she gave private audience, "always receiving her guests graciously and manifesting an unwillingness to part with them." Beyond the *salon bleu* was a little cabinet with a secretary, a little boudoir, the library with small ebony tables, the dressing-room, the oratory, entered through folding-doors, and finally the bedchamber of the Empress.

The Imperial couple breakfasted in their apartments *tête-à-tête* but the dinner was served in state and in full dress. On Sundays, after *déjeuner*, the court heard mass in the chapel, the voices of the singers were accompanied by harps, and the sermon was never to exceed a half-hour in length. The Emperor, wearing the uniform of a general, sat through the service in imperturbable gravity, his hands crossed. On Good Friday, the *Stabat Mater* was chanted by the best artists; the ladies were in black, with long black veils.

A species of military discipline was imposed upon all those who were lodged in the palace. All the doors were closed at midnight, and the officer of the guard reported next morning all the delinquents who came in later. No workman from outside was admitted into the palace, all alterations and repairs were under the charge of the officials of the *Régie*. In addition to the military guard, a brigade of special police exercised a constant surveillance over the neighborhood and all the entrances of the building. The agents, costumed *en parfaits gentlemen*, stood about in groups at all the doors, and, without interrupting their conversation, watched narrowly all those who presented themselves for admission. When the Emperor went out, in a phaeton or brake, driving himself, a small unpretentious coupé or brougham followed him everywhere, a short distance behind, and in it was the chief of police attached to his person. At the masked balls of the Tuileries, every gentleman was obliged to remove his mask on entering; police officials were stationed at all the doors, and several of them, wearing the Imperial

livery, passed about among the guests, serving refreshments. The official balls of the Tuileries were splendid, but invitations to the balls of the Empress on "Mondays," were the most prized. For this information, we are indebted to an article in the *Century Magazine*.

Typographical errors corrected by ebook transcriber:

Abelard=>Abélard

Maitre=>Maître

metres=>mètres

kilometres=>kilomètres

regime=>régime

Sébastopol=>Sebastopol

Salpêtrière=>Salpêtrière

*** END OF THE PROJECT GUTENBERG EBOOK PARIS, FROM THE
EARLIEST PERIOD TO THE PRESENT DAY; VOLUME 2 ***

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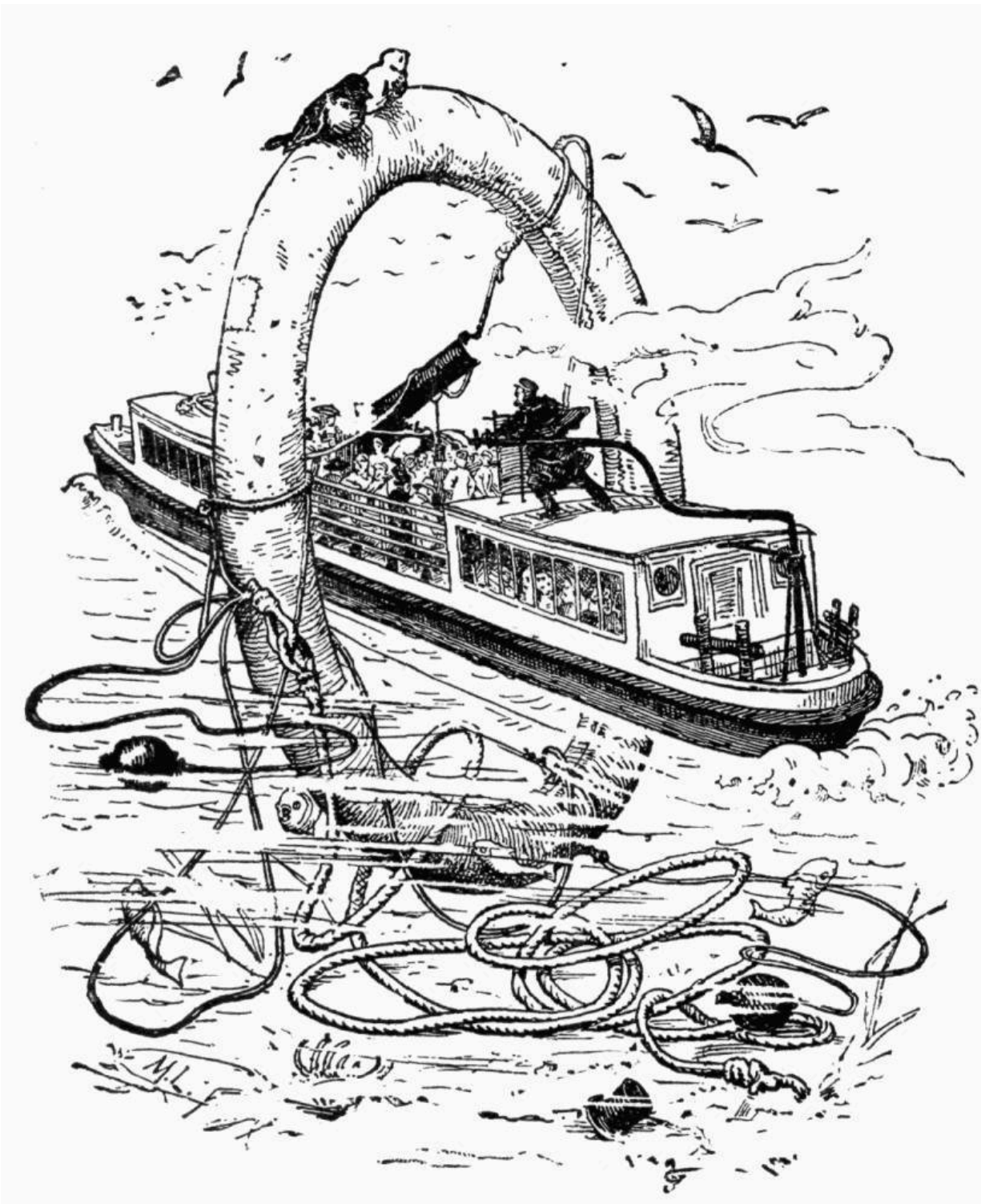
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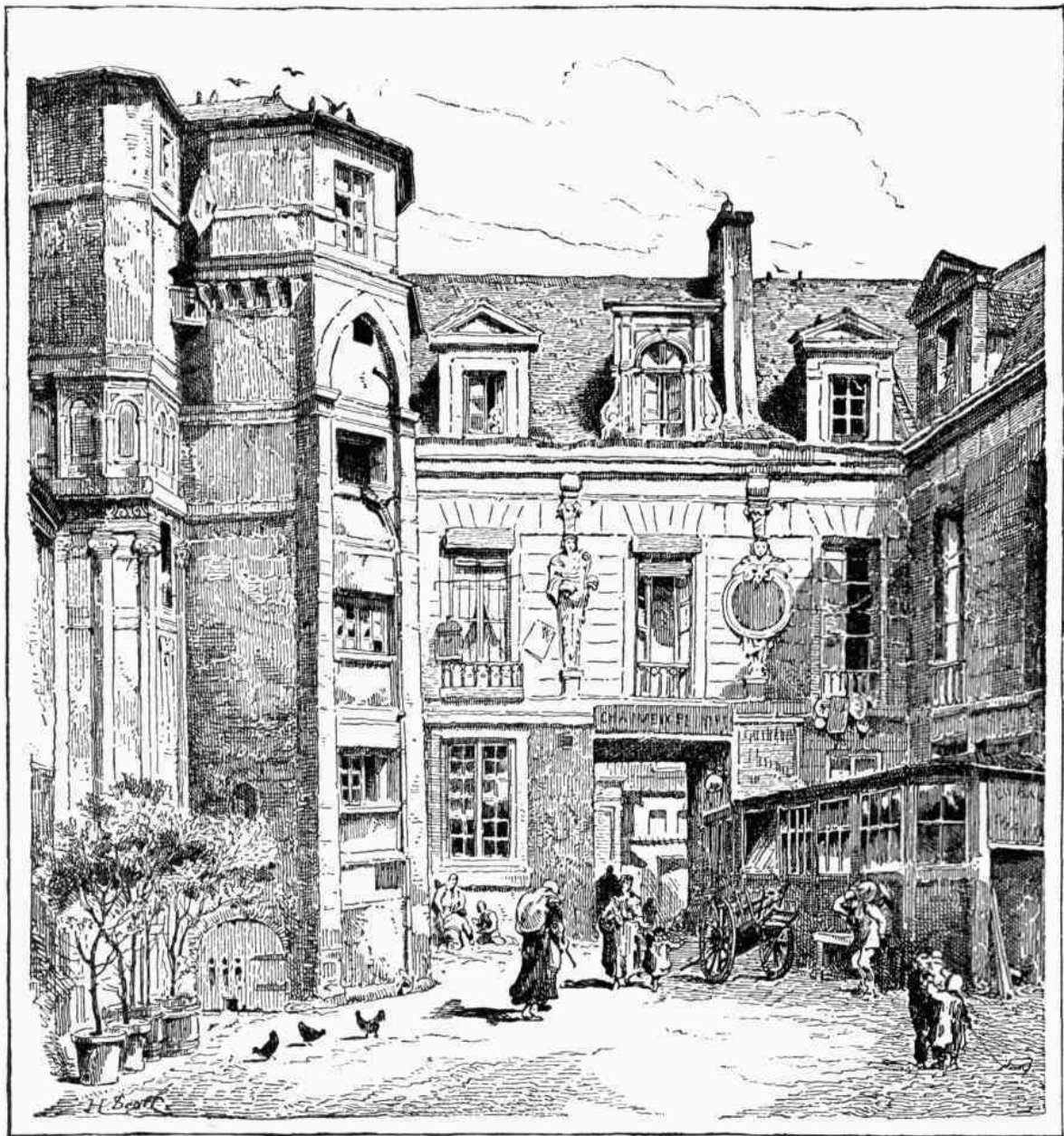
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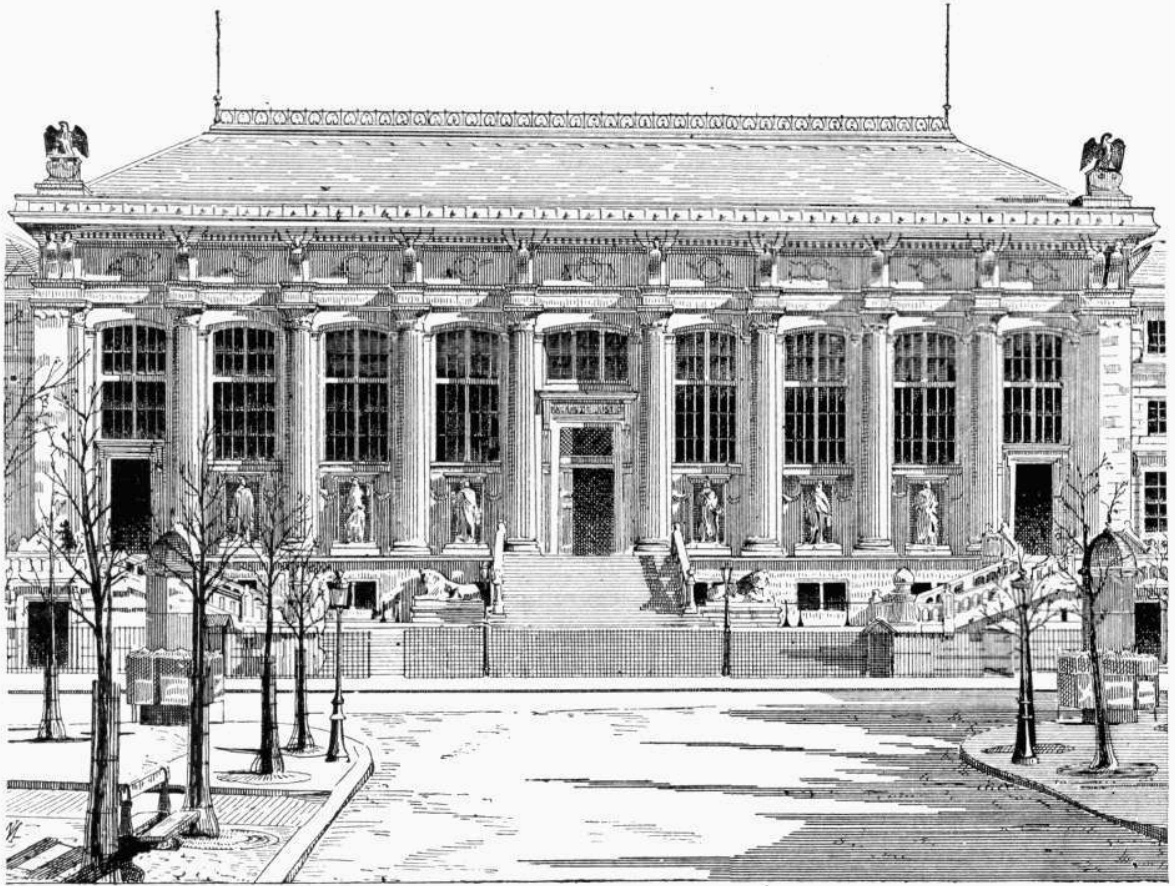
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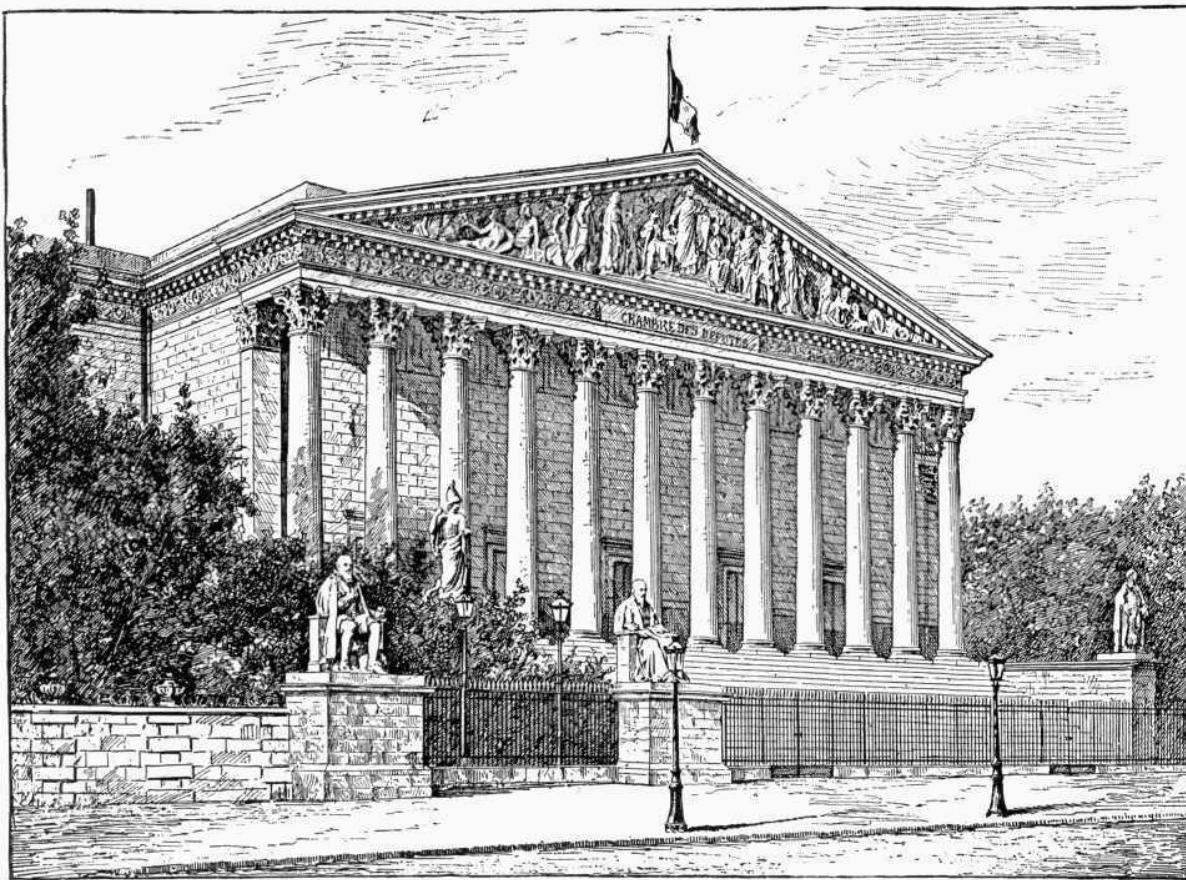
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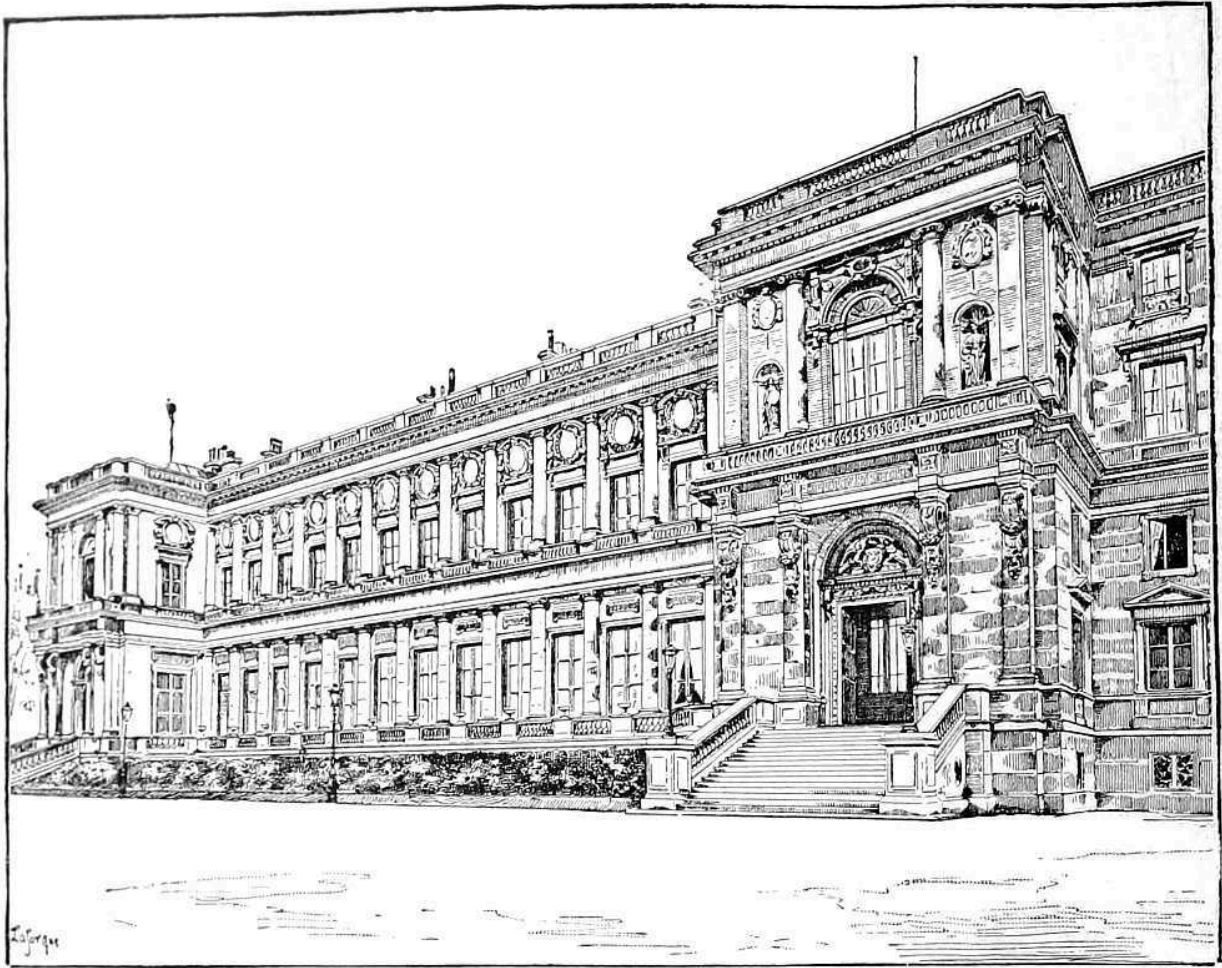
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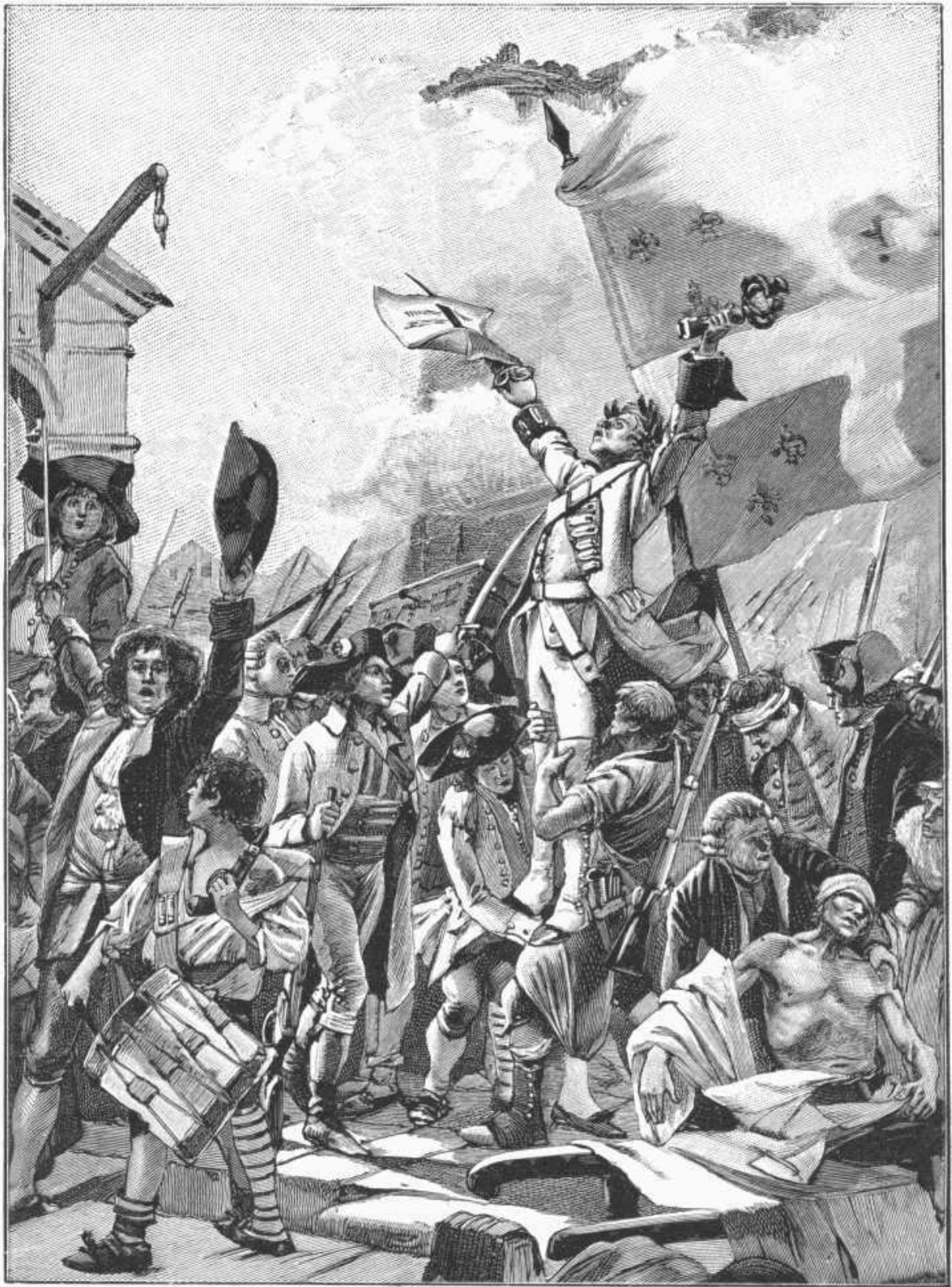
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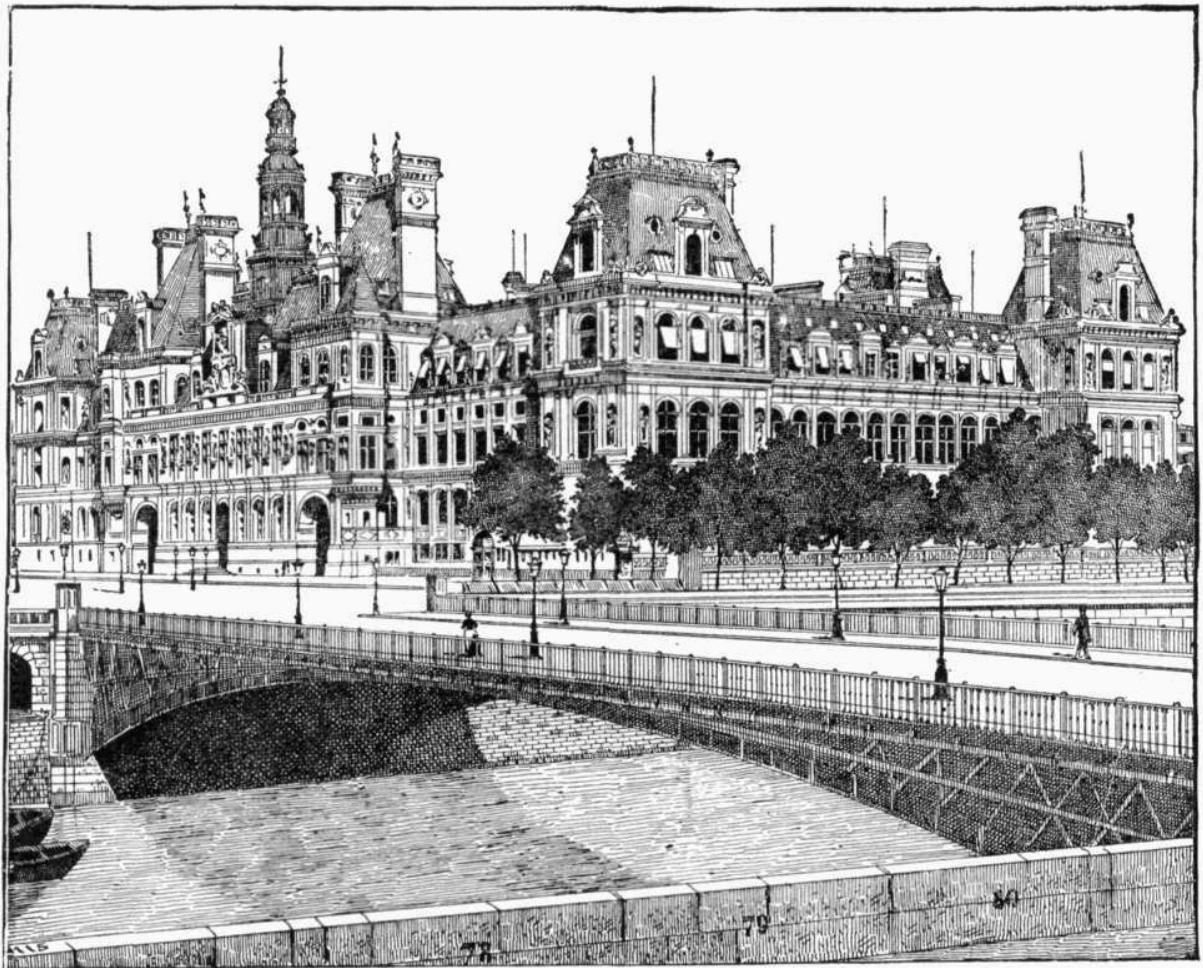
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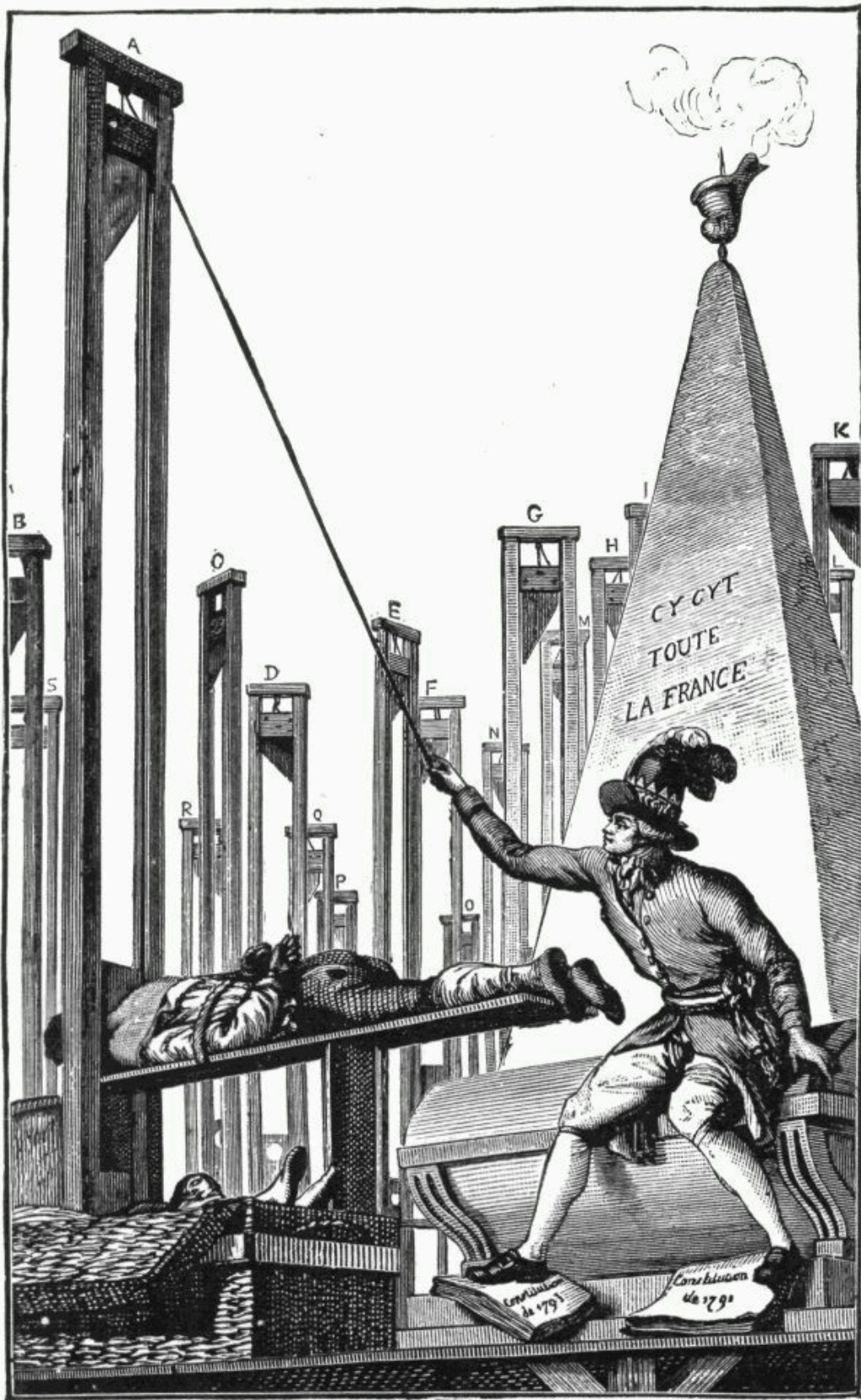
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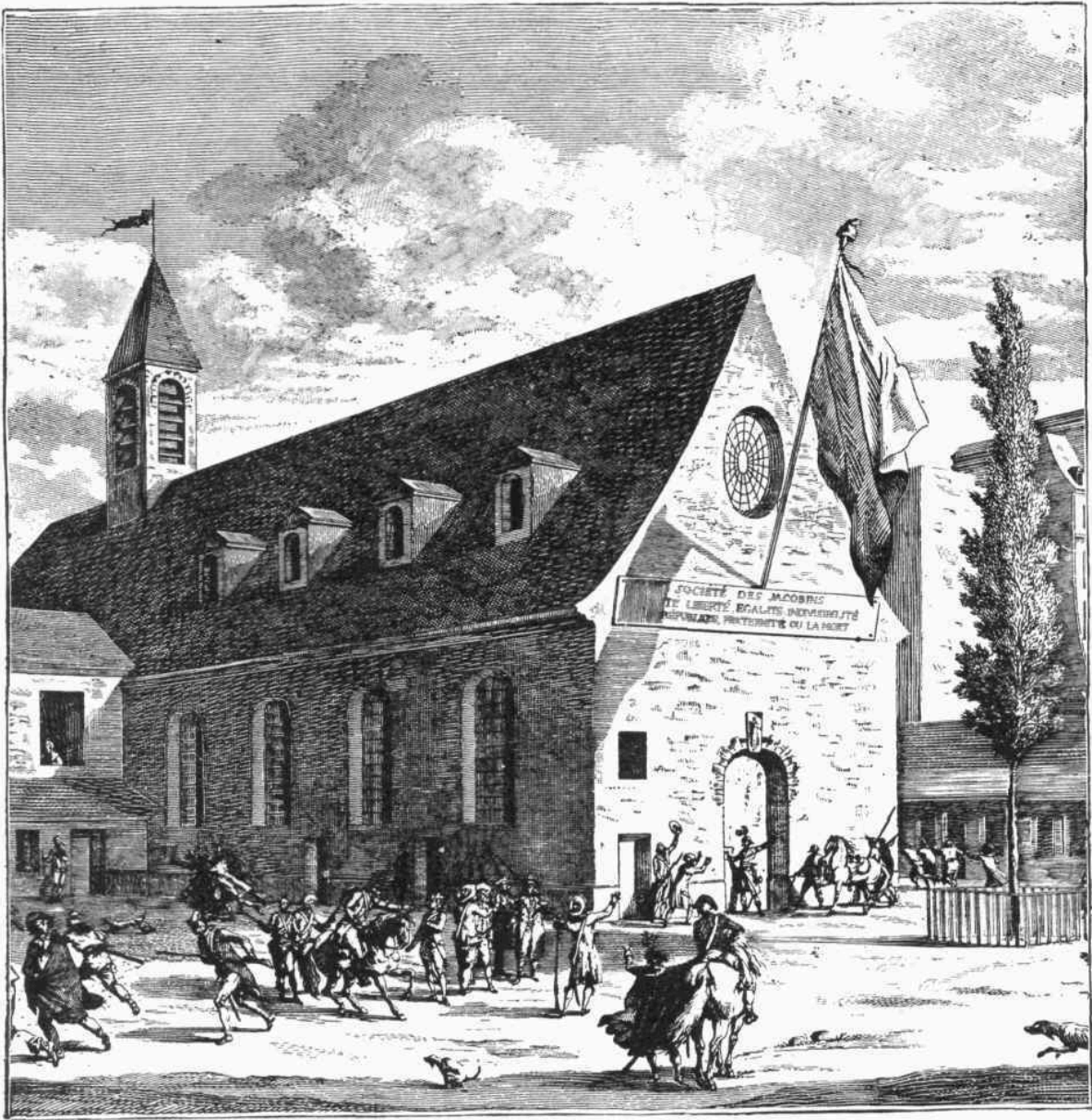
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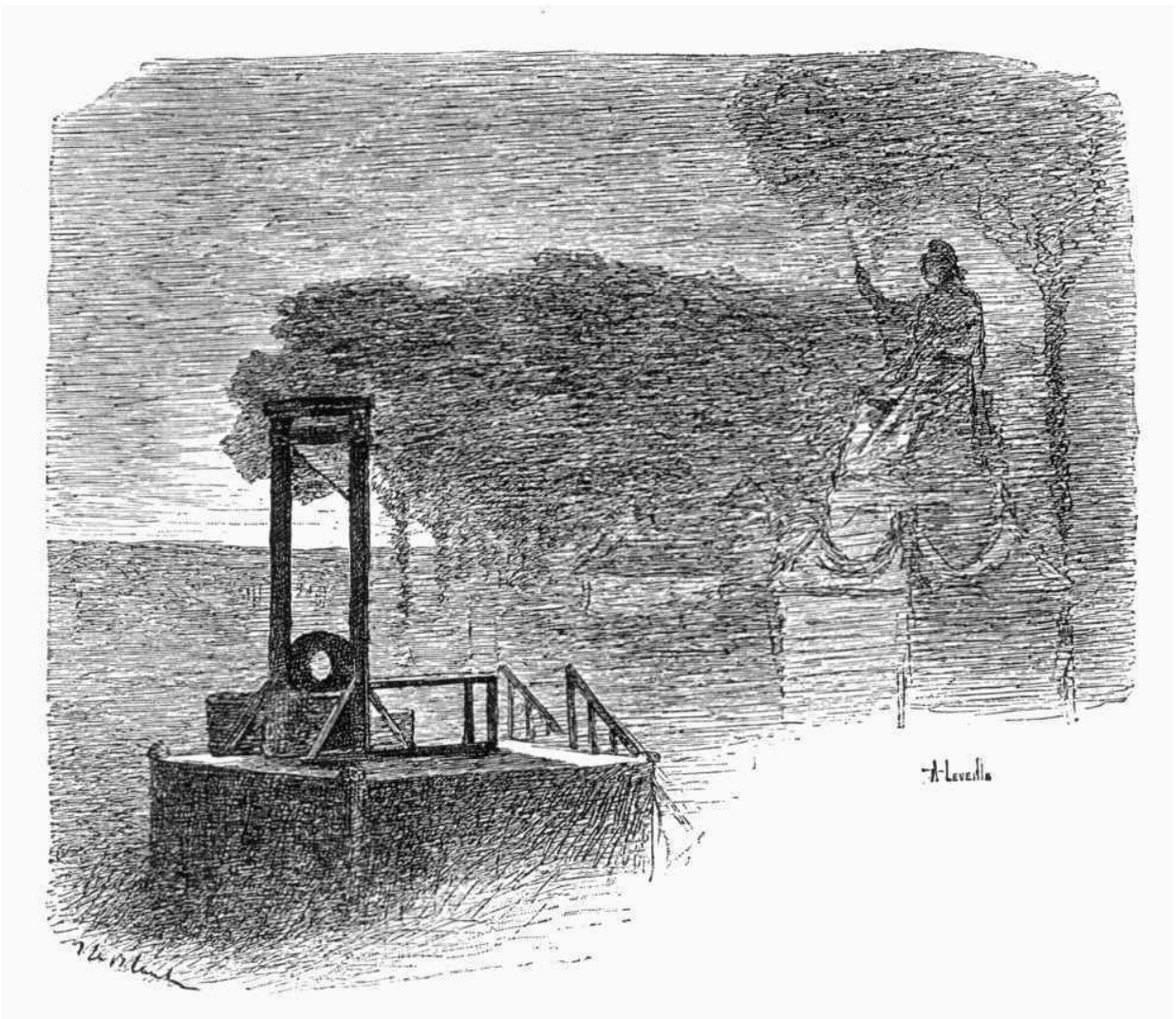
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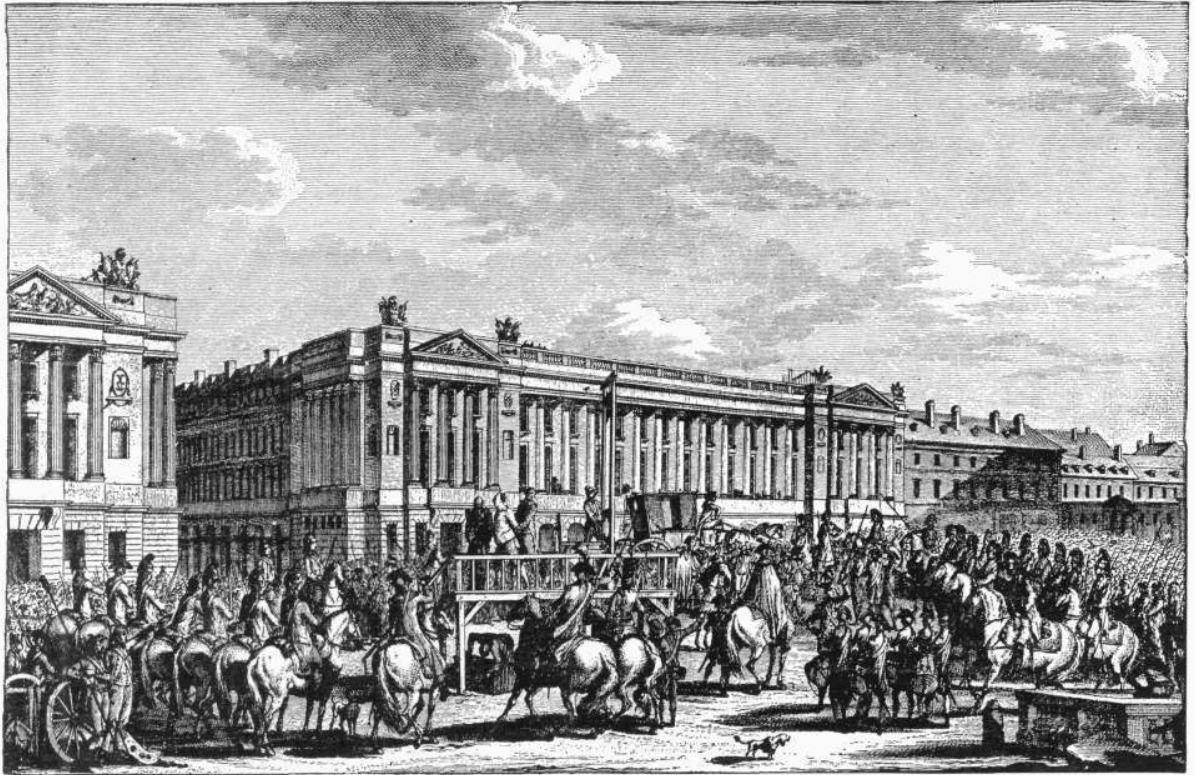
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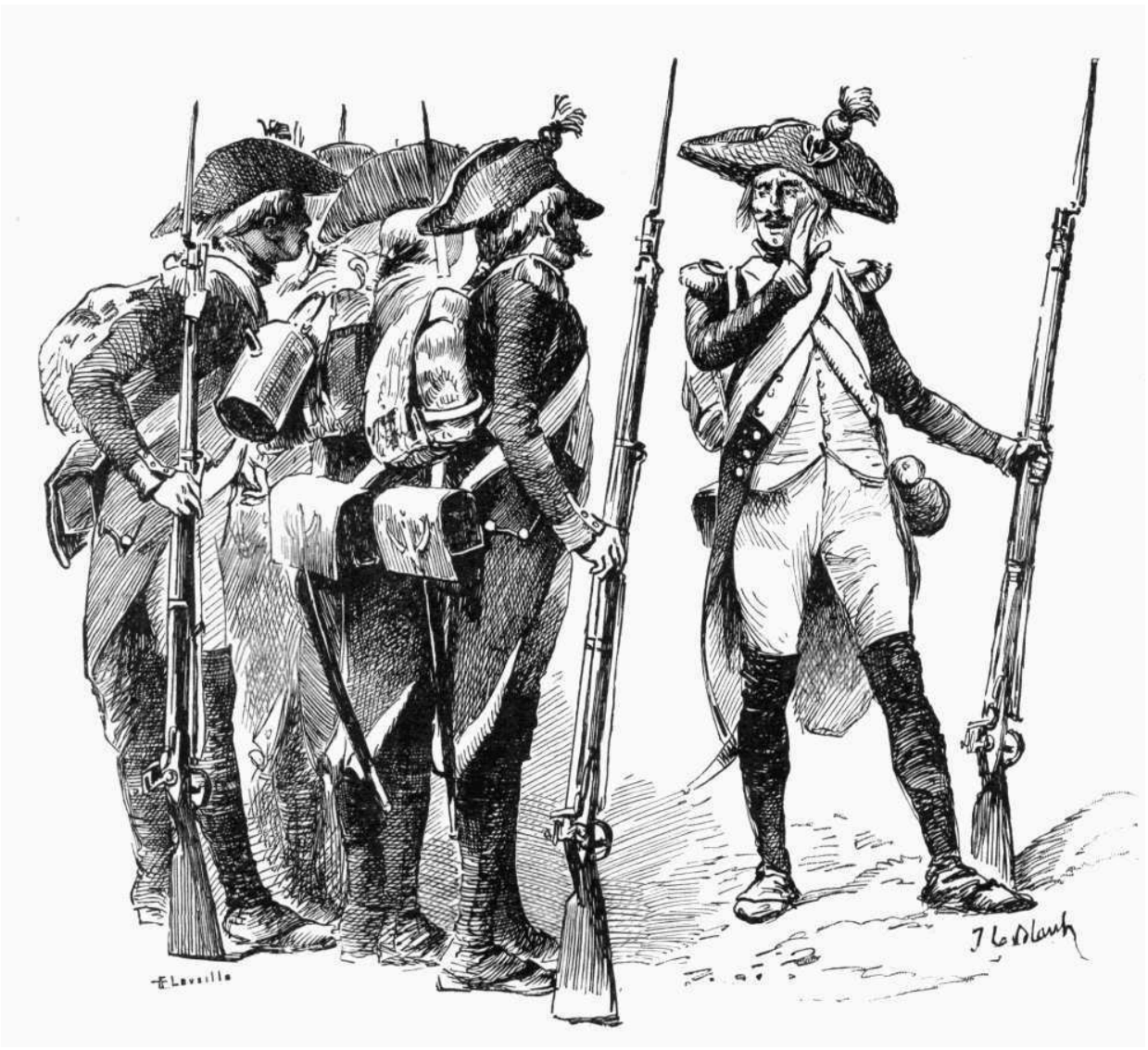
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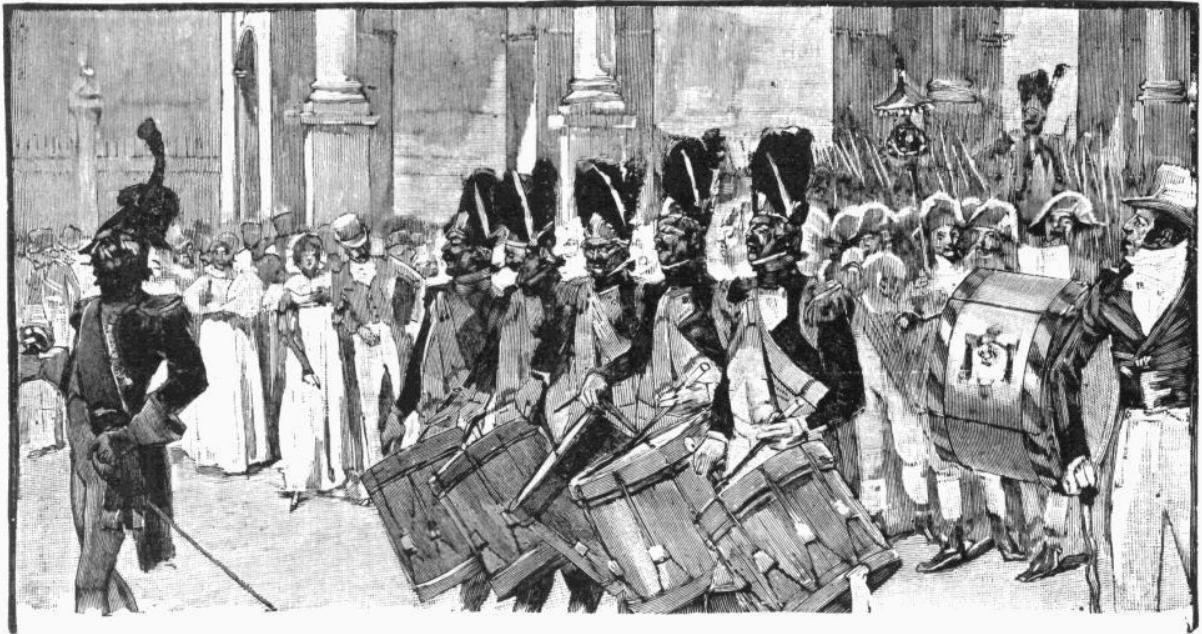
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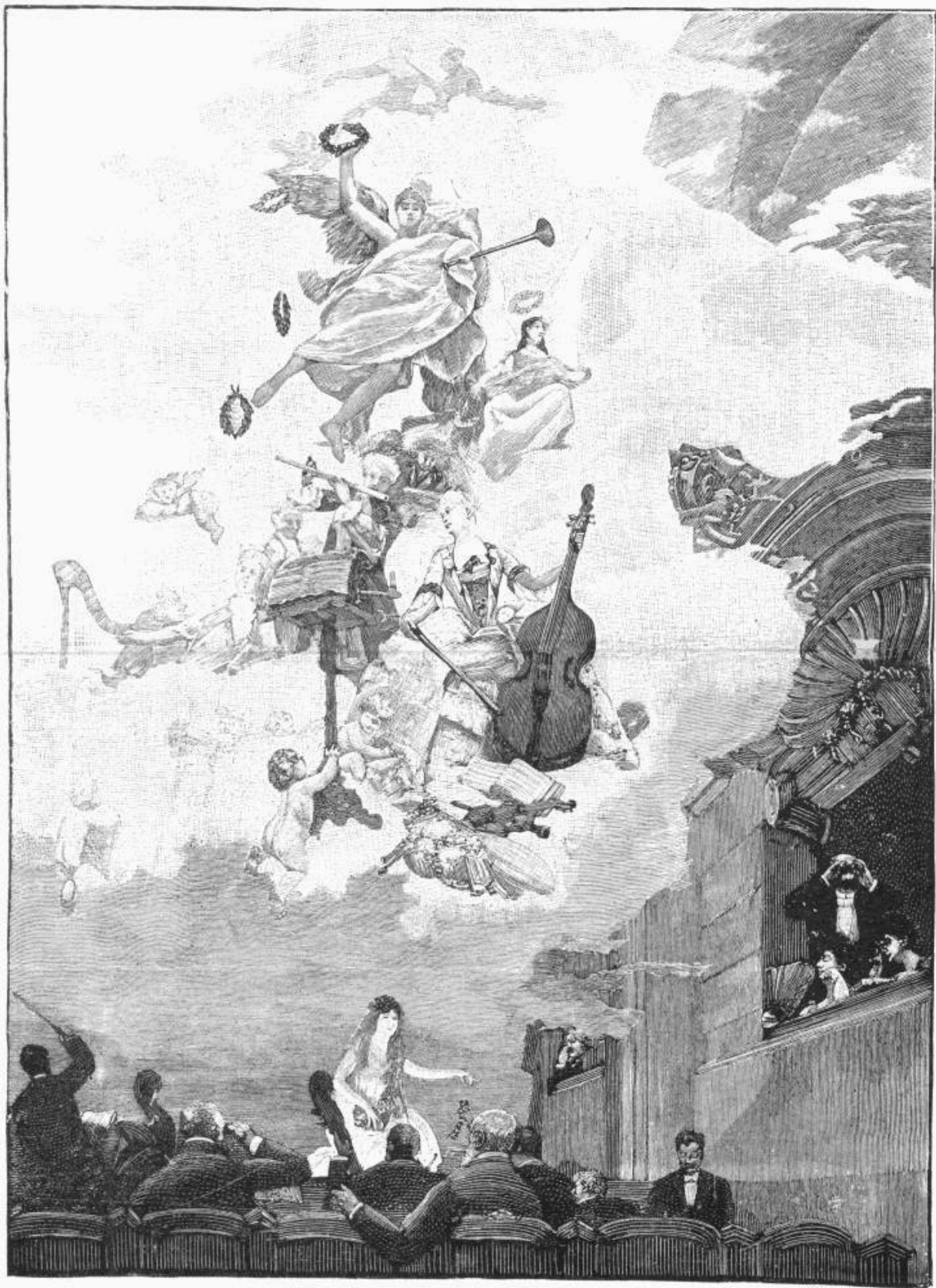
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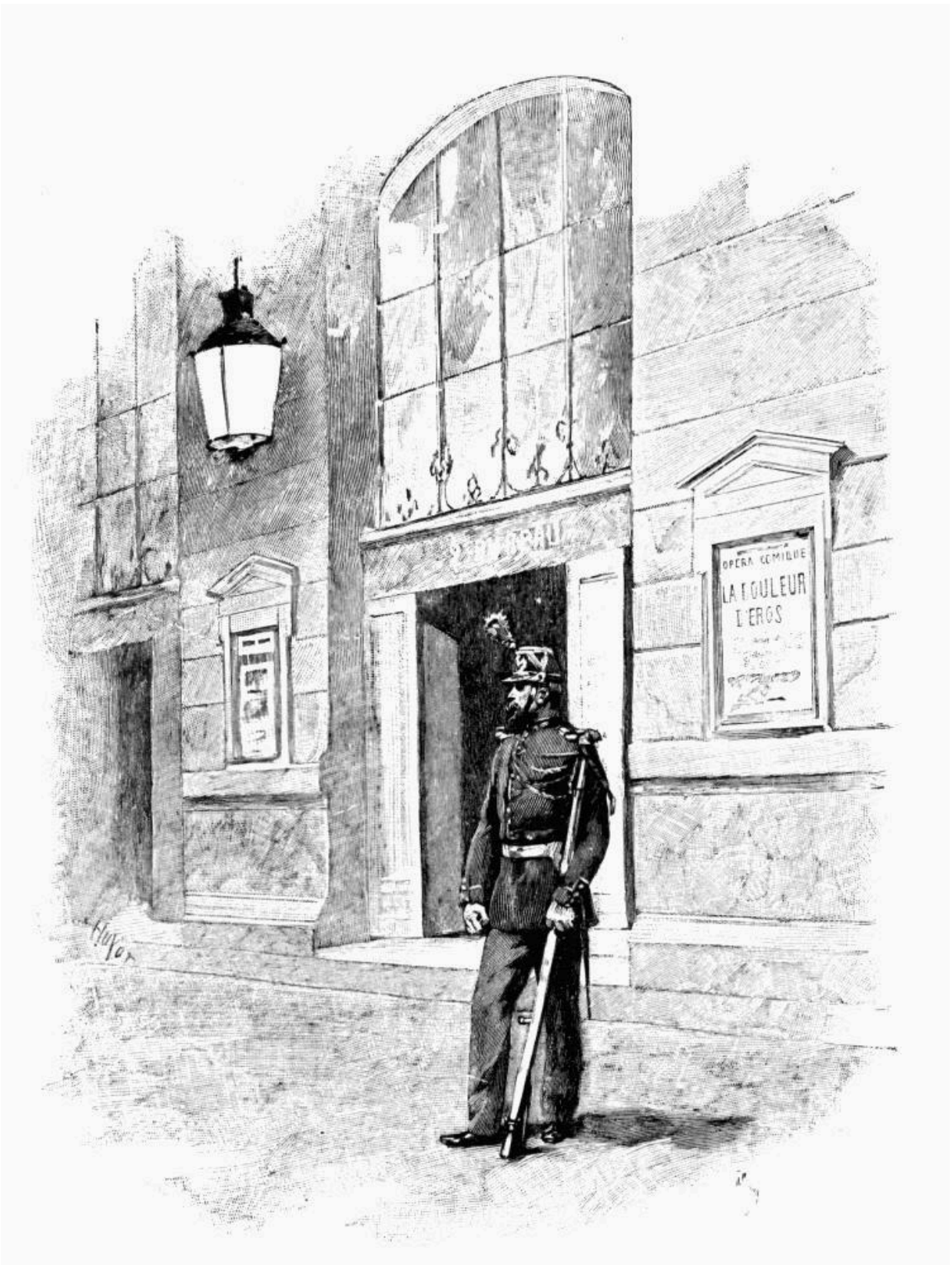
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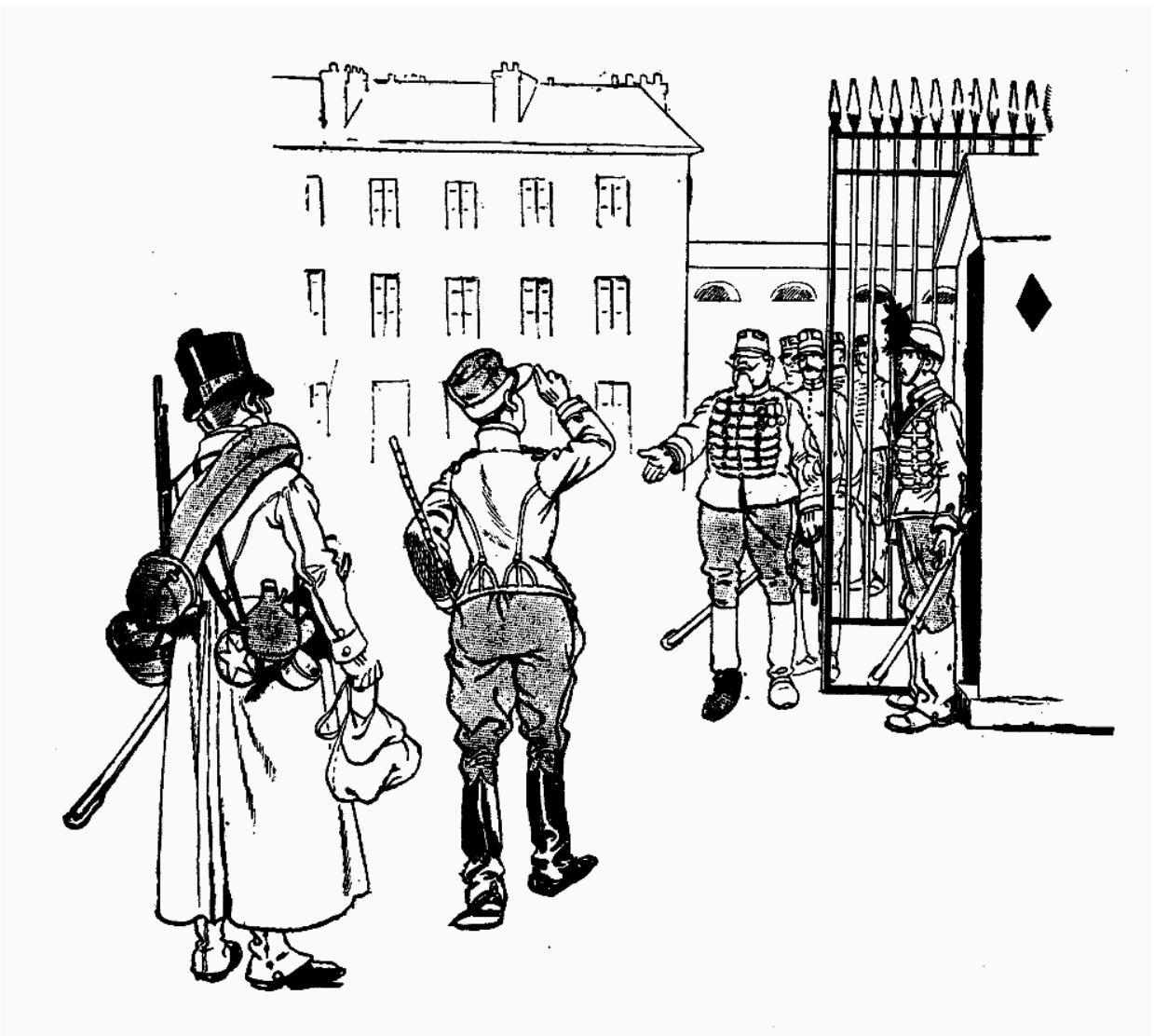
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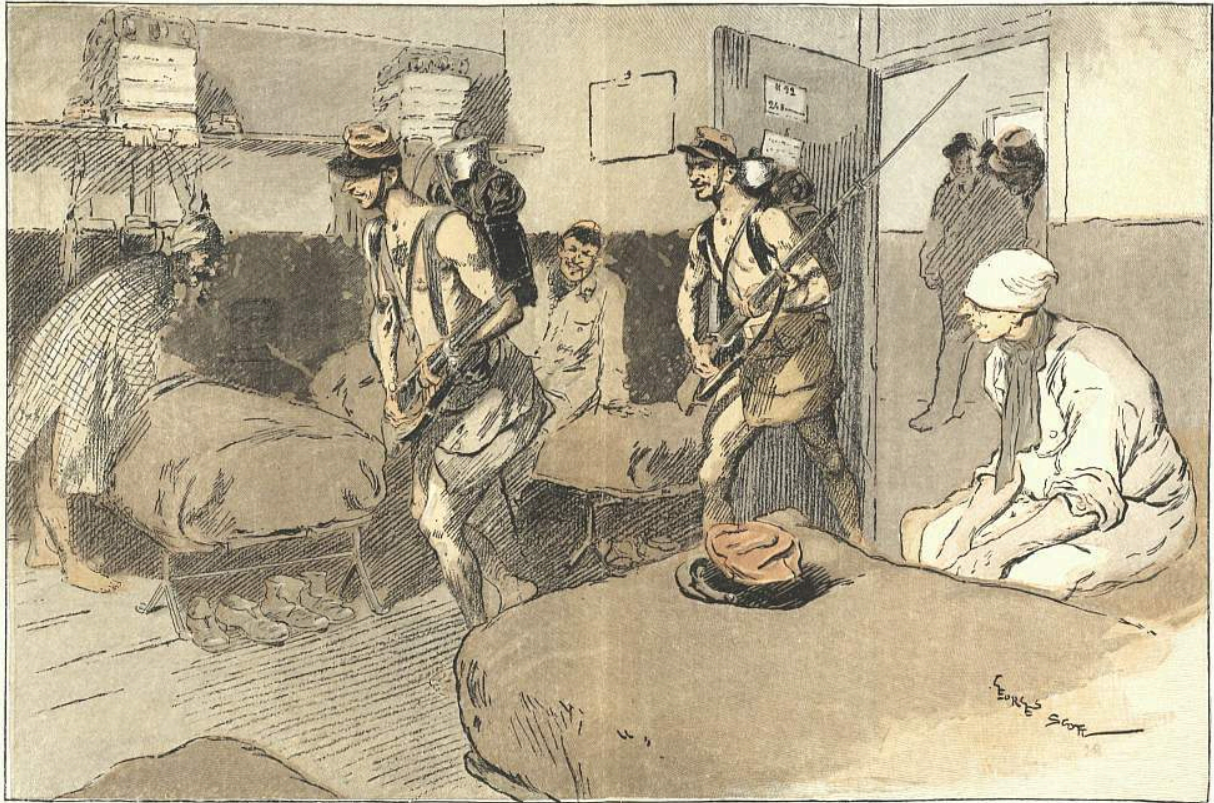
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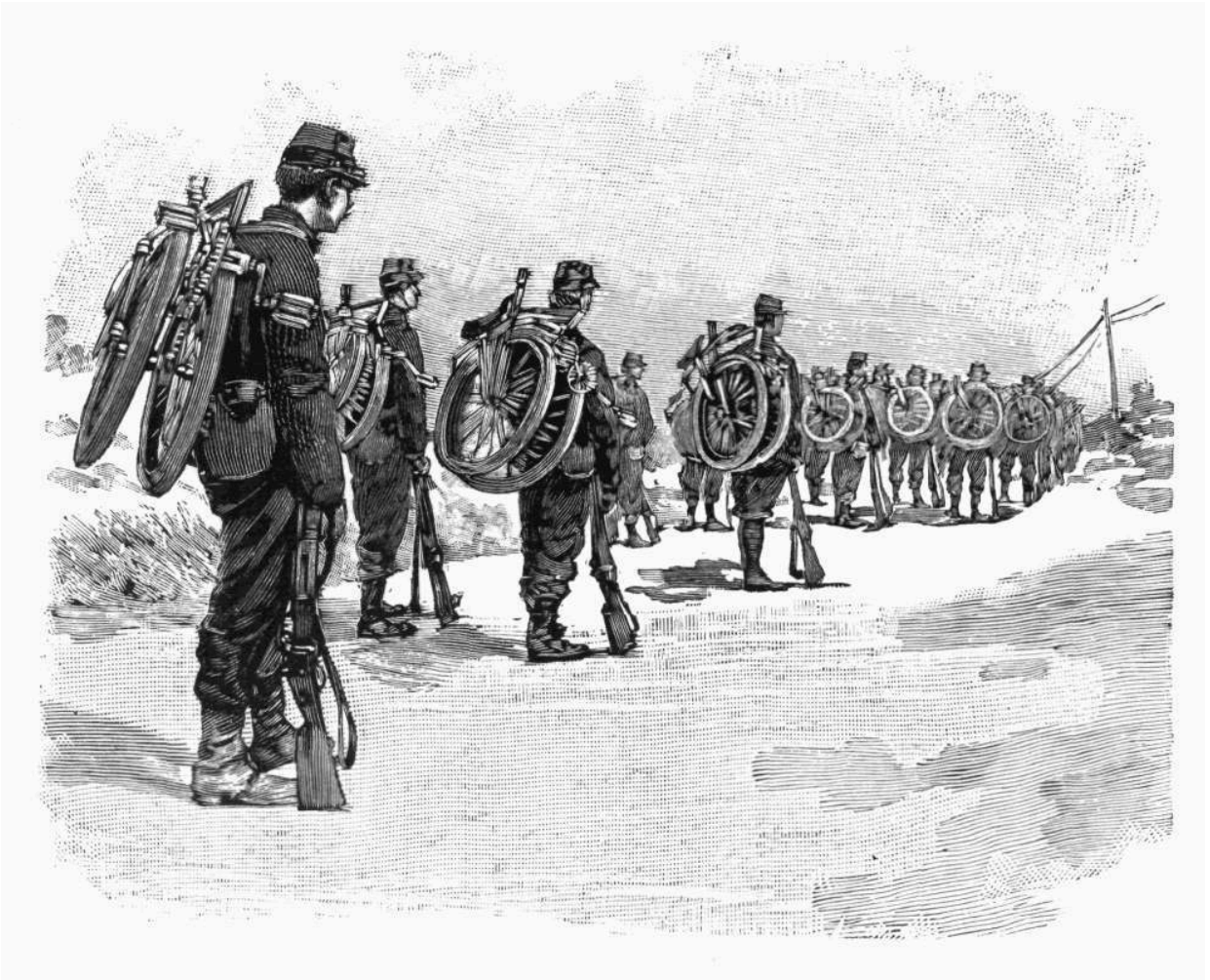
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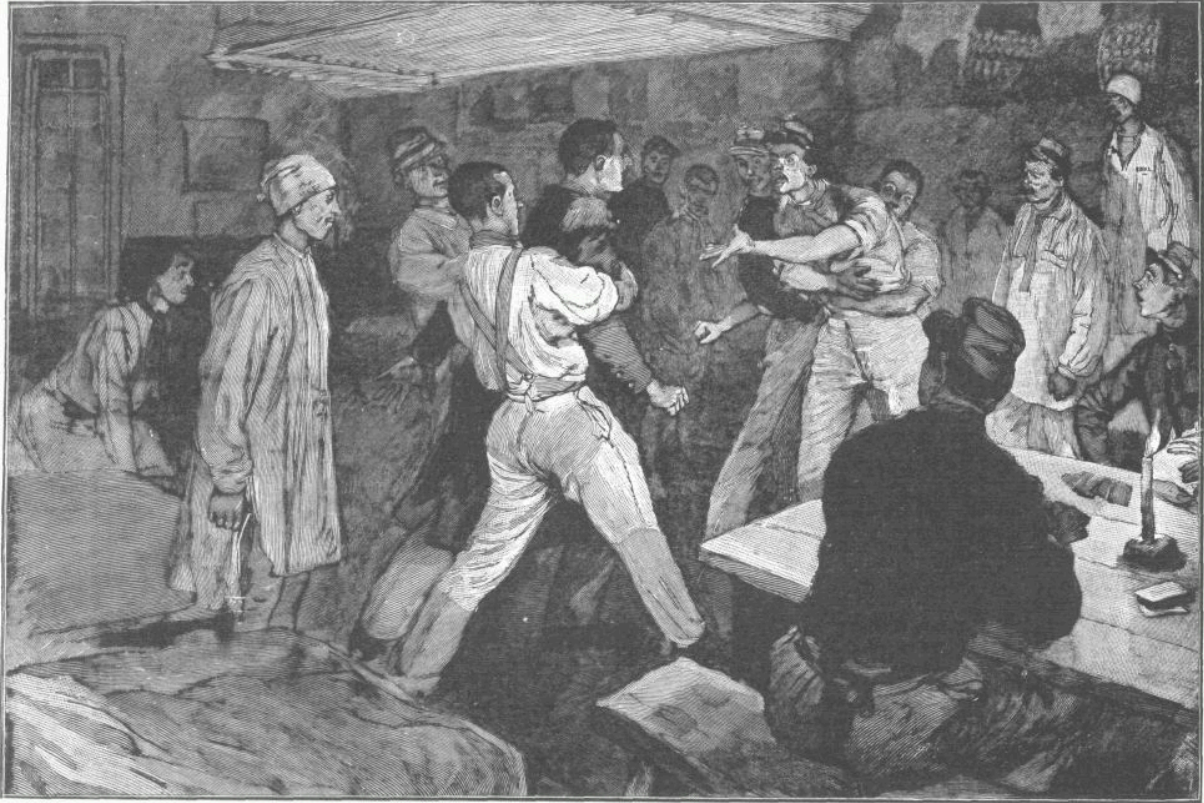
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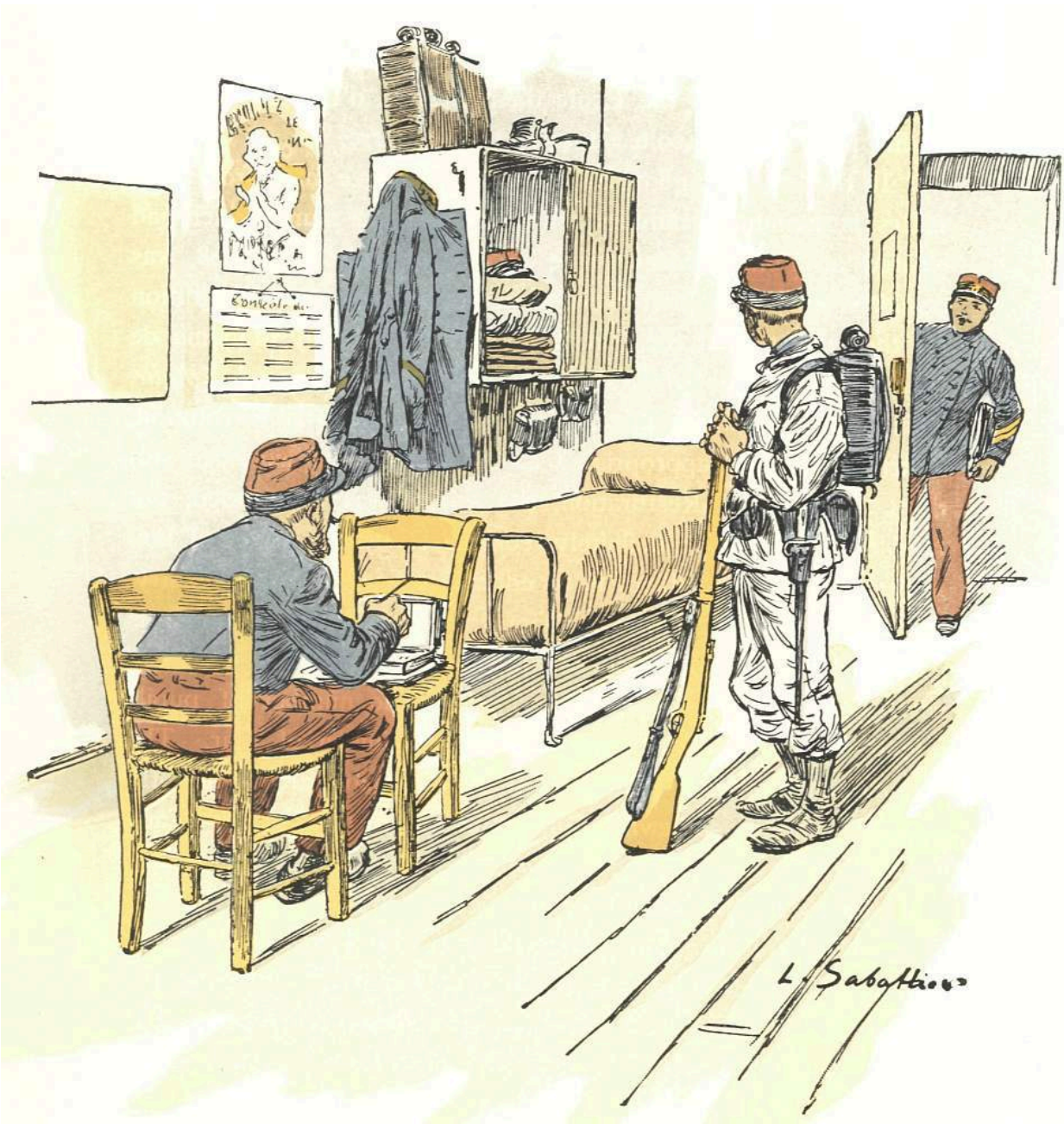
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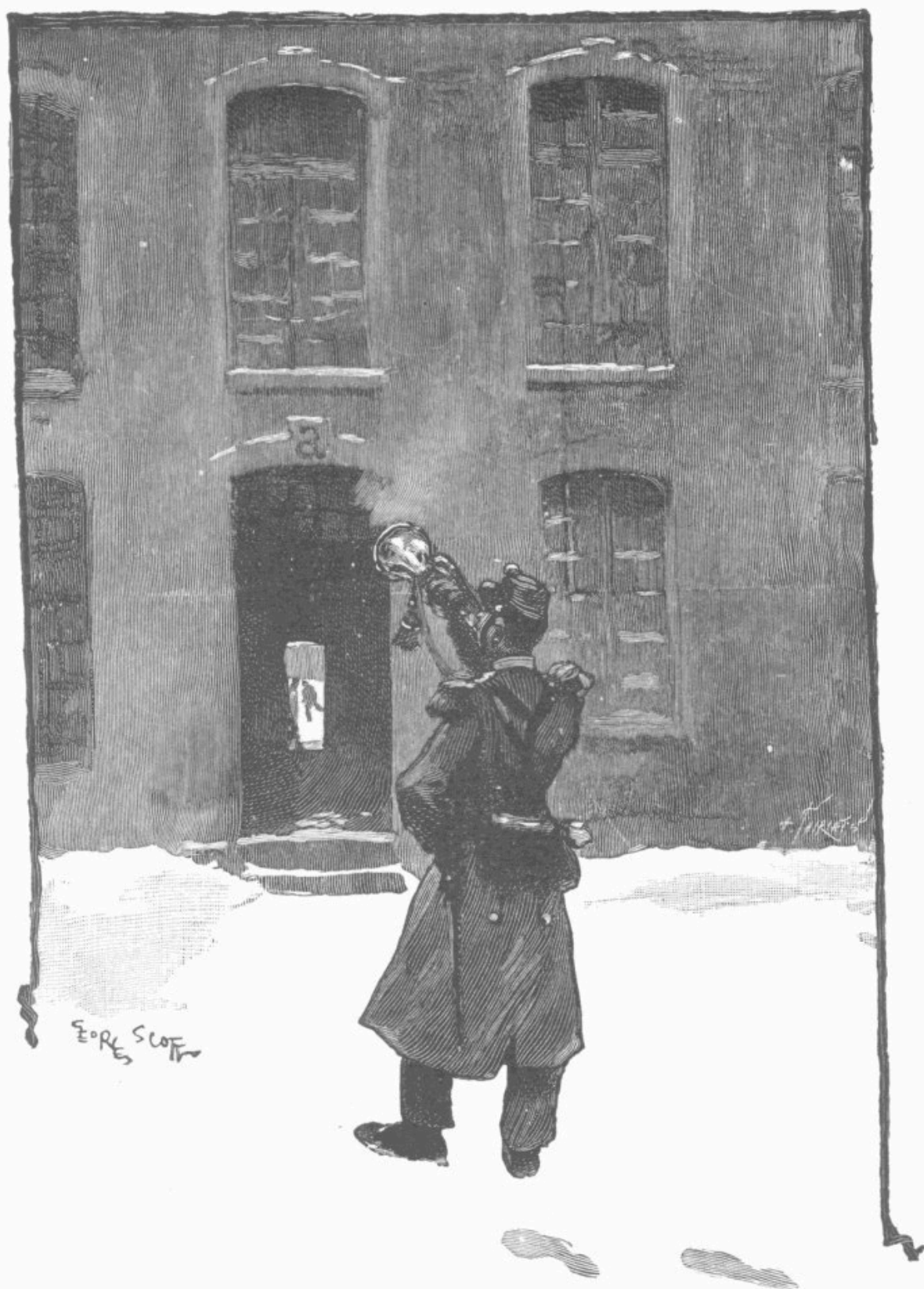
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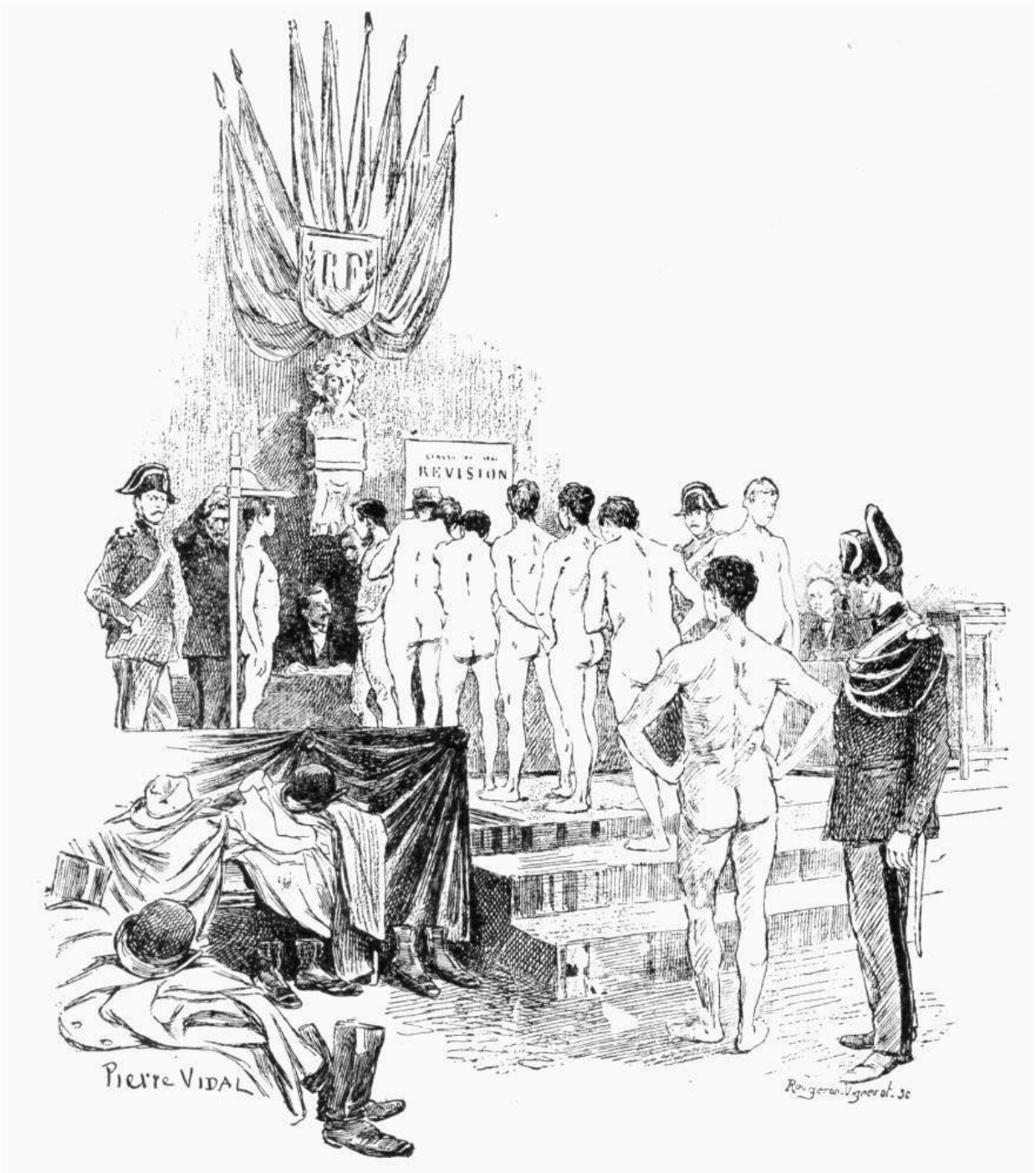
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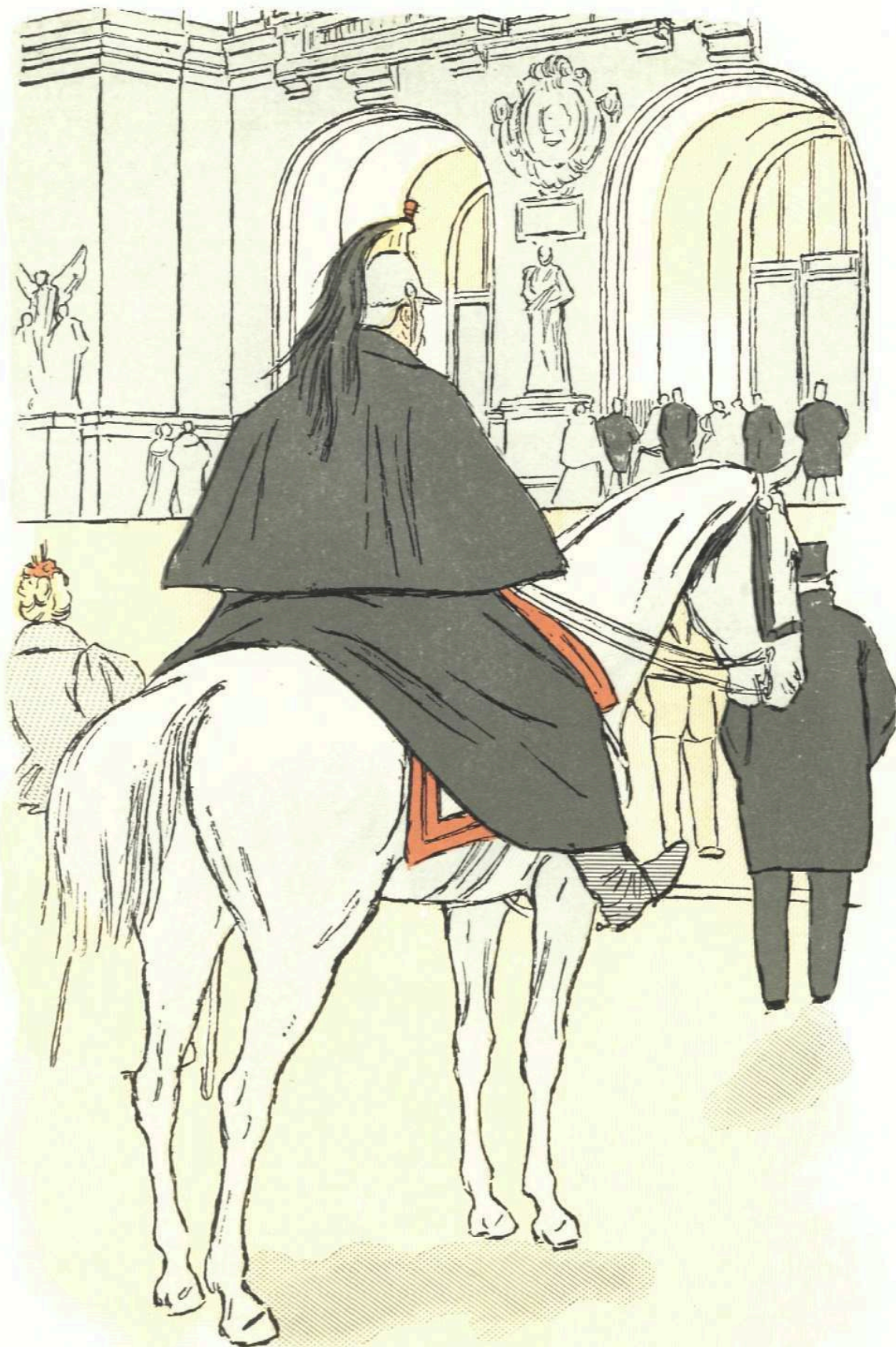
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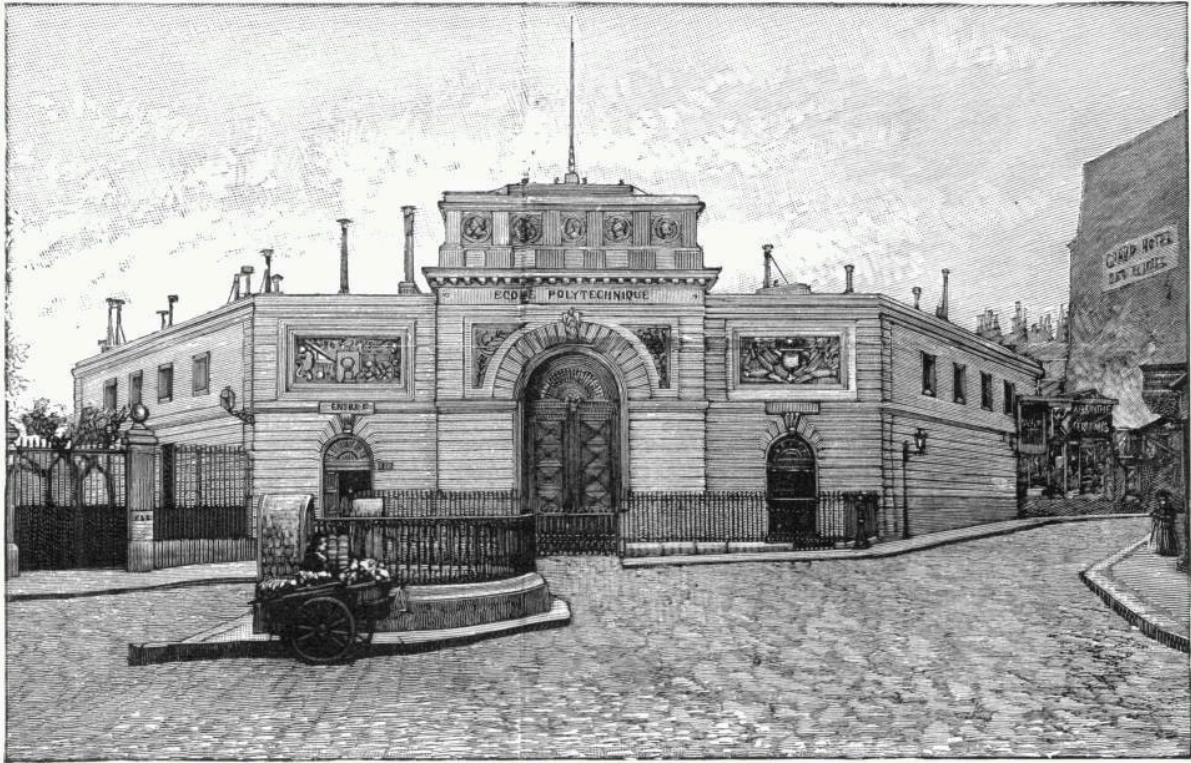
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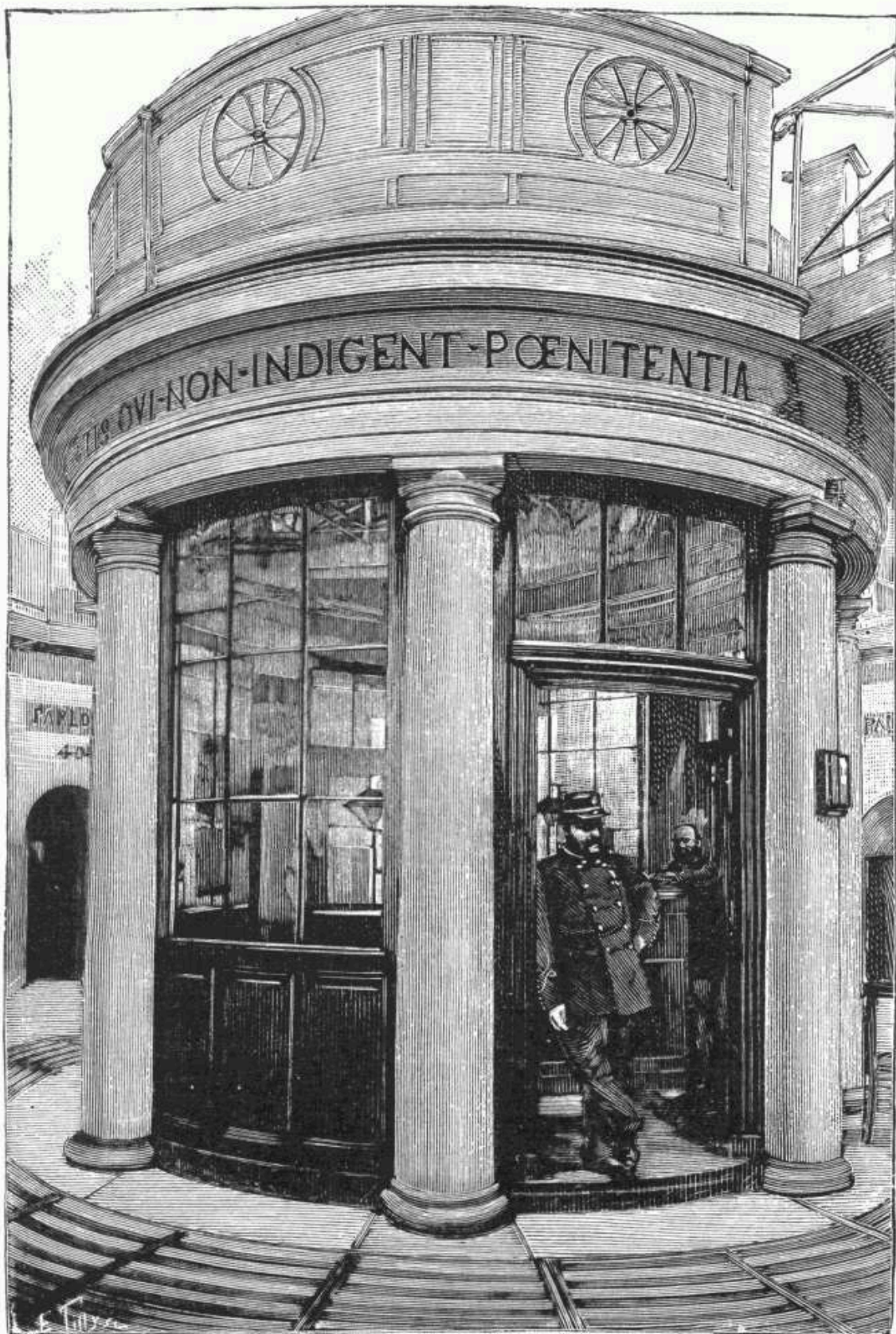
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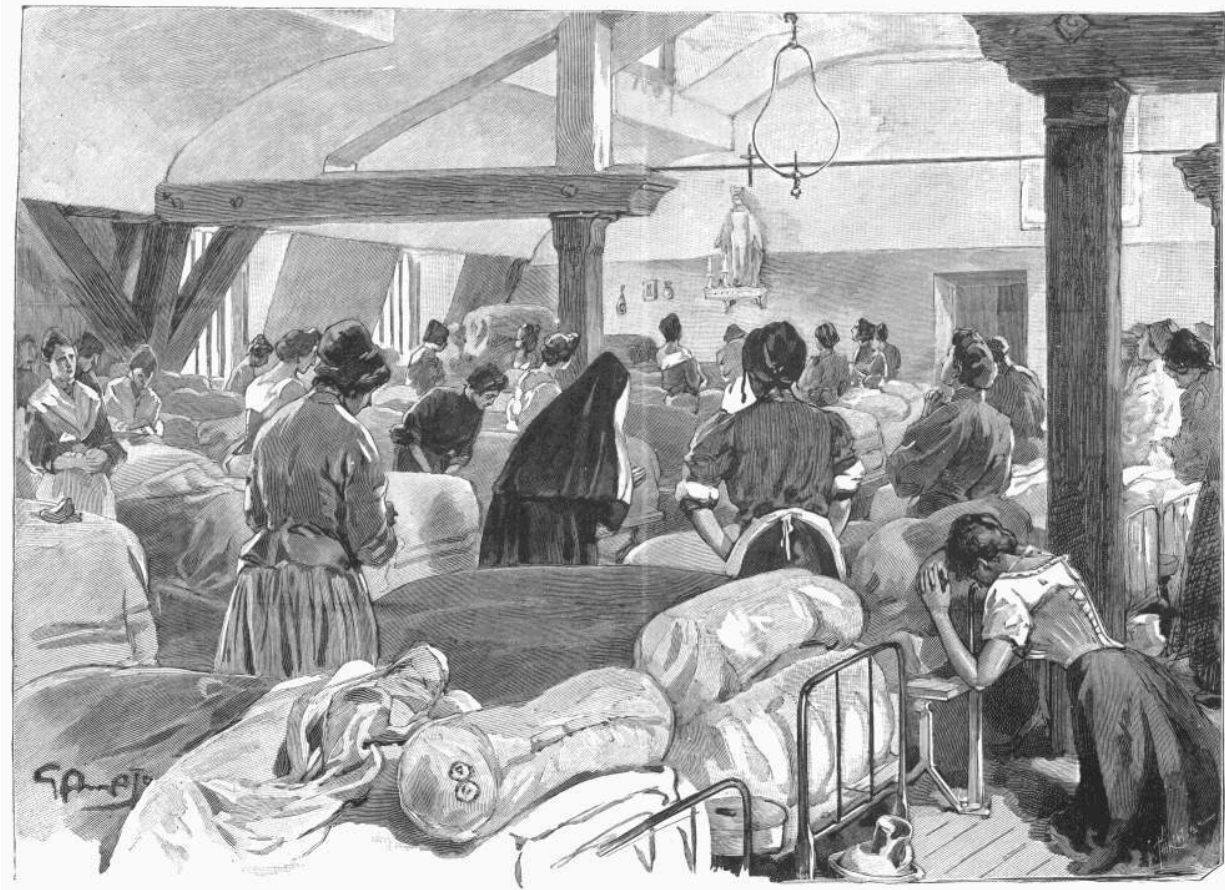
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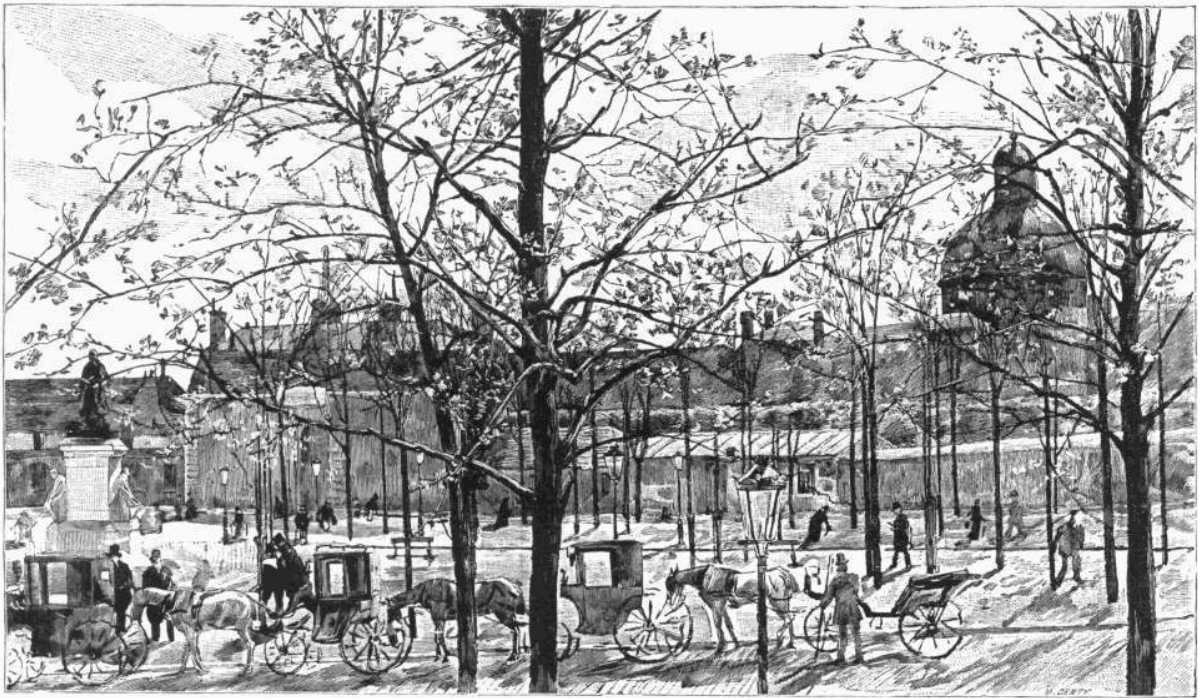
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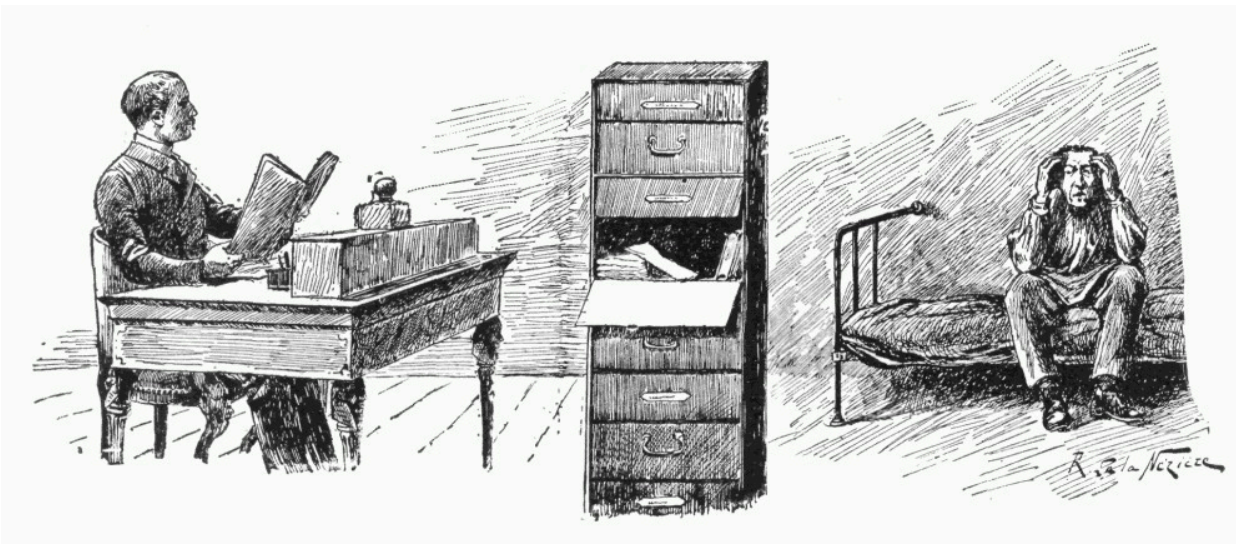
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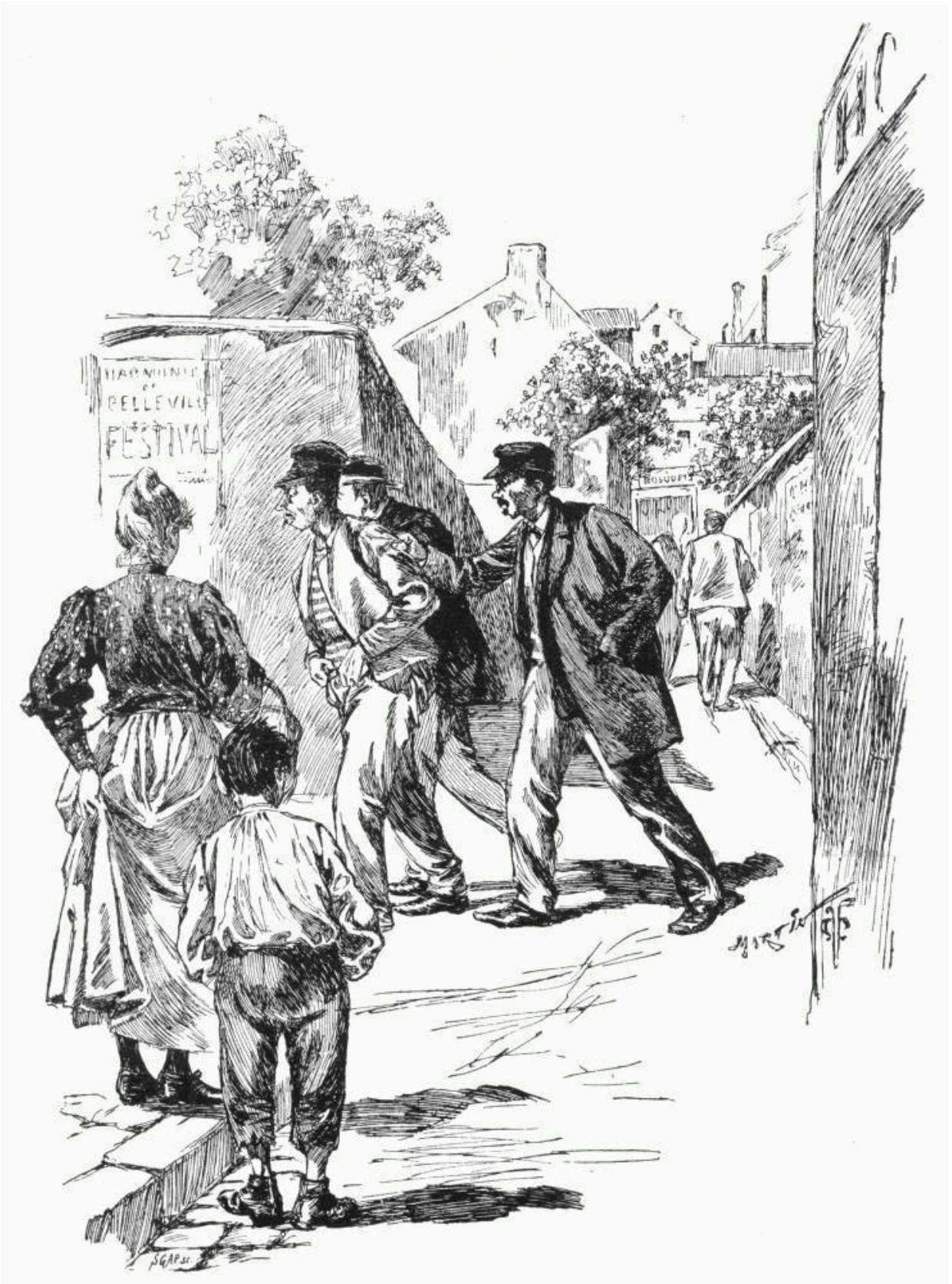
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TRIBUNAL DE 1^{re} INSTANCE DE LA SEINE
Bureau des Huissiers-Audienciers

POLICE CORRECTIONNELLE
CHAMBRE

ASSIGNATION A TÉMOIN

L'AN mil huit cent quatre-vingt-onze, le
à la requête

pour l quel domicile est élu en
J'ai
Huissier-Audiencier au Tribunal de première instance du département
de la Seine, séant à Paris, y demeurant, au Palais de Justice,
soussigné, donné assignation

COPIE

Taxe au témoin sur sa ré-
quisition la somme de
francs
centimes pour myria-
mètres parcourus à payer
par
Paris,
1891.

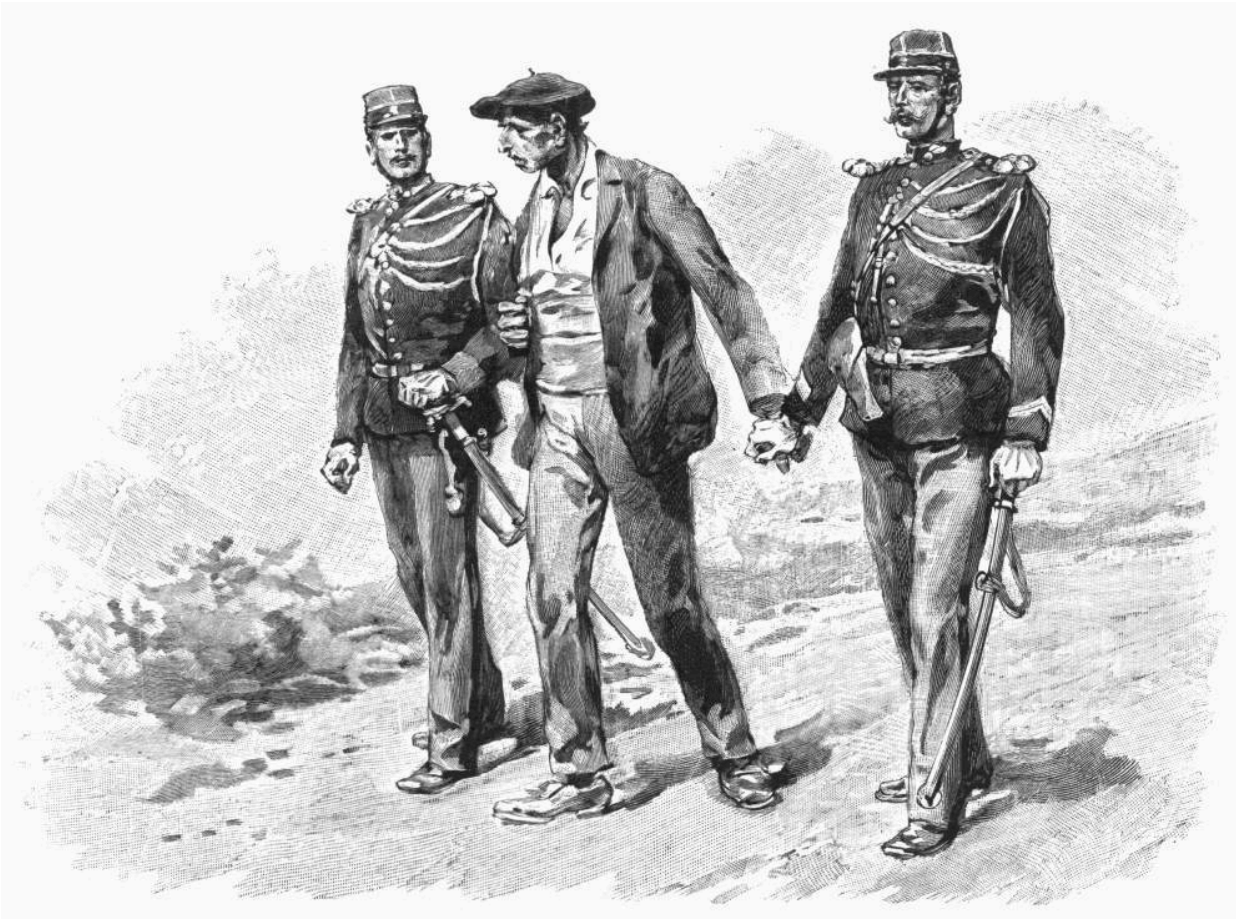
en son domicile, parlant ainsi qu'il lui a plu, à comparaître
en personne, le
à Paris, au Tribunal de première instance du département de la Seine, Chambre
correctionnelle, séant au Palais de Justice, à Paris.
Pour déposer vérité sur les faits dont il l sera
demandé à l'audience, dans une affaire concernant le
requérant et lui déclar
qu' sera tenu responsable à cause déplacement s
l'exige, et que faute de comparaitre, l'amendo
suivant la loi. Et je lui ai laissé cette copie. Cont.
francs centimes.

Il a été employé pour l copie de la présente signification
demi-feuille de papier spécial dont le montant est de

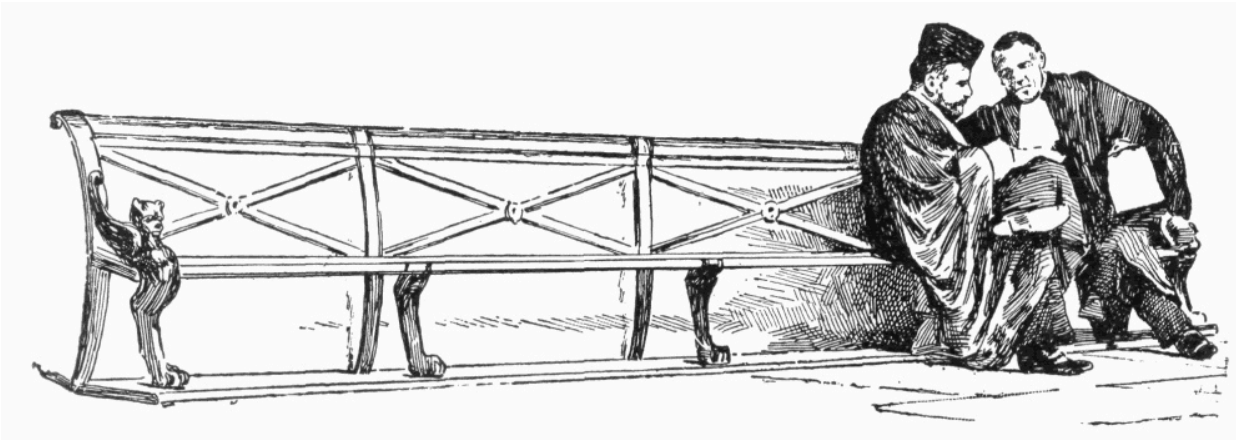
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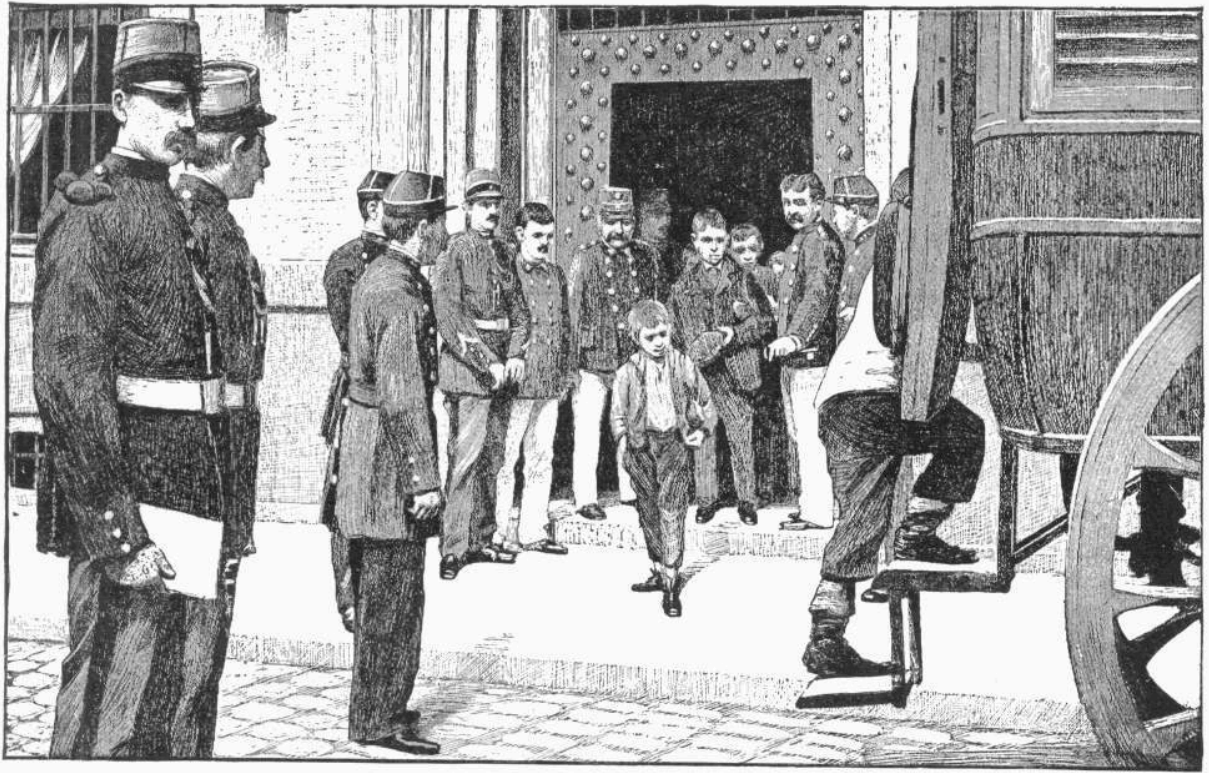
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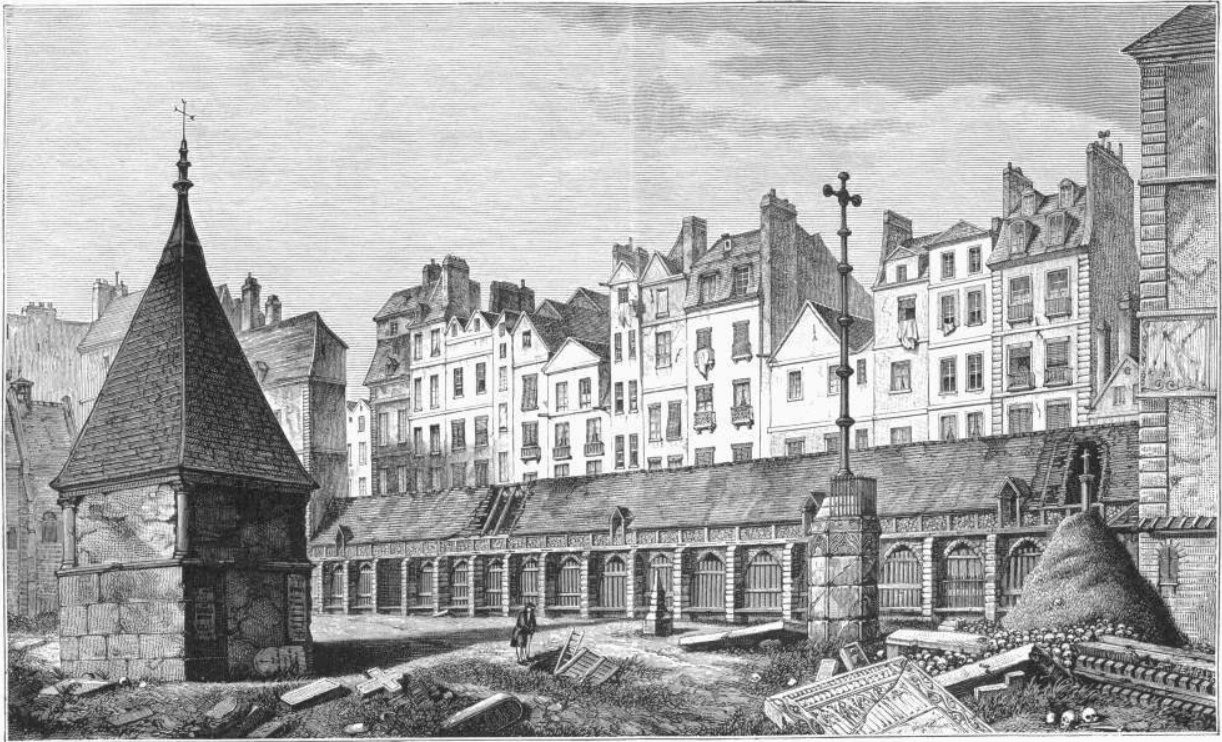
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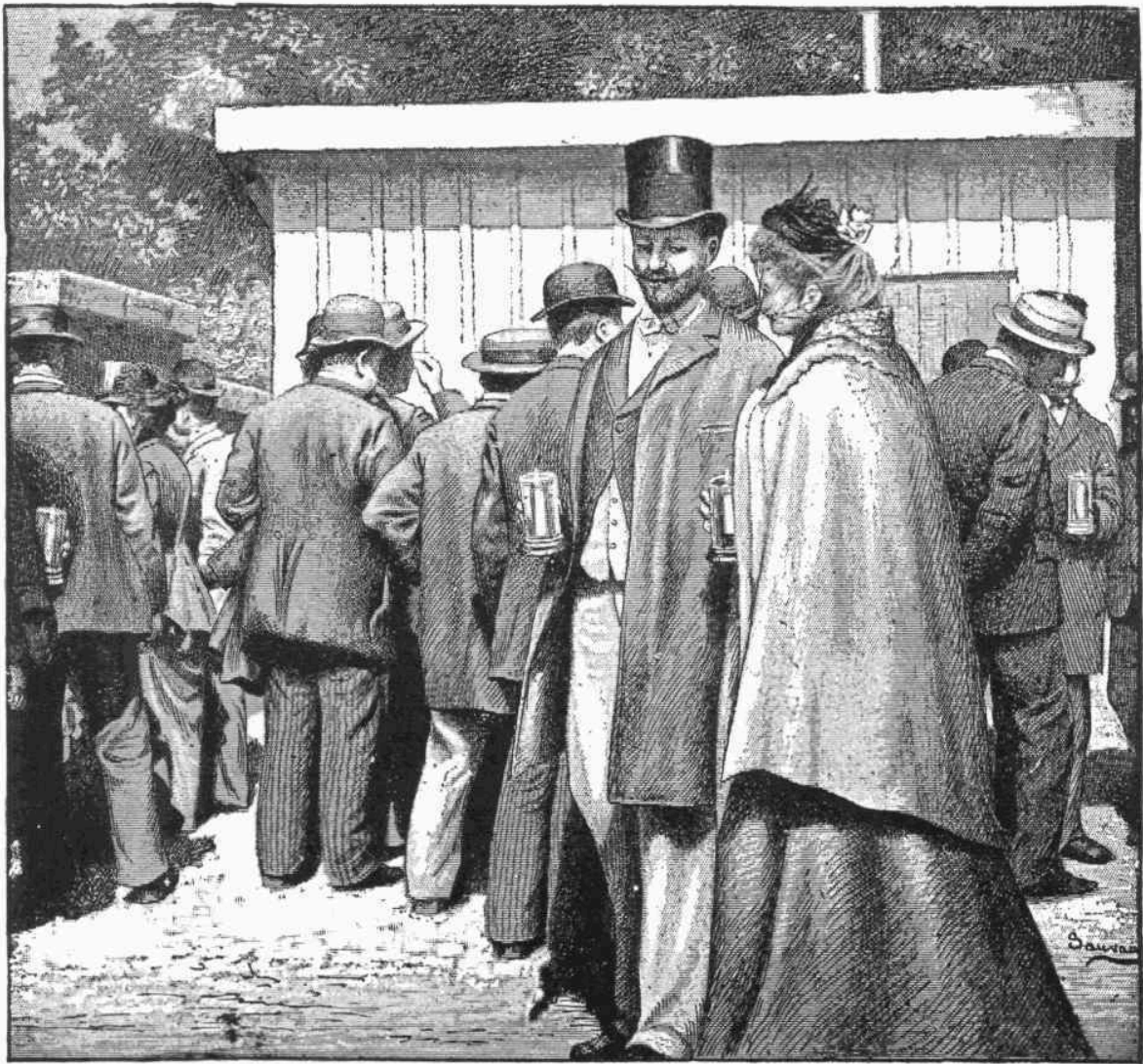
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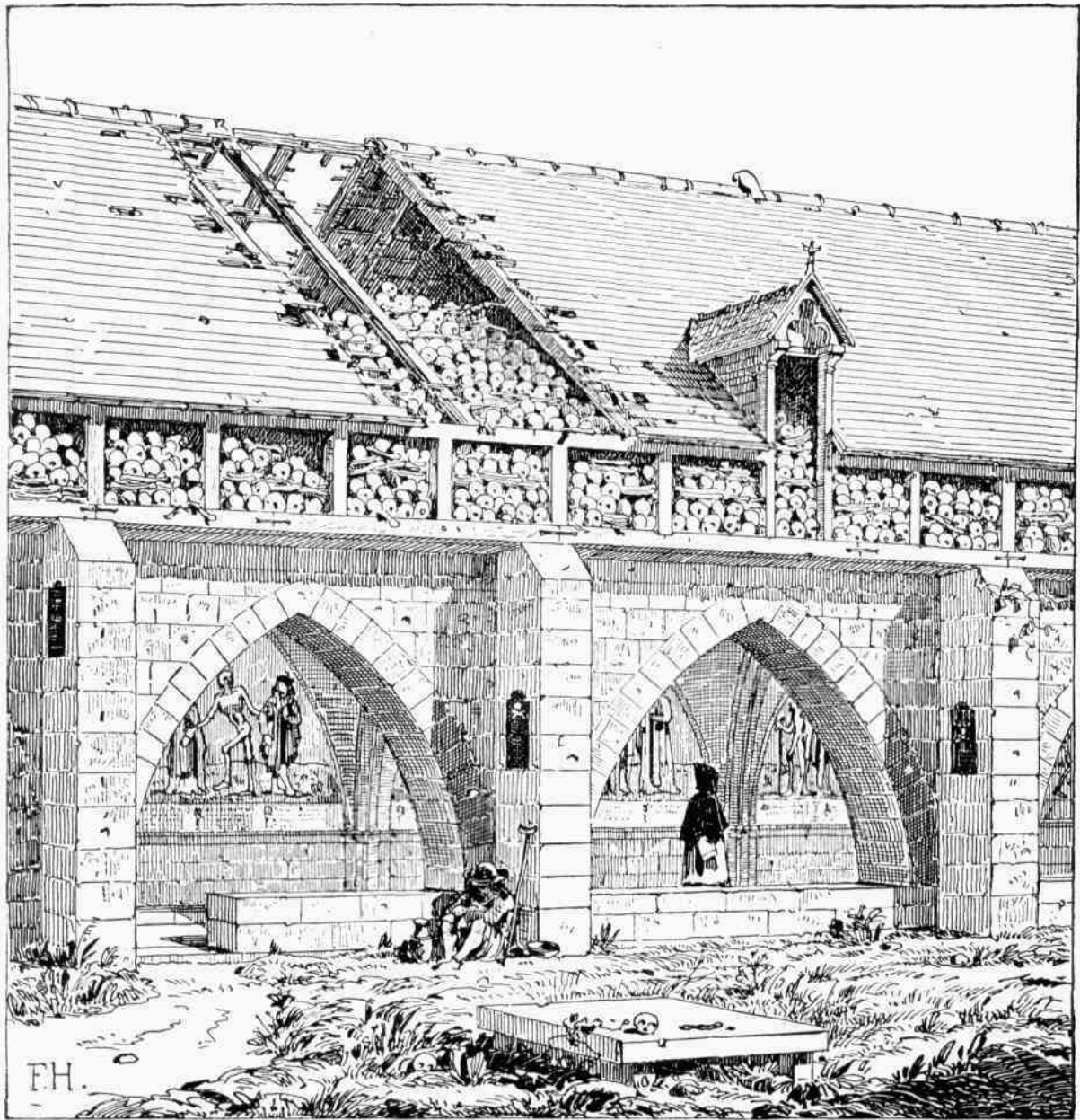
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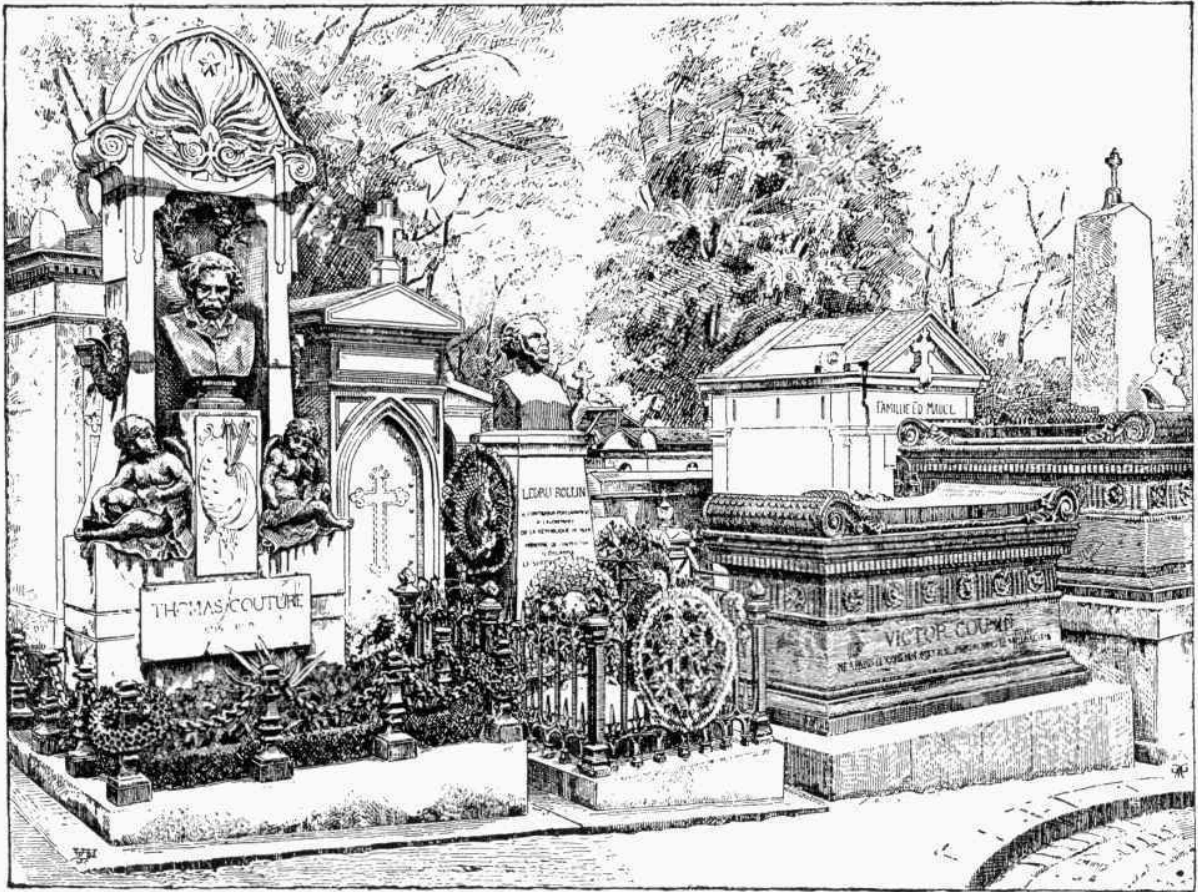
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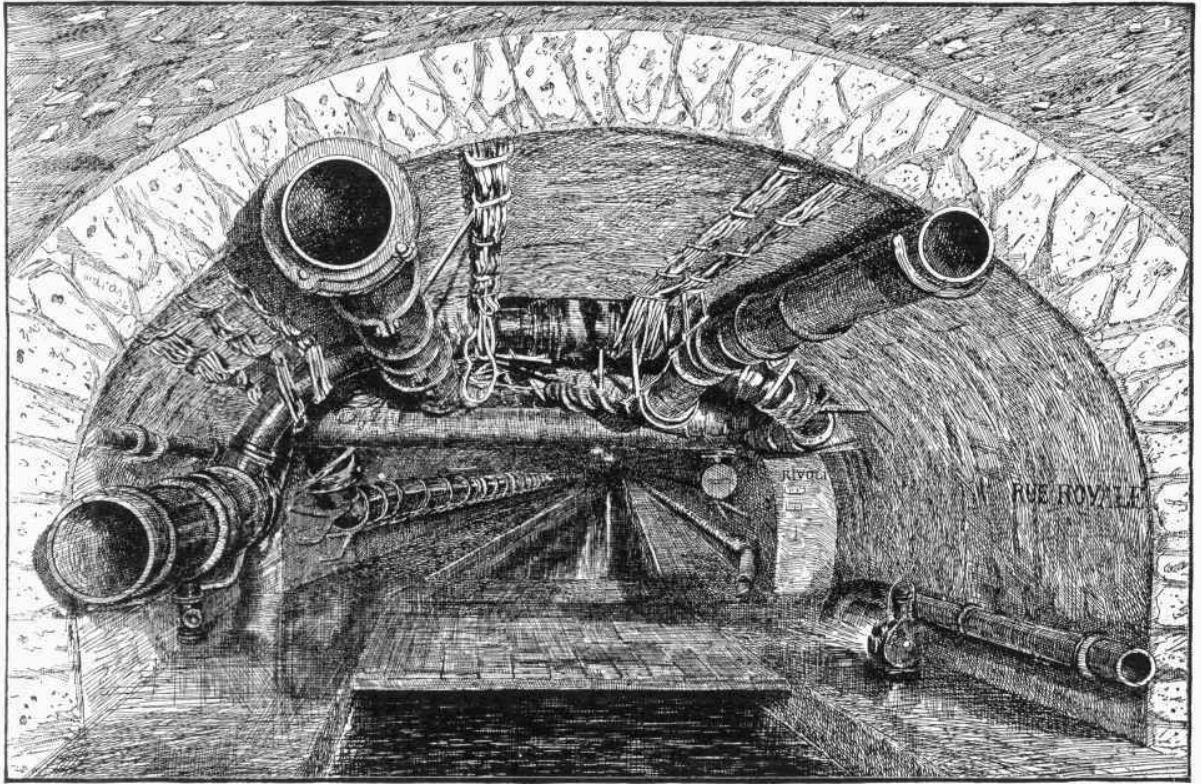
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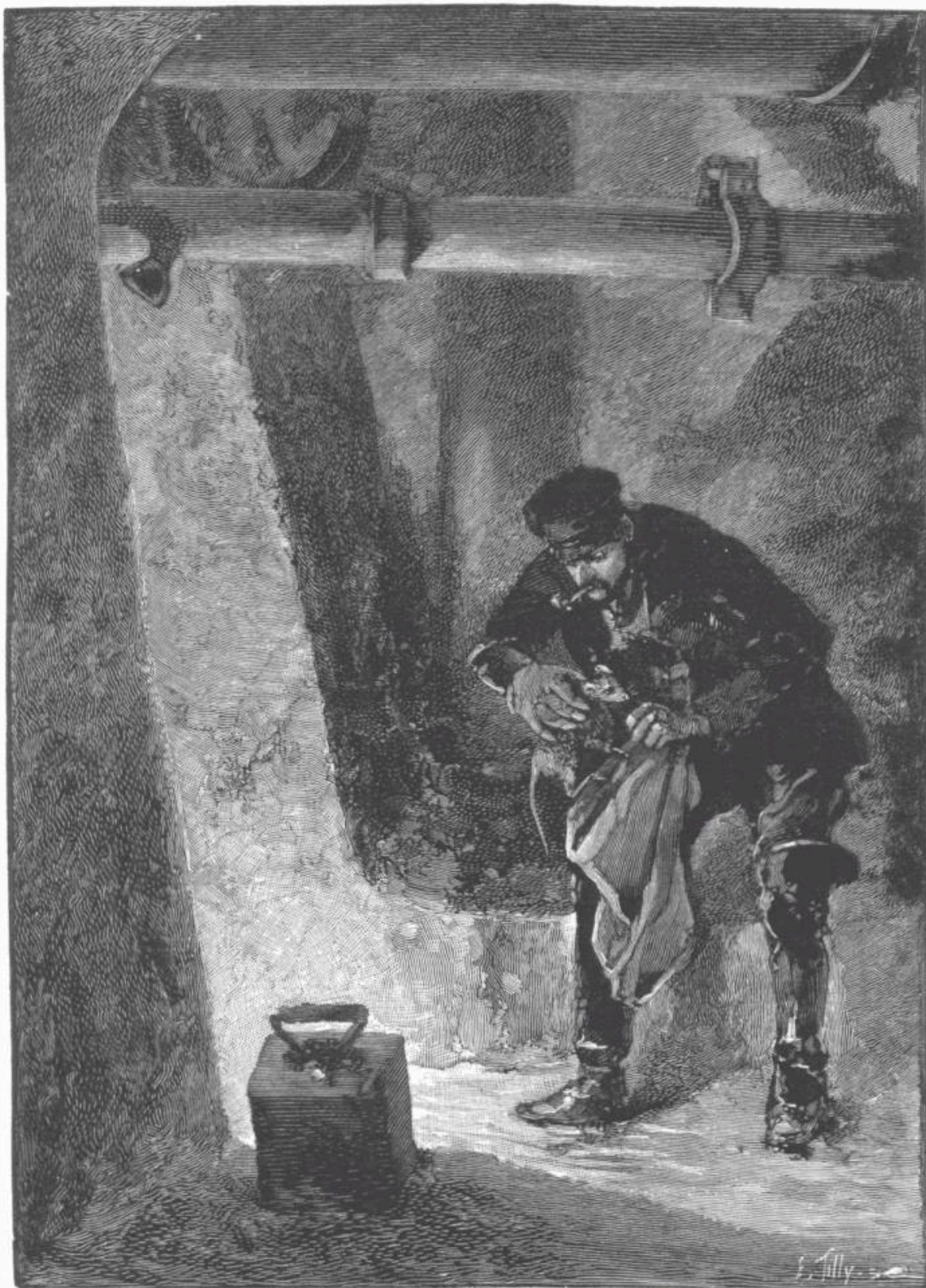
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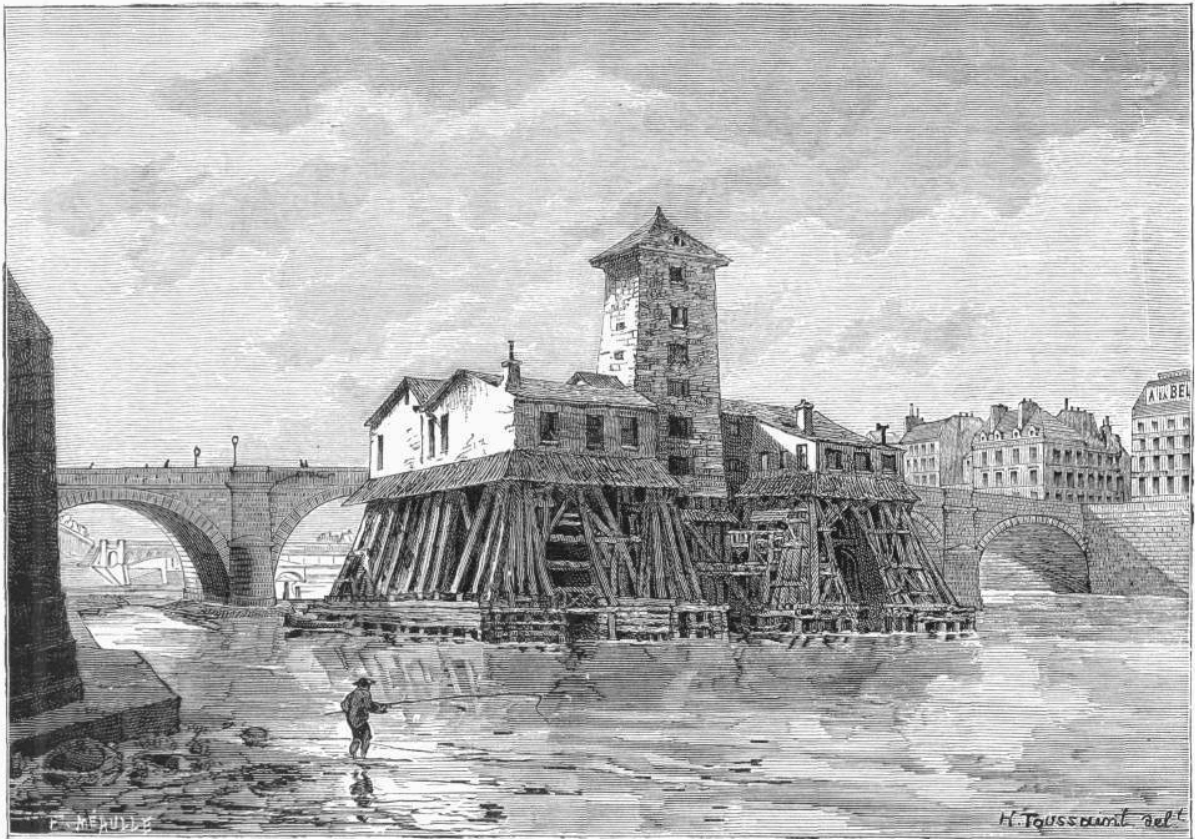
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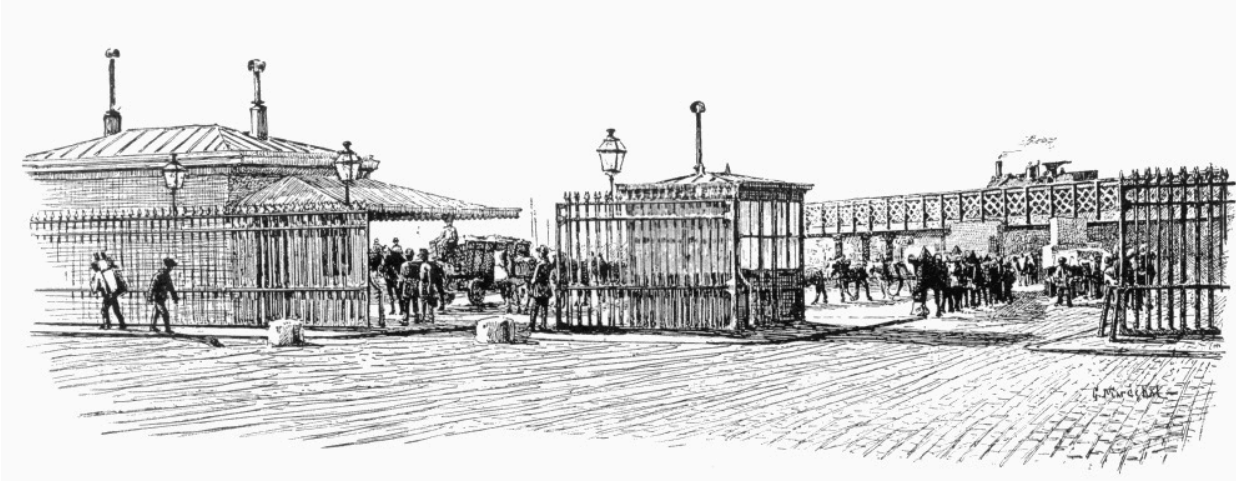
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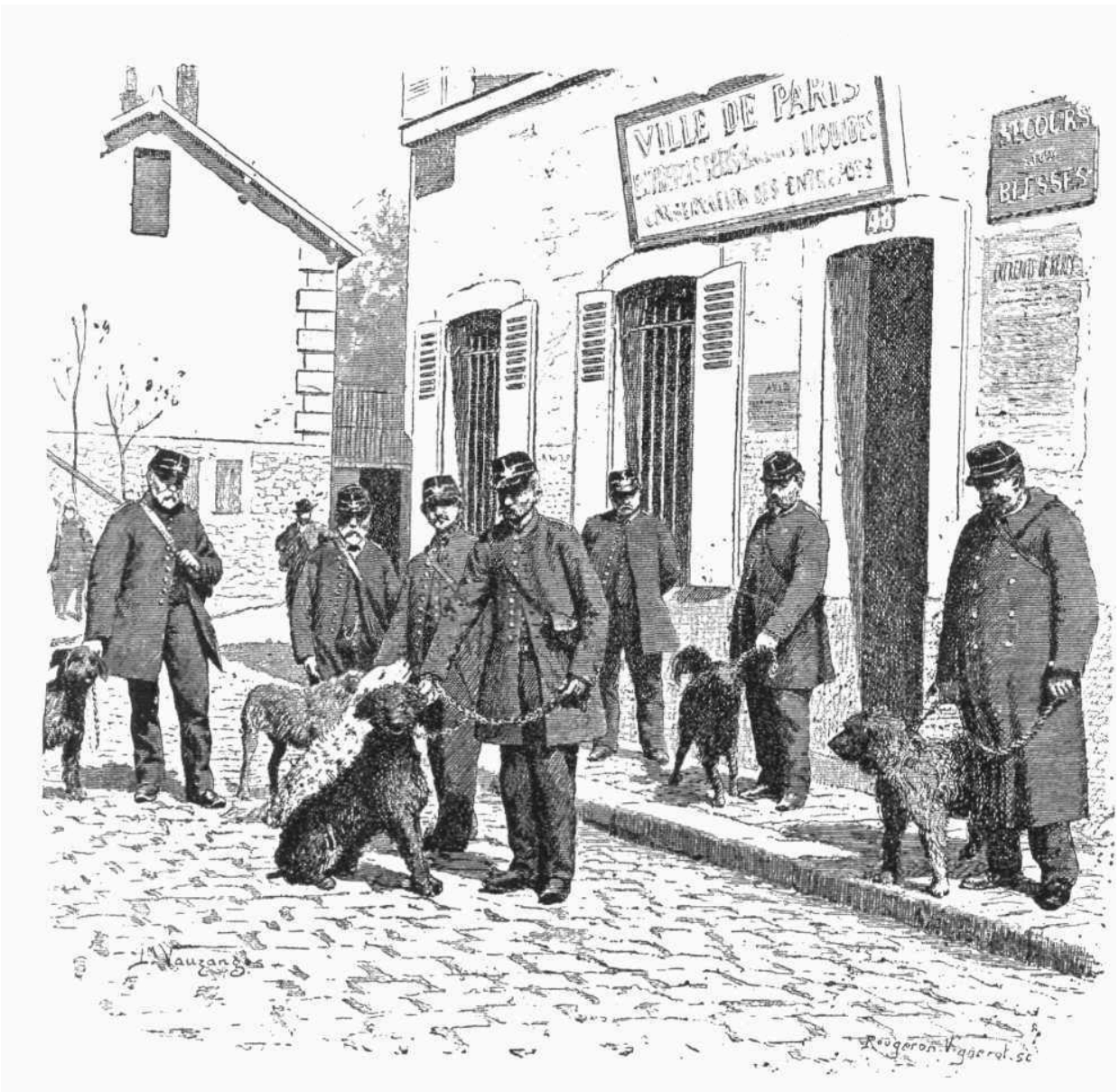
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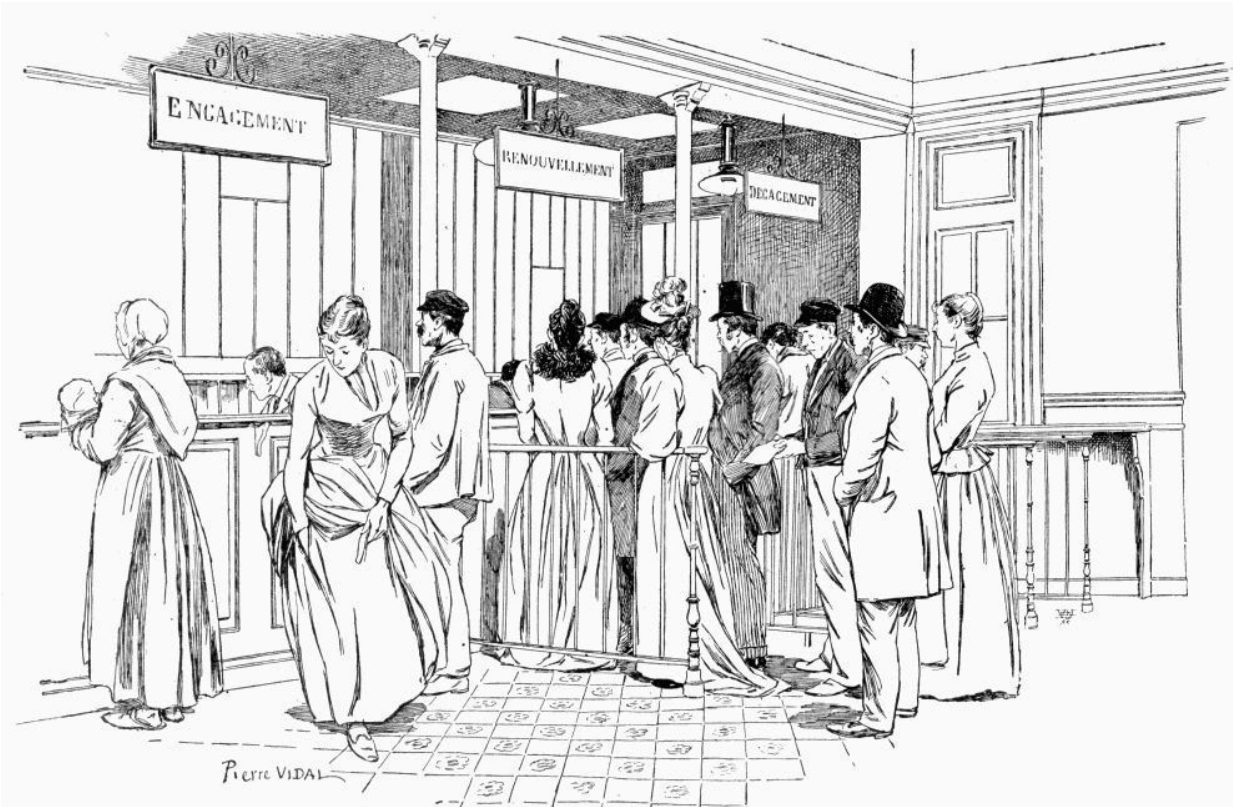
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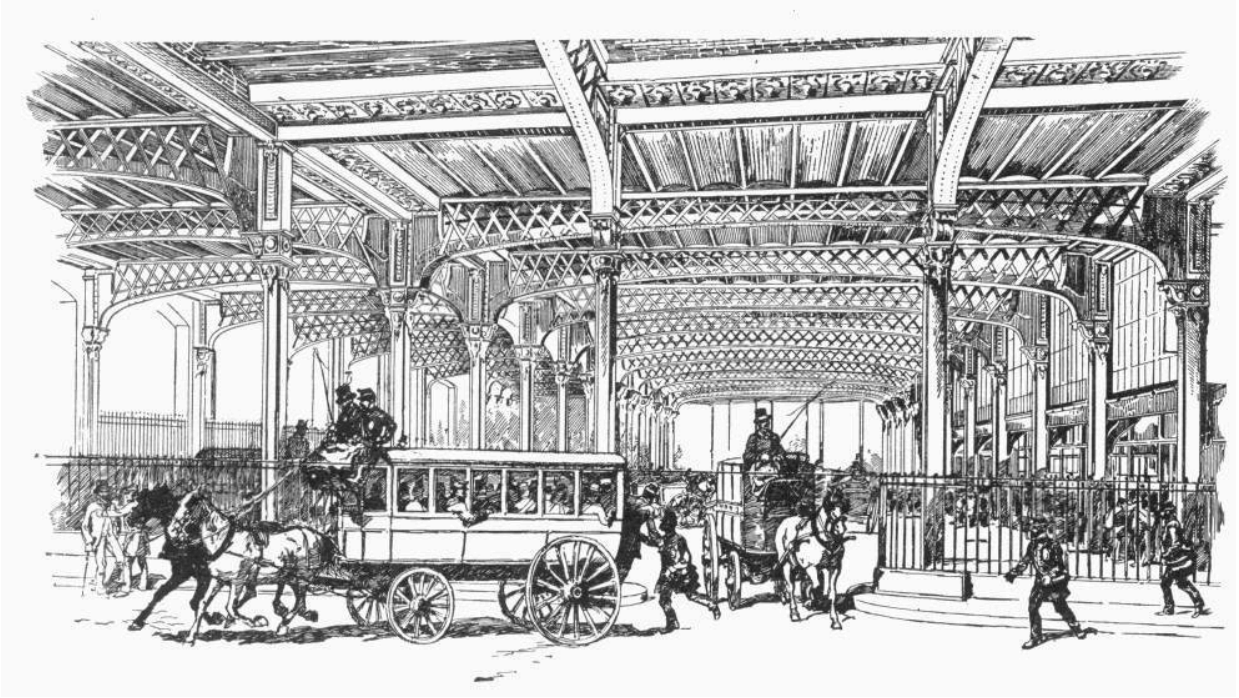
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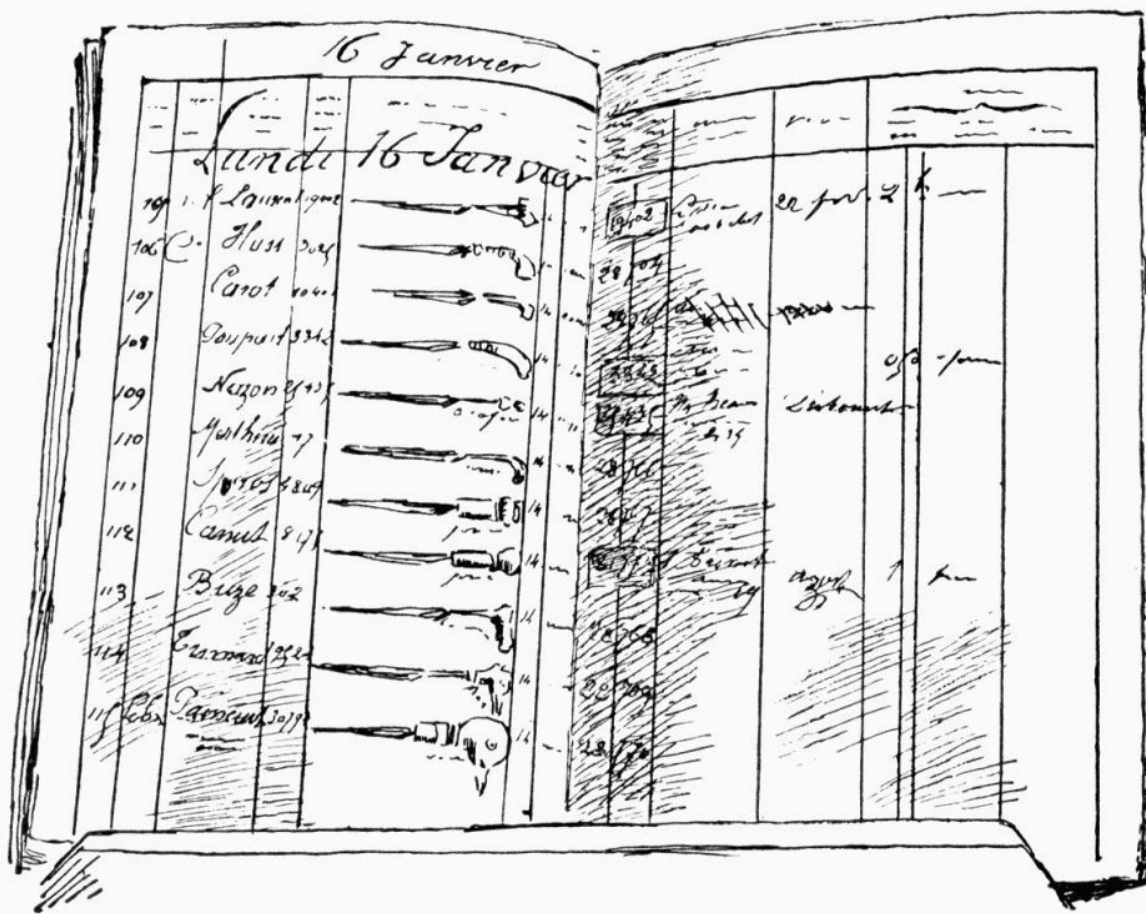
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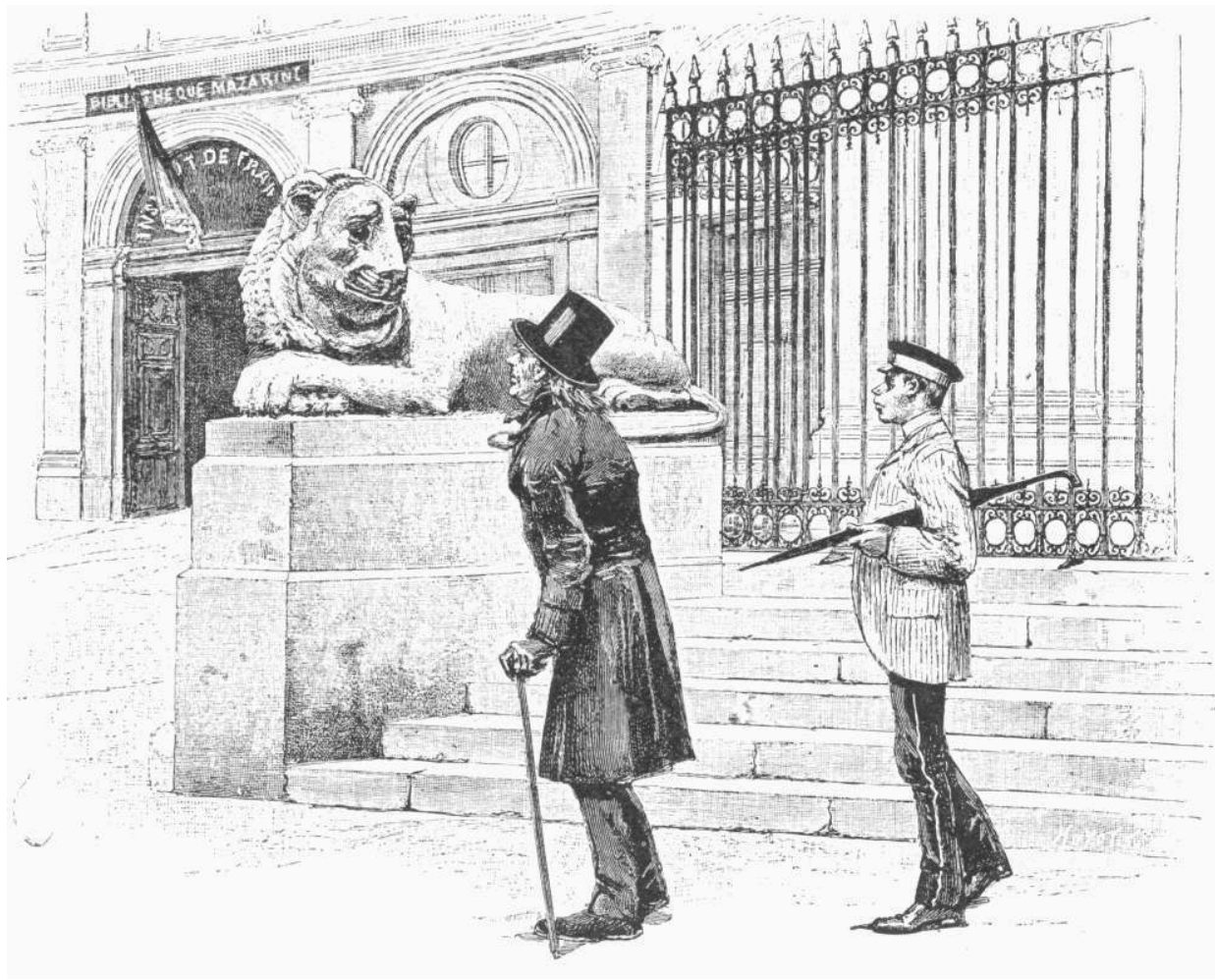
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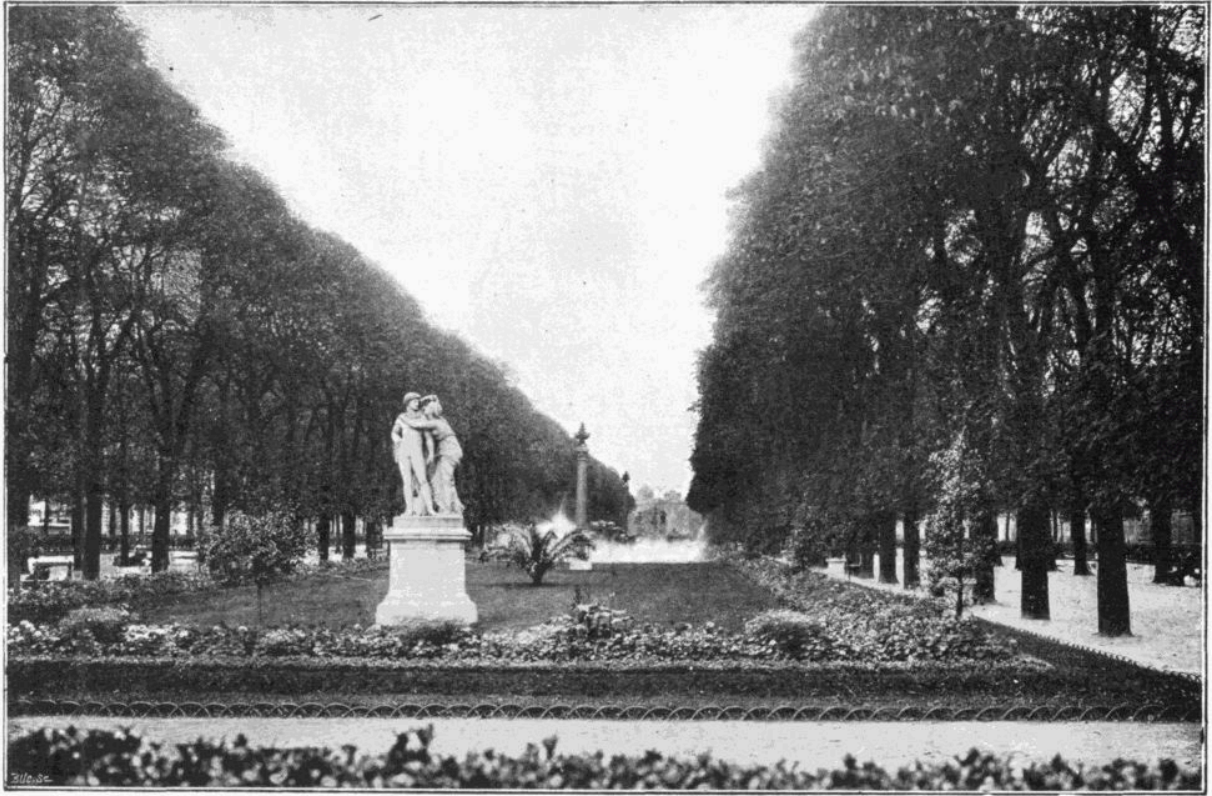
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